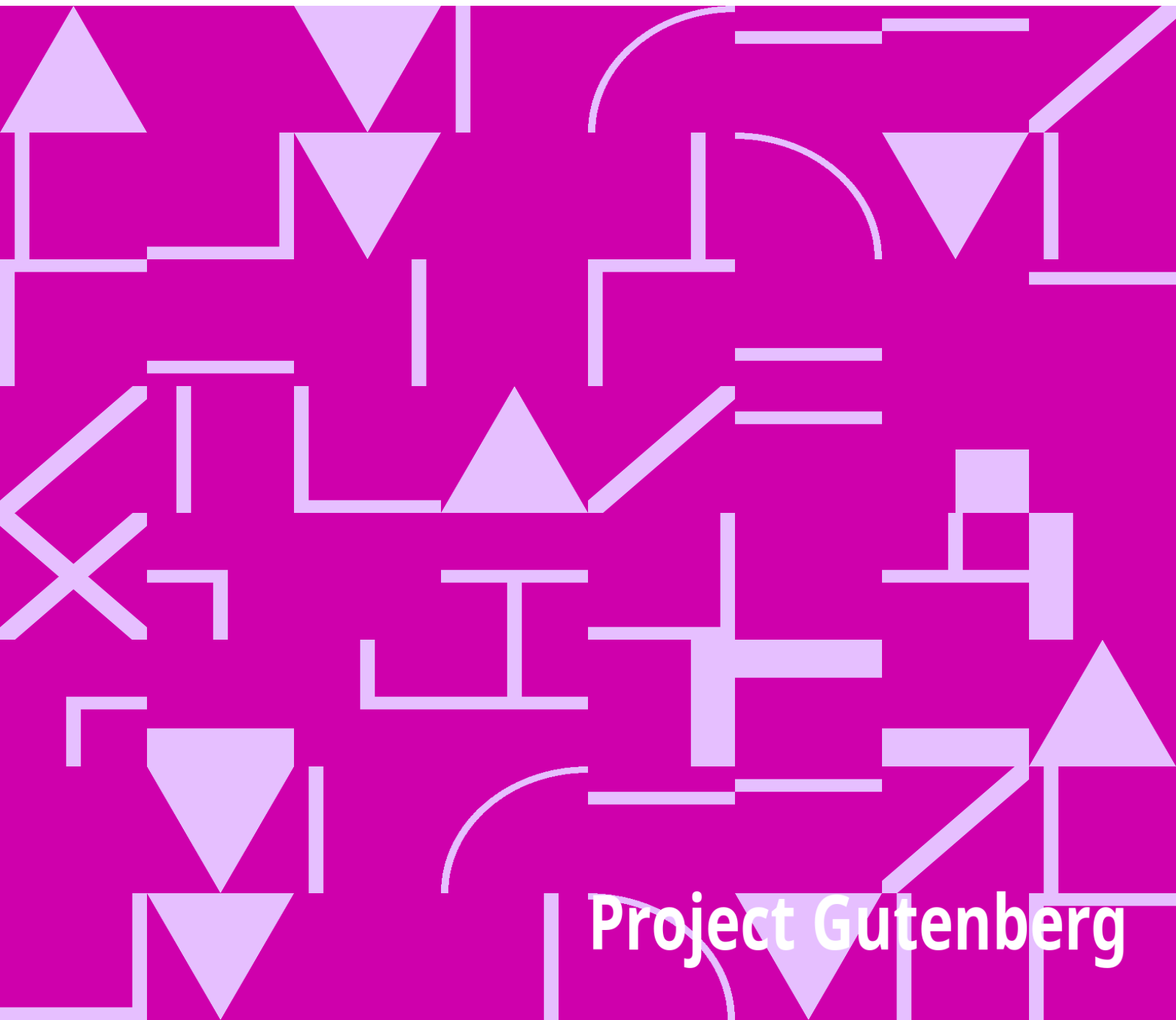


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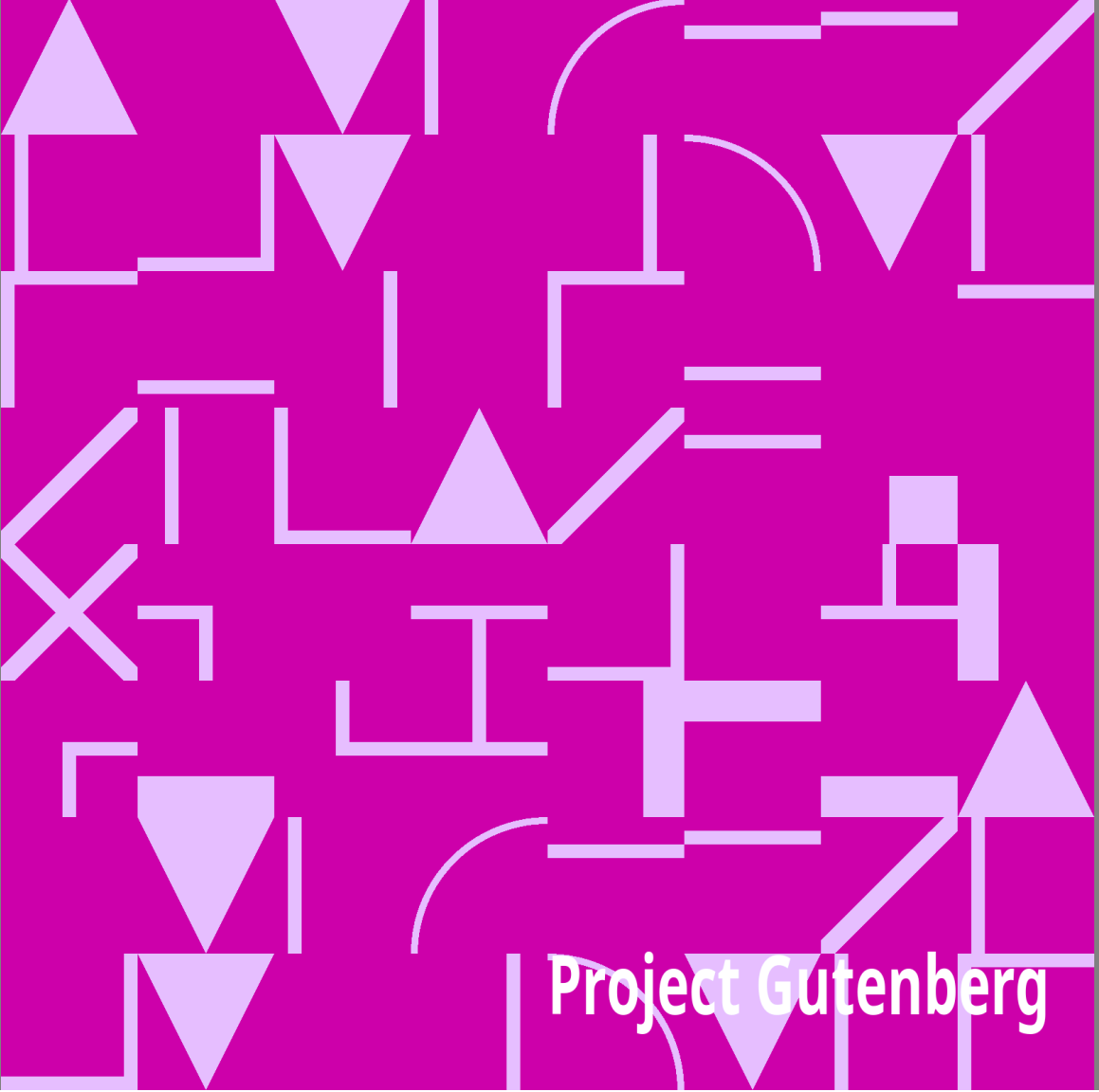
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CONTENTS
OF
THE SECOND VOLUME

PART V
THE RENASCENCE AND THE REFORMATION
1509-1603

[CHAPTER XXIV](#)

HENRY VIII. AND WOLSEY. 1509-1527

PAGE

1. The New King. 1509 [361](#)
2. Continental Troubles. 1508-1511 [363](#)
3. The Rise of Wolsey. 1512 [363](#)
4. The War with France. 1512-1513 [364](#)
5. Peace with France. 1514 [364](#)
6. Wolsey's Policy of Peace. 1514-1518 [364](#)
7. Wolsey and the Renaissance [366](#)
8. The Renaissance in England [367](#)
9. The Oxford Reformers [367](#)
10. 'The Utopia.' 1515-1516 [367](#)

11. More and Henry VIII. [368](#)
12. The Contest for the Empire. 1519 [369](#)
13. The Field of the Cloth of Gold. 1520 [369](#)
14. The Execution of the Duke of Buckingham. 1521 [369](#)
15. Another French War. 1522-1523 [369](#)
16. The Amicable Loan. 1525 [372](#)
17. Closing Years of Wolsey's Greatness. 1525-1527 [372](#)

[CHAPTER XXV](#)

THE BREACH WITH THE PAPACY. 1527-1534

1. The Papacy and the Renaissance [374](#)
2. Wolsey and the Papacy [375](#)
3. Wolsey's Legatine Powers [375](#)
4. Henry VIII. and the Clergy [377](#)
5. German Lutheranism [377](#)
6. Henry's Controversy with Luther [379](#)
7. Queen Catharine and Anne Boleyn [379](#)
8. Henry's Demand for a Divorce. 1527-1528 [382](#)
9. The Legatine Court. 1529 [382](#)
10. The Fall of Wolsey. 1529-1530 [383](#)
11. The House of Commons and the Clergy. 1529 [385](#)
12. The Universities Consulted. 1530 [385](#)
13. The Clergy under a Præmunire. 1530-1531 [385](#)

14. The King's Supreme Headship acknowledged by the Clergy. 1531 [386](#)
15. The Submission of the Clergy. 1532 [386](#)
16. Sir Thomas More and the Protestants. 1529-1532 [386](#)
17. Resignation of Sir Thomas More. 1532 [388](#)
18. The First Act of Annates. 1532 [388](#)
19. The King's Marriage and the Act of Appeals. 1533 [388](#)
20. Archbishop Cranmer and the Court at Dunstable. 1533 [389](#)
21. Frith and Latimer. 1533 [389](#)
22. Completion of the Breach with Rome. 1533-1534 [390](#)

[CHAPTER XXVI](#)

THE ROYAL SUPREMACY. 1534-1547

1. The Act of Succession. 1534 [392](#)
2. The Acts of Treason and Supremacy. 1534 [392](#)
3. The Monks of the Charterhouse. 1534 [393](#)
4. Execution of Fisher and More. 1535 [394](#)
5. The Dissolution of the Smaller Monasteries. 1536 [394](#)
6. The Execution of Anne Boleyn. 1536 [395](#)
7. The Ten Articles. 1536 [395](#)
8. The Translation of the Bible authorised. 1536 [396](#)
9. The Pilgrimage of Grace. 1536-1537 [396](#)
10. Birth of a Prince. 1537 [397](#)

11. The Beginning of the Attack on the Greater Monasteries. 1537-1538 [397](#)
12. Destruction of Relics and Images. 1538 [398](#)
13. The Trial of Lambert. 1538 [399](#)
14. The Marquis of Exeter and the Poles. 1538 [399](#)
15. The Six Articles. 1539 [399](#)
16. Completion of the Suppression of the Monasteries. 1539-1540 [400](#)
17. Anne of Cleves and the Fall of Cromwell. 1539-1540 [400](#)
18. Catherine Howard and Catherine Parr. 1540-1543 [401](#)
19. Ireland. 1534 [401](#)
20. The Geraldine Rebellion. 1534-1535 [402](#)
21. Lord Leonard Grey. 1536-1539 [402](#)
22. Henry VIII. King of Ireland. 1541 [404](#)
23. Solway Moss. 1542 [404](#)
24. War with Scotland and France. 1542-1546 [405](#)
25. The Litany and the Primer. 1544-1545 [409](#)
26. The Last Days of Henry VIII. 1545-1547 [410](#)

[CHAPTER XXVII](#)

EDWARD VI. AND MARY

EDWARD VI., 1547-1553. MARY, 1553-1558.

1. Somerset becomes Protector. 1547 [412](#)
2. The Scotch War. 1547-1548 [412](#)

3. Cranmer's Position in the Church of England. 1547 [413](#)
4. Ecclesiastical Reforms. 1547-1548 [414](#)
5. The First Prayer Book of Edward VI. 1549 [415](#)
6. The Insurrection in the West. 1549 [415](#)
7. Ket's Rebellion. 1549 [415](#)
8. The Fall of Somerset. 1549 [416](#)
9. Warwick and the Advanced Reformers. 1549 [416](#)
10. Latimer's Sermons. 1548-1550 [417](#)
11. Warwick and Somerset. 1550-1552 [417](#)
12. The Second Prayer Book of Edward VI. 1552 [418](#)
13. The Forty-two Articles. 1553 [419](#)
14. Northumberland's Conspiracy. 1553 [421](#)
15. Lady Jane Grey. 1553 [421](#)
16. Mary restores the Mass. 1553 [422](#)
17. Mary's First Parliament. 1553 [422](#)
18. Wyatt's Rebellion. 1554 [423](#)
19. The Queen's Marriage [423](#)
20. The Submission to Rome. 1554 [424](#)
21. The Beginning of the Persecution. 1555 [424](#)
22. Death of Cranmer. 1556 [425](#)
23. Continuance of the Persecution. 1556-1558 [426](#)
24. The Queen's Disappointment. 1555-1556 [426](#)
25. War with France and the Loss of Calais. 1557-1558 [427](#)

26. Death of Mary. 1558 [427](#)

CHAPTER XXVIII

THE ELIZABETHAN SETTLEMENT IN CHURCH AND STATE

1558-1570

1. Elizabeth's Difficulties. 1558 [428](#)
2. The Act of Uniformity and Supremacy. 1559 [429](#)
3. The new Bishops and the Ceremonies. 1559-1564 [429](#)
4. Calvinism [430](#)
5. Peace with France. 1559 [431](#)
6. The Reformation in Scotland. 1559 [432](#)
7. The Claims of Mary Stuart. 1559 [432](#)
8. The Treaty of Edinburgh. 1560 [433](#)
9. Scottish Presbyterianism. 1561 [434](#)
10. Mary and Elizabeth. 1561 [435](#)
11. The French War. 1562-1564 [436](#)
12. End of the Council of Trent. 1563 [436](#)
13. The Jesuits [436](#)
14. The Danger from Scotland. 1561-1565 [437](#)
15. The Darnley Marriage. 1565 [438](#)
16. The Murder of Rizzio. 1566 [438](#)
17. The Murder of Darnley. 1567 [439](#)
18. The Deposition and Flight of Mary. 1567-1568 [439](#)

19. Mary's Case before English Commissioners. 1568-1569 [440](#)
20. The Rising in the North. 1569 [441](#)
21. The Papal Excommunication. 1570 [441](#)

CHAPTER XXIX

ELIZABETH AND THE EUROPEAN CONFLICT. 1570-1587

1. The Continental Powers. 1566-1570 [442](#)
2. The Anjou Marriage Treaty and the Ridolfi Plot. 1570-1571 [443](#)
3. Elizabeth and the Puritans [444](#)
4. Elizabeth and Parliament. 1566 [444](#)
5. A Puritan Parliament. 1571 [445](#)
6. The Duke of Norfolk's Plot and Execution. 1571-1572 [445](#)
7. The Admonition to Parliament. 1572 [446](#)
8. Mariners and Pirates [446](#)
9. Westward Ho! [447](#)
10. Francis Drake's Voyage to Panama. 1572 [448](#)
11. The Seizure of Brill, and the Massacre of St. Bartholomew. 1572 [449](#)
12. The Growth of the Dutch Republic. 1572-1578 [449](#)
13. Quiet Times in England. 1572-1577 [450](#)
14. Drake's Voyage. 1577-1580 [450](#)
15. Ireland and the Reformation. 1547 [451](#)
16. Ireland under Edward VI. and Mary. 1547-1558 [451](#)

17. Elizabeth and Ireland. 1558-1578 [452](#)
18. The Landing at Smerwick, and the Desmond Rising. 1579-1583 [452](#)
19. The Jesuits in England. 1580 [453](#)
20. The Recusancy Laws. 1581 [454](#)
21. Growing Danger of Elizabeth. 1580-1584 [454](#)
22. The Association. 1584-1585 [456](#)
23. Growth of Philip's Power. 1584-1585 [456](#)
24. Babington's Plot, and the Trial of Mary Stuart. 1586 [457](#)
25. Execution of Mary Stuart. 1587 [458](#)

[CHAPTER XXX](#)

ELIZABETH'S YEARS OF TRIUMPH. 1587-1603

1. The Singeing of the King of Spain's Beard. 1587 [458](#)
2. The Approach of the Armada. 1588 [458](#)
3. The Equipment of the Armada. 1588 [459](#)
4. The Equipment of the English Fleet. 1588 [460](#)
5. The Defeat of the Armada. 1588 [462](#)
6. The Destruction of the Armada. 1588 [462](#)
7. Philip II. and France. 1588-1593 [464](#)
8. Maritime Enterprises. 1589-1596 [464](#)
9. Increasing Prosperity [464](#)
10. Buildings [465](#)

11. Furniture [465](#)
12. Growing Strength of the House of Commons [468](#)
13. Archbishop Whitgift and the Court of High Commission. 1583 [468](#)
14. The House of Commons and Puritanism. 1584 [470](#)
15. The Separatists [470](#)
16. Whitgift and Hooker [472](#)
17. Spenser, Shakspeare, and Bacon [473](#)
18. Condition of the Catholics. 1588-1603 [475](#)
19. Irish Difficulties. 1583-1594 [475](#)
20. O'Neill and the Earl of Essex. 1595-1600 [475](#)
21. Essex's Imprisonment and Execution. 1599-1601 [476](#)
22. Mountjoy's Conquest of Ireland. 1600-1603 [478](#)
23. Parliament and the Monopolies. 1601 [478](#)
24. The Last Days of Elizabeth. 1601-1603 [479](#)

PART VI
THE PURITAN REVOLUTION. 1603-1660

[CHAPTER XXXI](#)

JAMES I. 1603-1625

1. The Peace with Spain. 1603-1604 [481](#)
2. The Hampton Court Conference. 1604 [481](#)
3. James and the House of Commons [482](#)

4. Gunpowder Plot. 1604-1605 [483](#)
5. The Post-nati. 1606-1608 [483](#)
6. Irish Difficulties. 1603-1610 [483](#)
7. Bate's Case and the New Impositions. 1606-1608 [484](#)
8. The Great Contract. 1610-1611 [484](#)
9. Bacon and Somerset. 1612-1613 [486](#)
10. The Addled Parliament. 1614 [486](#)
11. The Spanish Alliance. 1614-1617 [488](#)
12. The Rise of Buckingham. 1615-1618 [488](#)
13. The Voyage and Execution of Raleigh. 1617-1618 [489](#)
14. Colonisation of Virginia and New England. 1607-1620 [489](#)
15. The Beginning of the Thirty Years' War. 1618-1620 [490](#)
16. The Meeting of James's Third Parliament. 1621 [490](#)
17. The Royal Prerogative. 1616-1621 [492](#)
18. Financial Reform. 1619 [492](#)
19. Favouritism and Corruption [494](#)
20. The Monopolies Condemned. 1621 [494](#)
21. The Fall of Bacon. 1621 [495](#)
22. Digby's Mission, and the Dissolution of Parliament. 1621 [496](#)
23. The Loss of the Palatinate. 1622 [497](#)
24. Charles's Journey to Madrid. 1623 [497](#)
25. The Prince's Return. 1623 [498](#)
26. The Last Parliament of James I. 1624 [500](#)

27. The French Alliance [501](#)

28. Mansfeld's Expedition, and the Death of James I. 1624-1625
[501](#)

[CHAPTER XXXII](#)

THE GROWTH OF THE PERSONAL GOVERNMENT OF CHARLES I.

1625-1634

1. Charles I. and Buckingham. 1625 [502](#)
2. Charles's First Parliament. 1625 [502](#)
3. The Expedition to Cadiz. 1625 [502](#)
4. Charles's Second Parliament. 1626 [503](#)
5. The Forced Loan. 1626 [505](#)
6. The Expedition to Ré. 1627 [506](#)
7. The Five Knights' Case. 1627 [506](#)
8. Wentworth and Eliot in the Third Parliament of Charles I. 1628
[508](#)
9. The Petition of Right. 1628 [508](#)
10. Tonnage and Poundage. 1628 [509](#)
11. Buckingham's Murder. 1628 [510](#)
12. The Question of Sovereignty. 1628 [510](#)
13. Protestantism of the House of Commons. 1625-1628 [511](#)
14. Religious Differences. 1625-1628 [511](#)
15. The King's Declaration. 1628 [512](#)

16. The Second Session of the Third Parliament of Charles I. 1629 [512](#)
17. Breach between the King and the Commons. 1629 [513](#)
18. The Constitutional Dispute. 1629 [513](#)
19. The Victory of Personal Government. 1629-1632 [514](#)
20. Star Chamber Sentences. 1630-1633 [514](#)
21. Laud's Intellectual Position. 1629-1633 [515](#)
22. Laud as the Upholder of Uniformity [516](#)
23. The Beginning of Laud's Archbishopric. 1633-1634 [517](#)
24. Laud and Prynne. 1633-1634 [519](#)

[CHAPTER XXXIII](#)

THE OVERTHROW OF THE PERSONAL GOVERNMENT OF CHARLES I. 1634-1641

1. The Metropolitan Visitation. 1634-1637 [520](#)
2. Prynne, Bastwick, and Burton. 1637 [521](#)
3. Financial Pressure. 1635-1637 [521](#)
4. Ship-money. 1634-1637 [523](#)
5. Hampden's Case. 1637-1638 [523](#)
6. Scottish Episcopacy. 1572-1612 [524](#)
7. The Scottish Bishops and Clergy. 1612-1637 [525](#)
8. The Riot at Edinburgh and the Covenant. 1637-1638 [525](#)
9. The Assembly of Glasgow, and the Abolition of Episcopacy. 1638 [526](#)

10. The First Bishops' War. 1639 [526](#)
11. Wentworth in Ireland. 1633-1639 [527](#)
12. The Proposed Plantation of Connaught [528](#)
13. The Short Parliament. 1640 [528](#)
14. The Second Bishops' War. 1640 [529](#)
15. The Meeting of the Long Parliament. 1640 [529](#)
16. The Impeachment of Strafford. 1641 [530](#)
17. Strafford's Attainder and Execution [530](#)
18. Constitutional Reforms. 1641 [531](#)

[CHAPTER XXXIV](#)

THE FORMATION OF PARLIAMENTARY PARTIES AND THE FIRST YEARS OF THE CIVIL WAR. 1641-1644

1. The King's Visit to Scotland. 1641 [532](#)
2. Parties formed on Church Questions. 1641 [532](#)
3. Irish Parties. 1641 [533](#)
4. The Irish Insurrection. 1641 [533](#)
5. The Grand Remonstrance. 1641 [534](#)
6. The King's Return. 1641 [534](#)
7. The Impeachment of the Bishops. 1641 [535](#)
8. The Impeachment of the Five Members. 1642 [535](#)
9. The Attempt on the Five Members. 1642 [536](#)
10. The Commons in the City. 1642 [536](#)

11. The Struggle for the Militia. 1642 [536](#)
12. Edgehill and Turnham Green. 1642 [537](#)
13. The King's Plan of Campaign. 1643 [537](#)
14. Royalist Successes. 1643 [538](#)
15. The Siege of Gloucester. 1643 [538](#)
16. The First Battle of Newbury. 1643 [539](#)
17. The Eastern Association. 1643 [539](#)
18. Oliver Cromwell. 1642-1643 [539](#)
19. The Assembly of Divines. 1643 [540](#)
20. The Solemn League and Covenant. 1643 [540](#)
21. The Irish War. 1641-1643 [541](#)
22. Winceby and Arundel. 1643-1644 [542](#)
23. The Committee of Both Kingdoms. 1644 [542](#)
24. The Campaign of Marston Moor. 1644 [542](#)
25. Presbyterians and Independents. 1644 [543](#)
26. Essex's Surrender at Lostwithiel. 1644 [544](#)
27. The Second Battle of Newbury. 1644 [544](#)

[CHAPTER XXXV](#)

THE NEW MODEL ARMY. 1644-1649

1. The Self-denying Ordinance and the New Model. 1645 [545](#)
2. Milton's 'Areopagitica.' 1644 [545](#)
3. The Execution of Laud. 1645 [546](#)

4. Montrose and Argyle. 1644 [546](#)
5. Montrose and the Highlands. 1644-1645 [547](#)
6. The New Model Army in the Field. 1645 [547](#)
7. The Battle of Naseby. 1645 [548](#)
8. The Results of Naseby. 1645 [548](#)
9. Charles's Wanderings. 1645 [549](#)
10. Glamorgan in Ireland. 1645-1646 [549](#)
11. The King's Flight to the Scots. 1646 [550](#)
12. Charles at Newcastle. 1646 [551](#)
13. The Removal of the King to Holmby. 1647 [553](#)
14. Dispute between the Presbyterians and the Army. 1647 [553](#)
15. Cromwell and the Army. 1647 [554](#)
16. The Abduction of the King. 1647 [554](#)
17. The Exclusion of the Eleven Members. 1647 [555](#)
18. The Heads of the Proposals. 1647 [555](#)
19. The King's Flight to the Isle of Wight. 1647 [556](#)
20. The Scottish Engagement, and the Vote of No Addresses. 1647-1648 [556](#)
21. The Second Civil War. 1648 [556](#)
22. Pride's Purge. 1648 [557](#)
23. The High Court of Justice. 1649 [557](#)
24. The King's Trial and Execution. 1649 [559](#)
25. Results of Charles's Execution. 1649 [560](#)

CHAPTER XXXVI

THE COMMONWEALTH AND THE PROTECTORATE. 1649-1660

1. Establishment of the Commonwealth. 1649 [561](#)
2. Parties in Ireland. 1647-1649 [562](#)
3. Cromwell in Ireland. 1649-1650 [562](#)
4. Montrose and Charles II. in Scotland. 1650 [563](#)
5. Dunbar and Worcester. 1650-1651 [563](#)
6. The Navigation Act. 1651 [564](#)
7. The Dutch War. 1652-1653 [565](#)
8. Unpopularity of the Parliament. 1652-1653 [565](#)
9. Vane's Reform Bill. 1653 [566](#)
10. Dissolution of the Long Parliament by Cromwell. 1653 [566](#)
11. The so-called Barebone's Parliament. 1653 [566](#)
12. The Protectorate, and the Instrument of Government. 1653 [568](#)
13. Character of the Instrument of Government [568](#)
14. Oliver's Government. 1653-1654 [569](#)
15. The First Protectorate Parliament. 1654-1655 [570](#)
16. The Major Generals. 1655 [570](#)
17. Oliver's Foreign Policy. 1654-1655 [571](#)
18. The French Alliance. 1655 [572](#)
19. Oliver's Second Parliament, and the Humble Petition and Advice. 1656 [572](#)
20. The Dissolution of the Second Protectorate Parliament. 1658 [573](#)

21. Victory Abroad and Failure at Home. 1657-1658 [573](#)
22. Oliver's Death. 1658 [574](#)
23. Richard Cromwell. 1658-1659 [574](#)
24. The Long Parliament Restored. 1659 [575](#)
25. Military Government. 1659 [575](#)
26. Monk and the Rump. 1660 [575](#)
27. End of the Long Parliament. 1660 [576](#)
28. The Declaration of Breda. 1660 [576](#)

PART VII
THE POLITICAL REVOLUTION. 1660-1689

[CHAPTER XXXVII](#)

CHARLES II. AND CLARENDON. 1660-1667

1. Return of Charles II. 1660 [578](#)
2. King and Parliament. 1660 [579](#)
3. Formation of the Government. 1660 [580](#)
4. The Political Ideas of the Convention Parliament. 1660 [580](#)
5. Execution of the Political Articles of the Declaration of Breda. 1660 [581](#)
6. Ecclesiastical Debates. 1660 [583](#)
7. Venner's Plot and its Results. 1661 [584](#)
8. The Cavalier Parliament and the Corporation Act. 1661 [585](#)

9. The Savoy Conference, and the Act of Uniformity. 1661-1662 [585](#)
10. The Dissenters. 1662 [585](#)
11. The Parliamentary Presbyterians. 1662 [586](#)
12. Profligacy of the Court. 1662 [586](#)
13. Marriage of Charles II. and Sale of Dunkirk. 1662 [587](#)
14. The Question of Toleration Raised. 1662-1663 [587](#)
15. The Conventicle Act. 1664 [588](#)
16. The Repeal of the Triennial Act. 1664 [588](#)
17. Growing Hostility between England and the Dutch. 1660-1664 [589](#)
18. Outbreak of the First Dutch War of the Restoration. 1664-1665 [589](#)
19. The Plague. 1665 [590](#)
20. The Five Mile Act. 1665 [590](#)
21. Continued Struggle with the Dutch. 1665-1666 [590](#)
22. The Fire of London. 1666 [592](#)
23. Designs of Louis XIV. 1665-1667 [592](#)
24. The Dutch in the Medway, and the Peace of Breda. 1667 [593](#)
25. Clarendon and the House of Commons. 1667 [593](#)
26. The Fall of Clarendon. 1667 [594](#)
27. Scotland and Ireland. 1660 [595](#)

CHAPTER XXXVIII

CHARLES II. AND THE CABAL. 1667-1674

1. Milton and Bunyan. [596](#)
2. Butler and the Dramatists. [596](#)
3. Reason and Science. [598](#)
4. Charles II. and Toleration. 1667 [598](#)
5. Buckingham and Arlington. 1667-1669 [599](#)
6. The Triple Alliance. 1668 [599](#)
7. Charles's Negotiations with France. 1669-1670 [600](#)
8. The Treaty of Dover. 1670 [600](#)
9. The Cabal. 1670 [602](#)
10. Ashley's Policy. [602](#)
11. Buckingham's Sham Treaty. 1671 [603](#)
12. The Stop of the Exchequer. 1672 [603](#)
13. The Declaration of Indulgence. 1672 [604](#)
14. The Second Dutch War of the Restoration. 1672 [605](#)
15. 'Delenda est Carthago.' 1673 [606](#)
16. Withdrawal of the Declaration of Indulgence. 1673 [606](#)
17. The Test Act. 1673 [606](#)
18. Results of the Test Act. 1673 [607](#)
19. Continuance of the Dutch War. 1673 [607](#)
20. The Duke of York's Marriage and Shaftesbury's Dismissal.
1673 [608](#)

21. Peace with the Dutch. 1674 [608](#)

CHAPTER XXXIX

DANBY'S ADMINISTRATION AND THE THREE SHORT PARLIAMENTS. 1675-1681

1. Growing Influence of Danby. 1675 [610](#)
2. Parliamentary Parties. 1675 [610](#)
3. The Non-Resistance Bill. 1675 [611](#)
4. Charles a Pensionary of France. 1675-1676 [611](#)
5. Two Foreign Policies. 1677 [612](#)
6. The Marriage of the Prince of Orange. 1677 [613](#)
7. Danby's Position. 1677 [613](#)
8. The Peace of Nymwegen. 1678 [614](#)
9. The Popish Plot. 1678 [615](#)
10. Growing Excitement. 1678 [615](#)
11. Danby's Impeachment and the Dissolution of the Cavalier Parliament. 1678-1679 [616](#)
12. The Meeting of the First Short Parliament. 1679 [616](#)
13. The Exclusion Bill and the Habeas Corpus Act. 1679 [617](#)
14. Shaftesbury and the King. 1679 [617](#)
15. Shaftesbury and Halifax. 1679 [618](#)
16. The Divine Right of Kings. 1679 [619](#)
17. The Highland Host. 1677-1678 [619](#)

18. Drumclog and Bothwell Bridge. 1679 [619](#)
19. Petitioners and Abhorrrers. 1680 [620](#)
20. The Second Short Parliament. 1680-1681 [620](#)
21. The Third Short Parliament. 1681 [621](#)

CHAPTER XL

THE LAST YEARS OF CHARLES II. 1681-1685

1. Tory Reaction. 1681 [622](#)
2. 'Absolom and Achitophel.' 1681 [623](#)
3. The Scottish Test Act and the Duke of York's Return. 1681-1682 [623](#)
4. The City Elections. 1682 [623](#)
5. Flight and Death of Shaftesbury. 1682-1683 [624](#)
6. The Attack on the City. 1682-1683 [624](#)
7. The Remodelling of the Corporations. 1683-1684 [625](#)
8. The Rye House Plot. 1683 [625](#)
9. The Whig Combination. 1683 [625](#)
10. Trial and Execution of Lord Russell. 1683 [625](#)
11. Execution of Algernon Sidney. 1683 [626](#)
12. Parties at Court. 1684 [626](#)
13. Death of Charles II. 1685 [627](#)
14. Constitutional Progress. 1660-1685 [627](#)
15. Prosperity of the Country. [628](#)

16. The Coffee Houses. [630](#)
17. The Condition of London. [631](#)
18. Painting. [631](#)
19. Architecture. [631](#)
20. Science. [632](#)
21. Difficulties of Communication. [632](#)
22. The Country Gentry and the Country Clergy. [633](#)
23. Alliance between the Gentry and the Church. [633](#)

[CHAPTER XLI](#)

JAMES II. 1685-1689

1. The Accession of James II. 1685 [634](#)
2. A Tory Parliament. 1685 [636](#)
3. Argyle's Landing. 1685 [636](#)
4. Monmouth's Landing. 1685 [637](#)
5. The Bloody Assizes. 1685 [637](#)
6. The Violation of the Test Act. 1685 [638](#)
7. Breach between Parliament and King. 1685 [638](#)
8. The Dispensing Power. 1686 [638](#)
9. The Ecclesiastical Commission. 1686 [639](#)
10. Scotland and Ireland. 1686-1687 [639](#)
11. The Fall of the Hydes. 1686-1687 [640](#)
12. The Declaration of Indulgence. 1687 [640](#)

13. The Expulsion of the Fellows of Magdalen. 1687 [641](#)
14. An Attempt to pack a Parliament. 1687 [641](#)
15. A Second Declaration of Indulgence. 1688 [642](#)
16. Resistance of the Clergy. 1688 [642](#)
17. The Trial of the Seven Bishops. 1688 [643](#)
18. Invitation to William of Orange. 1688 [643](#)
19. Landing of William. 1688 [644](#)
20. William's March upon London. 1688 [645](#)
21. A Convention Parliament Summoned. 1688 [646](#)
22. The Throne Declared Vacant. 1689 [646](#)
23. William and Mary to be Joint Sovereigns. 1689 [647](#)
24. Character of the Revolution. [647](#)

LIST OF ILLUSTRATIONS

FIG. Page

1. Henry VIII. [368](#)
(From a painting by Holbein about 1536, belonging to Earl Spencer)
2. Cardinal Wolsey [365](#)
(From an original picture belonging to the Hon. Sir Spencer Ponsonby-Fane, K.C.B.)
3. The embarkation of Henry VIII. from Dover, 1520 [370](#)
(From the Society of Antiquaries' engraving of the original picture at Hampton Court)
4. Silver-gilt cup and cover, made at London in 1523; at Barber Surgeons' Hall, London [371](#)
(From Cripps's 'College and Corporation Plate')
5. Part of Hampton Court; built by Cardinal Wolsey; finished in 1526 [373](#)
(From a photograph)
6. Portrait of William Warham, Archbishop of Canterbury, 1503-1532, showing the ordinary episcopal dress, with the mitre and archiepiscopal cross [376](#)
(From a painting by Holbein, belonging to Viscount Dillon, F.S.A., dated 1527)
7. Tower of Fountains Abbey church; built by Abbot Huby, 1494-1526 [378](#)
(From a photograph by Valentine and Sons, Dundee)

8. Catharine of Aragon [380](#)
(*From a painting in the National Portrait Gallery*)
9. The gatehouse of Coughton Court, Warwickshire; built about 1530 [381](#)
(*From Niven's 'Illustrations of Old Warwickshire Houses'*)
10. Hall of Christchurch, Oxford; built by Cardinal Wolsey; finished in 1529 [384](#)
(*From a photograph by W. H. Wheeler, Oxford*)
11. Sir Thomas More, wearing the collar of SS. [387](#)
(*From an original portrait painted by Holbein in 1527, belonging to Edward Huth, Esq.*)
12. John Fisher, Bishop of Rochester, 1504-1535 [393](#)
(*From a drawing by Holbein in the Royal Library, Windsor Castle*)
13. Edward Seymour, Earl of Hertford, brother of Jane Seymour, afterwards Duke of Somerset, known as 'the Protector,' at the age of 28, 1507-1552 [395](#)
(*From a painting at Sudeley Castle*)
14. Henry VIII. [403](#)
(*From a painting by Holbein, belonging to the Earl of Warwick*)
15. Angel of Henry VIII., 1543 [405](#)
(*From an original example*)
16. Part of the encampment at Marquison, 1544, showing military equipment in the time of Henry VIII. [406](#)
17. 191. Part of the siege of Boulogne by Henry VIII., 1544, showing military operations [407](#), [408](#)
(*From the Society Of Antiquaries' engravings, by Vertue, of the now destroyed paintings formerly at Cowdray House, Sussex*)
18. Armour as worn in the reign of Henry VIII.; from the brass of John Lymsey, 1545, in Hackney church [409](#)

19. Margaret, wife of John Lymsey; from her brass in Hackney church, showing the costume of a lady circa 1545 [409](#)
(*From Haines's 'Manual of Monumental Brasses'*)
20. Thomas Howard, third Duke of Norfolk, 1473(?)-1554 [410](#)
(*From a painting by Holbein at Windsor Castle*)
21. Thomas Cranmer, Archbishop of Canterbury, 1533-1556 [414](#)
(*From a painting by Holbein dated 1547, at Jesus College, Cambridge*)
22. Nicholas Ridley, Bishop of London, 1550-1553 [417](#)
(*From the National Portrait Gallery*)
23. King Edward VI. [419](#)
(*From a picture belonging to H. Hucks Gibbs, Esq.*)
24. Queen Mary Tudor [422](#)
(*From a painting by Lucas de Heere, dated 1554, belonging to the Society of Antiquaries*)
25. Hugh Latimer, Bishop of Worcester, 1535-1539, burnt 1555 [425](#)
(*From the National Portrait Gallery*)
26. A milled half-sovereign of Elizabeth, 1562-1568 [435](#)
(*From an original example*)
27. Silver-gilt standing cup made in London in 1569-70, and given to Corpus Christi College, Cambridge, by Parker [440](#)
(*From Cripps's 'College and Corporation Plate'*)
28. Sir Francis Drake in his forty-third year [448](#)
(*From the engraving by Elstracke*)
29. Armour as worn during the reign of Elizabeth; from the brass of Francis Clopton, 1577, at Long Melford, Suffolk [451](#)
(*From Haines's 'Manual of Monumental Brasses'*)
30. Hall of Burghley House, Northamptonshire, built about 1580 [455](#)

(From Drummond's 'Histories of Noble British Families')

31. Sir Martin Frobisher, died 1594 [459](#)
(From a picture belonging to the Earl of Carlisle)
32. The Spanish Armada. Fight between the English and Spanish fleets off the Isle of Wight, July 25, 1588 [461](#)
(From Pine's engravings of the tapestry formerly in the House of Lords)
33. Sir Walter Raleigh (1552-1618), and his eldest son Walter at the age of eight [463](#)
(From a picture dated 1602, belonging to Sir J. F. Lennard, Bart.)
34. A mounted soldier at the end of the sixteenth century [465](#)
(From a broadside printed in 1596, in the Society of Antiquaries' collection)
35. Wollaton Hall, Nottinghamshire; built by Thorpe for Sir Francis Willoughby, about 1580-1588 [466](#)
(From a photograph by R. Keene, Derby)
36. Hardwick Hall, Derbyshire; built by Elizabeth, Countess of Shrewsbury, about 1597 [467](#)
(From a photograph by R. Keene, Derby)
37. E-shaped house at Beaudesert, Staffordshire; built by Thomas, Lord Paget, about 1601 [469](#)
(From a photograph by R. Keene, Derby)
38. Ingestre Hall, Staffordshire; built about 1601 [471](#)
(From a photograph by R. Keene, Derby)
39. Coaches in the reign of Elizabeth [473](#)
(From 'Archæologia,' vol. xx. pl. xviii.)
40. William Shakspeare [474](#)
(From the bust on his tomb at Stratford-on-Avon)

41. Robert Devereux, second Earl of Essex, K.G., 1567-1601 [476](#)
(*From a painting by Van Somer, dated 1599, belonging to the Earl of Essex*)
42. Queen Elizabeth, 1558-1603 [477](#)
(*From a painting belonging to the University of Cambridge*)
43. William Cecil, Lord Burghley, K.G., 1520-1591 [479](#)
(*From a painting in the Bodleian Library, Oxford*)
44. Royal arms borne by James I. and succeeding Stuart sovereigns [482](#)
(*From Boutell's 'English Heraldry'*)
45. North-west view of Hatfield House, Herts; built for Robert Cecil, first Earl of Salisbury, between 1605 and 1611 [485](#)
(*From a photograph by Valentine and Sons, Dundee*)
46. An unknown gentleman [487](#)
(*From a painting belonging to T. A. Hope, Esq.*)
47. King James I. [491](#)
(*From a painting by P. Van Somer, dated 1621, in the National Portrait Gallery*)
48. Civil costume, about 1620 [492](#)
(*From a contemporary broadside in the collection of the Society of Antiquaries*)
49. The banqueting-hall of the Palace of Whitehall (from the north-east); built from the designs of Inigo Jones, 1619-1621 [493](#)
(*From a photograph*)
50. Francis Bacon, Viscount St. Alban, Lord Chancellor [495](#)
(*From a painting by P. Van Somer in the National Portrait Gallery*)
51. Costume of a lawyer [497](#)
(*From a broadside dated 1623 in the collection of the Society of Antiquaries*)

52. The Upper House of Convocation [498](#)
53. The Lower House of Convocation [499](#)
(From a broadside dated 1623, in the collection of the Society of Antiquaries)
54. King Charles I. [504](#)
(From a painting by Van Dyck)
55. Queen Henrietta Maria, wife of Charles I. [505](#)
(From a painting by Van Dyck)
56. Tents and military equipment in the early part of the reign of Charles I. [507](#)
(From the monument of Sir Charles Montague (died in 1625), in the church of Barking, Essex)
57. George Villiers, first duke of Buckingham, 1592-1628 [509](#)
(From the painting by Gerard Honthorst in the National Portrait Gallery)
58. Sir Edward and Lady Filmer; from their brass at East Sutton, Kent, showing armour and dress worn about 1630 [515](#)
(From Waller's 'Monumental Brasses')
59. Archbishop Laud [517](#)
(From a copy in the National Portrait Gallery by Henry Stone, from the Van Dyck at Lambeth)
60. Silver-gilt tankard made at London in 1634-5; now belonging to the Corporation of Bristol [518](#)
(From Cripps's 'College and Corporation Plate')
61. The 'Sovereign of the Seas,' built for the Royal Navy in 1637 [522](#)
(From a contemporary engraving by John Payne)
62. Soldier armed with a pike [527](#)
63. Soldier with musket and crutch [527](#)
(From a broadside printed about 1630, in the collection of the

Society of Antiquaries)

64. –243. Ordinary civil costume, *temp.* Charles I., viz:—
A gentleman and a gentlewoman [550](#)
A citizen and a citizen's wife [551](#)
A countryman and a countrywoman [552](#)
(*From Speed's map of 'The Kingdom of England,' 1646*)
65. View of the west side of the Banqueting-House, Whitehall, dated 1713, showing the window through which Charles I. is said to have passed to the scaffold [558](#)
(*From an engraving by Terasson*)
66. Execution of King Charles I., January 30, 1649 [559](#)
(*From a broadside in the collection of the late Richard Fisher, Esq., F.S.A.*)
67. A coach in the middle of the seventeenth century [564](#)
(*From an engraving by John Dunstall*)
68. Oliver Cromwell [567](#)
(*From the painting by Samuel Cooper, at Sidney Sussex College, Cambridge*)
69. Charles II. [579](#)
(*From the portrait by Sir Peter Lely in Christ's Hospital, London*)
70. Edward Hyde, first Earl of Clarendon, 1608-1674 [581](#)
(*From an engraving by Loggan*)
71. A mounted nobleman and his squire [582](#)
(*From Ogilby's 'Coronation Procession of Charles II.'*)
72. Dress of the Horseguards at the Restoration [583](#)
(*From Ogilby's 'Coronation Procession of Charles II.'*)
73. Yeoman of the Guard [583](#)
(*From Ogilby's 'Coronation Procession of Charles II.'*)

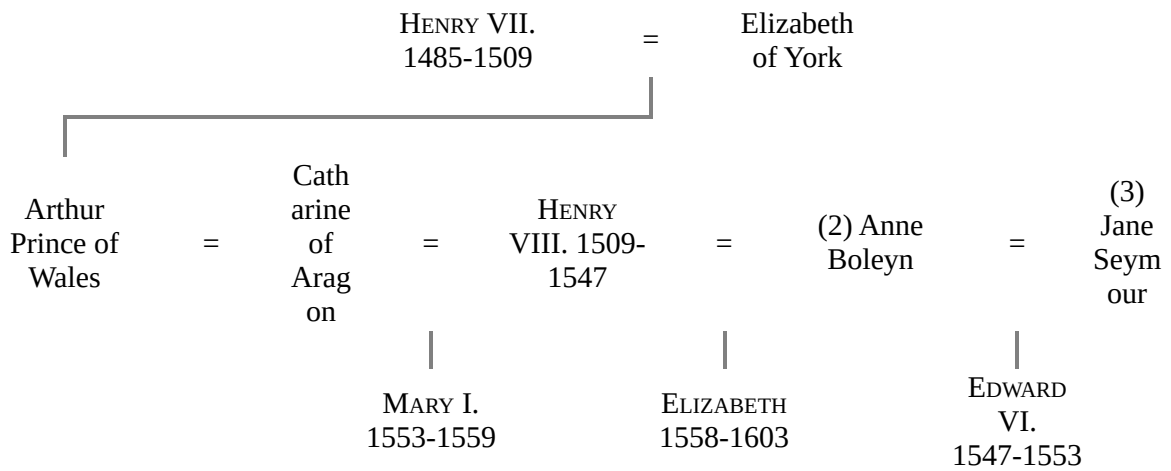
74. Shipping in the Thames, circa 1660 [584](#)
(*From Pricke's 'South Prospect of London'*)
75. Old St. Paul's, from the east, showing its condition just before the Great Fire [591](#)
(*From an engraving by Hollar*)
76. John Milton in 1669 [597](#)
(*From the engraving by Faithorne*)
77. Temple Bar, London, built by Sir Christopher Wren in 1670 [601](#)
(*From a photograph*)
78. Anthony Ashley-Cooper, first Earl of Shaftesbury, 1621-1683 [604](#)
(*From the painting by John Greenhill in the National Portrait Gallery*)
79. Ordinary dress of gentlemen in 1675 [611](#)
(*From Loggan's 'Oxonia Illustrata'*)
80. Cup presented, 1676, by King Charles II. to the Barber Surgeons' Company [612](#)
(*From Cripps's 'College and Corporation Plate'*)
81. Steeple of the church of St. Mary-le-Bow, London, built by Sir Christopher Wren between 1671 and 1680 [614](#)
(*From a photograph*)
82. Dress of ladies of quality [628](#)
(*From Sandford's 'Coronation Procession of James II.'*)
83. Ordinary attire of women of the lower classes [628](#)
(*From Sandford's 'Coronation Procession of James II.'*)
84. Coach of the latter half of the seventeenth century [629](#)
(*From Loggan's 'Oxonia Illustrata'*)
85. Waggon of the second half of the seventeenth century [629](#)
(*From Loggan's 'Oxonia Illustrata'*)

86. Reaping and harvesting in the second half of the seventeenth century [630](#)
(*From Loggan's 'Cantabrigia Illustrata'*)
87. Costume of a gentleman [632](#)
(*From Sandford's 'Coronation Procession of James II.'*)
88. James II. [635](#)
(*From the painting by Sir Godfrey Kneller in 1684-5 in the National Portrait Gallery*)
89. Yeomen of the Guard [636](#)
(*From Sandford's 'Coronation Procession of James II.'*)
90. Dress of a bishop in the second half of the seventeenth century [642](#)
(*From Sandford's 'Coronation Procession of James II.'*)

GENEALOGICAL TABLES

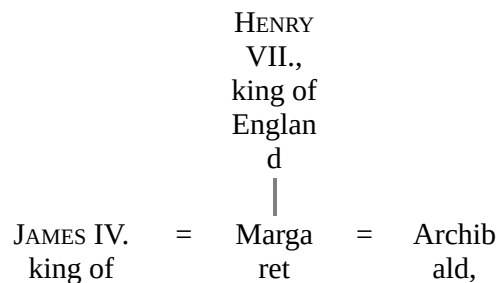
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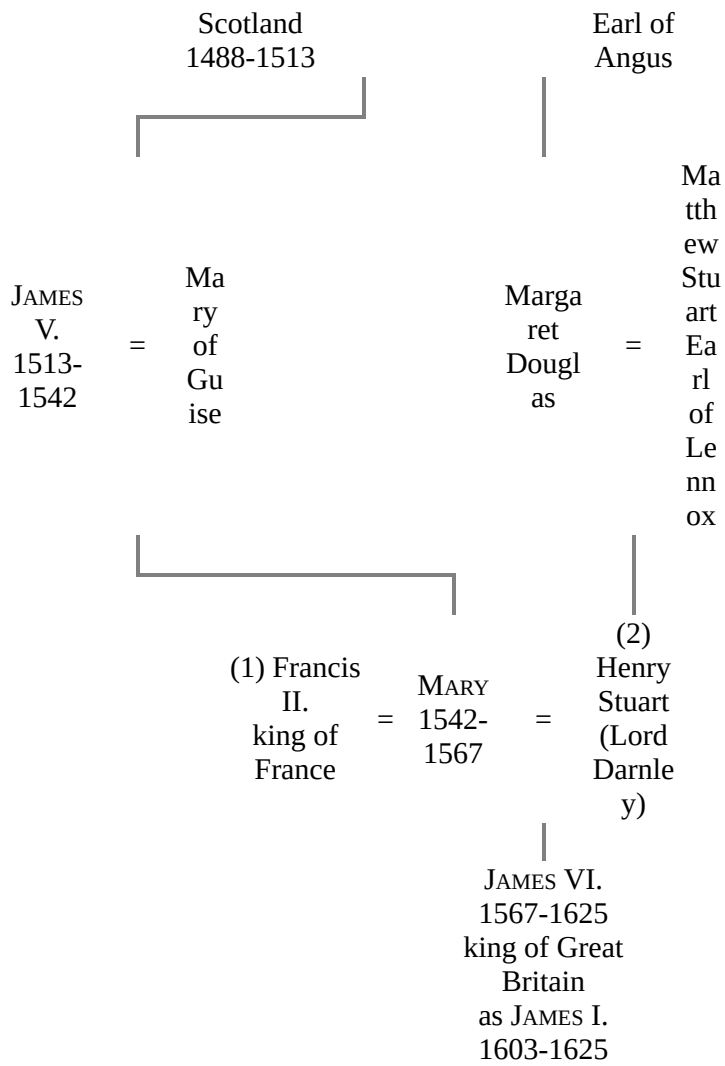
KINGS AND QUEENS OF ENGLAND (AFTER 1541 OF ENGLAND AND IRELAND) FROM HENRY VII. TO ELIZABETH.



II

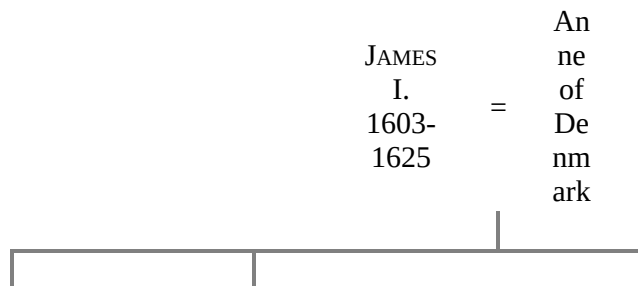
KINGS OF SCOTLAND AND GREAT BRITAIN, FROM JAMES IV. OF SCOTLAND TO WILLIAM AND MARY.

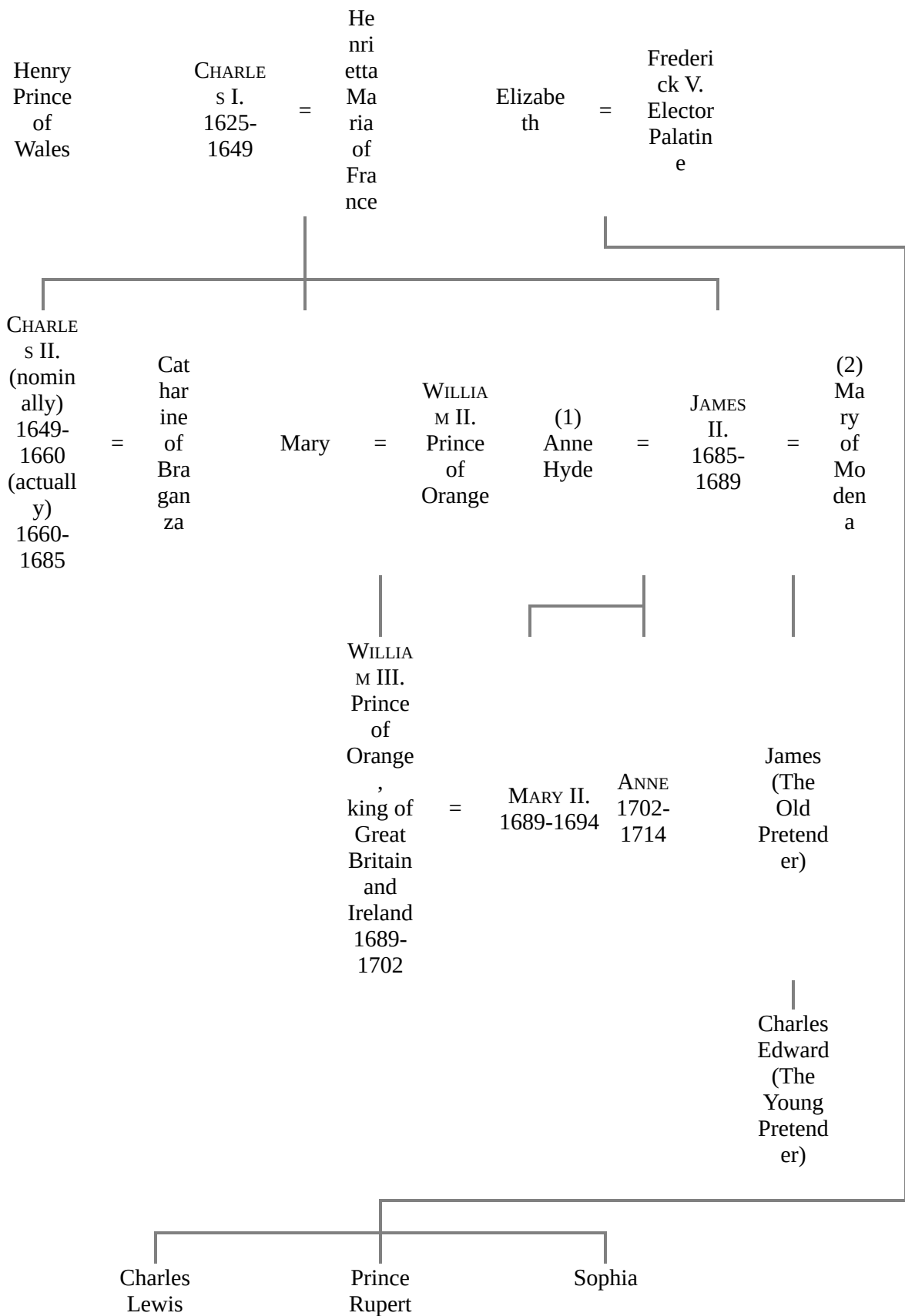




III

KINGS OF GREAT BRITAIN AND IRELAND FROM JAMES I. TO GEORGE I.

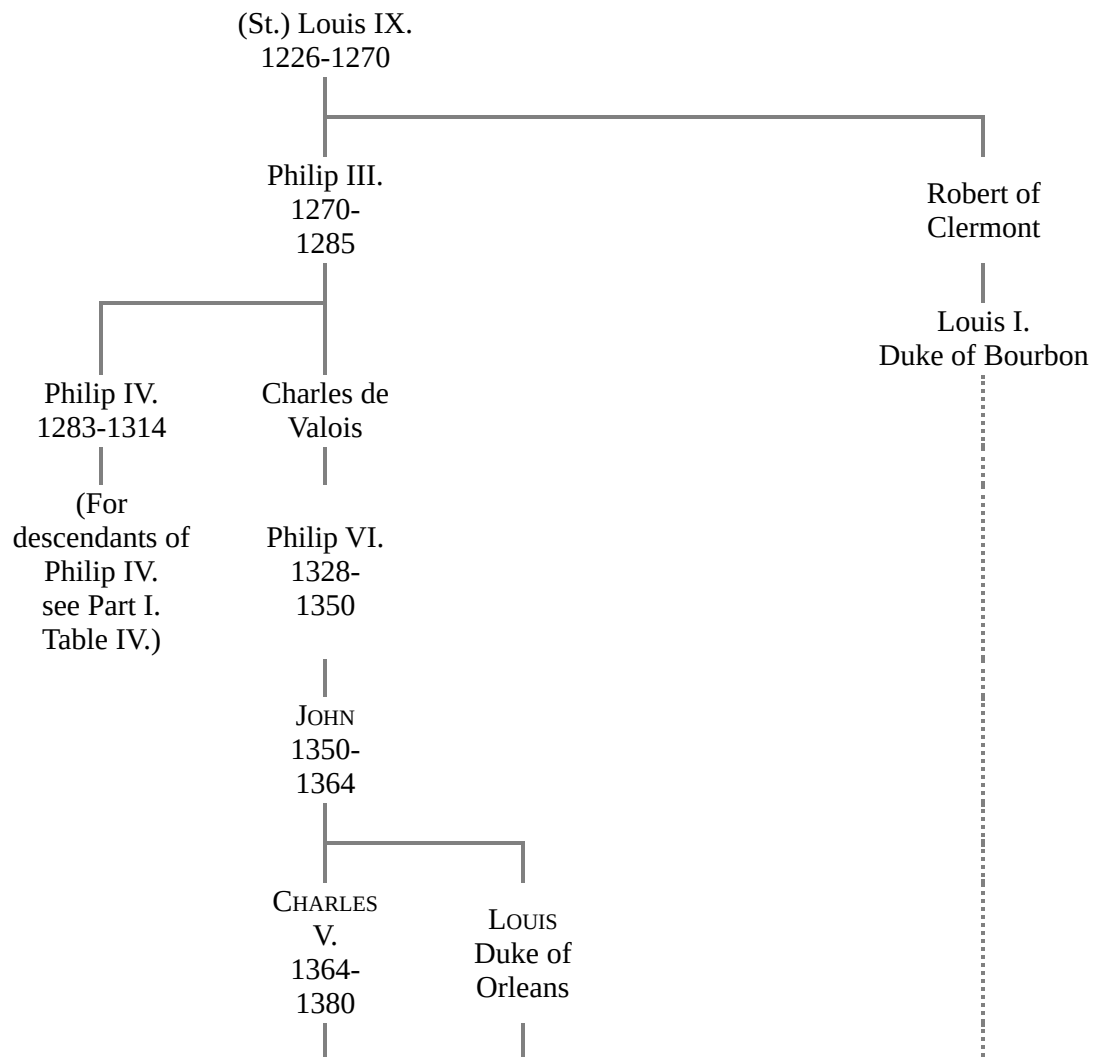


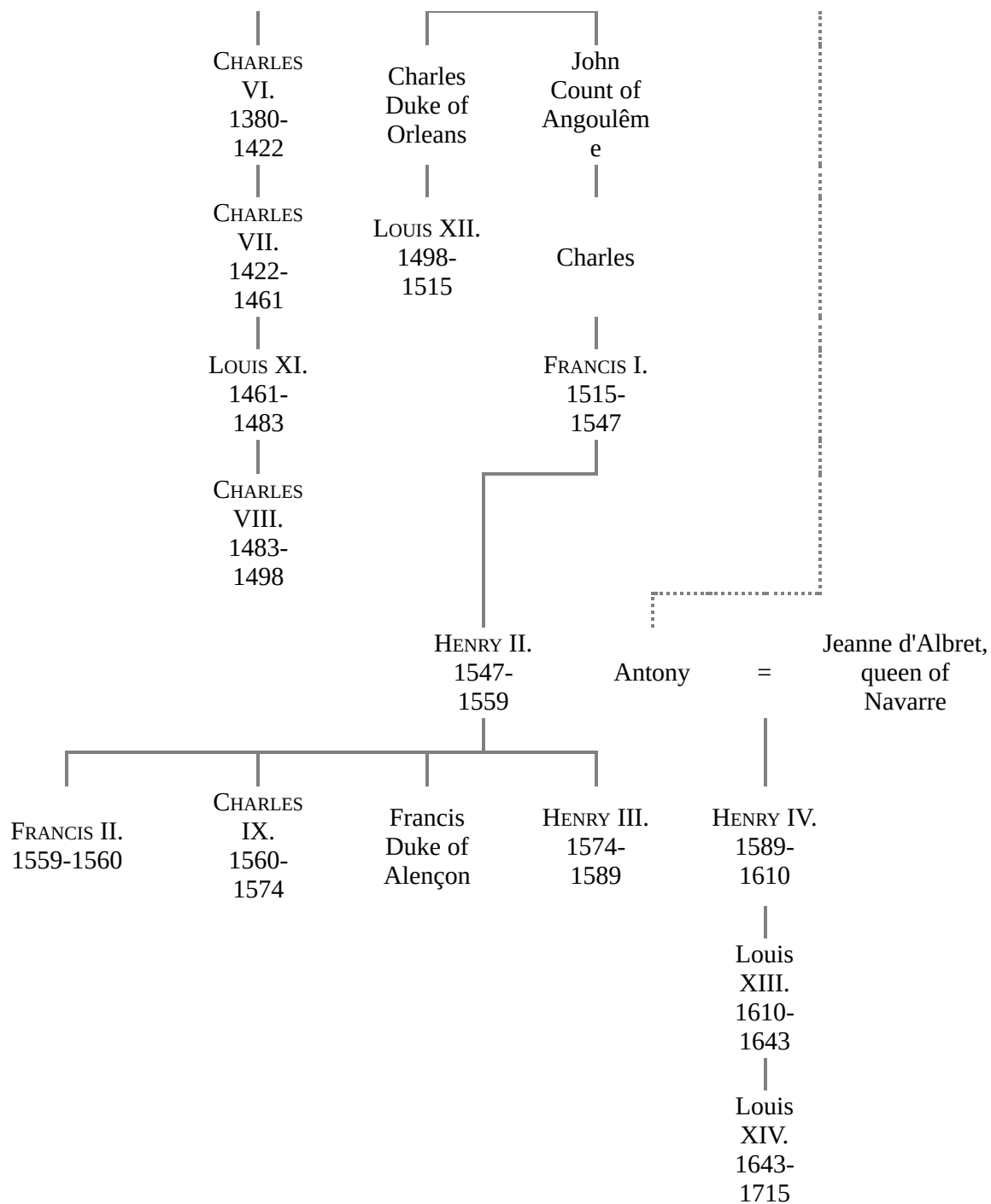


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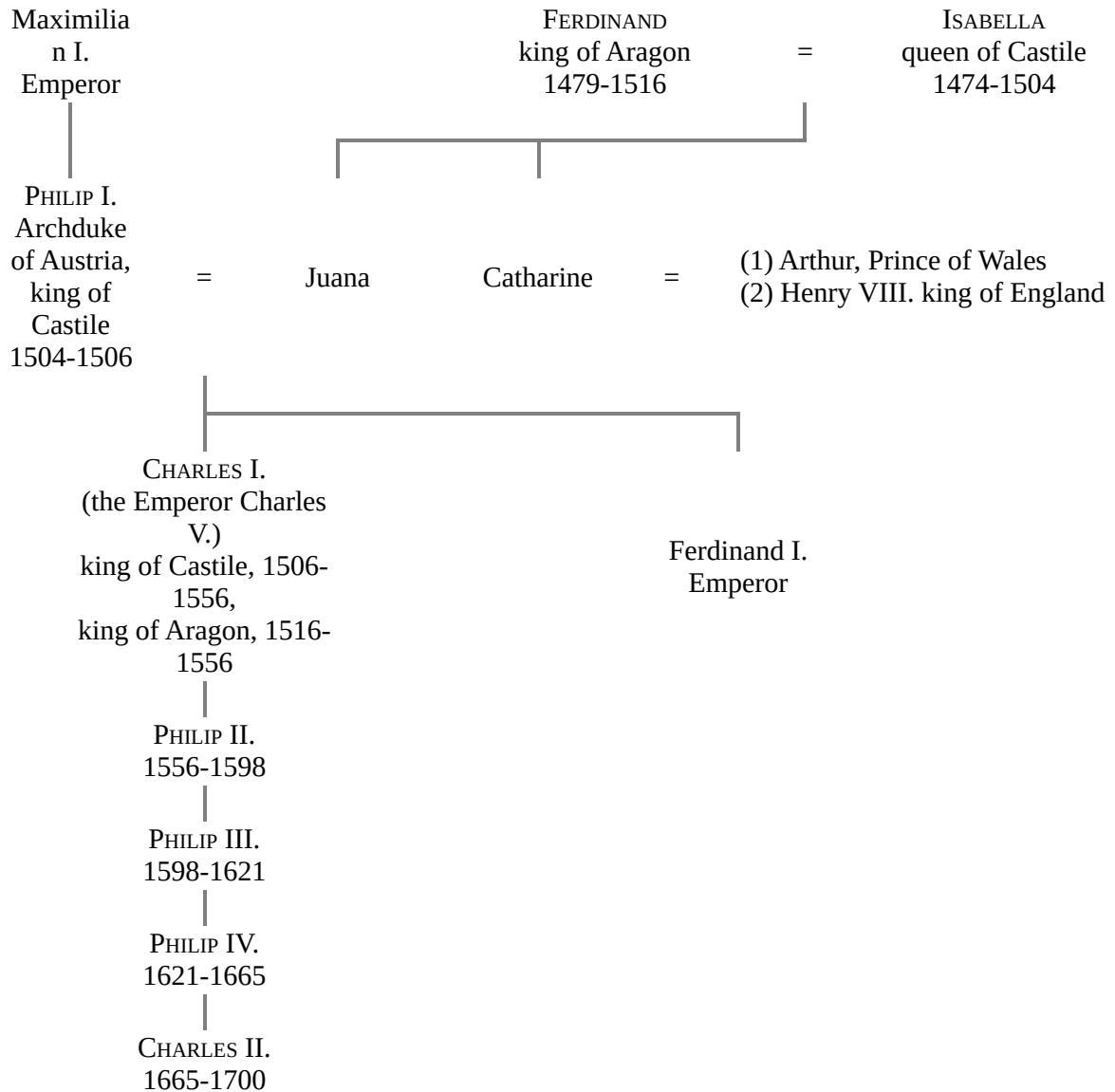
GEORGE
I.
1714-
1727

IV
GENEALOGY OF THE KINGS OF FRANCE FROM LOUIS XII. TO
LOUIS XIV., SHOWING THEIR DESCENT FROM LOUIS IX.





V
GENEALOGY OF THE KINGS OF SPAIN FROM FERDINAND AND ISABELLA TO CHARLES II.

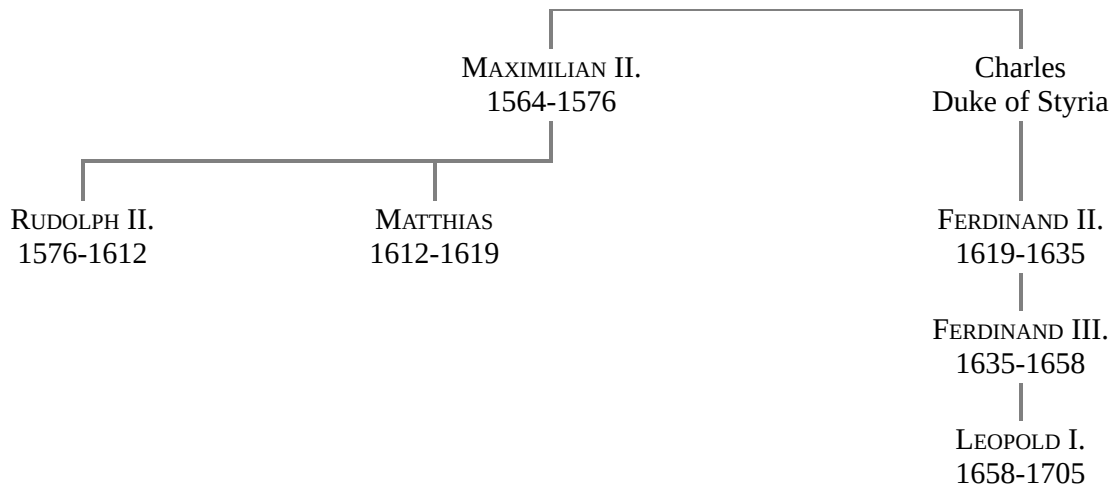


VI

GENEALOGY OF THE GERMAN BRANCH OF THE HOUSE OF AUSTRIA FROM FERDINAND I. TO LEOPOLD I.

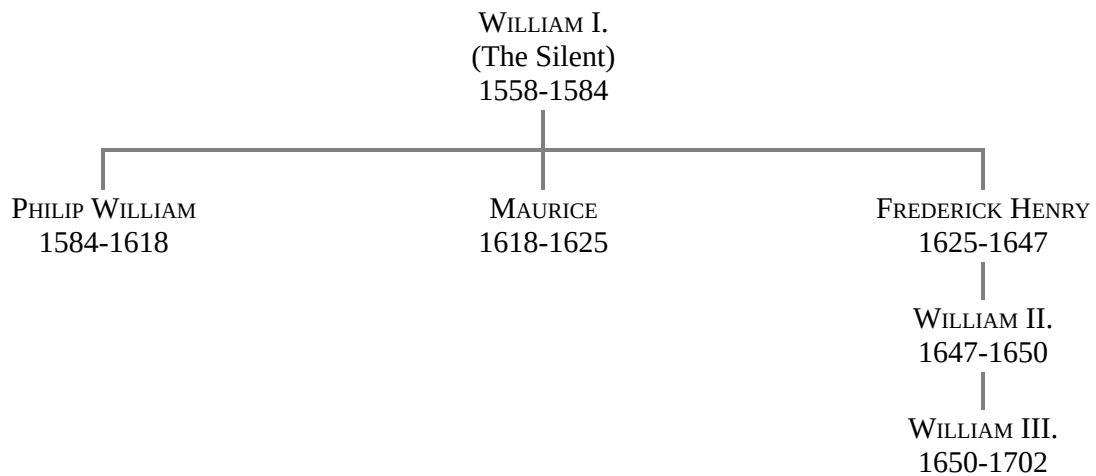
(The dates given are those during which an archduke was emperor.)

FERDINAND I.
1556-1564



VII

GENEALOGY OF THE PRINCES OF ORANGE FROM WILLIAM I. TO WILLIAM III.



*SHORTER AND SOMETIMES MORE DETAILED GENEALOGIES
will be found in the following pages.*

PAGE

Genealogy of the Poles [399](#)

- " " children of Henry VIII. [411](#)
- " " Greys [421](#)
- " " last Valois kings of France [433](#)
- " " Guises [435](#)
- " of Mary and Darnley [438](#)
- " of the descendants of Charles I. [609](#)

PART V
THE RENASCENCE AND THE REFORMATION 1509-1603

CHAPTER XXIV
HENRY VIII. AND WOLSEY. 1509-1527

LEADING DATES
Reign of Henry VIII., 1509-1547

Accession of Henry VIII. 1509
Henry's first war with France 1512
Peace with France 1514
Charles V. elected Emperor 1519
Henry's second French war 1522
Francis I. taken captive at Pavia 1525
The sack of Rome and the alliance between
England and France 1527



Henry VIII.; from a painting by Holbein about 1536, belonging to Earl Spencer.

1. **The New King. 1509.**—Henry VIII. inherited the handsome face, the winning presence, and the love of pleasure which distinguished his mother's father, Edward IV., as well as the strong will of his own father, Henry VII. He could ride better than his grooms, and shoot better than the archers of his guard. Yet, though he had a ready smile and a ready jest for everyone, he knew how to preserve his dignity. Though he seemed to live for amusement alone, and allowed others to toil at the business of administration, he took care to keep his ministers under control. He was no mean judge of character, and the saying which rooted itself amongst his subjects, that 'King Henry knew a man when he saw him,' points to one of the chief secrets of his success. He was well aware that the great nobles were his only possible rivals, and that his main support was to be found in the country gentry and the townsmen. Partly because of his youth, and partly because

the result of the political struggle had already been determined when he came to the throne, he thought less than his father had done of the importance of possessing stored up wealth by which armies might be equipped and maintained, and more of securing that popularity which at least for the purposes of internal government, made armies unnecessary. The first act of the new reign was to send Empson and Dudley to the Tower, and it was significant of Henry's policy that they were tried and executed, not on a charge of having extorted money illegally from subjects, but on a trumped up charge of conspiracy against the king. It was for the king to see that offences were not committed against the people, but the people must be taught that the most serious crimes were those committed against the king. Henry's next act was to marry Catharine. Though he was but nineteen, whilst his bride was twenty-five, the marriage was for many years a happy one.

2. Continental Troubles. 1508-1511.—For some time Henry lived as though his only object in life was to squander his father's treasure in festivities. Before long, however, he bethought himself of aiming at distinction in war as well as in sport. Since Louis XII. had been king of France (see p. 354) there had been constant wars in Italy, where Louis was striving for the mastery with Ferdinand of Aragon. In **1508** the two rivals, Ferdinand and Louis, abandoning their hostility for a time, joined the Emperor Maximilian (see pp. 337, 348) and Pope Julius II. in the League of Cambrai, the object of which was to despoil the Republic of Venice. In **1511** Ferdinand allied himself with Julius II. and Venice in the Holy League, the object of which was to drive the French out of Italy. After a while the new league was joined by Maximilian, and every member of it was anxious that Henry should join it too.

3. The Rise of Wolsey. 1512.—England had nothing to gain by an attack on France, but Henry was young, and the English nation was, in a certain sense, also young. It was conscious of the strength brought to it by restored order, and was quite ready to use this strength in an attack on its neighbours. In the new court it was ignorantly thought that there was no reason why Henry VIII. should not take up that work of conquering France which had fallen to pieces in the feeble hands of Henry VI. To carry on his new policy Henry needed a new minister. The best of the old ones were Fox, the Bishop of Winchester, and Thomas Howard, Earl of Surrey, who, great nobleman as he was, had been contented to merge his greatness in the greatness of the king. The whole military organisation of the country, however, had to be created afresh, and neither Fox nor Surrey was equal to such a task. The work was assigned to Thomas Wolsey, the king's almoner, who, though not, as his enemies said, the son of a butcher, was of no exalted origin. Wolsey's genius for administration at once manifested itself. He was equally at home in sketching out a plan of campaign, in diplomatic contests with the wariest and most experienced statesmen, and in providing for the minutest details of military preparation.

4. The War with France. 1512-1513.—It was not Wolsey's fault that his first enterprise ended in failure. A force sent to attack France on the Spanish side failed, not because it was ill-equipped, but because the soldiers

mutinied, and Ferdinand, who had promised to support it, abandoned it to its fate. In **1513** Henry himself landed at Calais, and, with the Emperor Maximilian serving under him, defeated the French at Guinegate in an engagement known, from the rapidity of the flight of the French, as the Battle of the Spurs. Before the end of the autumn he had taken Terouenne and Tournai. War with France, as usual, led to a war with Scotland. James IV., during Henry's absence, invaded Northumberland, but his army was destroyed by the Earl of Surrey at Flodden, where he himself was slain.

5. Peace with France. 1514.—Henry soon found that his allies were thinking exclusively of their own interests. In **1512** the French were driven out of Italy, and Ferdinand made himself master of Navarre. In **1513** the warlike Pope, Julius II., died, and a fresh attempt of Louis to gain ground in Italy was decisively foiled. Henry's allies had got what they wanted, and in **1514** Henry discovered that to conquer France was beyond his power. Louis was ready to come to terms. He was now a widower. Old in constitution, though not in years, he was foolish enough to want a young wife. Henry was ready to gratify him with the hand of his younger sister Mary. The poor girl had fallen in love with Henry's favourite, Charles Brandon, Duke of Suffolk, a man of sturdy limbs and weak brain, and pleaded hard against the marriage. Love counted for little in those days, and all that she could obtain from her brother was a promise that if she married this time to please him, she should marry next time to please herself. Louis soon relieved her by dying on January 1, **1515**, after a few weeks of wedlock, and his widow took care, by marrying Suffolk before she left France, to make sure that her brother should keep his promise.



Cardinal Wolsey: from an original picture belonging to the Hon. Sir Spencer Ponsonby-Fane, K.C.B.

6. Wolsey's Policy of Peace. 1514-1518.—In **1514** the king made Wolsey Archbishop of York. In **1515** the Pope made him a Cardinal. Before the end of the year he was Henry's Chancellor. The whole of the business of the government passed through his hands. The magnificence of his state was extraordinary. To all observers he seemed to be more a king than the king himself. Behind him was Henry, trusting him with all his power, but self-willed and uncontrollable, quite ready to sacrifice his dearest friend to satisfy his least desire. As yet the only conflict in Henry's mind was the conflict about peace or war with France. Henry's love of display and renown had led him to wish to rival the exploits of Edward III. and Henry V. Wolsey preferred the old policy of Richard II. and Henry VI., but he knew that he could only make it palatable to the king and the nation by connecting the idea of peace with the idea of national greatness. He aspired to be the peacemaker of Europe, and to make England's interest in peace the

law of the world. In **1515** the new king of France, Francis I., needed peace with England because he was in pursuit of glory in Italy, where he won a brilliant victory at Marignano. In **1516** Ferdinand's death gave Spain to his grandson, Charles, the son of Philip and Juana (see p. 358), and from that time Francis and Charles stood forth as the rivals for supremacy on the Continent. Wolsey tried his best to maintain a balance between the two, and it was owing to his ability that England, thinly populated and without a standing army, was eagerly courted by the rulers of states far more powerful than herself. In **1518** a league was struck between England and France, in which Pope Leo X., the Emperor Maximilian, and Charles, king of Spain, agreed to join, thus converting it into a league of universal peace. Yet Wolsey was no cosmopolitan philanthropist. He believed that England would be more influential in peace than she could be in war.

7. Wolsey and the Renaissance.—In scheming for the elevation of his own country by peace instead of by conquest, Wolsey reflected the higher aspirations of his time. No sooner had internal order been secured, than the best men began to crave for some object to which they could devote themselves, larger and nobler than that of their own preservation. Wolsey gave them the contemplation of the political importance of England on the Continent. The noblest minds, however, would not be content with this, and an outburst of intellectual vigour told that the times of internal strife had passed away. This intellectual movement was not of native growth. The Renaissance, or new birth of letters, sprung up in Italy in the fourteenth century, and received a further impulse through the taking of Constantinople by the Turks in **1453**, when the dispersal of Greek teachers from the East revived the study of the Greek language. It was not merely because new teachers landed in Italy that the literature of the ancient world was studied with avidity. Men were weary of the mediæval system, and craved for other ideals than those of the devotees of the Church. Whilst they learnt to admire the works of the Greek and Latin authors as models of literary form, they caught something of the spirit of the ancient world. They ceased to look on man as living only for God and a future world, and regarded him as devoting himself to the service of his fellow-men, or even—in lower minds the temptation lay perilously near—as living for himself alone. Great artists and poets arose who gave expression to the new feeling of admiration for human action and human beauty, whilst the prevailing

revolt against the religion of the middle ages gave rise to a spirit of criticism which refused belief to popular legends.

8. The Renaissance in England.—The spirit of the Renaissance was slow in reaching England. In the days of Richard II. Chaucer visited Italy, and Italian influence is to be traced in his *Canterbury Tales*. In the days of Henry VI. the selfish politician, Humphrey, Duke of Gloucester, purchased books, and gave to Oxford a collection which was the foundation of what was afterwards known as the Bodleian Library. Even in the Wars of the Roses the brutal John Tiptoft, Earl of Worcester, and the gentle Earl Rivers, the brother of Elizabeth Woodville, were known as patrons of letters. The invention of printing brought literature within reach of those to whom it had hitherto been strange. Edward IV. patronised Caxton, the first English printer. In the peaceful reign of Henry VII. the seed thus sown sprang into a crop. There was, however, a great difference between the followers of the new learning in England and in Italy. In Italy, for the most part, scholars mocked at Christianity, or treated it with tacit contempt. In England there was no such breach with the religion of the past. Those who studied in England sought to permeate their old faith with the new thoughts.

9. The Oxford Reformers.—Especially was this the case with a group of Oxford Reformers, Grocyn, Linacre, and Colet, who were fighting hard to introduce the study of Greek into the University. Among these Colet specially addicted himself to the explanation of the epistles of St. Paul, insisting on following their plain meaning instead of the mystical interpretations then in vogue. In **1510** he founded St. Paul's School, that boys might be there taught without being subjected to the brutal flogging which was in those days the lot even of the most diligent of schoolboys. The most remarkable member of this group of scholars was Thomas More. Young More, who had hoped much from the accession of Henry VIII., had been disappointed to find him engaging in a war with France instead of cultivating the arts of peace. He meditated deeply over the miseries of his fellow-men, and longed for a time when governments would think it to be their highest duty to labour for those who are too weak to help themselves.

10. 'The Utopia.' 1515-1516.—In **1515** and **1516** More produced a book which he called *Utopia*, or *Nowhere*, intending it to serve as a satire on the

defects of the government of England, by praising the results of a very different government in his imaginary country. The Utopians, he declared, fought against invaders of their own land or the land of their allies, or to deliver other peoples from tyranny, but they made no wars of aggression. In peace no one was allowed either to be idle or overworked. Everyone must work six hours a day, and then he might listen to lectures for the improvement of his mind. As for the religion of Utopia, no one was to be persecuted for his religious opinions, as long as he treated respectfully those who differed from him. If, however, he used scornful and angry words towards them, he was to be banished, not as a despiser of the established religion, but as a stirrer up of dissension. Men of all varieties of opinion met together in a common temple, the worship in which was so arranged that all could take part in it. Amongst their priests were women as well as men. More practical was the author's attack on the special abuses of the times. England swarmed with vagrants, who easily passed into robbers, or even murderers. The author of *Utopia* traced the evil to its roots. Soldiers, he said, were discharged on their return home, and, being used to roving and dissolute habits, naturally took to vagrancy. Robbery was their only resource, and the law tempted a robber to murder. Hanging was the penalty both for robbing and murder, and the robber, therefore, knowing that he would be hanged if he were detected, usually killed the victim whom he had plundered in order to silence evidence against himself; and More consequently argued that the best way of checking murder would be to abolish the penalty of death for robbery. Another great complaint of More's was against the ever-growing increase of inclosures for pasturage. "Sheep," he said, "be become so great devourers and so wild that they eat up and swallow down the very men themselves. They consume, destroy, and devour whole fields, houses, and cities." More saw the evil, but he did not see that the best remedy lay in the establishment of manufactures, to give employment in towns to those who lost it in the country. He wished to enforce by law the reversion of all the new pasturage into arable land.

11. More and Henry VIII.—Henry VIII. was intolerant of those who resisted his will, but he was strangely tolerant of those who privately contradicted his opinions. He took pleasure in the society of intelligent and witty men, and he urged More to take office under him. More refused for a long time, but in **1518**—the year of the league of universal peace—

believing that Henry was now a convert to his ideas, he consented, and became Sir Thomas More and a Privy Councillor. Henry was so pleased with his conversation that he tried to keep him always with him, and it was only by occasionally pretending to be dull that More obtained leave to visit his home.

12. The Contest for the Empire. 1519.—In January **1519** the Emperor Maximilian died. His grandson Charles was now possessed of more extensive lands than any other European sovereign. He ruled in Spain, in Austria, in Naples and Sicily, in the Netherlands, and in the County of Burgundy, usually known as Franche Comté. Between him and Francis I. a struggle was inevitable. The chances were apparently, on the whole, on the side of Charles. His dominions, indeed, were scattered, and devoid of the strength given by national feeling, whilst the smaller dominions of Francis were compact and united by a strong national bond. In character, however, Charles had the superiority. He was cool and wary, whilst Francis was impetuous and uncalculating. Both sovereigns were now candidates for the Empire. The seven electors who had it in their gift were open to bribery. Charles bribed highest, and being chosen became the Emperor Charles V.

13. The Field of the Cloth of Gold. 1520.—Wolsey tried hard to keep the peace. In **1520** Henry met Francis on the border of the territory of Calais, and the magnificence of the display on both sides gave to the scene the name of the Field of the Cloth of Gold. In the same year Henry had interviews with Charles. Peace was for a time maintained, because both Charles and Francis were still too much occupied at home to quarrel, but it could hardly be maintained long.



The embarkation of Henry VIII. from Dover, 1520: from the original painting at Hampton Court.

14. The Execution of the Duke of Buckingham. 1521.—Henry was entirely master in England. In **1521** the Duke of Buckingham, son of the Buckingham who had been beheaded by Richard III., was tried and executed as a traitor. His fault was that he had great wealth, and that, being descended from the Duke of Gloucester, the youngest son of Edward III., he had not only cherished some idea of claiming the throne after Henry's death, but had chattered about his prospects. In former days justice was not to be had by those who offended the great lords. Now, one despot had stepped into the place of many, and justice was not to be had by those who offended the king. The legal forms of trial were now as before observed. Buckingham was indeed tried before the court of the Lord High Steward, which consisted of a select number of peers, and which had jurisdiction over peers when Parliament was not sitting. These, however, were no more than forms. It was probably a mingled feeling of gratitude and fear which made peers as well as ordinary juries ready to take Henry's word for the guilt of any offender.

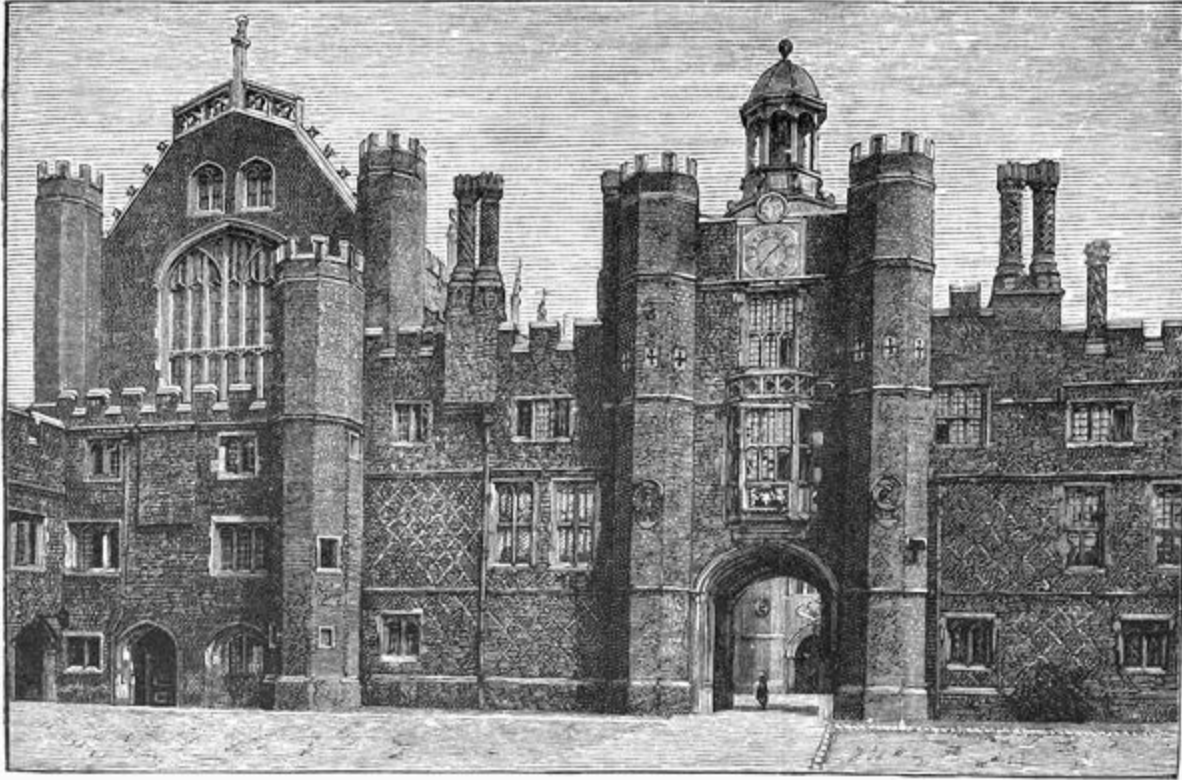
15. Another French War. 1522-1523.—The diplomacy of those days was a mere tissue of trickery and lies. Behind the falsehood, however, Wolsey had a purpose of his own, the maintenance of peace on the Continent. Yet, in **1521** war broke out between Charles and Francis, both of whom laid claim to the Duchy of Milan, and it was evident that Wolsey

would be unable to keep England out of the struggle. If there was to be fighting Henry preferred to fight France rather than to fight Charles. In **1522**, in conjunction with Charles, he invaded France. There was burning and ravaging enough, but nothing of importance was done. Nevertheless in **1523** Henry was in high spirits. A great French noble, the Duke of Bourbon, provoked by ill-treatment, revolted against Francis, and Henry and Charles fancied that he would open a way to them into the heart of France. If Henry was to be crowned at Paris, which was the object on which he was bent, he must have a supply of money from his subjects. Though no Parliament had been summoned for nearly eight years, one was summoned now, of which More was the Speaker. Wolsey asked for an enormous grant of 800,000*l.*, nearly equal to 12,000,000*l.* at the present day. Finding that the Commons hesitated, he swept into the House in state to argue with them. Expecting a reply, and finding silence, he turned to More, who told him that it was against the privilege of the House to call on it for an immediate answer. He had to depart unsatisfied, and after some days the House granted a considerable sum, but far less than that which had been demanded. Wolsey was now in a position of danger. His own policy was pacific, but his master's policy was warlike, and he had been obliged to make himself the unquestioning mouthpiece of his master in demanding supplies for war. He had long been hated by the nobles for thrusting them aside. He was now beginning to be hated by the people as the supposed author of an expensive war, which he would have done his best to prevent. He had not even the advantage of seeing his master win laurels in the field. The national spirit of France was roused, and the combined attack of Henry and Charles proved as great a failure in **1523** as in **1522**. The year **1524** was spent by Wolsey in diplomatic intrigue.



Cup and Cover, 1523,
at Barber Surgeons' Hall,
London.

16. **The Amicable Loan. 1525.**—Early in 1525 Europe was startled by the news that Francis had been signally defeated by the Imperialists at Pavia, and had been carried prisoner to Spain. Wolsey knew that Charles's influence was now likely to predominate in Europe, and that unless England was to be overshadowed by it, Henry's alliance must be transferred to Francis. Henry, however, saw in the imprisonment of Francis only a fine opportunity for conquering France. Wolsey had again to carry out his master's wishes as though they were his own. Raking up old precedents, he suggested that the people should be asked for what was called an Amicable Loan, on the plea that Henry was about to invade France in person. He obtained the consent of the citizens of London by telling them that, if they did not pay, it might 'fortune to cost some their heads.' All over England Wolsey was cursed as the originator of the loan. There were even signs that a rebellion was imminent. In Norfolk when the Duke of Norfolk demanded payment there was a general resistance. On his demanding the name of the captain of the multitude which refused to pay, a man told him that their captain's 'name was Poverty,' and 'he and his cousin Necessity' had brought them to this. Wolsey, seeing that it was impossible to collect the money, took all the unpopularity of advising the loan upon himself. 'Because,' he wrote, 'every man layeth the burden from him, I am content to take it on me, and to endure the fame and noise of the people, for my goodwill towards the king ... but the eternal God knoweth all.' Henry had no such nobility of character as to refuse to accept the sacrifice. He liked to make his ministers scapegoats, to heap on their heads the indignation of the people that he might himself retain his popularity. For three centuries and a half it was fully believed that the Amicable Loan had originated with Wolsey.



Hampton Court; built by Cardinal Wolsey, finished in 1526.

17. Closing Years of Wolsey's Greatness. 1525-1527.—All idea of continuing the war being now abandoned, Wolsey cautiously negotiated for an alliance with France, and in the autumn of **1525** peace was signed between France and England. In February **1526** Charles set Francis at liberty on his promising to abandon to him large tracts of French territory. As soon as he was out of Spain Francis declared that, without the consent of his subjects, such promises were not binding on him. An Italian league, jealous of Charles's power, gathered round the Pope, Clement VII., to oppose him. In May **1527** the exiled Duke of Bourbon, who was now one of Charles's generals, took Rome by assault. He was himself slain as he mounted the wall, but his followers took prisoner the Pope, and sacked Rome with horrible barbarity. Wolsey was too worldly-minded to be shocked at the Pope's misfortunes; but he had much to fear from the enormous extension of the Emperor's power. For some weeks he had been negotiating a close alliance with France on the basis of a marriage between Henry's only surviving child, Mary, and the worn-out voluptuary Francis. Suddenly the scheme was changed to a proposal for a marriage between

Mary, who was ten years old, and the second son of Francis, who was but six. The bargain was concluded, and for a time there was some thought of carrying it out. At all events when the news of the sack of Rome arrived, England and France were already in close alliance. Wolsey's position was, to all outward appearance, secure.

CHAPTER XXV

THE BREACH WITH THE PAPACY. 1527-1534

LEADING DATES
Reign of Henry VIII., 1509-1547

Henry seeks for a divorce 1527
His suit before a Legatine Court 1529
Fall of Wolsey 1529
The clergy acknowledge Henry to be Supreme
Head of the Church of England 1531
The first Act of Annates 1532
The king's marriage to Anne Boleyn and the
Act of Appeals 1533
Cranmer's sentence of divorce 1533
The final separation from Rome 1534

1. **The Papacy and the Renaissance.**—The Renaissance alone could not make the world better, and in many respects it made it worse. The respect which it paid to humanity, which was its leading characteristic, allied itself in More with a reverence for God, which led him to strive to mellow the religious teaching of the Middle Ages, by fitting it for the needs of the existing world. Too many threw off all religious restraints, and made it their first thought to seek their own enjoyment, or the triumphs of their own intellectual skill. Sensual delights were pursued with less brutal directness, but became more seductive and more truly debasing by the splendour and gracefulness of the life of which they formed a part. In Italy the Popes swam with the current. Alexander VI. (1492-1503) gave himself up to the

most degrading vices. Julius II. (1503-1513) was a passionate warrior struggling for the extension of his temporal possessions. Leo X. (1513-1521) was a polished lover of art, perfectly indifferent to religious duty. "Let us enjoy the Papacy," he said when he was elected, "since God has given it to us." Amidst the lust of the flesh, the lust of the eyes, and the pride of life, the Popes became as other Italian princes, no better and no worse. Spiritual guidance was no longer to be expected of them.

2. **Wolsey and the Papacy.**—By Wolsey and his master the Papacy was respected as a venerable and useful institution, the centre of a religious organisation which they believed to be of divine origin, though when it came in conflict with their own projects they were quite ready to thwart it. In 1521 Leo X. died, and Wolsey, having some hopes of being himself elected, asked Charles V. to send troops to compel the cardinals to choose him, promising to pay the expenses of the armament. Charles, though, in the previous year, he had offered to support Wolsey's candidature at the next vacancy, now deserted him, and the new Pope was Adrian VI., who in 1523 was succeeded by Clement VII. (see p. [374](#)).

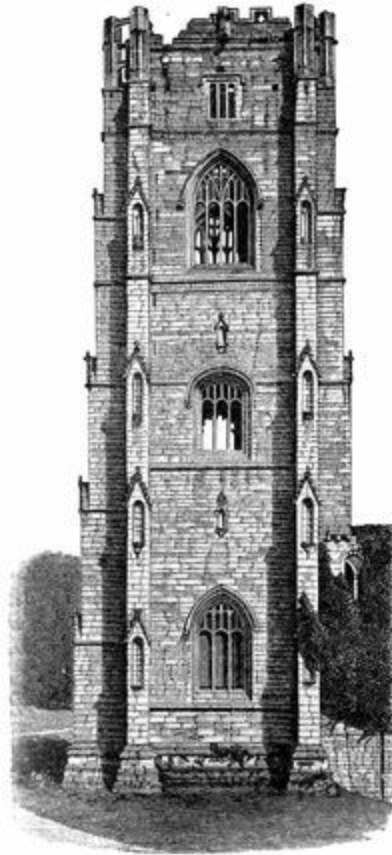


Portrait of William Warham, Archbishop of Canterbury, 1503-1532 showing the ordinary episcopal dress, with the mitre and archiepiscopal cross: from a painting belonging to Viscount Dillon, dated 1527.

3. **Wolsey's Legatine Powers.**—It is unlikely that Wolsey was much disappointed. His chief sphere of action was England, where since **1518** he had held unwonted authority, as in that year he had been appointed Legate *a latere*[\[1\]](#) by Leo X. at Henry's request, and the powers of a Legate *a latere* were superior even to those of Warham, the Archbishop of Canterbury. Wolsey was therefore clothed with all the authority of king and Pope combined. His own life was, indeed, like those of many churchmen in his day, very far from the ideal of Christianity; but for all that he had that respect for religious order which often lingers in the hearts of men who break away from the precepts of religion, and he was too great a statesman to be blind to the danger impending over the Church. The old order was changing, and Wolsey was as anxious as More, though from more worldly motives, that the change should be effected without violence. He knew that the Church was wealthy, and that wealth tempted plunderers, and he also

knew that, with some bright exceptions, the clergy were ignorant, and even when not absolutely dissolute were remiss and easy-going in their lives. He was, therefore, anxious to make them more worthy of respect, and, with the consent of king and Pope, he began in **1524** to dissolve several small monasteries, and to apply their revenues to two great colleges, the one founded by him at Oxford and the other at Ipswich. He hoped that without any change of doctrine or organisation the Church would gradually be purified by improved education, and would thus once more command the respect of the laity.

4. Henry VIII. and the Clergy.—With Wolsey's object Henry, being himself well educated and well read, fully sympathised. For many years there had been a tacit understanding between the king and the Pope, and now that both the king and the Pope supported Wolsey's action there seemed to be less danger than ever of any disturbance of the friendly relations between Church and State. Yet though Henry was on good terms with the Pope, he had made up his mind that whenever there was a conflict of jurisdiction in ecclesiastical matters his own will, and not that of the clergy, was to be predominant. As early as in **1515**, when a question of this kind was moved, Wolsey asked on behalf of the clergy that it might be referred to the Pope. "We," said Henry proudly, "are by God's grace king of England, and have no superior but God; we will maintain the rights of the crown like our predecessors; your decrees you break and interpret at your pleasure, but we will not consent to your interpretation of them any more than our predecessors have done." Henry VIII., in short, took up the position which Henry II. had assumed towards the clergy of his day, and he was far more powerful to give effect to his views than Henry II. had ever been. Such an act of self-assertion would probably have caused a breach with the great Popes of the middle ages, such as Gregory VII. or Innocent III. Leo X. was far too much a man of the world to trouble himself about such matters.



Tower of Fountains Abbey church; built by Abbot Huby. 1494-1526.

5. **German Lutheranism.**—Before many years had passed the beginnings of a great religious revolution which appeared in Germany served to bind Henry and Leo more closely together. Martin Luther, a Saxon friar, had been disgusted by the proceedings of a hawker of indulgences, who extracted small sums from the ignorant by the sale of the remission of the pains of purgatory. What gave world-wide importance to Luther's resistance was that he was not only an eloquent preacher of morality, but the convinced maintainer of a doctrine which, though not a new one, had long been laid aside. He preached justification by faith, and the acceptance of his teaching implied even more than the acceptance of a new doctrine. For centuries it had been understood that each Christian held intercourse with God through the sacraments and ordinances of the Church. His individuality was, as it were, swallowed up in the vast community to which he belonged. Luther taught each of his hearers that the important thing was his faith, that is to say his immediate personal relation with God, and that the intervention of human beings might, indeed, be helpful to him,

but could be no more. Such a doctrine touched all human activity. The man who in religion counted his own individual faith as the one thing necessary was likely to count his own individual convictions in social or political matters as worth more to him than his obedience to the authority of any government. In Luther's teaching was to be found the spirit of political as well as of religious liberty. This side of it, however, was not likely to reveal itself at once. After a time Luther shook off entirely the claims of the Papacy upon his obedience, but he magnified the duty of obeying the princes who gave him their support in his struggle with the Pope.

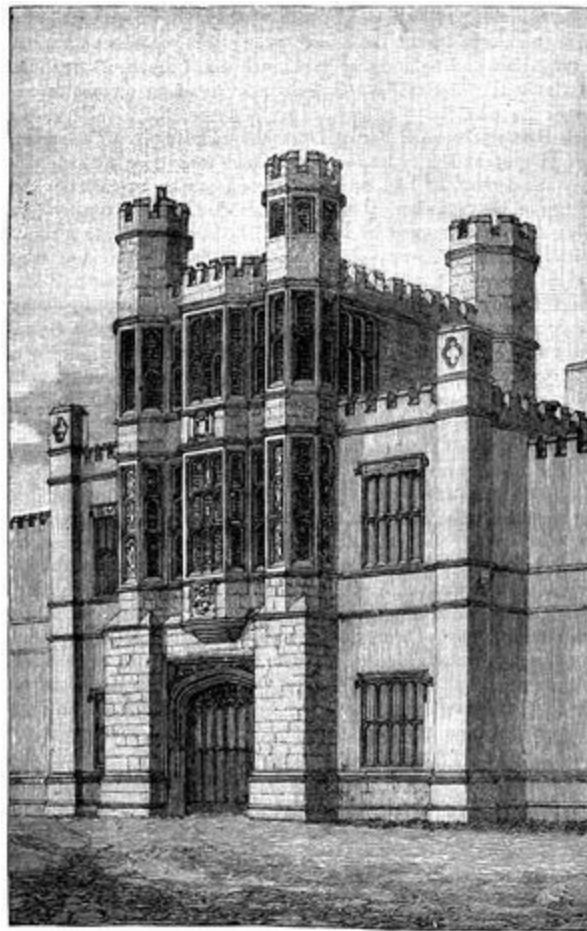
6. **Henry's Controversy with Luther.**—Luther, when once he was engaged in controversy with the Papacy, assailed other doctrines than those relating to justification. In **1521** Henry, vain of his theological learning, wrote a book against him in defence of the seven sacraments. Luther, despising a royal antagonist, replied with scurrilous invective. Pope Leo was delighted to have found so influential a champion, and conferred on Henry the title of Defender of the Faith. If Henry had not been moved by stronger motives than controversial vanity he might have remained the Pope's ally till the end of his life.



Catharine of Aragon: from a painting in the National Portrait Gallery.

7. Queen Catharine and Anne Boleyn.—It was a great disappointment to Henry that he had no surviving male children. England had never been ruled by a queen, and it was uncertain whether Henry's daughter, Mary, would be allowed to reign. Henry had already begun to ask himself whether he might not get rid of his wife, on the plea that a marriage with his brother's wife was unlawful, and this consideration had the greater weight with him because Catharine was five years older than himself and was growing distasteful to him. When in **1521**, in his book against Luther, he assigned a divine origin to the Papacy, he told More of a secret reason for this exaltation of the Pope's power, and it is possible that this reason was his desire to obtain from the Pope a divorce under the pretext that it would secure a peaceful succession. At all events his scruples regarding his marriage with Catharine were quickened in **1522** by the appearance at court of Anne Boleyn, a sprightly black-eyed flirt in her sixteenth year, who took his fancy as she grew into womanhood. Flirt as she was, she knew her

power, and refused to give herself to him except in marriage. The king, on his part, being anxious for a legitimate son, set his heart on a divorce which would enable him to marry Anne. Wolsey, knowing the obstacles in the way, urged him to abandon the project; but it was never possible to turn Henry from his course, and Wolsey set himself, in this as in all things else, to carry out his master's wishes, though he did so very reluctantly. Moral scruples had little weight with Wolsey, but in **1525**, when he learnt the king's design, there were strong political reasons against its execution, as England was in alliance with Catharine's nephew, the Emperor, Charles V., and a divorce would be certain to endanger the alliance.



The Gatehouse of Coughton Court, Warwickshire; built about 1530.

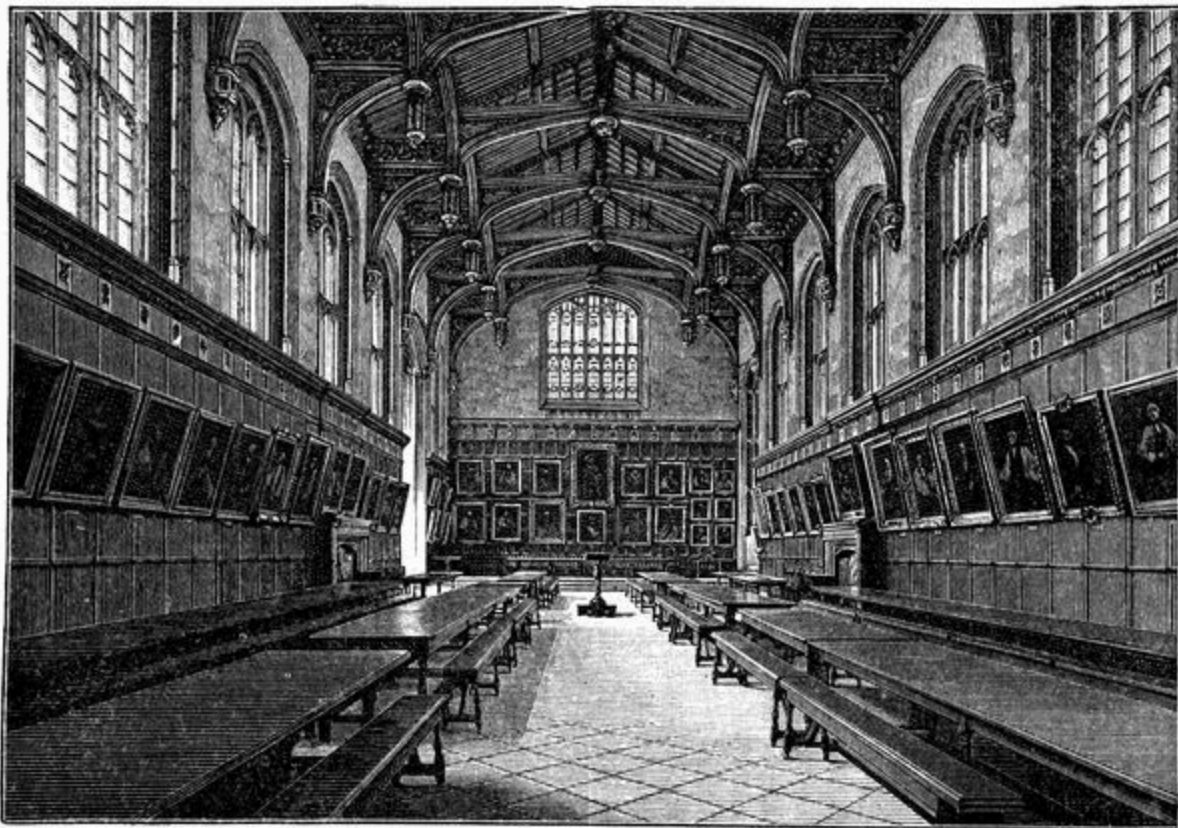
8. Henry's Demand for a Divorce. 1527-1528.—Two years later, in **1527**, as Henry was veering round towards a French alliance (see p. [374](#)), he had no longer much reason to consider the feelings of the Emperor. On

the other hand, the strong position which Charles occupied in Italy after the sack of Rome made it improbable that Clement VII. who was then Pope, and who thought more of his political than of his ecclesiastical position, would do anything to thwart the Emperor. An attempt made by Henry in **1527** to draw Clement to consent to the divorce failed, and in **1528** Wolsey sent to Rome his secretary, Stephen Gardiner, an adroit man of business, to induce Clement to appoint legates to decide the question in Henry's favour. Clement, anxious to please all parties, appointed Wolsey and another cardinal, Campeggio, as his legates, but took care to add that nothing done by them should be valid until it had received his own approval.

9. The Legatine Court. 1529.—The court of the two legates was opened at Blackfriars in **1529**. Before proceeding to business they tried hard to induce either Henry to abstain from asking for a divorce or Catharine to abstain from resisting his demand. In such a matter Catharine was as firm as the self-willed Henry. Even if she could consent to leave the throne, she could not, if she retained any sense of womanly dignity, acknowledge that she had never been a wife to Henry, or suffer her daughter to be branded with illegitimacy. When king and queen were at last cited to appear Catharine knelt before her husband. She had, she said been his true and obedient wife for twenty years, and had done nothing to deserve being put to open shame. As it was, she appealed to Rome. The queen's cause was popular with the masses, who went straight to the mark, and saw in the whole affair a mere attempt to give a legal covering to Henry's lust. The legates refused to consider the queen's appeal, but when they came to hear arguments on the merits of the case they were somewhat startled by the appearance of the aged Fisher, Bishop of Rochester, one of the holiest and most learned prelates of the day, who now came voluntarily, though he knew that Henry's wrath was deadly, to support the cause of Catharine. Campeggio took advantage of the strong feeling which was growing against the king to interpose delays which he knew to be well-pleasing to Clement, and before these delays were at an end Clement annulled all the proceedings in England and revoked the cause to Rome. Most probably he was alarmed at the threats of the Emperor, but he had also reasons of his own for the course which he took. Henry did not ask for a divorce on any of the usual grounds, but for a declaration that his marriage had been null from the beginning. As, however, his marriage had been solemnised with a Papal

dispensation, Clement was asked to set aside the dispensation of one of his predecessors, a proceeding to which no Pope with any respect for his office could reasonably be expected to consent.

10. The Fall of Wolsey. 1529-1530.—Henry was very angry and made Wolsey his victim. Wolsey's active endeavours to procure the divorce counted as nothing. It was enough that he had failed. He was no longer needed to conduct foreign affairs, as Henry cared now only for the divorce, and raised no objection when Charles and Francis made peace at Cambrai without consulting his interests. The old nobility, headed by the Duke of Norfolk, the son of the victor of Flodden, had long hated Wolsey bitterly, and the profligate courtiers, together with the friends and relatives of Anne, hated him no less bitterly now. Before the end of the year proceedings under the Statute of Præmunire (see pp. 258, [382](#)) were taken against him on the ground that he had usurped legatine powers. It was notorious that he had exercised them at the king's wish, and he could have produced evidence to show that this had been the case. In those days, however, it was held to be a subject's duty not to contest the king's will, and Wolsey contented himself with an abject supplication for forgiveness. He was driven from his offices, and all his goods and estates seized. The college which he had founded at Ipswich was sold for the king's use, and his college at Oxford, then known as Cardinal College, was also seized, though it was afterwards refounded under the name of Christchurch by the robber king. Wolsey was reduced to extreme poverty. In **1530** he was allowed to return to the possession of the archbishopric of York; but he imprudently opened communications with the French ambassador, and harmless as they were, they gave a handle to his enemies. Henry ordered him to be charged with treason. The sufferings of his mind affected his body, and on his way to London he knew that he was a dying man. "Father Abbot," he said, in taking shelter in Leicester Abbey, "I am come hither to leave my bones among you." "If I had served my God," he acknowledged as he was passing away, "as diligently as I have done my king, He would not have given me over in my grey hairs."



Hall of Christchurch, Oxford; built by Cardinal Wolsey, and finished in 1529.

11. The House of Commons and the Clergy. 1529.—No king ever felt the importance of popularity like Henry, and the compassion which had been freely given to Catharine by the crowd, on her appearance in the Legatine Court, made it necessary for him to find support elsewhere. It had been Wolsey's policy to summon Parliament as seldom as possible. It was to be Henry's policy to summon it as frequently as possible. He no longer feared the House of Lords, and either he or Wolsey's late servant, Thomas Cromwell, an able and unscrupulous man, who rose rapidly in Henry's favour, perceived the use which might be made of the House of Commons. By his influence the king could carry the elections as he pleased, and when Parliament met in **1529** it contained a packed House of Commons ready to do the king's bidding. The members were either lawyers or country gentlemen, the main supports of the Tudor monarchy, and Henry strengthened his hold upon them by letting them loose on the special abuses which had grown up in the ecclesiastical courts. Lawyers and country gentlemen were very much what they had been in the fifteenth century,

without large political ideas or fine spiritual perceptions; but now that they were relieved of the oppression of the great nobles they turned upon the clergy, who claimed fees and dues which they disliked paying, and who used the powers of the ecclesiastical tribunals to exact heavy payments for moral and spiritual offences.

12. The Universities Consulted. 1530.—Henry had as yet no thought of breaking with the Pope. He wanted to put pressure on him to make him do what he had come to regard as right. In **1530** he sent to the universities of Europe to ask their opinion on the question whether a marriage with a brother's widow was contrary to the law of God. The whole inquiry was a farce. Wherever Henry or his allies could bribe or bully the learned doctors, an answer was usually given in the affirmative. Wherever the Emperor could bribe or bully, then the answer was usually given in the negative. That the experiment should have been tried, however, was a proof of the strength of the spirit of the Renaissance. A question of morals which the Pope hesitated to decide was submitted to the learning of the learned.

13. The Clergy under a Præmunire. 1530-1531.—Towards the end of **1530** Henry charged the whole clergy of England with a breach of the Statute of Præmunire by their submission to Wolsey's legatine authority. A more monstrous charge was never brought, as when that authority was exercised not a priest in England dared to offend the king by resisting it. When the Convocation of Canterbury met in **1531**, it offered to buy the pardon of the clergy by a grant of 100,000*l.*, to which was afterwards added 18,000*l.* by the Convocation of York. Henry refused to issue the pardon unless the clergy would acknowledge him to be supreme head of the Church of England.

14. The King's Supreme Headship acknowledged by the Clergy. 1531.—The title demanded by Henry was conceded by the clergy, with the qualification that he was Supreme Head of the English Church and clergy so far as was allowed by the law of Christ. The title thus given was vague, and did not bar the acknowledgment of the Papal authority as it had been before exercised, but its interpretation would depend on the will of the stronger of the two parties. As far as the Pope was concerned, Henry's claim was no direct invasion of his rights. The Pope had exercised authority and

jurisdiction in England, but he had never declared himself to be Supreme Head of the Church either in England or anywhere else. Henry indeed alleged that he asked for nothing new. He merely wanted to be known as the supreme authority in the relations between the clergy and the laity. Nevertheless it was a threat to the Pope, who might well fear lest the clergy, after giving way to the assumption of a title which implied authority over themselves, might give way to the widening of that same authority over matters on which the Pope's claims had hitherto been undoubted.

15. The Submission of the Clergy. 1532.—Everything done by Henry at this crisis was done with a view to the securing of his purposed divorce. In the Parliament which sat in **1532** the Commons were again let loose upon the clergy, and Henry, taking their side, forced Convocation^[2] to sign a document known as the submission of the clergy. In this the clergy engaged in the first place neither to meet in Convocation nor to enact or execute new canons without the king's authority, and, secondly, to submit all past ecclesiastical legislation to examination with a view to the removal of everything prejudicial to the royal prerogative. The second article was never carried into effect, as the first was enough for Henry. He was now secure against any attempt of the clergy in Convocation to protest against any step that he might take about the divorce, and he was none the less pleased because he had incidentally settled the question of the relations between the clerical legislature and the Crown.



Sir Thomas More, wearing the collar of SS: from an original portrait painted by Holbein in 1527, belonging to Edward Huth, Esq.

16. **Sir Thomas More and the Protestants. 1529-1532.**—The submission of the clergy cost Henry the services of the best and wisest of his statesmen. Sir Thomas More had been appointed Chancellor on Wolsey's fall in **1529**. When More wrote the *Utopia*, Luther had not yet broken away from the Papacy, and the tolerant principles of the author of that book had not been put to the test. Even in the *Utopia* More had confined his tolerance to those who argued in opposition to the received religion without anger or spite, and when he came to be in office he learnt by practical experience that opposition is seldom carried on in the spirit of meekness. Protestantism, as the Lutheran tenets began to be called in **1529**, spread into England, though as yet it gained a hold only on a few scattered individuals. Here and there thoughtful men, dissatisfied with the teaching given to them and with the lives of many of their teachers, embraced the Lutheran doctrine of justification by faith. Even the best of them could

hardly be expected to treat with philosophic calm the doctrines which they had forsaken; whilst some of their converts took a pleasure in reviling the clergy and the common creed of the vast majority of Englishmen. With many again the doctrine of justification by faith slipped into the condemnation of the merit of good works, and even into a light estimation of good works themselves. For this bitterness of speech and mind More had no tolerance, and while he pursued his antagonists with argument and ridicule, he also used his authority to support the clergy in putting down what they termed heresy by the process of burning the obstinate heretic.

17. Resignation of Sir Thomas More. 1532.—More had no ground for fearing that the increase of the king's authority over the clergy would at once encourage revolt against the Church. Henry was a representative Englishman, and neither he nor the House of Commons had the least sympathy with heresy. They wanted to believe and act as their fathers had done. More, however, was sufficiently prescient to foresee that a lay authority could not for ever maintain this attitude. Laymen were certain to be moved by the current of thought which prevailed in their age, and it was only, he believed, the great Papal organisation which could keep them steady. Though Henry had not yet directly attacked that organisation, he might be expected to attack it soon, and, in **1532**, More retired from all connection with Henry's government rather than take part in that attack.

18. The First Act of Annates. 1532.—Having secured himself, as it were, in the rear by the submission of the clergy, Henry proceeded to deal with the Pope. He still wished if possible to win him to his side, and before the end of **1532** he obtained from Parliament an Act of Annates. Annates were the first-fruits or first year's income of ecclesiastical benefices, and by this Act the first-fruits of bishoprics, which had hitherto been paid to the Pope, were to be kept back. The Act was not, however, to come into force till the king had ratified it, and Henry refused for a time to ratify it hoping to reduce Clement to submission by suspending over his head a threat upon his purse.

19. The King's Marriage and the Act of Appeals. 1533.—Henry, however, found that Clement was not to be moved, and his patience coming at last to an end, he was secretly married to Anne Boleyn on January 25,

1533. Now that he had reluctantly given up hope of obtaining a favourable decision from the Pope, he resolved to put an end to the Papal jurisdiction in England. Otherwise if he obtained a sentence in an English ecclesiastical court declaring his marriage with Catharine to be null from the beginning, his injured wife might appeal to the superior court of the Pope. He accordingly obtained from Parliament the Act of Appeals, declaring that the king held the supreme authority in England, and that as under him all temporal matters were to be decided by temporal judges, and all spiritual matters by spiritual judges, no appeals should hereafter be suffered to any authority outside the realm. Henry was capable of any meanness to serve his ends, but he also knew how to gain more than his immediate ends by connecting them with a large national policy. He almost made men forget the low design which prompted the Act of Appeals by fixing their eyes on the great object of national independence.

20. Archbishop Cranmer and the Court at Dunstable. 1533.—Henry found a convenient instrument for his personal as well as for his national policy in Thomas Cranmer, whom he appointed Archbishop of Canterbury in the spring of **1533**. Cranmer was intellectually acute, and took a worthy part in the further development of the English Church; but he was morally weak, and inclined to carry out orders whatever they might be, especially if they came from a king as strong-willed as Henry. He had already thrown himself as an active agent into the cause of Henry's divorce, and he was now prepared as archbishop to give effect to his arguments. In March Convocation was half persuaded, half driven to declare Catharine's marriage to be void, and in May Cranmer, sitting at Dunstable in his archiepiscopal court, pronounced sentence against her. In accordance with the Act of Appeals the sentence was final, but both Henry and Cranmer feared lest Catharine should send her counsel to make an appeal to Rome, and they were therefore mean enough to conceal from her the day on which sentence was to be given. The temporal benefits which the Pope derived from England were now to come to an end as well as his spiritual jurisdiction, and in July the king ratified the Act of Annates.

21. Frith and Latimer. 1533.—When a man of special intellectual acquirements like Cranmer could descend to the trick which he had played at Dunstable, it was time that some one should be found who, in the

steadfastness of his faith, would refuse to truckle to the king, and would maintain the rights of individual conscience as well as those of national independence. The teaching of Zwingli, a Swiss reformer, who held that the bread and wine in the Sacrament of the Lord's Supper was a mere sign of the Body and Blood of the Redeemer, was beginning to influence the English Protestants, and its reception was one more reason for the mass of Englishmen to send to prison or the stake those who maintained what was, in their eyes, so monstrous a heresy. Amongst the noblest of the persecuted was John Frith, who whilst he stoutly held to the belief that the doctrine of transubstantiation was untrue, begged that men should be left 'to think thereon as God shall instil in any man's mind, and that neither part condemn other for this matter, but receive each other in brotherly love, reserving each other's infirmity to God.' Frith was in advance of his time as the advocate of religious liberty as well as of a special creed, and he was burnt alive. Henry meant it to be understood that his supreme headship made it easier, and not harder, to suppress heresy. He might have succeeded if he had had merely to deal with a few heroes like Frith. That which was beyond his control was the sapping process of the spirit of the Renaissance, leading his bishops, and even himself, to examine and explain received doctrines, and thus to transform them without knowing what they were doing. Hugh Latimer, for instance, a favourite chaplain of the king, was, indeed, a preacher of righteousness, testing all things rather by their moral worth than by their conformity to an intellectual standard. The received doctrines about Purgatory, the worship of the saints, and pilgrimages to their images seemed to him to be immoral; but as yet he wished to purify opinion, not to change it altogether, and in this he had the support of the king, who, in **1535**, made him Bishop of Worcester.

22. Completion of the Breach with Rome. 1533-1534.—Before **1533** was over Henry appealed from the Pope to a General Council. Clement not only paid no heed to his appeal, but gave sentence in favour of Catharine. When Parliament met in **1534**, therefore, Henry was obliged to strengthen his position of hostility to the Pope. He procured from it three Acts. The first of these was a second Act of Annates, which conferred on him absolutely not only the first-fruits of bishoprics which had been the subject of the conditional Act of Annates in **1532** (see p. [388](#)), but also the first-fruits of all the beneficed clergy, as well as a tenth of each year's income of

both bishops and beneficed clergy, all of which payments had been hitherto made to the Pope. Incidentally this Act also regulated the appointment of bishops, by ordering that the king should issue a *cong  d' lire* to the chapter of the vacant see, together with a letter missive compelling the choice of his nominee. The second was an Act concerning Peter's pence, abolishing all minor payments to the Pope, and cutting away all interference of the Pope by transferring his right to issue licences and dispensations to the Archbishop of Canterbury. The third confirmed the submission of the clergy and enacted that appeals from the courts of the Archbishop should be heard by commissioners appointed by the King, and known as the delegates of Appeals. It was by these Acts that the separation between the Churches of England and Rome was finally effected. They merely completed the work which had been done by the great Act of Appeals in 1533. The Church of England had indeed always been a national Church with its own ecclesiastical assemblies, and with ties to the Crown which were stretched more tightly or more loosely at various times. It had, however, maintained its connection with the Continental Churches by its subordination to the Pope, and this subordination had been made real by the subjection of its courts to appeals to Rome, and by the necessity of recurring to Rome for permission to do certain things prohibited by English ecclesiastical law. All this was now at an end. The old supremacy of the king was sharpened and defined. The jurisdiction of the Pope was abolished. Nominally the English ecclesiastical authorities became more independent; more capable of doing what seemed to them to be best for the Church of the nation. Such at least was the state of the law. In practice the English ecclesiastical authorities were entirely at Henry's bidding. In theory and in sentiment the Church of England was still a branch of the Catholic Church, one in doctrine and in discipline with the Continental Churches. Practically it was now, in a far more unqualified sense than before, a national Church, ready to drift from its moorings and to accept new counsels whenever the tide of opinion should break strongly upon it.

CHAPTER XXVI

THE ROYAL SUPREMACY. 1534-1547

LEADING DATES

Reign of Henry VIII., 1509-1547

The Acts of Succession and Supremacy 1534
Execution of Fisher and More 1535
Dissolution of the smaller monasteries and the
Pilgrimage of Grace 1536
Destruction of relics and images 1538
The Six Articles and the Act granting to the
king the greater monasteries 1539
Fall of Cromwell 1540
Henry VIII. king of Ireland 1541
Solway Moss 1542
Death of Henry VIII. 1547

1. **The Act of Succession. 1534.**—In September 1533 Anne had given birth to a daughter, who was afterwards Queen Elizabeth. In 1534 Parliament passed an Act of Succession. Not only did it declare Anne's marriage to be lawful and Catharine's unlawful, and consequently Elizabeth and not Mary to be heir to the crown, but it required all subjects to take an oath acknowledging their approval of the contents of the Act. More and Fisher professed themselves ready to swear to any succession which might be authorised by Act of Parliament; but they would not swear to the illegality of Catharine's marriage. It was on this point that Henry was most sensitive, as he knew public opinion to be against him, and he threw both More and Fisher into the Tower. In the year before the language held in the pulpit on the subject of Henry's marriage with Anne in his wife's lifetime had been so strong that Cranmer had forbidden all preaching on the subject of the king's laws or the succession to the throne. Of the clergy, the friars were still the most resolute. Henry now sent commissioners to visit the friaries, and those in which the oath was refused were summarily suppressed.

2. **The Acts of Treason and Supremacy. 1534.**—In 1534 Parliament also passed a new Act of Treasons which made it high treason to wish or practise harm to the king, the queen, and their heirs, to use words denying their titles, or to call the king a 'heretic, schismatic, tyrant, infidel, or

usurper of the crown.' Later in the same year, but in a fresh session, Parliament passed the Act of Supremacy, which confirmed the title of Supreme Head on earth of the Church of England, a title very similar to that to which the king had obtained the qualified assent of the clergy in **1531** (see p. [386](#)). From that time anyone who denied the king to be the Supreme Head of the Church of England was liable to a traitor's death.

3. The Monks of the Charterhouse.

1534.—It can hardly be doubted that Henry's chief adviser in these tyrannical measures was the able and unscrupulous Cromwell. It was Cromwell's plan to exalt the royal authority into a despotism by means of a subservient Parliament. He was already Henry's secretary; and in **1535** was appointed the king's Vicar-General in ecclesiastical matters. He was quite ready to push the Acts of Parliament which had recently been passed to their extreme consequences. His first object was to get rid of the Friars Observant, who had shown themselves most hostile to what they



John Fisher, Bishop of Rochester, 1504-1535; from a drawing by Holbein in the Royal Library, Windsor Castle.

called in plainness of speech the king's adultery. All their houses were suppressed, and some of the inmates put to death. Then Cromwell fell on the London Charterhouse,^[3] the inmates of which had been imprisoned in the year before simply for a refusal to take the oath of the Act of Succession, though they had not uttered a word against the king's proceedings. They could now be put to death under the new Treason Act, for denying the king's supremacy, and many of them were accordingly executed after the usual barbarous fashion, whilst others perished of starvation or of diseases contracted in the filthy prisons in which they were confined. "I profess," said the Prior, Houghton, "that it is not out of obstinate malice or a mind of rebellion that I do disobey the king, but only for the fear of God, that I offend not the Supreme Majesty; because our Holy Mother the Church hath decreed and appointed otherwise than the king and Parliament hath ordained." Houghton and his fellows were as truly

martyrs as Frith had been. They at least had sown no seeds of rebellion, and they died because a tyrannical king insisted on ruling over consciences as well as over bodily acts.

4. Execution of Fisher and More. 1535.—Fisher and More were the next to suffer on the same charge, though their sentences were commuted to death by beheading. More preserved his wit to the last. "I pray you," he said as he mounted the scaffold, "see me safe up, and for my coming down I will shift for myself." After he had knelt to place his head on the block, he raised it again to move his beard aside. "Pity," he muttered, "that should be cut that has not committed treason."

5. The Dissolution of the Smaller Monasteries. 1536.—Money never came amiss to Henry, and Cromwell now rooted himself firmly in his master's favour by pointing out to him fresh booty. The English monasteries were rich and weak, and it was easy to trump up or exaggerate charges against them. Cromwell sent commissioners to inquire into their moral state (1535), and the commissioners, who were as unscrupulous as himself, rushed round the monasteries in such a hurry that they had no time to make any real inquiry, but nevertheless returned with a number of scandalous tales. These tales referred to some of the larger monasteries as well as the smaller, but, when Parliament met in 1536, Henry contented himself with asking that monasteries having property worth less than 200*l.* a year should be dissolved, and their estates given to himself, on the ground that whilst the smaller ones were dens of vice the larger ones were examples of virtue. Parliament granted his request, and the work of spoliation began. There can be no doubt that vice did exist in the monasteries, though there was not so much of it as the commissioners asserted. It would have been indeed strange if innocence had been preserved in communities living in enforced celibacy, with no stress of work to occupy their thoughts, and with the high ideals of their profession neglected or cast aside. On the other hand, the monks were easy landlords, were hospitable to the stranger and kindly to the poor, whilst neither the king himself nor those to whom he gave or sold the lands which he acquired cared for more than to make money. The real weakness of the monks lay in their failure to conciliate the more active minds of the age, or to meet its moral needs. The attack upon the vast edifice of Henry's despotism in Church and State could only be carried on

successfully by the combined effort of men like the scholars of the Renaissance, whose thoughts were unfettered, and of those who, like the Protestants, were full of aggressive vigour, and who substituted for the duty of obedience the duty of following their own convictions.

6. The Execution of Anne Boleyn. 1536.—Before the end of **1536** there was a new queen. Henry became tired of Anne, as he had been tired of Catharine, and on a series of monstrous charges, so monstrous as to be hardly credible, he had her tried and executed. Her unpardonable crime was probably that her only living child was a daughter, and not a son. Ten days after Anne's death Henry married a third wife, Jane Seymour. As Catharine was now dead, there could be no doubt of the legitimacy of Jane's offspring, but to make assurance doubly sure, a new Parliament passed an Act settling the succession on Jane's children, and declaring both Mary and Elizabeth illegitimate.



Edward Seymour, Earl of Hertford, brother of Jane Seymour, afterwards Duke of Somerset, known as 'the Protector', at the age of 28 (1535), 1507-1552: from a painting at Sudeley Castle.

7. The Ten Articles. 1536.—It is probable that when Henry took the title of Supreme Head he intended to maintain the doctrines and practices of the Church exactly as he found them. In **1536** the clergy were crying out not merely against attacks on their faith, but against the ribaldry with which these attacks were often conducted. One assailant, for instance, declared the oil used in extreme unction to be no more than the Bishop of Rome's grease or butter, and another that it was of no more use to invoke a saint than it was to whirl a stone against the wind. Many of the clergy would have been well pleased with mere repression. Henry, however, and the bishops whom he most trusted wished repression to be accompanied with reasonable explanations of the doctrines and practices enforced. The result was seen in the Ten Articles which were drawn up by Convocation, and sent abroad with the authority of the king. There was to be uniformity, to be obtained by

the circulation of a written document, in which the old doctrines were stripped of much that had given offence, and their acceptance made easy for educated men. Of the seven sacraments, three only, Baptism, Penance, and the Sacrament of the Altar, were explained, whilst the other four—those of Marriage, Orders, Confirmation, and Extreme Unction—were passed over in silence. On the whole the Ten Articles in some points showed a distinct advance in the direction of Lutheranism, though there was also to be discerned in them an equally distinct effort to explain rather than to reject the creed of the mediæval Church.

8. The Translation of the Bible authorised. 1536.—The same tendency to appeal to educated intelligence showed itself in the sanction given by the king and Cromwell in **1536** to a translation of the Bible which had been completed in **1535** by Miles Coverdale, whose version of the New Testament was founded on an earlier one by Tyndale. It is probable that Henry, in authorising the circulation of this version, thought of the support which he might derive from the silence of the Bible on the Papal claims. The circulation of the Bible was, however, likely to work in a direction very different from that of the Ten Articles. The Ten Articles were intended to promote unity of belief. The Bible, once placed in the hands of everyone who could read, was likely to promote diversity. It would be the storehouse in which Lutherans, Zwinglians, and every divergent sect would find weapons to support their own special ideas. It would help on the growth of those individual opinions which were springing up side by side with the steady forward progress of the clergy of the Renaissance. The men who attempted to make the old creed intellectually acceptable and the men who proclaimed a new one, under the belief that they were recurring to one still older, were together laying the foundations of English Protestantism.

9. The Pilgrimage of Grace. 1536-1537.—Slight as these changes were, they were sufficient to rouse suspicion that further change was impending. The masses who could neither read nor write were stirred by the greed and violence with which the dissolution of the smaller monasteries was carried on, and by the cessation of the kindly relief which these monasteries had afforded to the wants of the poor. A rumour spread that when Cromwell had despoiled the monasteries he would proceed to despoil the parish churches. In the autumn of **1536** there was a rising in Lincolnshire, which was easily

suppressed, but was followed by a more formidable rising in Yorkshire. The insurgents, headed by Robert Aske, called it the Pilgrimage of Grace, and bore a banner embroidered with the five wounds of Christ. They asked among other things for the restoration of the monasteries, the punishment of Cromwell and his chief supporters, the deprivation of the reforming bishops, the extirpation of heresy, and the restoration of the Papal authority in a modified form. Their force grew so large that the Duke of Norfolk, who was sent to disperse it, did not venture to make the attempt, and the king found himself obliged to issue a general pardon and to promise that a Parliament should meet in the North for the redress of grievances. On this the insurgents returned home. Early in **1537** Henry, who had no intention of keeping his word, took advantage of some new troubles in the North to declare that his engagement was no longer binding, and seized and executed, not merely the leaders, but many of the lesser supporters of the insurrection. Of the Parliament in the North nothing more was heard, but a Council of the North was established to keep the people of those parts in order, and to execute justice in the king's name.

10. Birth of a Prince. 1537.—In **1537** Jane Seymour gave birth to a boy, who was afterwards Edward VI. Henry had at last a male heir of undoubted legitimacy, but in a few days his wife died.

11. The Beginning of the Attack on the Greater Monasteries. 1537-1538.—The failure of the Pilgrimage of Grace brought in fresh booty to Henry. Abbots and priors who had taken part in it, or were accused of doing so, were hanged, and their monasteries confiscated. Where nothing could be proved against the greater monasteries, which had been declared by Parliament to be free from vice, their heads were terrified into an appearance of voluntary submission. Cromwell had his spies and informers everywhere, and it was as easy for them to lie as to speak the truth. In **1537** and **1538** many abbots bowed before the storm, and, confessing that they and their monks had been guilty of the most degrading sins, asked to be allowed to surrender their monasteries to the king. Cromwell's commissioners then took possession, sold the bells, the lead on the roof, and every article which had its price, and left the walls to serve as a quarry for the neighbourhood. The lands went to the king. It not unfrequently happened that Henry promoted to ecclesiastical benefices those monks who

had been most ready to confess themselves sinners beyond other men. There is no doubt that the confessions were prepared beforehand to deceive contemporaries, and there is therefore no reason why they should deceive posterity.

12. Destruction of Relics and Images. 1538.—The attack on the monasteries was accompanied by an attack on relics and such images as attracted more than ordinary reverence. The explanation of the zeal with which they were hunted down is in many cases to be found in the gold and jewels with which they were adorned. Some of them were credited with miraculous powers. The figure of the Saviour on the rood at Boxley, in Kent, moved its head and eyes. A phial at Hales, in Worcestershire, contained a substance which had been brought from Germany in the thirteenth century, and was said to be the blood of the Saviour. Pilgrims thronged in numbers to adore, and their offerings brought in no small profit to the monks who owned such treasures. What was fondly believed by the common people was derided by critical spirits, and Henry was well pleased to destroy all reverence for anything which brought credit to the monks. The rood of Boxley was exhibited in London, where the Bishop of Rochester pulled the wires which caused its motions, and the blood in the phial of Hales was declared to be no more than a coloured gum. An ancient wooden figure, worshipped in Wales under the name of Darvel Gathern, served to make a fire which burned Friar Forest, who maintained that in spiritual things obedience was due to the Pope and not to the king. Instead of hanging him under the Treason Act (see p. [392](#)) Henry had him burnt as a heretic. It was the first and only time when the denial of the royal supremacy was held to be heresy. When war was made against superstition, the shrine of St. Thomas of Canterbury could hardly be allowed to escape. Thomas was a saint who had bearded a king, and his shrine, which had attracted such crowds of pilgrims that the marks which they left as they shuffled forward on their knees towards it are still to be seen on the stone floor, was smashed, and the bones of the saint burnt. Shrines were usually covered with gold and jewels, and all shrines shared the fate of that of St. Thomas.^[4] The images in parish churches, not being attractive to the covetous, and being valued by the people for ordinary purposes of devotion, were still left untouched.

13. The Trial of Lambert. 1538.—Henry's violence against monasticism and superstition made him extremely anxious to show his orthodoxy. The opinion held by Zwingli, the reformer of Zürich, that the Body and Blood of Christ were in no way present in the sacrament of the Lord's Supper was now spreading in England, and those who held it were known as Sacramentaries. One of these, John Lambert, was tried before Henry himself. Henry told Lambert scornfully that the words of Christ, 'This is My Body,' settled the whole question, and Lambert was condemned and burnt.

14. The Marquis of Exeter and the Poles. 1538.—Amongst the descendants of the Duke of Clarence was Reginald Pole.^[5] He had been scandalised by the divorce, had left England, had been made a Cardinal in **1536**, and had poured out a torrent of invective against the wickedness of Henry. In the end of **1538** Henry, having been informed that some of Pole's kinsfolk had been muttering dissatisfaction, sent them to execution together with his own cousin, the Marquis of Exeter, the son of his mother's sister.

15. The Six Articles. 1539.—Cruel and unscrupulous as Henry was, he was in many respects a representative Englishman, sympathising with the popular disgust at the spread of ideas hitherto unheard of. In a new Parliament which met in **1539** he obtained the willing consent of both Houses to the statute of the Six Articles. This statute declared in favour of: (1) the real presence of 'the natural Body and Blood of Christ' in the Lord's Supper; (2) the sufficiency of communion in one kind; (3) clerical celibacy; (4) the perpetual obligation of vows of chastity; (5) private masses; and (6) auricular confession. Whoever spoke against the first was to be burnt; whoever spoke against the other five was to suffer imprisonment and loss of goods for the first offence, and to be hanged for the second. By those who suffered from the Act it was known as 'The Whip with Six Strings.' Cranmer, who was a married archbishop, was forced to dismiss his wife. Bishops Latimer and Shaxton, whose opinions had gradually advanced beyond the line at which Henry's orthodoxy ended, were driven from their sees; but the number of those put to death under the new Act was not great.

16. Completion of the Suppression of the Monasteries. 1539-1540.—So completely was the statute of the Six Articles in accordance with public opinion, that Henry had no difficulty in obtaining the consent of Parliament

to an Act giving to his proclamations the force of law, and to another Act securing to him the whole of the monasteries whether they had been already suppressed or not. Before the end of **1540** not a single monastery was left. Three abbots, those of Glastonbury, Colchester, and Reading, had been hanged the year before after the mere semblance of a trial. The disappearance of the abbots from the House of Lords made the lay peers, for the first time, more numerous than the ecclesiastical members of the House. The lay peers, on the other hand, were reinforced by new creations from amongst Henry's favourites, whom he had enriched by grants of abbey lands. The new peers and the more numerous country gentlemen who had shared in the spoil were interested in maintaining the independence of the English Church, lest the Pope, if his jurisdiction were restored, should insist on their disgorging their prey. Of that which fell into the hands of the king, a small portion was spent on the foundation of five new bishoprics, whilst part of the rest was employed on shipbuilding and the erection of fortifications on the coast, part in meeting the general expenditure of the Crown.

17. Anne of Cleves and the Fall of Cromwell. 1539-1540.—In all that had been done Cromwell had been the leading spirit. It had been his plan to erect an absolute despotism, and thereby to secure his own high position and to enrich himself as well as his master. He was naturally hated by the old nobility and by all who suffered from his extortions and cruelty. In the summer of **1539** he was eager for an alliance with the German Protestants against the Emperor Charles V., and suggested to Henry a fourth marriage with a German princess, Anne of Cleves. Holbein, a great German painter settled in England, was sent to take a portrait of the lady, and Henry was so pleased with it that he sent for her to make her his wife. When she arrived he found her anything but good-looking. In **1540** he went through the marriage ceremony with her, but he divorced her shortly afterwards. Fortunately for herself, Anne made no objection, and was allowed to live in England on a good allowance till her death. For a time Cromwell seemed to be as high as ever in Henry's good opinion, and was created Earl of Essex. Henry, however, was inwardly annoyed, and he had always the habit of dropping ministers as soon as their unpopularity brought discredit on himself. Cromwell was charged with treason by the Duke of Norfolk. A Bill

of attainder^[6] was rapidly passed, and Cromwell was sent to the scaffold without being even heard in his own defence.

18. Catherine Howard and Catherine Parr. 1540-1543.—In 1540 Henry married a fifth wife, Catherine Howard. Norfolk, who was her uncle, gained the upper hand at court, and was supported by Gardiner (see p. [382](#)), now Bishop of Winchester, who was strongly opposed to all further ecclesiastical innovations. Those who denied the king's supremacy were sent to the gallows, those who denied the doctrine of transubstantiation to the stake. In 1541 the old Countess of Salisbury, the mother of Cardinal Pole, and the daughter of the brother of Edward IV., was executed in the belief that she had favoured an abortive conspiracy. Before the end of 1540 Henry discovered that his young wife had, before her marriage, been guilty of incontinency, and in 1542 she was beheaded. In 1543 Henry married a sixth wife, Catherine Parr, who actually survived him.

19. Ireland. 1534.—Henry's masterful rule had made him many enemies abroad as well as at home, and he was therefore constantly exposed to the risk of an attack from the Continent. In the face of such danger he could no longer allow Ireland to remain as disorganised as it had been in his father's reign and in the early years of his own, lest Ireland should become the stepping-stone to an invasion of England. In Ireland the Celtic chiefs maintained their independence, carrying on destructive wars with one another, both they and their followers being inspired with a high spirit of tribal patriotism, but without the slightest idea of national union. The Anglo-Norman lords ruling a Celtic population were quite as quarrelsome and even more oppressive than the Celtic chiefs, whilst the inhabitants of the English Pale (see p. 265), ruled over by what was only in name a civilised government, were subjected alike to the oppressive exactions of the authorities at Dublin and to the plundering of the so-called 'Irish enemies,' from whom these authorities were unable to protect them. The most powerful of the Anglo-Norman lords was still the Earl of Kildare (see p. 347), who, whenever he bore the title of Lord Deputy, unblushingly used the king's name in wreaking vengeance on his private enemies.

20. The Geraldine Rebellion. 1534-1535.—In 1534 Henry summoned Kildare to England and threw him into the Tower. On a rumour of Kildare's

death his son, Lord Thomas Fitzgerald—Silken Thomas, as he was called in Ireland—rose against the king. The Geraldines, as the Fitzgeralds were sometimes called, had often frightened kings by rebelling, but this time they failed in their object. In **1535** the Lord Deputy Skeffington brought heavy guns and battered down the walls of the great Geraldine castle at Maynooth. One by one all the males of Kildare's family, with the exception of two boys, were captured and put to death.



King Henry VIII.: from a picture belonging to the Earl of Warwick.

21. Lord Leonard Grey. 1536-1539.—Lord Leonard Grey became Lord Deputy in **1536**. The Irish Parliament which met in that year was still only a Parliament of the English Pale, but its acts showed that Henry intended, if possible, to rule all Ireland. On the one hand the royal supremacy was declared. On the other hand an Act was passed which showed how little was, in those days, understood of the difficulties standing in the way of the assimilation of two peoples at different stages of civilisation. The native Irish were ordered to be exactly as the English. They were to use the

English language, to adopt the English dress, and to cut their hair after the English fashion. It was to be in the Church as it was to be in the State. No one was to receive any ecclesiastical preferment who did not speak English. Such laws naturally could not be put in force, but they served as indications of the spirit of the Government. Even more obnoxious was the conduct of the Archbishop of Dublin, George Browne, a mere creature of Henry and Cromwell. The assertion of the royal supremacy, indeed, if it had stood alone, would have made little difference in the church-life of Ireland. Browne, however, persisted, in obedience to orders from England, in destroying relics and images which were regarded by the whole population with the deepest reverence. The doubting spirit of the Renaissance found no echo in Ireland, because that country was far behind England in education and culture. It would have been of less consequence if these unwise proceedings had been confined to the English Pale. Lord Leonard Grey was, however, a stern warrior, and carried his arms successfully amongst the Irish tribes. When he left Ireland in **1539** a large part of the Celtic population had been compelled to submit to Henry, and that population was even less prepared than were the inhabitants of the Pale for violent alterations of religious ceremonial.

22. Henry VIII. King of Ireland. 1541.—In **1541** a Parliament at Dublin acknowledged Henry to be king of Ireland. Hitherto he had been but Lord of Ireland. As that title had been granted by Pope Adrian IV. to Henry II. (see p. 152), Henry VIII. wished to have a new one which should mark his complete independence of Rome. This Parliament was the first attended by the native chiefs, and the assumption of the new title therefore indicated a new stage in Irish history. Unfortunately Henry bent himself to conciliate the chiefs rather than their tribes. He gave to the chiefs English titles—the O'Neill, for instance, becoming Earl of Tyrone, and O'Brien, Earl of Thomond—whilst he hoped to win their support by dissolving the monasteries, and by giving them a share in the plunder. All this Henry did in the hope that the chiefs would use their influence to spread English habits and English law amongst a people who were attached to their own ways. For the time he gained what he wanted. As long as the plunder of the abbeys was to be had the chiefs kept quiet. When that had been absorbed both chiefs and people would revolt against a Government which wanted to bring about, in a few years, a complete change in their mode of life. It is

indeed useless to regret that Henry did not content himself with forcing the tribes to keep peace with one another, whilst allowing them gradually to grow in civilisation in their own fashion. There are often things which it would be well to do, but which no government can do. In the first place Henry had not money enough to enforce peace, the whole revenue of Ireland at that time being no more than 5,000*l.* a year. In the second place he was roused to futile efforts to convert Irishmen into Englishmen because he was in constant dread of the intervention in Ireland of his Continental enemies.

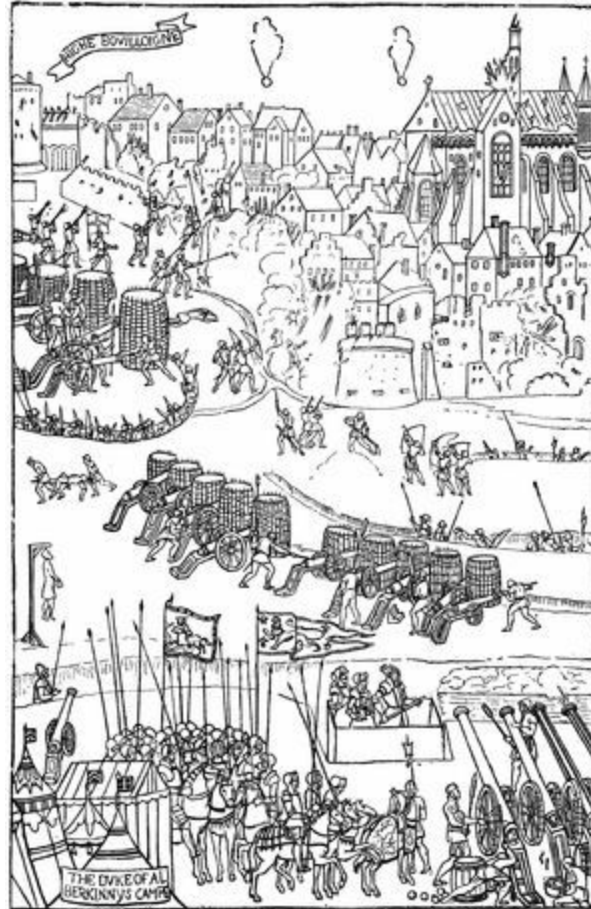
23. **Solway Moss. 1542.**—Henry was probably the more distrustful of a possibly independent Ireland because an actually independent Scotland gave him so much trouble. In Scotland there had been no Wars of the Roses, and the warlike nobility still resembled petty kings in their own districts. James V., the son of Henry's sister Margaret, strove to depress the nobles by allying himself with the Church and the Commons. Scotland was always ready to come to blows with England, and the clergy urged James to break with a king of England who had broken with the Pope. From **1532** to **1534** there had been actual war between the kingdoms. Even after peace was restored James's attitude was constantly menacing. In **1542** war broke out again, and the Duke of Norfolk crossed the Tweed and wasted the border counties of Scotland. Then James launched an army across the Border into Cumberland. His distrust of the nobles, however, made him place at the head of it a mere court favourite, Oliver Sinclair. The Scottish army was harassed by the horsemen of the English border, and as night was drawing on was suddenly assailed by a small English party. Having no confidence in Sinclair, the whole multitude fled in a panic, to be slain or captured in Solway Moss. James's health broke down under the evil tidings. As he lay sick, news was brought to him that his wife had given birth to a child. Hearing that the child was a girl, and remembering how the heiress of the Bruces had brought the crown to the House of Stuart (see p. 295), he was saddened by the thought that the Stuart name also would come to an end. "It came with a lass," he murmured, "and it will go with a lass." In a few days he died, and his infant daughter, the Queen of Scots, received the name of Mary.^[7]



Angel of Henry VIII. 1543.



Part of the encampment at Marquison, 1544, showing military equipment in the time of Henry VIII.: from an engraving made by Vertue for the Society of Antiquaries from the now destroyed painting at Cowdray House.



Part of the siege of Boulogne by Henry VIII., 1544, showing military operations: from an engraving made by Vertue for the Society of Antiquaries from the now destroyed painting at Cowdray House.



Part of the siege of Boulogne by Henry VIII., 1544, showing military operations: from an engraving made by Vertue for the Society of Antiquaries from the now destroyed painting at Cowdray House.

24. War with Scotland and France. 1542-1546.—Henry, anxious to disarm Scottish hostility, proposed a marriage between his son Edward and the young queen. The proposal was rejected, and an alliance formed between Scotland and France. In **1544** Henry, having formed an alliance with Charles V., who was now at war with France, invaded France and took Boulogne after a long siege—thus enlarging the English possessions in the neighbourhood of Calais—whilst Charles concluded a peace with Francis at Crêpy and left his ally in the lurch. In the same year Henry sent Lord Hertford, Jane Seymour's brother, to invade Scotland. Hertford burnt every house and cottage between Berwick and Edinburgh, took Edinburgh itself, and burnt the town. In **1546** peace was made between England and France, in which Scotland was included. The war had been expensive, and in **1544** Parliament had come to Henry's help by enacting that he need not repay a loan which he had gathered, yet even then Henry had had recourse to the desperate remedy of debasing the coinage.



Armour as worn in the reign of Henry VIII.: from the brass of John Lymsey, 1545, in Hackney Church.



Margaret, wife of John Lymsey: from her brass in Hackney Church, showing the costume of a lady *circa* 1545.

25. The Litany and the Primer. 1544-1545.—In **1544**, when Henry was besieging Boulogne, Cranmer ordered prayers to be offered for his success. In the true spirit of the Renaissance he wished these prayers to be intelligible, and directed that they should be in English. In the same year he composed the English Litany, intended to be recited by priests and people going in procession. This Litany was the foundation-stone of the future Book of Common Prayer. It was issued in **1544** together with a Primer, or book of private prayer, also in English. In the public services the Creed, the Lord's Prayer, and the Ten Commandments were to be in English, the remainder being left in Latin as before.



Thomas Howard, third Duke of Norfolk, 1473(?)—1554: from the picture by Holbein at Windsor Castle.

26. The Last Days of Henry VIII. 1545-1547.—When once inquiring intelligence is let loose on an antiquated system, it is hard to say where the desire of making alterations will stop, and there are reasons to believe that Henry was contemplating further changes. There were two parties at court, the one anxious to resist further change, headed, amongst the temporal lords, by the Duke of Norfolk and his son, the Earl of Surrey, and amongst the bishops by Gardiner; the other, desiring doctrinal innovations, especially if money was to be got by them, headed by the Earl of Hertford. In **1545** an Act had been passed for the dissolution of chantries, hospitals, and free chapels. The chantries had been founded for the maintenance of priests to say mass for the souls of the founders, and it was convenient for those who sought to divert this maintenance to their own use to believe that it was wrong to pray for the dead. In the end of **1546** Henry was taken ill, and, feeling himself to be dying, ordered the arrest of Norfolk and Surrey on charges of treason. It is probable that Henry turned against Norfolk and Surrey because he thought Hertford, as the uncle of the young Prince of Wales, more likely to be faithful to the future king. On January 27, **1547**,

Surrey was executed. His father was to have suffered on the 28th. Before he reached the scaffold, Henry died, and he was conducted back to prison. Henry, before his death, had done something to provide against the danger of a disputed succession. An Act of Parliament, passed in **1544**, had given back to Mary and Elizabeth the places in the line of inheritance to which they would have been entitled if no doubt had ever been cast on the legitimacy of their birth,^[8] and had authorised Henry to provide by will for the future occupancy of the throne in case of the failure of his own descendants. In accordance with this Act he left the crown, in case of such failure, to the descendants of his younger sister Mary, leaving out those of his elder sister Margaret, with whose son, James V., he had had so much reason to be displeased.

CHAPTER XXVII

EDWARD VI. AND MARY

EDWARD VI., 1547-1553. MARY, 1553-1558.

LEADING DATES

Somerset's Protectorate 1547
First Prayer Book of Edward VI. 1549
Fall of Somerset 1549
Second Prayer Book of Edward VI. 1552
Death of Edward VI. and accession of Mary 1553
Mary's marriage with Philip 1554
Submission to Rome and re-enactment of the heresy laws 1554
Beginning of the persecution 1555
War with France 1557
Loss of Calais and death of Mary 1558

1. Somerset becomes Protector. 1547.—The new king, Edward VI., was but a boy, and Henry had directed that England should be governed during

his son's minority by a body composed of the executors of his will and other councillors, in which neither the partisans of change nor the partisans of the existing order should be strong enough to have their own way. The leading innovators, pretending to be anxious to carry out his wishes, asserted that he had been heard to express a desire that they should be made peers or advanced in the peerage, and should receive large estates out of the abbey lands. After gaining their object, they set aside Henry's real plan for the government of the realm, and declared Hertford (who now became Duke of Somerset) to be Protector. A council was formed, from which Gardiner and the Lord Chancellor Wriothesley were excluded as likely to take part against them.

2. The Scotch War. 1547-1548.—Somerset was as greedy of Church property as the greediest, but he was covetous also of popularity, and had none of that moderating influence which Henry, with all his faults, possessed. He had always too many irons in the fire, and had no sense of the line which divides the possible from the impossible. His first thought was to intervene in Scotland. For some time past Protestant missionaries had been attempting to convert the Scottish people, but most of them had been caught and burnt. Cardinal Beaton, the Archbishop of St. Andrews, had lately burnt George Wishart, a noted Protestant. In **1546** the Cardinal was murdered in revenge by a party of Protestants, who seized on the castle of St. Andrews. A French fleet, however, recaptured the castle, and Somerset, who had sent no help to the Protestants in St. Andrews, marched into Scotland in the hope of putting an end to all future troubles between the kingdoms by marrying the young Queen of Scots to Edward. He carried with him a body of foreign mercenaries armed with the improved weapons of Continental warfare, and with their help he defeated and slaughtered the Scotch army at Pinkie Cleugh, burnt Holyrood and Leith, and carried destruction far and wide. Such rough wooing exasperated the Scots, and in **1548** they formed a close alliance with Henry II., who had succeeded Francis I. as king of France, and sent their young queen across the sea, where she was married to Henry's eldest son, the Dauphin Francis. Somerset had gained nothing by his violence.

3. Cranmer's Position in the Church of England. 1547.—Somerset's ecclesiastical reforms were as rash as his political enterprises. Cranmer had

none of that moral strength which would have made some men spurn an alliance with the unscrupulous politicians of the time. He was a learned student, and through long study had adopted the principle that where Scripture was hard to understand it was to be interpreted by the consent of the writers of the first ages of Christianity. As he had also convinced himself that the writers of the first six centuries had known nothing of the doctrine of transubstantiation, he was now prepared to reject it—though he had formerly not only believed it, but had taken part in burning men who denied it. It is quite possible that if Henry had been still alive Cranmer would have been too much overawed to announce that he had changed his opinion. His exact shade of belief at this time is of less importance than the method by which he reached it. In accepting the doctrines and practices of the existing Church till they were tested and found wanting by a combination of human reason and historical study of the scriptures, interpreted in doubtful points by the teaching of the writers of the early Church, Cranmer more than any one else preserved the continuity of the Church of England, and laid down the lines on which it was afterwards to develop itself. There was, therefore, a great gulf between Cranmer and the advanced Protestants, who, however much they might differ from one another, agreed in drawing inferences from the Scripture itself, without troubling themselves whether these inferences conformed in any way to the earlier teaching. This gulf was constantly widening as time went on, and eventually split English Protestantism into fractions.



Thomas Cranmer, Archbishop of Canterbury, 1533-1556: from a painting dated 1547, at Jesus College, Cambridge.

4. Ecclesiastical Reforms. 1547-1548.—In 1547 a fresh blow was struck at the devotions of the people. In the churches—by the order of the Government—there was much smashing of images and of painted glass bright with the figures of saints and angels. Gardiner, who protested that the Government had no authority to alter religion till the king was of age, was sent to prison as the easiest mode of confuting him. As Parliaments were usually packed in those days, it does not follow that the nation was eager for changes because Parliament ordered them. There was, however, no difficulty in filling the benches of the House of Commons with men who profited by the plunder of the Church, and when Parliament met, it showed itself innovating enough. It repealed all the statutes giving special powers to Henry VIII. and all laws against heresy. It also passed an Act vesting in the reigning king the whole of the chantries and other like foundations which Henry had been permitted to take, but which he had left untouched. Cranmer, indeed, would have been glad if the money had been devoted to the relief of the poorer clergy, but the grasping spirit of the laymen was too

strong for him. So violent was the race for wealth that the Act decreed the confiscation even of the endowments of lay corporations, such as trading companies and guilds, on the excuse that part of their funds was applied to religious purposes. It was soon, however, found that an attempt to enforce this part of the Act would cause resistance, and it was therefore abandoned. In **1548** the Government issued orders abolishing a great variety of Church practices, and, in consequence of the opposition offered by the clergy to these sudden measures ordered that no sermons should be preached except by a few licensed preachers.

5. The First Prayer Book of Edward VI. 1549.—In **1549** Parliament authorised the issue of a Prayer Book in English, now known as the First Prayer Book of Edward VI. The same Parliament also passed an Act permitting the marriage of the clergy.

6. The Insurrection in the West. 1549.—Somerset's own brother, Lord Seymour of Sudley, was sent to the block by this Parliament. He had spoken rashly against the Protector's government, but it has been thought by some that his main fault was his strong language against the rapacity with which Church property was being divided amongst the rich. That rapacity was now reaching its height. The Protector had set an evil example in order to raise the palace which, though it has since been rebuilt, still bears the name of Somerset House. He had not only seized on a vast amount of ecclesiastical property, but had pulled down a parish church and had carted off the bones of the dead from their graves. The Reformers themselves, men of the study as most of them were, had gone much farther than the mass of the people were prepared to follow. In **1549** an insurrection burst out in Devon and Cornwall for the restoration of the old religion, which was only suppressed with difficulty.

7. Ket's Rebellion. 1549.—Another rising took place in Norfolk, headed by Ket, a tanner. Ket's rebellion was directed not so much against ecclesiastical reforms, as against civil oppression. The gentry, who had been enriching themselves at the expense of the clergy, had also been enriching themselves at the expense of the poor. The inclosures against which More had testified were multiplied, and the poor man's claims were treated with contempt. Ket gathered his followers under a tree, which he called the Oak

of Reformation, on Mousehold Hill, outside Norwich, and sent them to pull down the palings of the inclosures. The Earl of Warwick—the son of that Dudley who, together with Empson, had been the object of popular hatred in the reign of Henry VII. (see p. 357)—dispersed the insurgents with great slaughter; but it was noted that both here and in the West the Government was driven to use the bands of German and Italian mercenaries which Somerset had gathered for the war in Scotland. It was the first time since the days of John (see p. 182) that foreign troops had been used to crush an English rising.

8. The Fall of Somerset. 1549.—Somerset no longer pleased any single party. His invasion of Scotland had led to a war with France, and to carry on that war he had found it necessary to debase the coinage still further than it had been debased by Henry VIII. All the disturbance of trade, as well as the disturbance of religion, was laid to his door. At the same time he was too soft-hearted to satisfy his colleagues in the Council, and had shown himself favourable to the outcry against inclosures. Accordingly, before the end of **1549** his colleagues rose against him, and thrust him into the Tower. The Protectorate was abolished. Henceforth the Council was to govern, but the leading man in the Council was Warwick.

9. Warwick and the Advanced Reformers. 1549.—Religion was a matter to which Warwick was supremely indifferent. It was an open question when he rose to power whether he would protect the men of the old religion or the advanced reformers. He chose to protect the advanced reformers. Even before Somerset's fall Cranmer had been pushing his inquiries still farther, and was trying to find some common ground with Zwinglian (see p. [399](#)) and other reformers, who went far beyond Luther. Foreign preachers, such as Bucer and Peter Martyr, were introduced to teach religion to the English, as foreign soldiers had been introduced to teach them obedience. Bishops were now appointed by the king's letters-patent, without any form of election. Gardiner and Bonner, refusing to accept the new state of things, were deprived of their sees of Winchester and London, and Ponet and Ridley set in their places. Ridley's moral character was as distinguished as Ponet's was contemptible. Hooper was made Bishop of Gloucester. For some time he hung back, refusing to wear the episcopal vestments as being a mark of Antichrist, but at last he allowed

himself to be consecrated in them, though he cast them off as soon as the ceremony was over.



Nicholas Ridley, Bishop of London, 1550-1553: from the National Portrait Gallery.

10. **Latimer's Sermons. 1548-1550.**—Latimer had refused to return to the bishopric from which he had been thrust by Henry VIII., but he lashed from the pulpit the vices of the age, speaking plainly in the presence of the court of its greed and oppression. It was not enough, he said, for sinners to repent: let them make restitution of their ill-gotten gains. In **1550** the courtiers became tired of his reproofs, and he was no longer allowed to preach before the king.

11. **Warwick and Somerset. 1550-1552.**—In **1550** Warwick was compelled to make a peace with France, and gave up Boulogne as its price. In **1551** he was very nearly drawn into war with the Emperor on account of his refusal to allow mass to be celebrated in the household of the king's sister, Mary. Finally, however, he gave way, and peace was maintained. There was a fresh issue of base money, and a sharp rise of prices in consequence. Now that there were no monasteries left to plunder, bishoprics

were stripped of their revenues, or compelled to surrender their lands. Hooper was given the ecclesiastical charge of the see of Worcester in addition to that of Gloucester, but he was driven to surrender all the income of the bishopric of Gloucester. The see of Durham was not filled up, and before the end of the reign it was suppressed by Act of Parliament, and ceased to have a legal existence till it was restored by Edward's successor. So unpopular did Warwick become that Somerset began to talk as though he might supplant his supplanter. His rash words were carried to the young king, who had for some time shown an interest in public affairs, and who now took the part of Warwick, whom he created Duke of Northumberland, against his own uncle. Somerset was arrested, and in **1552** was tried and beheaded.

12. The Second Prayer Book of Edward VI. 1552.—In **1552** Parliament authorised the issue of a revised Prayer Book, known as the Second Prayer Book of Edward VI. The first book had been framed by the modification of the old worship under the influence of Lutheranism. The second book was composed under the influence of the Swiss Reformers. The tendency of the two books may be gathered from the words ordered to be employed in the administration of the bread in the Communion. In the first Prayer Book they had been: "The Body of our Lord Jesus Christ, which was given for thee, preserve thy body and soul unto everlasting life." In the second they were: "Take and eat this in remembrance that Christ died for thee, and feed on Him in thy heart by faith with thanksgiving." There were some who urged that the Communion should no longer be received kneeling. It was significant that their leaders were foreigners—John Alasco, a Pole, and John Knox, a Scot, who was hereafter to be the father of a Scottish reformation more drastic than that of England. Cranmer withstood them successfully. The dispute marked the point beyond which the spirit of the Renaissance refused to go. In the midst of his innovations Cranmer preserved not only a reverent spirit, but an admiration for the devotional style of the prayers of the medieval Church, which he therefore maintained even in the midst of the great changes made, mainly at least by himself, in the second Prayer Book. Happily, amidst these disputations, there was one point on which both parties could combine—namely, on the encouragement of education. The reign of Edward VI. is marked by the foundation of grammar-schools—too scantily carried out, but yet in such a measure as to

mark the tendencies of an age which was beginning to replace the mainly ecclesiastic education of the monasteries by the more secular education of modern times.



King Edward VI.: from a picture belonging to H. Hucks Gibbs, Esq.

13. **The Forty-two Articles. 1553.**—Edward was now a precocious youth, taught by much adulation to be confident in his own powers. He had learnt to regard all defection from Protestant orthodoxy as a crime. The statute which repealed the heresy laws did not altogether stop the burning of heretics, as the lawyers discovered that heresy was punishable by the common law. In **1550** Joan Bocher was burnt for denying the Incarnation, and in **1551** Van Parris, a Fleming, was burnt on the same charge. The persecution, however, was much more restricted than in the preceding reign. Few persons were punished, and that only for opinions of an abnormal character. In **1553** forty-two articles of faith, afterwards, in the reign of Elizabeth, converted into thirty-nine, were set forth as a standard of the Church's belief by the authority of the king. So completely did the reforming clergy recognise their entire dependence on the king, that by a slip of the pen Hooper once wrote of 'the king's majesty's diocese of Worcester and Gloucester.'

14. Northumberland's Conspiracy. 1553.—A religious system built up solely on the will of the king, was hardly likely to survive him. By this time it was known that Edward was smitten with consumption, and could not live. Northumberland cared little for religion, but he cared much for himself. He knew that Mary was, by Henry's will sanctioned by Act of Parliament, the heiress of the throne, and that if Mary became queen he was hardly likely to escape the scaffold. He was daring as well as unscrupulous, and he persuaded Edward to leave the crown by will to Lady Jane Grey, the granddaughter of Mary, Duchess of Suffolk, the younger sister of Henry VIII. He secured (as he hoped) Lady Jane's devotion by marrying her to his own son, Lord Guilford Dudley. As Lady Jane was a convinced Protestant, Edward at once consented. His father, he thought, had left the crown by will in the case of the failure of his own heirs (see p. [411](#)), and why should not he? He had been taught to think so highly of the kingship that he did not remember that his father had been authorised by Act of Parliament to will away the crown in the case of his children's death without heirs, whereas no such authority had been given by Parliament to himself. He forced—by commands and entreaties—the councillors and the judges to sign the will. Cranmer was the last to sign, and was only moved to do so by the sad aspect of his suffering pupil. Then Edward died, assured that he had provided best for the Church and nation.

15. Lady Jane Grey. 1553.—On July 10 Lady Jane Grey, a pure-minded, intelligent girl of sixteen, was proclaimed queen in London. She was a fervent Protestant, and there were many Protestants in London. Yet, so hated was Northumberland, that even Protestants would have nothing to say to one who had been advanced by him. Lady Jane passed through the streets amidst a dead silence. All England thought as London. In a few days Mary was at the head of 30,000 men. Northumberland led against her what troops he could gather, but his own soldiers threw their caps in the air and shouted for Queen Mary. On the 19th Mary was proclaimed queen in London, and the unfortunate Jane passed from a throne to a prison.[\[9\]](#)

16. Mary restores the Mass. 1553.—Mary, strong in her popularity, was inclined to be merciful. Amongst those who had combined against her only Northumberland and two others were executed—the miserable Northumberland declaring that he died in the old faith. Mary made Gardiner

her Chancellor. Some of the leading Protestants were arrested, and many fled to the Continent. The bishops who had been deprived in Edward's reign were reinstated, and the mass was everywhere restored. The queen allowed herself to be called Supreme Head of the Church, and at first it seemed as though she would be content to restore the religious system of the last year of Henry's reign, and to maintain the ecclesiastical independence of the country.



Queen Mary Tudor: from a painting by Lucas de Herre, dated 1554, belonging to the Society of Antiquaries.

17. Mary's First Parliament. 1553.—By taking this course Mary would probably have contented the great majority of her subjects, who were tired of the villainies which had been cloaked under the name of Protestantism, and who were still warmly attached to the religion of their fathers. She was, however, anxious to restore the authority of the Pope, and also to marry Philip, the eldest son of her cousin, the Emperor Charles V. It was natural that it should be so. Her mother's life and her own youth had been made wretched, not by Protestants, but by those who, without being Protestants, had wrought the separation from Rome in the days of Henry, at a time when only the Pope's adherents had maintained the legitimacy of her own birth

and of her mother's marriage. In subsequent times of trouble Charles V. had sympathised with her and it was by her intervention that she had been allowed to continue her mass in her brother's reign. Mary also wished to restore to the Church its lands. On the other hand, when Parliament met it appeared that her subjects wished neither to submit to Rome, nor to surrender the property of which they had deprived the Church, though they were delighted to restore the worship and practices which had prevailed before the death of Henry VIII. Parliament, therefore, authorised the re-establishment of the mass, and repealed the Act allowing the clergy to marry, but it presented a petition against a foreign marriage. Although the hatred of Spain which grew up a few years later was not yet felt, Englishmen did not wish their country to become a dependent province on any foreign monarchy whatever. Mary dissolved Parliament rather than take its advice.

18. Wyatt's Rebellion. 1554.—The result was an insurrection, the aim of which was to place Mary's half-sister, Elizabeth, on the throne. Lady Jane's father, the Duke of Suffolk, was to raise the Midlands and Sir Thomas Wyatt to raise Kent. Suffolk failed, but Wyatt, with a large following, crossed the Thames at Kingston, and pushed on towards the City. His men, however, were for the most part cut off in an engagement near Hyde Park corner, and it was with only three hundred followers that he reached Ludgate—to find the gate closed against him. 'I have kept touch,' he said, and suffered himself to be led away a prisoner. Mary was no longer merciful. Not only Suffolk and Wyatt, but the innocent Lady Jane and her young husband, Guilford Dudley, were sent to the block. Elizabeth herself was committed to the Tower. She fully believed that she was to die, and sat herself down on a wet stone, refusing for some time to enter. In many ways she had shown that she bore no goodwill to her sister or her sister's plans, but she had been far too prudent to commit to writing any words expressing sympathy with Wyatt. Being far too popular to be safely put to death on any testimony which was not convincing, Elizabeth was before long removed from the Tower and placed at Woodstock, under the charge of Sir Henry Bedingfield, but was after a few months allowed to retire to Hatfield.

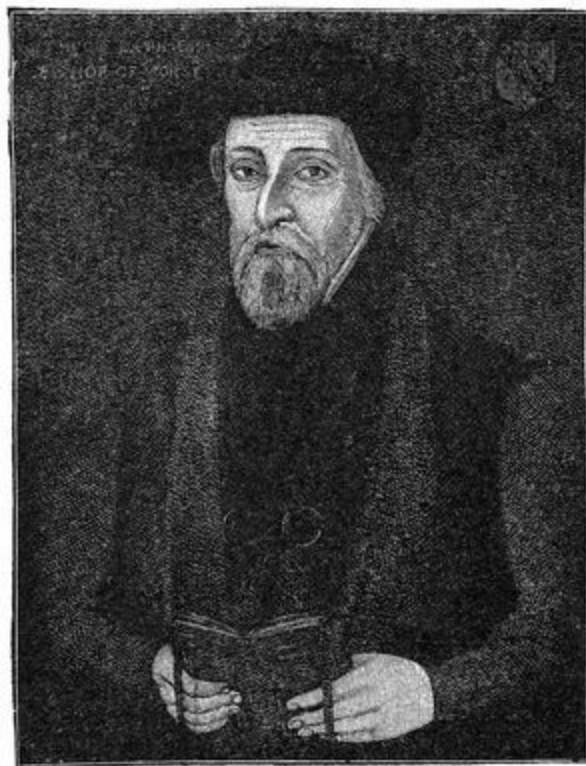
19. The Queen's Marriage.—A Parliament which met in April 1554 gave its consent to Mary's marriage, but it would not pass Bills to restore

the old statutes for the persecution of heretics. Though it was now settled that the queen was to marry Philip, yet never was a wooer so laggard. For some weeks he would not even write to his betrothed. The fact was that she was twelve years older than himself, and was neither healthy nor good-looking. Philip, however, loved the English crown better than he loved its wearer, and in July he crossed the sea and was married at Winchester to the queen of England. Philip received the title of king, and the names of Philip and Mary appeared together in all official documents and their heads on the coins.

20. The Submission to Rome. 1554.—After the marriage a new Parliament was called, more subservient than the last. In most things it complied with Mary's wishes. It re-enacted the statutes for the burning of heretics and agreed to the reconciliation of the Church of England to the see of Rome, but it would not surrender the abbey lands. Only after their possession had been confirmed did it give its consent to the acknowledgment of the Pope's authority. Then Cardinal Pole (see p. [399](#)), who had been sent to England as the Pope's legate, was allowed to receive the submission of England. The queen, the king, and both Houses knelt before him, confessed their sin of breaking away from the Roman see, and received absolution from his mouth. To Mary the moment was one of inexpressible joy. She had grieved over the separation from Rome as a sin burdening her own conscience, and she believed with all her heart that the one path to happiness, temporal and eternal, for herself and her realm, was to root out heresy, in the only way in which it seemed possible, by rooting out the heretics.

21. The Beginning of the Persecution. 1555.—It was not only Mary who thought it meet that heretics should be burnt. John Rogers, who was the first to suffer, had in the days of Edward pleaded for the death of Joan Bocher (see p. [419](#)). He was followed to the stake by Bishop Hooper, who was carried to Gloucester, that he might die at the one of his two sees which he had stripped of its property to enrich the Crown (see p. [418](#)). He and many another died bravely for their faith, as More and Forest had died for theirs (see pp. [394](#), [398](#)). Rowland Taylor, for instance (a Suffolk clergyman), was condemned in London to be burnt, and sent to his own county to die. As he left his prison in the dark of the early morning he found

his wife and children waiting for him in the street. He was allowed to stop for a moment, and knelt down on the stones, repeating the Lord's Prayer with his family. "Farewell, my dear wife," he said, as soon as he had risen from his knees; "be of good comfort, for I am quiet in my conscience. God shall stir up a father for my children." "Thanked be God," he exclaimed when he at last reached the village where his voice had once been heard in the pulpit, and where now the stake rose up amidst the faggots which were to consume him, "I am even at home!" After he had been tied to the stake a wretch threw a faggot at his face. "O friend," he said gently, "I have harm enough: what needed that?" The flames blazed up around his suffering body, and Rowland Taylor entered into his rest. Ridley and Latimer were burnt at Oxford, in the town ditch, in front of Balliol College. "Be of good comfort, Master Ridley, and play the man," cried Latimer, when the fire was lighted at his feet. "We shall this day light such a candle, by God's grace, in England, as I trust shall never be put out."



Hugh Latimer, Bishop of Worcester, 1535-39, burnt 1555: from the National Portrait Gallery.

22. Death of Cranmer. 1556.—Cranmer would have accompanied Ridley and Latimer to the stake, but as he alone of the three had been

consecrated a bishop in the days when the Pope's authority was accepted in England, it was thought right to await the Pope's authority for the execution of his sentence. In **1556** that authority arrived. Cranmer's heart was as weak as his head was strong, and he six times recanted, hoping to save his life. Mary specially detested him, as having sat in judgment on her mother (see p. [389](#)), and she was resolved that he should die. Finding his recantation useless, he recovered his better mind, and renounced his recantation. "I have written," he said, "many things untrue; and forasmuch as my hand offended in writing contrary to my heart, my hand therefore shall be the first burnt." He was hurried to the stake, and when the flames leapt up around him held his right hand steadily in the midst of them, that it might be 'the first burnt.'

23. Continuance of the Persecution. 1556-1558.—Immediately after Cranmer's death Pole became Archbishop of Canterbury. The persecution lasted for two years more. The number of those who suffered has been reckoned at 277. Almost all of these were burnt in the eastern and south-eastern parts of England. It was there that the Protestants were the thickest. New opinions always flourish more in towns than in the country, and on this side of England were those trading towns, from which communication with the Protestants of the Continent was most easy. Sympathy with the sufferers made these parts of the kingdom more strongly Protestant than they had been before.

24. The Queen's Disappointment. 1555-1556.—Mary was a sorrowful woman. Not only did Protestantism flourish all the more for the means which she took to suppress it, but her own domestic life was clouded. She had longed for an heir to carry on the work which she believed to be the work of God, and she had even imagined herself to be with child. It was long before she abandoned hope, and she then learnt also that her husband—to whom she was passionately attached—did not love her, and had never loved anything in England but her crown. In **1555** Philip left her. He had indeed cause to go abroad. His father, Charles V., was broken in health, and, his schemes for making himself master of Germany having ended in failure, he had resolved to abdicate. Charles was obliged to leave his Austrian possessions to his brother Ferdinand; and the German electors, who detested Philip and his Spanish ways, insisted on having Ferdinand as

Emperor. Charles could, however, leave his western possessions to his son, and in **1556** he completed the surrender of them. Mary's husband then became Philip II. of Spain, ruling also over large territories in Italy, over Franche Comté, and the whole of the Netherlands, as well as over vast tracts in America, rich in mines of silver and gold, which had been appropriated by the hardihood, the cruelty, and the greed of Spanish adventurers. No prince in Europe had at his command so warlike an army, so powerful a fleet, and such an abounding revenue as Philip had at his disposal. Philip's increase of power produced a strong increase of the anti-Spanish feeling in England, and conspiracies were formed against Mary who was believed to be ready to welcome a Spanish invading army.

25. War with France and the Loss of Calais. 1557-1558.—In **1557** Philip was at war with France, and, to please a husband who loved her not, Mary declared war against Philip's enemy. She sent an English army to her husband's support, but though Philip gained a crushing victory over the French at St. Quentin, the English troops gained no credit, as they did not arrive in time to take part in the battle. In the winter, Francis, Duke of Guise, an able French warrior, threatened Calais. Mary, who, after wringing a forced loan from her subjects in the summer, had spent it all, had little power to help the governor, Lord Wentworth, and persuaded herself that the place was in no danger. Guise, however, laid siege to the town. The walls were in disrepair and the garrison too small for defence. On January 6, **1558**, Guise stormed Calais, and when, a few days afterwards, he also stormed the outlying post of Guisnes, the last port held by the English in France fell back into the hands of the French. Calais was now again a French town, after having been in the hands of strangers for 211 years.

26. Death of Mary. 1558.—The loss of Calais was no real misfortune to England, but it was felt as a deep mortification both by the queen and by her people. The people distrusted Mary too much to support her in the prosecution of the war. They were afraid of making Philip more powerful. Mary, hoping that Heaven might yet be gracious to her, pushed on the persecution, and sent Protestants in large numbers to the stake. Philip had visited her the year before, in order to persuade her to join him against France, and she again fancied herself to be with child. Her husband had once more deserted her, and she now knew that she was suffering—without

hope—from dropsy. On November 17 she died, sad and lonely, wondering why all that she had done, as she believed on God's behalf, had been followed by failure on every side—by the desertion of her husband and the hatred of her subjects. Happily for himself, Pole too died two days afterwards.[\[10\]](#)

CHAPTER XXVIII

THE ELIZABETHAN SETTLEMENT IN CHURCH AND STATE 1558-1570

LEADING DATES

Reign of Elizabeth, 1558-1603

Accession of Elizabeth 1558
The Acts of Supremacy and Uniformity 1559
The Treaty of Edinburgh 1560
Mary Stuart lands in Scotland 1561
End of the Council of Trent 1563
Marriage of Mary and Darnley 1565
Murder of Darnley 1567
Escape of Mary into England 1568
The rising in the North 1569
Papal excommunication of Elizabeth 1570

1. **Elizabeth's Difficulties. 1558.**—Elizabeth, when she received the news of her sister's death, was sitting under an oak in Hatfield Park (see p. [423](#)). "This," she exclaimed, "is the Lord's doing, and it is marvellous in our eyes." Her life's work was to throw down all that Mary had attempted to build up, and to build up all that Mary had thrown down. It was no easy task that she had undertaken. The great majority of her subjects would have been well pleased with a return to the system of Henry VIII.—that is to say, with the retention of the mass, together with its accompanying system of doctrine, under the protection of the royal supremacy, in complete disregard of the threats or warnings of the Pope. Elizabeth was shrewd enough to see

that this could not be. On the one hand, the Protestants, few as they were, were too active and intelligent to be suppressed, and, if Mary's burnings had been unavailing, it was not likely that milder measures would succeed. On the other hand, the experience of the reign of Edward VI. had shown that immutability in doctrine and practice could only be secured by dependence upon the immutable Papacy, and Elizabeth had made up her mind that she would depend on no one but herself. She would no more place herself under the Pope than she would place herself under a husband. She cared nothing for theology, though her inclinations drew her to a more elaborate ritual than that which the Protestants had to offer. She was, however, intensely national, and was resolved to govern so that England might be great and flourishing, especially as her own greatness would depend upon her success. For this end she must establish national unity in the Church, a unity which, as she was well aware, could only be attained if large advances were made in the direction of Protestantism. There must be as little persecution as possible, but extreme opinions must be silenced, because there was a danger lest those who came under their influence would stir up civil war in order to make their own beliefs predominant. The first object of Elizabeth's government was internal peace.

2. The Act of Uniformity and Supremacy. 1559.—Elizabeth marked her intentions by choosing for her secretary Sir William Cecil, a cautious supporter of Protestantism, the best and most faithful of her advisers. As Convocation refused to hear of any change in the Church services, she appointed a commission composed of divines of Protestant tendencies, who recommended the adoption, with certain alterations,[\[11\]](#) of the second Prayer Book of Edward VI. Elizabeth's first Parliament, which met in **1559**, passed an Act of Uniformity forbidding the use of any form of public prayer other than that of the new Prayer Book. The same Parliament also passed a new Act of Supremacy, in which the title of Supreme Head of the Church was abandoned, but all the ancient jurisdiction of the Crown over ecclesiastical persons was claimed. This Act imposed an oath in which the queen was acknowledged to be the Supreme Governor of the Realm 'as well in all spiritual or ecclesiastical things as temporal'; but this oath, unlike that imposed by Henry VIII., was only to be taken by persons holding office or taking a university degree, whilst a refusal to swear was only followed by loss of office or degree. The maintenance of the authority of any foreign prince or prelate was to be followed by penalties increased upon a repetition of the offence, and reaching to a traitor's death on the third occasion.

3. The new Bishops and the Ceremonies. 1559-1564.—All the bishops except one refusing to accept the new order of things, new ones were substituted for them, the old system of election by the chapters on a royal *cong   d'  lire* being restored (see pp. [391](#), [415](#)). Matthew Parker, a moderate man after Elizabeth's own heart, became Archbishop of Canterbury. Very few of the old clergy who had said mass in Mary's reign refused to use the new Prayer Book, and as Elizabeth prudently winked at cases in which persons of importance had mass said before them in private, she was able to hope that, by leaving things to take their course, a new generation would grow up which would be too strong for the lovers of the old ways. The main difficulty of the bishops was with the Protestants. Many of those who had been in exile had returned with a strengthened belief that it was absolutely unchristian to adopt any vestments or other ceremonies which had been used in the Papal Church, and which they, therefore, contumeliously described as rags of Antichrist. A large number even of the bishops sympathised with them, and opposed them only on the ground that, though

it would have been better if surplices and square caps had been prohibited, still, as such matters were indifferent, the queen ought to be obeyed in all things indifferent. To Elizabeth refusal to wear the surplice was not only an act of insubordination, but likely to give offence to lukewarm supporters of the Church system which she had established, and had, therefore, a tendency to set the nation by the ears. In Parker she found a tower of strength. He was in every sense the successor of Cranmer, with all Cranmer's strength but with none of Cranmer's weakness. He fully grasped the principle that the Church of England was to test its doctrines and practices by those of the Church of the first six hundred years of Christianity, and he, therefore, claimed for it catholicity, which he denied to the Church of Rome; whilst he had all Cranmer's feeling for the maintenance of external rites which did not directly imply the existence of beliefs repudiated by the Church of England.

4. **Calvinism.**—The returning exiles had brought home ideas even more distasteful to Elizabeth than the rejection of ceremonies. The weak point of the Lutherans in Germany, and of the reformers in England, had been their dependence upon the State. This dependence made them share the blame which fell upon rulers who, like Henry VIII., were bent on satisfying their passions, or, like Northumberland, on appropriating the goods of others. Even Elizabeth thought first of what was convenient for her government, and secondly, if she thought at all, of the quest after truth and purity. In Geneva the exiles had found a system in full working order which appeared to satisfy the cravings of their minds. It had been founded by a Frenchman, John Calvin, who in **1536** had published *The Institution of the Christian Religion*, in which he treated his subject with a logical coherence which impressed itself on all Protestants who were in need of a definite creed. He had soon afterwards been summoned to Geneva, to take charge of the congregation there, and had made it what was extensively believed to be, a model Church. With Calvin everything was rigid and defined, and he organised as severely as he taught. He established a discipline which was even more efficacious than his doctrine. His Church proclaimed itself, as the Popes had proclaimed themselves, to be independent of the State, and proposed to uphold truth and right irrespective of the fancies and prejudices of kings. Bishops there were to be none, and the ministers were to be elected by the congregation. The congregation was also to elect lay-elders,

whose duty it was to enforce morality of the strictest kind; card-playing, singing profane songs, and following after amusements on the Sunday—or Sabbath as it was called in Geneva—being visited with excommunication. The magistrates were expected to inflict temporal penalties upon the offender. This Presbyterian system, as it was called, spread to other countries, especially to countries like France, where the Protestant congregations were persecuted by the Government. In France a final step was taken in the Presbyterian organisation. The scattered congregations elected representatives to meet in synods or assemblies, and the French Government, in this way, found itself confronted by an ecclesiastical representative republic.

5. Peace with France. 1559.—It was this Calvinistic system which was admired by many of the exiles returning to England, but which Elizabeth detested as challenging her own authority. Her only chance of resisting with success lay in her power of appealing to the national instinct, and of drawing men to think more of unity and peace at home than of that search after truth which inevitably divides, because all human conceptions of truth are necessarily imperfect, and are differently held by different minds. To do this she must be able to show that she could maintain her independence of foreign powers. Though her heart was set on the recovery of Calais, she was obliged in **1559** to make peace with France, obtaining only a vague promise that it might be restored at a future time. Shortly afterwards peace was made between France and Spain at Câteau Cambresis. Elizabeth was aware that, though neither Philip II. of Spain nor Henry II. loved her, neither of them would allow the other to interfere to her detriment. She was therefore able to play them off one against the other. Her diplomacy was the diplomacy of her time. Elizabeth like her contemporaries, lied whenever it suited her to lie, and made promises which she never intended to perform. In this spirit she treated the subject of her marriage. She at once rejected Philip, who, though he was her brother-in-law, proposed to marry her immediately after her accession, but when he suggested other candidates for her hand, she listened without giving a decided answer. It was convenient not to quarrel with Philip, but it would be ruinous to accept a husband at his choice.

6. The Reformation in Scotland. 1559.—Philip was formidable to Elizabeth because he might place himself at the head of the English Catholics. Henry was formidable because the old alliance between France and Scotland, confirmed by the recent marriage of the Dauphin with Mary Stuart, made it easy for him to send French troops by way of Scotland into England. Early in Elizabeth's reign, however, events occurred in Scotland which threatened to sever the links between that country and France. The Regent, Mary of Guise—mother of the absent queen and sister of the Duke of Guise, the French conqueror of Calais, and leader of the French Catholics—was hostile to the Protestants not only by conviction, but because there had long been a close alliance between the bishops and the Scottish kings in their struggle with the turbulent nobles. The wealth of the bishops, however, great according to the standard of so poor a country, tempted the avarice of the nobles, and their profligacy, openly displayed, offended all who cared for morality. In **1559** a combination was formed amongst a large number of the nobles, known as the Lords of the Congregation, to assail the bishops. John Knox, the bravest and sternest of Calvinists, urged them on. The Regent was powerless before them. The mass was suppressed, images destroyed, and monasteries pulled down. Before long, however, the flood seemed about to subside as rapidly as it rose. The forces of the lords consisted of untrained peasants, who could not keep the field when the labours of agriculture called them home, and rapidly melted away. Then the Lords of the Congregation, fearing disaster, called on Elizabeth for help.

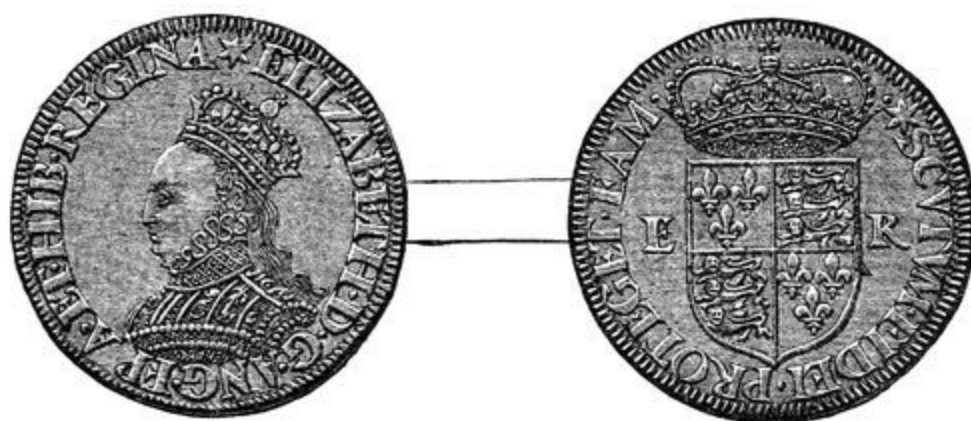
7. The Claims of Mary Stuart. 1559.—Elizabeth was decided enough when she could see her way clearly. When she did not she was timid and hesitating, giving contradictory orders and making contradictory promises. She detested Calvinism, and regarded rebellion as of evil example. She especially abhorred Knox, because in her sister's reign he had written a book against *The Monstrous Regimen of Women*, disbelieving his assertion that she was herself an exception to the rule that no woman was fit to govern. It is therefore almost certain that she would have done nothing for the Lords of the Congregation if France had done nothing for the Regent. Henry II., however, was killed by an accidental lance-thrust which pierced his eye in a tournament, and on the accession of his son as Francis II., Mary Stuart, now queen of France, assumed the arms and style of queen of

England.^[12] The life-long quarrel between Elizabeth and Mary could hardly be staved off. Not only did they differ in religion, but there was also between them an irreconcilable political antagonism closely connected with their difference in religion. If the Papal authority was all that Mary believed it to be, Elizabeth was a bastard and a usurper. If the national Church of England had a right to independent existence, and the national Parliament of England to independent authority, Mary's challenge of Elizabeth's title was an unjustifiable attack on a sovereignty acknowledged by the constitutional authorities of the English nation.

8. The Treaty of Edinburgh. 1560.—In spite of Cecil's urgency Elizabeth was slow to assist the Scottish rebels. For some months Mary of Guise had been gathering French troops to her support, and she at last had a foreign army at her command powerful enough to make her mistress of Scotland, and to form the nucleus of a larger force which might afterwards be sufficiently powerful to make her mistress of England. This was more than Elizabeth could bear, and in January **1560** she sent her fleet with troops to the help of the Lords of the Congregation. The French retreated into Leith, where they were besieged by the allied forces. In June the Regent died, and in July Leith surrendered. By a treaty signed at Edinburgh the French agreed to leave Scotland, and to acknowledge Elizabeth's title to the English crown. In December Francis II. died, and as his brother, who succeeded him as Charles IX., was too young to govern, his mother, Catherine de Medicis, acted as regent. Catherine was jealous of the Duke of Guise, and also of his niece, Mary Stuart, the widow of her eldest son.^[13] Mary, finding no longer a home in France, was driven for refuge to her own unruly realm of Scotland.

9. Scottish Presbyterianism. 1561.—The Scots had not failed to profit by the cessation of authority following on the death of Mary of Guise. They disclaimed the authority of the Pope and made it punishable to attend mass, the penalty for the third offence being death. The English Reformation had been the work of the king and of the clergy of the Renaissance, and had, therefore, been carried on under the form of law. The Scottish Reformation had been the revolutionary work of the nobility and of the Calvinistic clergy. In England the power of the State had been strengthened. In Scotland it was weakened. Almost from the beginning the nobles who had

taken part in the revolution showed signs of disagreement. A few of them were earnest Protestants, but there were more who cared only for political or personal ends. "I have lived many years," said the aged Lord Lindsay; "now that it hath pleased God to let me see this day ... I will say with Simeon, 'Now lettest Thou thy servant depart in peace.' "Hey then!" said Maitland of Lethington sarcastically, when he heard that the clergy claimed to govern the Church and own its property in the place of the bishops, "we may all bear the barrow now to build the house of the Lord." Knox organised the Church on a democratic and Presbyterian basis with Church Courts composed of the minister and lay elders in every parish, with representative Presbyteries in every group of parishes, and with a representative General Assembly for all Scotland. Like a prophet of old, Knox bitterly denounced those who laid a finger on the Church's discipline. The nobles let him do as he would as far as religion was concerned, but they insisted on retaining nominal bishops, not to rule the Church, but to hold the Church lands and pass the rents over to themselves.



A 'milled' half-sovereign of Elizabeth, 1562-1568.

10. Mary and Elizabeth. 1561.—In August **1561** Mary landed in Scotland, having come by sea because Elizabeth refused to allow her to pass through England unless she would renounce her claim to the English crown. Mary would perhaps have yielded if Elizabeth would have named her as her successor. Elizabeth would do nothing of the kind. She had a special dislike to fixing on any one as her successor. About this time she threw into prison Lady Catherine Grey for committing the offence of marrying without her leave. Lady Catherine was the next sister of Lady

Jane Grey, and therefore Elizabeth's heir if the will of Henry VIII. in favour of the Suffolk line (see p. [410](#)) was to be held binding. Elizabeth no doubt had a political object in showing no favour to either of her expectant heirs. By encouraging Catherine's hopes she would drive her Catholic subjects to desperation. By encouraging Mary's she would drive her Protestant subjects to desperation. Yet there was also strong personal feeling to account for her conduct. She was resolved never to marry, however much her resolution might cost her. Yet she too was a very woman, hungry for manly companionship and care, and, though a politician to the core, was saddened and soured by the suppression of her womanly nature. To give herself a husband was to give herself a master, yet she dallied with the offers made to her, surely not from political craft alone. The thought of marriage, abhorrent to her brain, was pleasant to her heart, and she could not lightly speak the positive word of rejection. Even now, in the vain thought that she might rule a subject, even if she became his wife, she was toying with Lord Robert Dudley, the handsome and worthless son of the base Northumberland. So far did she carry her flirtations that tales against her fair fame were spread abroad, but marry him she never did. Her treatment of the Lady Catherine was doubtless caused far less by her fear of the claims of the Suffolk line than by her reluctance to think of one so near to her as a happy wife, and as years grew upon her she bore hardly on those around her who refused to live in that state of maidenhood which she had inflicted on herself.

11. The French War. 1562-1564.—Elizabeth and Mary were not merely personal rivals. The deadly struggle on which they had entered was a European one, and the success or failure of the Catholic or the Protestant cause in some Continental country might determine the future history of Britain. In **1562** a civil war broke out between the French Protestants—or Huguenots,^[14] as they were usually called in France—and their Catholic fellow-subjects. The leaders of the Huguenots obtained Elizabeth's aid by offering her Havre, which she hoped to exchange for Calais. The Huguenots were, however, defeated at the battle of Dreux, though Guise, who commanded the Catholics, was in the moment of victory shot dead by an assassin. In **1563** peace was patched up for a time between the French parties, but Elizabeth refused to surrender Havre, till a plague broke out amongst the English garrison, and drove the scanty remnants of it back to England. In **1564** Elizabeth was forced to make peace without recovering

Calais. The war thus ended was the only one in which she ever took part except when absolutely no alternative was left to her.

12. End of the Council of Trent. 1563.—If Rome was to be victorious she must use other than carnal weapons. The main cause of the growth of Protestantism had been the revolt of honest minds against the profligacy of the Popes and the clergy. The Popes had after a long time learnt the lesson, and were now as austere moral as Calvin himself. They had of late busied themselves with bringing the doctrines of the Church into a coherent whole, in order that they might be referred to with as much certainty as the *Institution* of Calvin was referred to by the Calvinist. This work was accomplished by an ecclesiastical council sitting at Trent, and composed mainly of Spanish and Italian prelates. The Council, having completed its task, broke up in **1563**.

13. The Jesuits.—The main instruments of the Popes to win back those who had broken loose from their authority were the members of the Society of Jesus, usually known as Jesuits. The society was founded in **1540** by Ignatius Loyola, a Spanish knight who, having been incapacitated by a wound for a military career, had devoted himself to the chivalry of religion. The members of the society which he instituted were not, like the monks, to devote themselves to setting an example of ascetic self-denial, nor, like the friars, to combine asceticism with preaching or well-doing. Each Jesuit was to give himself up to winning souls to the Church, whether from heathenism or from heresy. With this end, the old soldier who established the society placed it under more than military discipline. The first virtue of the Jesuit was obedience. He was to be in the hands of his superior as a stick in the hand of a man. He was to do as he was bidden, unless he was convinced that he was bidden to commit sin. What was hardest, perhaps, of all was that he was not allowed to judge his own character in choosing his work. He might think that he was admirably qualified to be a missionary in China, but if his superior ordered him to teach boys in a school, a schoolmaster he must become. He might believe himself to be a great scholar and fitted by nature to impart his knowledge to the young, but if his superior ordered him to go as a missionary to China, to China he must go. Discipline voluntarily accepted is a great power in the world, and this power the Jesuits possessed.

14. The Danger from Scotland. 1561-1565.—Whilst the opposing forces of Calvinism and the reformed Papacy were laying the foundations of a struggle which would split western Europe in twain, Elizabeth was hampered in her efforts to avert a disruption of her own realm by the necessity of watching the proceedings of the Queen of Scots. If in Elizabeth the politician predominated over the woman, in Mary the woman predominated over the politician. She was keen of sight, strong in feeling, and capable of forming far-reaching schemes, till the gust of passion swept over her and ruined her plans and herself together. After her arrival in Scotland she not only acknowledged the new Calvinistic establishment, but put down with a strong hand the Earl of Huntly, who attempted to resist it, whilst on the other hand she insisted, in defiance of Knox, on the retention of the mass in her own chapel. It is possible that there was in all this a settled design to await some favourable opportunity, as she knew that there were many in Scotland who cherished the old faith. It is possible, on the other hand, that she thought for a time of making the best of her uneasy position, and preferred to be met with smiles rather than with frowns. Knox, however, took care that there should be frowns enough. There was no tolerant thought in that stern heart of his, and he knew well that Mary would in the end be found to be fighting for her creed and her party. Her dancing and light gaiety he held to be profane. The mass, he said, was idolatry, and according to Scripture the idolater must die. There was in Scotland as yet no broad middle class on which Mary could rely, and, feeling herself insulted both as a queen and as a woman, she took up Knox's challenge. She had but the weapons of craft with which to fight, but she used them admirably, and before long, with her winning grace, she had the greater number of the nobility at her feet.

15. The Darnley Marriage. 1565.—The sense of mental superiority could not satisfy a woman such as Mary. Her life was a lonely one, and it was soon known that she was on the look-out for a husband. The choice of a husband by the ruler of Scotland could not be indifferent to Elizabeth, and in **1564** Elizabeth offered to Mary her own favourite Dudley, whom she created Earl of Leicester. Very likely Elizabeth imagined that Leicester would be as pleasing to Mary as he was to herself. Mary could only regard the proposal as an insult. In **1565** she married her second cousin, Henry Stuart, Lord Darnley.^[15] Elizabeth was alarmed, taking the marriage as a

sign that Mary intended to defy her in everything, and urged the Scottish malcontents, at whose head was Mary's illegitimate brother, the Earl of Murray, to rebel. Mary chased them into England, where Elizabeth protested loudly and falsely that she knew nothing of their conspiracy.

16. The Murder of Rizzio. 1566.—Mary had taken a coarse-minded fool for her husband, and had to suffer from him all the tyranny which a heartless man has it in his power to inflict on a woman. Her heart craved for affection, and Darnley, who plunged without scruple into the most degrading vice, believed, or affected to believe, that his wife had sacrificed her honour to David Rizzio, a cultivated Italian who acted as her secretary, and carried on her correspondence with the Continental powers. A league for the murder of Rizzio—such things were common in Scotland—was formed between Darnley and the Protestant lords. On March 9, **1566**, they burst into Mary's supper-room at Holyrood. Rizzio clung to his patroness's robe, but was dragged off and slain. Murray with his fellow-conspirators came back to Scotland. Mary, however, with loving looks and words, won over the husband whom she despised, broke up the confederacy, and drove most of the confederates out of the country.

17. The Murder of Darnley. 1567.—On June 19, **1566**, Mary gave birth to a son, afterwards James VI. of Scotland, and James I. of England. His birth gave strength to the party in England which was anxious to have Mary named heiress of the crown. Whatever little chance there was of Elizabeth's consent being won was wrecked through a catastrophe in which Mary became involved. Mary despised her miserable husband as thoroughly as he deserved. He at least, weak as water, could give her no help in her struggle with the nobles. Her passionate heart found in the Earl of Bothwell one who seemed likely to give her all that she needed—a strong will in a strong body, and a brutal directness which might form a complement to her own intellectual keenness. Mary and Bothwell were both married, but Bothwell at least was not to be deterred by such an obstacle as this. The evidence on Mary's conduct is conflicting, and modern enquirers have not succeeded in coming to an agreement about it. It is possible that she did not actually give her assent to the evil deed which set her free; but it can hardly be doubted that she at least willingly closed her eyes to the preparations made for her husband's murder. Whatever the truth as to her own complicity may be, it is

certain that on February 10, **1567**, Darnley was blown up by gunpowder at Kirk o' Field, a lonely house near Edinburgh, and slain by Bothwell, or by Bothwell's orders, as he was attempting to escape. Bothwell then obtained a divorce from his own wife, carried Mary off—not, as was firmly believed at the time, against her will—and married her.

18. The Deposition and Flight of Mary. 1567-1568.—Mary, in gaining a husband, had lost Scotland. Her subjects rose against her as an adulteress and a murderess. At Carberry Hill, on June 15, **1567**, her own followers refused to defend her, and she was forced to surrender, whilst Bothwell fled to Denmark, remaining in exile for the rest of his life. Mary was imprisoned in a castle on an island in Loch Leven, and on July 24 she was forced to abdicate in favour of her son. Murray acted as regent in the infant's name. On May 2, **1568**, Mary effected her escape, and rallied to her side the family of the Hamiltons, which was all-powerful in Clydesdale. On May 13 she was defeated by Murray at Langside, near Glasgow. Riding hard for the Solway Firth, she threw herself into a boat, and found herself safe in Cumberland. She at once appealed to Elizabeth, asking not for protection only, but for an English army to replace her on the throne of Scotland.

19. Mary's Case before English Commissioners. 1568-1569. Elizabeth could hardly replace her rival in power, and was still less inclined to set her at liberty, lest she should go to France, and bring with her to Scotland another French army. After innumerable changes of mind Elizabeth appointed a body of commissioners to consider the case against Mary. Before them Murray produced certain letters contained in a casket, and taken after Bothwell's flight. The casket letters, as they are called, were alleged to be in Mary's handwriting, and, if genuine, place out of doubt her guilty passion for Bothwell, and her connivance in her husband's murder. They were acknowledged by the commissioners, with the concurrence of certain English lords who were politically partisans of Mary, to be in her hand. Mary—either, as her adversaries allege, because she knew that she was guilty, or as her supporters allege, because she was afraid that she could not obtain justice—withdrew her advocates, and pleaded with Elizabeth for a personal interview. This Elizabeth refused to grant, but on the other hand she denied the right of the Scots to depose their queen. Mary remained virtually a prisoner in England. She was an interesting prisoner, and in spite



Silver-gilt standing cup made in London in 1569-70, and given to Corpus Christi College, Cambridge, by Archbishop Parker.

of all her faults there were many who saw in her claim to the English crown the easiest means of re-establishing the old Church and the old nobility.

20. The Rising in the North. 1569.—

The old Church and the old nobility were strongest in the North, where the Pilgrimage of Grace had broken out in 1536 (see p. [397](#)). The northern lords, the Earls of Northumberland and Westmorland, longed to free Mary, to proclaim her queen of England, and to depose Elizabeth. They were, however, prepared to content themselves with driving Cecil from power, with forcing Elizabeth to acknowledge Mary as her heir, and to withdraw her support from Protestantism. Mary, according to this latter plan, was to marry the Duke of Norfolk, the son of that Earl of Surrey who had been executed in the last days of Henry VIII. (see p. [411](#)). On October 18 Elizabeth, suspecting that Norfolk was entangling himself with the Queen of Scots, sent him to the Tower. Northumberland and Westmorland hesitated what course to pursue, but a

message from the Queen requiring their presence at Court decided them, and they rose in insurrection. On November 14, with the northern gentry and yeomanry at their heels, they entered Durham Cathedral, tore in pieces the English Bible and Prayer Book, and knelt in fervour of devotion whilst mass was said for the last time in any one of the old cathedrals of England. Elizabeth sent an army against the earls. Both of them were timorous and unwarlike, and they fled to Scotland before the year was ended, leaving their followers to the vengeance of Elizabeth. Little mercy was shown to the

insurgents, and cruel executions followed this unwise attempt to check the progress of the Reformation.

21. The Papal Excommunication. 1570.—Elizabeth, it seemed for all her triumph over the earls, had a hard struggle still before her. In January **1570** the regent Murray was assassinated by Hamilton of Bothwellhaugh, and Mary's friends began again to raise their heads in Scotland. In April Pope Pius V. excommunicated Elizabeth and absolved her subjects from their allegiance. In May, a fanatic named Felton affixed the Pope's bull of excommunication to the door of the Bishop of London's house. Felton was eventually seized and executed, but his deed was a challenge which Elizabeth would be compelled to take up. Hitherto she had trusted to time to bring her subjects into one way of thinking, knowing that the younger generation was likely to be on her side. She had taken care to deal as lightly as possible with those who shrank from abandoning the religion of their childhood, and she had recently announced that they were free to believe what they would if only they would accept her supremacy. The Pope had now made it clear that he would not sanction this compromise. Englishmen must choose between him and their queen. On the side of the Pope it might be argued with truth that with Elizabeth on the throne it would be impossible to maintain the Roman Catholic faith and organisation. On the side of the queen it might be argued that if the Papal claims were admitted it would be impossible to maintain the authority of the national government. A deadly conflict was imminent, in which the liberty of individuals would suffer whichever side gained the upper hand. Nations, like persons, cannot attend to more than one important matter at a time, and the great question at issue in Elizabeth's reign was whether the nation was to be independent of all foreign powers in ecclesiastical as well as in civil affairs.

CHAPTER XXIX

ELIZABETH AND THE EUROPEAN CONFLICT. 1570-1587

LEADING DATES
Reign of Elizabeth, 1558-1603

The Execution of the Duke of Norfolk 1572
The foundation of the Dutch Republic 1572
The arrival of the Jesuits 1580
The Association 1584
Babington's Plot 1586
Execution of Mary Stuart 1587

1. **The Continental Powers. 1566-1570.**—If the Catholic powers of the Continent had been able to assist the English Catholics Elizabeth would hardly have suppressed the rising in the North. It happened, however, that neither in the Spanish Netherlands nor in France were the governments in a position to quarrel with her. In the Netherlands Philip, who burnt and slaughtered Protestants without mercy, was in **1566** opposed by the nobility, and in **1568** he sent the Duke of Alva, a relentless soldier, to Brussels with a Spanish army to establish the absolute authority of the king and the absolute authority of the Papacy. In **1569** Alva believed himself to have accomplished his task by wholesale executions, and by the destruction of the constitutional privileges of the Netherlanders. His rule was a grinding tyranny, rousing both Catholics and Protestants to cry out for the preservation of their customs and liberties from the intruding Spanish army. Alva had therefore no men to spare to send to aid the English Catholics. In France the civil war had broken out afresh in **1568**, and in **1569** the Catholics headed by Henry, Duke of Guise, the son of the murdered Duke Francis (see p. [436](#)), and by Henry, Duke of Anjou, the brother of the young king, Charles IX., won victories at Jarnac and Moncontour. Charles and his mother took alarm lest the Catholics should become too powerful for the royal authority, and in **1570** a peace was signed once more, the French king refusing to be the instrument of persecution and being very much afraid of the establishment of a Catholic government in England which might give support to the Catholics of France. Accordingly in **1570**, France would not interfere in England if she could, whilst Spain could not interfere if she would.

2. **The Anjou Marriage Treaty and the Ridolfi Plot. 1570-1571.**—For all that, Elizabeth's danger was great. In **1570** she had done her best to embroil parties in Scotland lest they should join against herself. The bulk of

the nobility in that country had thrown themselves on the side of Mary, and were fighting against the new regent, Lennox, having taken alarm at the growth of the popular Church organisation of Knox and the Presbyterians, who sheltered themselves under the title of the little James VI. At home Elizabeth expected a fresh outbreak, and could not be certain that Alva would be unable to support it when it occurred. Cecil accordingly pleaded hard with her to marry the frivolous Duke of Anjou. He thought that unless she married and had children, her subjects would turn from her to Mary, who, having already a son, would give them an assured succession. If she was to marry, an alliance with the tolerant Government of France was better than any other. Elizabeth indeed consented to open negotiations for the marriage, though it was most unlikely that she would ever really make up her mind to it. The English Catholics, in consequence, flung themselves into the arms of the king of Spain, and in March **1571**, Ridolfi, a Florentine banker residing in England, who carried on their correspondence with Alva, crossed to the Netherlands to inform him that the great majority of the lay peers had invited him to send 6,000 Spanish soldiers to dethrone Elizabeth and to put Mary in her place. Norfolk, who had been released from the Tower (see p. [441](#)), was then to become the husband of Mary, and it was hoped that there would spring from the marriage a long line of Catholic sovereigns ready to support the Papal Church.

3. Elizabeth and the Puritans.—Elizabeth's temporising policy had naturally strengthened the Calvinism of the Calvinistic clergy. In every generation there are some who ask not what is expedient but what is true, and the very fact that they aim at truth, in defiance of all earthly considerations, not merely assures them influence, but diffuses around them a life and vigour which would be entirely wanting if all men were content to support that which is politically or socially convenient. Such were the best of the English Puritans, so called because, though they did not insist upon the abolition of Episcopacy or the establishment of the Calvinistic discipline (see p. [431](#)), they contended for what they called purity of worship, which meant the rejection of such rites and vestments as reminded them of what they termed the idolatry of the Roman Church. Elizabeth and Parker had from time to time interfered, and some of the Puritan leaders had been deprived of their benefices for refusing to wear the cap and surplice.

4. Elizabeth and Parliament. 1566.—From **1566** to **1571** Elizabeth abstained from summoning a Parliament, having been far more economical than any one of the last three sovereigns. Early in her reign she had restored the currency, and after the session of **1566** had actually returned to her subjects a subsidy which had been voted to her and which had been already collected.^[16] Her reason for avoiding Parliaments was political. Neither of the Houses was likely to favour her ecclesiastical policy. The House of Lords wanted her to go backwards—to declare Mary her successor and to restore the mass. The House of Commons wanted her to go forwards—to marry, and have children of her own, and to alter the Prayer Book in a Puritan direction. In **1566**, if the House of Commons had really represented the average opinion of the nation, she would have been obliged to yield. That it did not was partly owing to the imposition in **1562** of the oath of supremacy upon its members, by which all who favoured the Pope's authority were excluded from its benches, but still more on account of the difficulty of packing a Parliament so as to suit the queen's moderate ideas. Those who admired the existing Church system were but few. The majority of the nation, even if those who refused to accept the Royal supremacy were left out of account, was undoubtedly sufficiently attached to the old state of things to be favourable at least to Mary's claim to be acknowledged as heir to the throne. To Elizabeth it was of the first importance that the influence of the Crown should be used to reduce the numbers of such men in the House of Commons. If, however, they were kept out, there was nothing to be done but to favour the election of Puritans, or at least of those who had a leaning towards Puritanism. The queen, therefore, having to make her choice between those who objected to her proceedings as too Protestant and those who objected to them as not Protestant enough, not unnaturally preferred the latter.

5. A Puritan Parliament. 1571.—In **1571** Elizabeth had to deal with a Puritan House of Commons. The House granted supplies, and wanted to impose new penalties on the Roman Catholics and to suppress ecclesiastical abuses. One of the members named Strickland, having proposed to ask leave to amend the Prayer Book, the Queen ordered him to absent himself from the House. The House was proceeding to remonstrate when Elizabeth, too prudent to allow a quarrel to spring up, gave him permission to return. She had her way, however, and the Prayer Book remained untouched. She

was herself a better representative of the nation than the House of Commons, but as yet she represented it only as standing between two hostile parties; though she hoped that the time would come when she would have a strong middle party of her own.

6. The Duke of Norfolk's Plot and Execution. 1571-1572. For the present Elizabeth's chief enemies were the conspirators who were aiming at placing Mary on her throne. In April **1571** Ridolfi reached the Netherlands, and urged Alva to send a Spanish army to England. Alva was cautious, and thought the attempt dangerous unless Elizabeth had first been killed or captured. Philip was consulted, gave his approval to the murder, but afterwards drew back, though he ordered Alva to proceed with the invasion. In the meanwhile Cecil, who had just been made Lord Burghley, came upon traces of the plot. Norfolk was arrested, and before the end of the year everything was known. Though the proposal of a marriage between Elizabeth and the Duke of Anjou had lately broken down, she now, in her anxiety to find support in France against Spain, entered into a negotiation to marry Anjou's brother, the Duke of Alençon, a vicious lad twenty-one years younger than herself. Then she was free to act. She drove the Spanish ambassador out of England, and Norfolk was tried and convicted of treason. A fresh Parliament meeting in **1572** urged the queen to consent to the execution of Mary. Elizabeth refused, but she sent Norfolk to the block.

7. The Admonition to Parliament. 1572.—The rising in the North and the invitation to bring a Spanish army into England could not but fan the zeal of the Puritans. At the beginning of the reign they had contented themselves with calling for the abolition of certain ceremonies. A more decided party now added a demand for the abolition of episcopacy and the establishment of Presbyterianism and of the complete Calvinistic discipline. The leader of this party was Thomas Cartwright, a theological professor at Cambridge, the university which had produced the greater number of the reformers, as it now produced the greater number of Puritans. In **1570**, Cartwright was expelled from his Professorship. He sympathised with *An Admonition to Parliament* written in **1572** by two of his disciples, and himself wrote *A Second Admonition to Parliament*, to second their views. Cartwright was far from claiming for the Puritans the position of a sect to be tolerated. He had no thought of establishing religious liberty in his mind.

He declared the Presbyterian Church to be the only divinely appointed one, and asked that all Englishmen should be forced to submit to its ordinances. The civil magistrate was to have no control over its ministers. All active religious feeling being enlisted either on the Papal or the Puritanical side, Elizabeth's reformed, but not Puritan, Church seemed likely to be crushed between two forces. It was saved by the existence of a large body of men who cared for other things more than for religious disputes, and who were ready to defend the Queen as ruler of the nation without any special regard for the ecclesiastical system which she maintained.

8. Mariners and Pirates.—Of all Elizabeth's subjects there were none who stood their country in such good stead in the impending conflict with Spain and the Papacy as the mariners. Hardy and reckless, they cared little for theological distinctions or for forms of Church government, their first instinct being to fill their own purses either by honest trade if it might be, or by piracy if that seemed likely to be more profitable. Even before Elizabeth's accession, the Channel and the seas beyond it swarmed with English pirates. Though the pirates cared nothing for the nationality of the vessels which they plundered, it was inevitable that the greatest loss should fall on Spain. Spain was the first maritime power in the world, and her galleons as they passed up to Antwerp to exchange the silks and spices of the East for the commodities of Europe, fell an easy prey to the swift and well-armed cruisers which put out from English harbours. The Spaniards retaliated by seizing English sailors wherever they could lay their hands upon them, sometimes hanging them out of hand, sometimes destroying them with starvation and misery in fetid dungeons, sometimes handing them over to the Inquisition—a court the function of which was the suppression of heresy—in other words, to the torture-room or the stake.

9. Westward Ho!—Every year the hatred between the mariners of Spain and England grew more bitter, and it was not long before English sailors angered the king of Spain by crossing the Atlantic to trade or plunder in the West Indies, where both the islands and the mainland of Mexico and South America were full of Spanish settlements. In those days a country which sent out colonies claimed the sole right of trading with them; besides which the king of Spain claimed a right of refusing to foreigners an entrance into his American dominions because, towards the end of the fifteenth century,

Pope Alexander VI. being called on to mediate between Spain and Portugal, had drawn a line on the map to the east of which was to be the Portuguese colony of Brazil, whilst all the rest of America to the west of it was to be Spanish. From this the Spaniards reasoned that all America except Brazil was theirs by the gift of the Pope—which in their eyes was equivalent to the gift of God. English sailors refusing to recognise this pretension, sailed to the Spanish settlements to trade, and attacked the Spanish officials who tried to prevent them. The Spanish settlers were eager to get negro slaves to cultivate their plantations, and Englishmen were equally eager to kidnap negroes in Africa and to sell them in the West Indies. A curious combination of the love of gain and of Protestantism sprang up amongst the sailors, who had no idea that to sell black men was in any way wrong. One engaged in this villanous work explained how he had been saved from the perils of the sea by 'Almighty God, who never suffers his elect to perish!' There was money enough to be got, and sometimes there would be hard fighting and the gain or loss of all.



Sir Francis Drake, in his 43rd year: from the engraving by Elstracke.

10. Francis Drake's Voyage to Panama. 1572.—The noblest of these mariners was Francis Drake. Sickened by one experience of the slave trade, and refusing to take any further part in it, he flew at the wealth of the Spanish Government. In **1572** he sailed for Nombre de Dios, on the Atlantic side of the isthmus of Panama. Thither were brought once a year gold and silver from the mines of Peru. In the governor's house Drake found a pile of silver bars. "I have now," he said to his men, "brought you to the mouth of the treasury of the world." He himself was wounded, and his followers, having little spirit to fight without their leader, were beaten off. "I am resolved," he said somewhat later to a Spaniard, "by the help of God, to reap some of the golden harvest which you have got out of the earth and sent to Spain to trouble the earth." It was his firm conviction that he was serving God in robbing the king of Spain. Before he returned some Indians showed him from a tree on the isthmus the waters of the Pacific, which no civilised people except the Spaniards had ever navigated. Drake threw himself on his knees, praying to God to give him life and to allow him to sail an English vessel on those seas.

11. The Seizure of Brill, and the Massacre of St. Bartholomew. 1572.—Exiles from the Netherlands took refuge on the sea from Alva's tyranny, and plundered Spanish vessels as Englishmen had done before. In **1572** a party of these seized Brill and laid the foundations of the Dutch Republic. They called on Charles IX. of France to help them, and he (being under the influence of Coligny, the leader of the Huguenots) was eager to make war on Spain on their behalf. Charles's mother, Catherine de Medicis, was, however, alarmed lest the Huguenots should grow too powerful, and frightened her son with a tale that they were conspiring against him. He was an excitable youth, and turned savagely on the Huguenots, encouraging a fearful butchery of them, which is known as the Massacre of St. Bartholomew, because it took place on August 24, which was St. Bartholomew's day. Coligny himself was among the victims.

12. The Growth of the Dutch Republic. 1572-1578.—By this time the provinces of Holland and Zeeland had risen against Spain. They placed at their head the Prince of Orange with the title of Stadtholder or Lieutenant, as if he had been still the lieutenant of the king of Spain whom he resisted.

The rebels had but a scanty force wherewith to defend themselves against the vast armies of Spain. Alva took town after town, sacked them, and butchered man, woman and child within. In **1574** Leyden was saved from his attack. Holland is below the sea-level, and the Dutch cut the dykes which kept off the sea, and when the tide rushed in, sent flat-bottomed vessels over what had once been land, and rescued the town from the besiegers. Alva, disgusted at his failure, returned to Spain. In **1576** his successor Requesens died. Spain, with all the wealth of the Indies pouring into it, was impoverished by the vastness of the work which Philip had undertaken in trying to maintain the power of the Roman Catholic Church in all western Europe. The expenses of the war in the Netherlands exhausted his treasury, and on the death of Requesens, the Spanish army mutinied, plundered even that part of the country which was friendly to Spain, and sacked Antwerp with barbarous cruelty. Then the whole of the seventeen provinces of the Netherlands drove out the Spaniards, and bound themselves by the Pacification of Ghent into a confederate Republic. In **1578** Alexander, duke of Parma, arrived as the Spanish governor. He was a great warrior and statesman, and he won over the Catholic provinces of the southern Netherlands to his side. By the Union of Utrecht the Prince of Orange formed a new confederate republic of the seven northern provinces, which were mainly Protestant.

13. Quiet Times in England. 1572-1577.—The Spaniards were no longer able to interfere in England. Elizabeth was equally safe from the side of France. In **1574** Charles IX. died, and was succeeded by Elizabeth's old suitor Anjou as Henry III. There were fresh civil wars which gave him enough to do at home. In **1573** Elizabeth sent aid to the party of the young king in Scotland, and suppressed the last remnants of Mary's party there. In England she pursued her old policy. Men might think what they would, but they must not discuss their opinions openly. There must be as little preaching as possible, and when the clergy began to hold meetings called prophesyings for discussion on the Scriptures, she ordered Grindal, who had succeeded Parker as Archbishop of Canterbury, to suppress them, and on his refusal in **1577** suspended him from his office, and put down the prophesyings herself.

14. Drake's Voyage. 1577-1580.—Elizabeth had no sympathy with the heroic Netherlanders, who fought for liberty and conscience, but she had sympathy with the mariners who by fair means or foul brought treasure into the realm. In **1577** Drake sailed for that Pacific which he had long been eager to enter. Passing through the Straits of Magellan, he found himself alone on the unknown ocean with the 'Pelican,' a little ship of 100 tons. He ranged up the coast of South America, seizing treasure where he landed, but never doing any cruel deed. The Spaniards, not thinking it possible that an English ship could be there, took the 'Pelican' for one of their own vessels, and were easily caught. At Tarapaca, for instance, Drake found a Spaniard asleep with bars of silver by his side. At another landing place he found eight llamas laden with silver. So he went on, till he took a great vessel with jewels in plenty, thirteen chests of silver coin, eighty pounds' weight of gold, and twenty-six tons of silver. With all this he sailed home by way of the Cape of Good Hope, arriving in England in **1580**, being the first commander who had circumnavigated the globe.^[17] The king of Spain was furious, and demanded back the wealth of which his subjects had been robbed. Elizabeth gave him good words, but not a penny of money or money's worth.

15. Ireland and the Reformation. 1547.—Since the death of Henry VIII. the management of Ireland had been increasingly difficult. An attempt had been made in the reign of Edward VI. to establish the reformed religion. All that was then done had been overthrown by Mary, and what Mary did was in turn overthrown by Elizabeth. As yet, however, the orders of the English Government to make religious changes in Ireland were of comparatively little importance. The power of the Government did not reach far, and even in the districts to which it extended there was none of that mental preparation for the reception of the new doctrines which was to be found in England. The Reformation was accepted by very few, except by English officials, who were ready to accept anything to please the Government. Those who clung to the old ways, however, were not at all zealous for their faith, and there was as yet no likelihood that any religious insurrection like the Pilgrimage of Grace or the rising in the North would be heard of in Ireland. The lives of the Celtic chiefs and the Anglo-Norman lords were passed in blood-shedding and looseness of life, which made them very unfit to be champions of any religion whatever.

16. Ireland under Edward VI. and Mary. 1547-1558.—

The real difficulty of the English Government in Ireland lay in its relations with the Irish tribes, whether under Celtic chiefs or Anglo-Norman lords. At the end of the reign of Edward VI. an attempt had been made to revert to the better part of the policy of Henry VIII., and the heads of the tribes were entrusted by the government with powers to keep order in the hope that they would gradually settle down into civilisation and obedience. Such a policy required almost infinite patience on the part of the Government, and the Earl of Sussex, who was Lord Deputy under Mary, began again the old mischief of making warlike attacks upon the Irish which he had not force or money enough to render effectual. It was Mary and not a Protestant sovereign who first sent English colonists to occupy the lands of the turbulent Irish in King's County and Queen's County—then much smaller than at present. A war of extermination at once began. The natives massacred the intruders and the intruders massacred the natives, till—far on in Elizabeth's reign—the natives had been all slaughtered or expelled. There was thus introduced into the heart of Ireland a body of Englishmen who, no doubt, were far more advanced in the arts of life than the Irish around them, but who treated the Irish with utter contempt, and put them to death without mercy.



Armour as worn during the reign of Elizabeth: from the brass of Francis Clopton, 1577, at Long Melford, Suffolk.

17. Elizabeth and Ireland. 1558-1578.—From the time of the settlement of King's and Queen's Counties all chance of a peaceable arrangement was at an end. Elizabeth had not money enough to pay an army capable of subduing Ireland, nor had the Irish tribes sufficient trust in one another to

unite in national resistance. There was, in fact, no Irish nation. Even Shan O'Neill, the most formidable Irish opponent of the English Government, who was predominant in the North during the early part of Elizabeth's reign, failed because he tried to reduce the other Ulster chiefs to subjection to himself, and in **1567** was overthrown by the O'Donnells, and not by an English army. When the English officials gained power, they were apt to treat the Irish as if they were vermin to be destroyed. New attempts at colonisation were made, but the Irish drove out the colonists, and Ireland was in a more chaotic state than if it had been left to its own disorder.

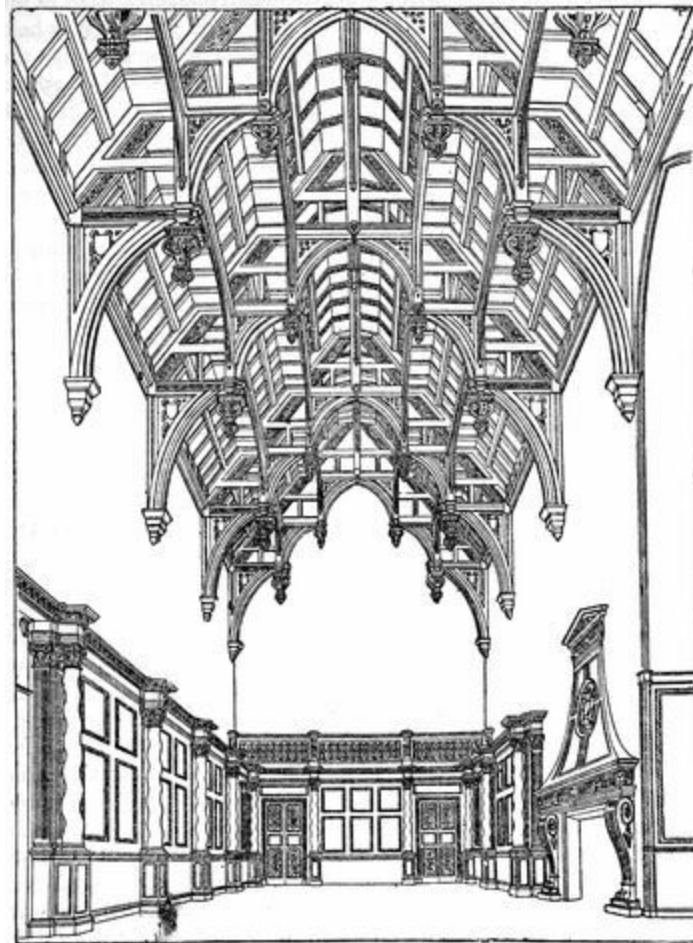
18. The Landing at Smerwick, and the Desmond Rising. 1579-1583.—Elizabeth's servants were the more anxious to subdue Ireland by the process of exterminating Irishmen, because they believed that the Irish would welcome Spaniards if they came to establish a government in Ireland hostile to Elizabeth. On the other hand, the English Catholics, and especially the English Catholic clergy in exile on the Continent, fancied, wrongly, that the Irish were fighting for the papacy, and not for tribal independence, or, rather, for bare life, which tribal independence alone secured. In **1579** Sir James Fitzmaurice landed with a few men at Dingle, under the authority of the Pope, but was soon defeated and slain. In **1580** a large number of Spaniards and Italians landed at Smerwick, but was overpowered and slaughtered by Lord Grey, the Lord Deputy. Then the Earl of Desmond, the head of a branch of the family of Fitzgerald, all-powerful in Munster, rose. The insurrection was put down, and Desmond himself slain, in **1583**. It is said that in **1582** no less than 30,000 perished—mostly of starvation—in a single year. It is an English witness who tells us of the poor wretches who survived, that 'out of every corner of the woods and glens they came creeping forth upon their hands, for their legs could not bear them; they spoke like ghosts crying out of their graves; they did eat the dead carrions, happy where they could find them.'

19. The Jesuits in England. 1580.—In England the landing of a papal force at Smerwick produced the greater alarm because Parma (see p. [450](#)) had been gaining ground in the Netherlands, and the time might soon come when a Spanish army would be available for the invasion of England. For the present what the Government feared was any interruption to the process by which the new religion was replacing the old. In **1571** there had been an

act of Parliament in answer to the Papal Bull of Deposition (see p. [442](#)), declaring all who brought Bulls into the country, and all who were themselves reconciled to the see of Rome, or who reconciled others to be traitors, but for a long time no use was made by Elizabeth of these powers. The Catholic exiles, however, had witnessed with sorrow the gradual decay of their religion in England, and in **1568** William Allen, one of their number, had founded a college at Douai (removed in **1578** to Reims) as a seminary for missionaries to England. It was not long before seminary priests, as the missionaries were called, began to land in England to revive the zeal of their countrymen, but it was not till **1577** that one of them, Cuthbert Mayne, was executed, technically for bringing in a copy of a Bull of a trivial character, but really for maintaining that Catholics would be justified in rising to assist a foreign force sent to reduce England to obedience to the Papacy. There were, in fact, two rival powers inconsistent with one another. If the Papal power was to prevail, the Queen's authority must be got rid of. If the Queen's power was to prevail, the Pope's authority must be got rid of. In **1580** two Jesuits, Campion and Parsons, landed. They brought with them an explanation of the Bull of Deposition, which practically meant that no one need act on it till it was convenient to do so. They went about making converts and strengthening the lukewarm in the resolution to stand by their faith.

20. The Recusancy Laws. 1581.—Elizabeth in her dread of religious strife had done her best to silence religious discussion and even religious teaching. Men in an age of religious controversy are eager to believe something. All the more vigorous of the Protestants were at this time Puritans, and now the more vigorous of those who could not be Puritans welcomed the Jesuits with joy. There were never many Jesuits in England, but for a time they gave life and vigour to the seminary priests who were not Jesuits. In **1581** Parliament, seeing nothing in what had happened but a conspiracy against the Crown, passed the first of the acts which became known as the Recusancy laws. In addition to the penalties on reconciliation to Rome and the introduction of Bulls, fines and imprisonment were to be inflicted for hearing or saying mass, and fines upon lay recusants—that is to say, persons who refused to go to church. Catholics were from this time frequently subjected to torture to drive them to give information which would lead to the apprehension of the priests. Campion was arrested and

executed after cruel torture; Parsons escaped. If the Government and the Parliament did not see the whole of the causes of the Jesuit revival, they were not wrong in seeing that there was political danger. Campion was an enthusiast. Parsons was a cool-headed intriguer, and he continued from the Continent to direct the threads of a conspiracy which aimed at Elizabeth's life.



Hall of Burghley House, Northamptonshire, built about 1580: from Drummond's *Histories of Noble British Families*, vol. i.

21. Growing Danger of Elizabeth. 1580-1584.—Elizabeth was seldom startled, but her ministers were the more frightened because the power of Spain was growing. In **1580** Philip took possession of Portugal and the Portuguese colonies, whilst in the Netherlands Parma was steadily gaining ground. Elizabeth had long been nursing the idea of the Alençon marriage (see p. [446](#)), and in **1581** it seemed as if she was in earnest about it. She

entertained the Duke at Greenwich, gave him a kiss and a ring, then changing her mind sent him off to the Netherlands, where he hoped to be appointed by the Dutch to the sovereignty of the independent states. In the spring of **1582** a fanatic, Jaureguy, tried to murder the Prince of Orange at Philip's instigation. Through the summer of that year Parsons and Allen were plotting with Philip and the Duke of Guise, for the assassination of Elizabeth, on the understanding that as soon as Elizabeth had been killed, Guise was to send or lead an army to invade England. They hoped that such an army would receive assistance from Scotland, where the young James had become the tool of a Catholic intriguer whom he made Duke of Lennox. Philip, however, was too dilatory to succeed. In August James was seized by some Protestant Lords, and Lennox was soon driven from the country. In **1583** there was a renewal of the danger. The foolish Alençon, wishing to carve out a principality for himself, made a violent attack on Antwerp and other Flemish towns which had allied themselves with him, and was consequently driven from the country; whilst Parma, taking advantage of this split amongst his enemies, conquered most of the towns—Antwerp, however, being still able to resist. He now held part of the coast line, and a Spanish invasion of England from the Netherlands once more became feasible. In November **1583** a certain Francis Throgmorton, having been arrested and racked, made known to Elizabeth the whole story of the intended invasion of the army of Guise. In January **1584** she sent the Spanish ambassador, Mendoza, out of England. On June 29 Balthazar Gerard assassinated the Prince of Orange.

22. The Association. 1584-1585.—Those who had planned the murder of the Prince of Orange were planning the murder of Elizabeth. In their eyes she was a usurper, who by main force held her subjects from all hope of salvation by keeping them in ignorance of the teaching of the true Church, and they accordingly drew the inference that it was lawful to murder her and to place Mary on her throne. They did not see that they had to do with a nation and not with a queen alone, and that, whether the nation was as yet Protestant or not, it was heart and soul with Elizabeth against assassins and invaders. In November **1584**, at the instigation of the Council, the mass of Englishmen—irrespective of creed—bound themselves in an association not only to defend the Queen, but, in case of her murder, to put to death the person for whose sake the crime had been committed—or, in other words,

to send Mary to the grave instead of to the throne. In **1585** this association, with considerable modifications, was confirmed by Parliament. At the same time an act was passed banishing all Jesuits and seminary priests, and directing that they should be put to death if they returned.

23. Growth of Philip's Power. 1584-1585.—In the meantime Philip's power was still growing. The wretched Alençon died in **1584**, and a far distant cousin of the childless Henry III., Henry king of Navarre, who was a Huguenot, became heir to the French throne. Guise and the ardent Catholics formed themselves into a league to exclude Huguenots from the succession, and placed themselves under the direction of the king of Spain. A civil war broke out once more in **1585**, and if the league should win (as at first seemed likely) Philip would be able to dispose of the resources of France in addition to his own. As Guise had now enough to do at home, Philip took the invasion of England into his own hands. He had first to extend his power in the Netherlands. In August the great port of Antwerp surrendered to Parma. The Dutch had offered to make Elizabeth their sovereign, and, though she had prudently refused, she sent an army to their aid, but neutralised the gift by placing the wretched Leicester at its head, and by giving him not a penny wherewith to pay his men. In **1586**, after an attempt (after Alençon's fashion) to seize the government for himself, Leicester returned to England, having accomplished nothing. What Elizabeth did not do was done by a crowd of young Englishmen who pressed over to the Netherlands to fight as volunteers for Dutch freedom. The best known of these was Sir Philip Sidney, whose head and heart alike seemed to qualify him for a foremost place amongst the new generation of Englishmen. Unhappily he was slain in battle near Zutphen. As he lay dying he handed a cup of water untasted to another wounded man. 'Thy necessity,' he said to him, 'is greater than mine.' Parma took Zutphen, and the territory of the Dutch Republic—the bulwark of England—was the smaller by its loss. By sea England more than held her own, and in **1586** Drake returned from a voyage to the West Indies laden with spoils.

24. Babington's Plot, and the Trial of Mary Stuart. 1586.—The Spanish invasion being still delayed, a new plot for murdering Elizabeth was formed. A number of young Catholics (of whom Anthony Babington was the most prominent) had been allowed to remain at Court by Elizabeth,

who was perfectly fearless. Acting under the instructions of a priest named Ballard, they now sought basely to take advantage of their easy access to her person to assassinate her. They were detected and executed, and Walsingham, the Secretary of State who conducted the detective department of the government, discovered, or said that he had discovered, evidence of Mary Stuart's approving knowledge of the conspiracy. Elizabeth's servants felt that there was but one way of saving the life of the queen, and that was by taking the life of her whose existence made it worth while to assassinate Elizabeth. Mary was brought to trial and condemned to death on a charge of complicity in Babington's plot. When Parliament met it petitioned Elizabeth to execute the sentence. Elizabeth could not make up her mind. She knew that Mary's execution would save herself and the country from enormous danger, but she shrank from ordering the deed to be done. She signed the warrant for Mary's death, and then asked Mary's gaoler Paulet to save her from responsibility by murdering his prisoner. On Paulet's refusal she continued her vacillations, till the Council authorised Davison, Walsingham's colleague in the Secretaryship, to send off the warrant without further orders.

25. Execution of Mary Stuart. 1587.—On February 8, 1587, Mary Stuart was beheaded at Fotheringhay. Elizabeth carried out to the last the part which she had assumed, threw the blame on Davison, dismissed him from her service, and fined him heavily. After Mary's death the attack on England would have to be conducted in open day. It would be no advantage to Philip and the Pope that Elizabeth should be murdered if her place was to be taken, not by Mary, but by Mary's Protestant son, James of Scotland.

CHAPTER XXX

ELIZABETH'S YEARS OF TRIUMPH. 1587-1603

LEADING DATES
Reign of Elizabeth, 1558-1603

Drake singes the King of Spain's beard 1587
The defeat of the Armada 1588

The rising of O'Neill 1594
The taking of Cadiz 1596
Essex arrives in Ireland 1599
Mountjoy arrives in Ireland 1600
The Monopolies withdrawn 1601
Conquest of Ireland, and death of Elizabeth
1603

1. **The Singeing of the King of Spain's Beard. 1587.**—After Mary's execution Philip claimed the crown of England for himself or his daughter the Infanta Isabella, on the plea that he was descended from a daughter of John of Gaunt, and prepared a great fleet in the Spanish and Portuguese harbours for the invasion of England. In attempting to overthrow Elizabeth he was eager not merely to suppress English Protestantism, but to put an end to English smuggling and piracy in Spanish America, and to stop the assistance given by Englishmen to the Netherlanders who had rebelled against him. Before his fleet was ready to sail Drake appeared off his coast, running into his ports, burning his store-ships, and thus making an invasion impossible for that year (**1587**). Drake, as he said on his return, had singed the king of Spain's beard.

2. **The Approach of the Armada. 1588.**—The Invincible Armada,[\[18\]](#) as some foolish Spaniards called Philip's great fleet, set out at last in **1588**. It was to sail up the Channel to Flanders, and to transport Parma and his army to England. Parma's soldiers were the best disciplined veterans in Europe, while Elizabeth's were raw militia, who had never seen a shot fired in actual war. If, therefore, Parma succeeded in landing, it would probably go hard with England. It was, therefore, in England's interest to fight the Armada at sea rather than on land.

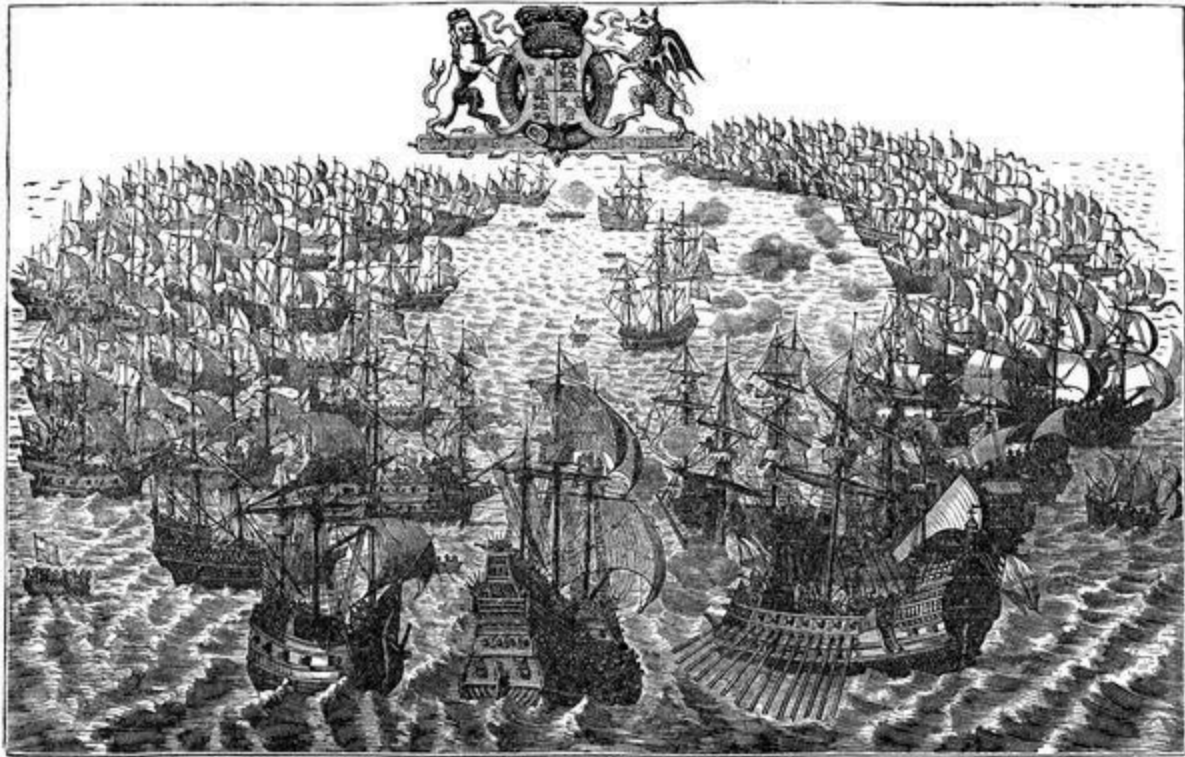


Sir Martin Frobisher, died 1594: from a picture belonging to the Earl of Carlisle.

3. The Equipment of the Armada. 1588.—Even at sea the odds were in appearance against the English. The Spanish ships were not indeed so much larger than the largest English vessels as has often been said, but they were somewhat larger, and they were built so as to rise much higher out of the water, and to carry a greater number of men. In fact, the superiority was all on the English side. In great military or naval struggles the superiority of the victor is usually a superiority of intelligence, which shows itself in the preparation of weapons as much as in conduct in action. The Spanish ships were prepared for a mode of warfare which had hitherto been customary. In such ships the soldiers were more numerous than the sailors, and the decks were raised high above the water, in order that the soldiers might command with their muskets the decks of smaller vessels at close quarters. The Spaniards, trusting to this method of fighting, had not troubled themselves to improve their marine artillery. The cannon of their largest ships were few, and the shot which they were capable of firing was light. Philip's system of

requiring absolute submission in Church and State had resulted in an uninventive frame of mind in those who carried out his orders. He had himself shown how little he cared for ability in his selection of an admiral for his fleet. That post having become vacant by the death of the best seaman in Spain, Philip ordered the Duke of Medina Sidonia to take his place. The Duke answered—with perfect truth—that he knew nothing about the sea and nothing about war; but Philip, in spite of his candour, bade him go, and go he did.

4. The Equipment of the English Fleet. 1588.—Very different was the equipment of the English fleet. Composed partly of the queen's ships, but mainly of volunteers from every port, it was commanded by Lord Howard of Effingham, a Catholic by conviction. The very presence of such a man was a token of a patriotic fervour of which Philip and the Jesuits had taken no account, but which made the great majority of Catholics draw their swords for their queen and country. With him were old sailors like Frobisher, who had made his way through the ice of Arctic seas, or like Drake, who had beaten Spaniards till they knew their own superiority. That superiority was based not merely on greater skill as sailors, but on the possession of better ships. English shipbuilders had adopted an improved style of naval architecture, having constructed vessels which would sail faster and be more easily handled than those of the older fashion, and—what was of still greater importance—had built them so as to carry more and heavier cannon. Hence, the English fleet, on board of which the number of sailors exceeded that of the soldiers, was in reality—if only it could avoid fighting at close quarters—far superior to that of the enemy.



The Spanish Armada. Fight between the English and Spanish fleets off the Isle of Wight, July 25, 1588: from tapestry formerly in the House of Lords.

5. The Defeat of the Armada. 1588.—When the Armada was sighted at the mouth of the Channel, the English commander was playing bowls with his captains on Plymouth Hoe. Drake refused to break off his amusement, saying that there was time to finish the game and to beat the Spaniards too. The wind was blowing strongly from the south-west, and he recommended Lord Howard to let the Spaniards pass, that the English fleet might follow them up with the wind behind it. When once they had gone by they were at the mercy of their English pursuers, who kept out of their way whenever the Spaniards turned in pursuit. The superiority of the English gunnery soon told, and, after losing ships in the voyage up the Channel, the Armada put into Calais. The English captains sent in fire-ships and drove the Spaniards out. Then came a fight off Gravelines—if fight it could be called—in which the helpless mass of the Armada was riddled with English shot. The wind rose into a storm, and pursuers and pursued were driven on past the coast of Flanders, where Parma's soldiers were blockaded by a Dutch fleet. Parma had hoped that the Armada when it came would set him free, and convoy him across to England. As he saw the tall ships of Spain hurrying past

before the enemy and the storm, he learnt that the enterprise on which he had set his heart could never be carried out.

6. The Destruction of the Armada. 1588.—The Spanish fleet was driven northwards without hope of return, and narrowly escaped wreck on the flats of Holland. "There was never anything pleased me better," wrote Drake, as he followed hard, "than seeing the enemy flying with a southerly wind to the northwards.... With the grace of God, if we live, I doubt not, ere it be long, so to handle the matter with the Duke of Sidonia as he shall wish himself at St. Mary Port^[19] amongst his orange trees." Before long even Drake had had enough. Elizabeth, having with her usual economy kept the ships short of powder, they were forced to come back. The Spaniards had been too roughly handled to return home by the way they came. Round the north of Scotland and the west of Ireland they went, strewing the coast with wrecks. About 120 of their ships had entered the Channel, but only 54 returned. "I sent you," said Philip to his admiral, "to fight against men, and not with the winds." Elizabeth, too, credited the storms with her success. She struck a medal with the inscription, "God blew with his wind and they were scattered." The winds had done their part, but the victory was mainly due to the seamanship of English mariners and the skill of English shipwrights.



Sir Walter Raleigh (1552-1618) and his eldest son Walter, at the age of eight: from a picture, dated 1602, belonging to Sir J. F. Lennard, Bart.

7. Philip II. and France. 1588-1593.—Philip's hopes of controlling France were before long baffled as completely as his hopes of controlling England. In **1588** Guise, the partisan of Spain, was murdered at Blois by the order of the king in his very presence. In **1589** Henry III. was murdered in revenge by a fanatic, and the Huguenot king of Navarre claimed the crown as Henry IV. The League declared that no Huguenot should reign in France. A struggle ensued, and twice when Henry seemed to be gaining the upper hand Philip sent Parma to aid the League. The feeling of the French people was against a Huguenot king, but it was also against Spanish interference. When in **1593** Henry IV. declared himself a Catholic, Paris cheerfully submitted to him, and its example was speedily followed by the rest of France. Elizabeth saw in Henry IV. a king whose position as a national sovereign resisting Spanish interference much resembled her own, and in

1589 and again in **1591** she sent him men and money. A close alliance against Spain sprang up between France and England.

8. Maritime Enterprises. 1589-1596.—It was chiefly at sea, however, that Englishmen revenged themselves for the attack of the Armada. In **1592** Drake and Sir John Norris sacked Corunna but failed to take Lisbon. Other less notable sailors plundered and destroyed in the West Indies. In **1595** Drake died at sea. In the same year Sir Walter Raleigh, who was alike distinguished as a courtier, a soldier, and a sailor, sailed up the Orinoco in search of wealth. In **1596** Raleigh, together with Lord Howard of Effingham and the young Earl of Essex, who was in high favour with the Queen, took and sacked Cadiz. Essex was generous and impetuous, but intensely vain, and the victory was followed by a squabble between the commanders as to their respective merits.

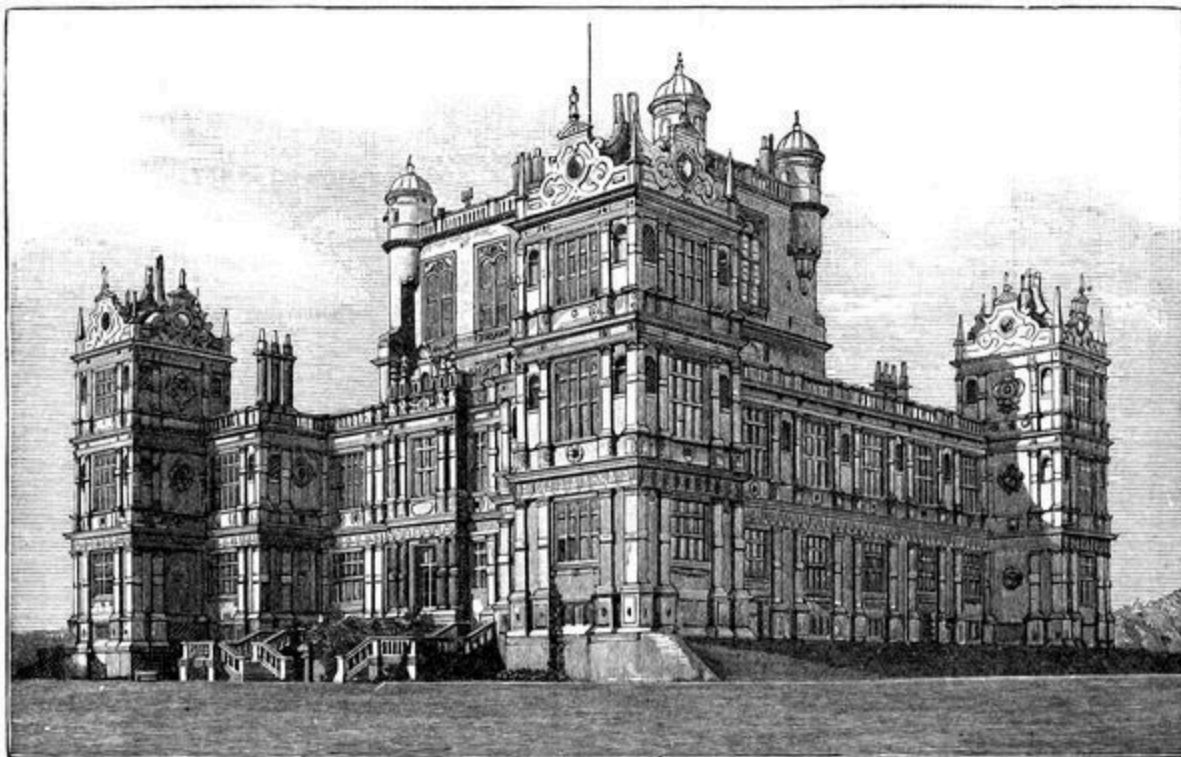
9. Increasing Prosperity.—It was not so much the victories as the energy which made the victories possible that diffused wealth and prosperity over England. Trade grew together with piracy and war. Manufactures increased, and the manufacturers growing in numbers needed to be fed. Landed proprietors, in consequence, found it profitable to grow corn instead of turning their arable lands into pasture, as they had done at the beginning of the century. The complaints about inclosures (see pp. [368](#), [415](#)) died away. The results of wealth appeared in the show and splendour of the court, where men decked themselves in gorgeous attire, but still more in the gradual rise of the general standard of comfort.

10. Buildings.—Even in Mary's days the good food of Englishmen had been the wonder of foreigners. "These English," said a Spaniard, "have their houses of sticks and dirt, but they fare commonly as well as the king." In Elizabeth's time the houses were improved. Many windows, which had, except in the houses of the great, been guarded with horn or lattice, were now glazed, and even in the mansions of the nobility large windows stood in striking contrast with the narrow openings of the buildings of the middle ages. Glass was welcome, because men no longer lived—as they had lived in the days when internal wars were frequent—in fortified castles, where, for the sake of defence, the openings were narrow and infrequent. Elizabethan manor-houses, as they are now termed, sometimes built in the

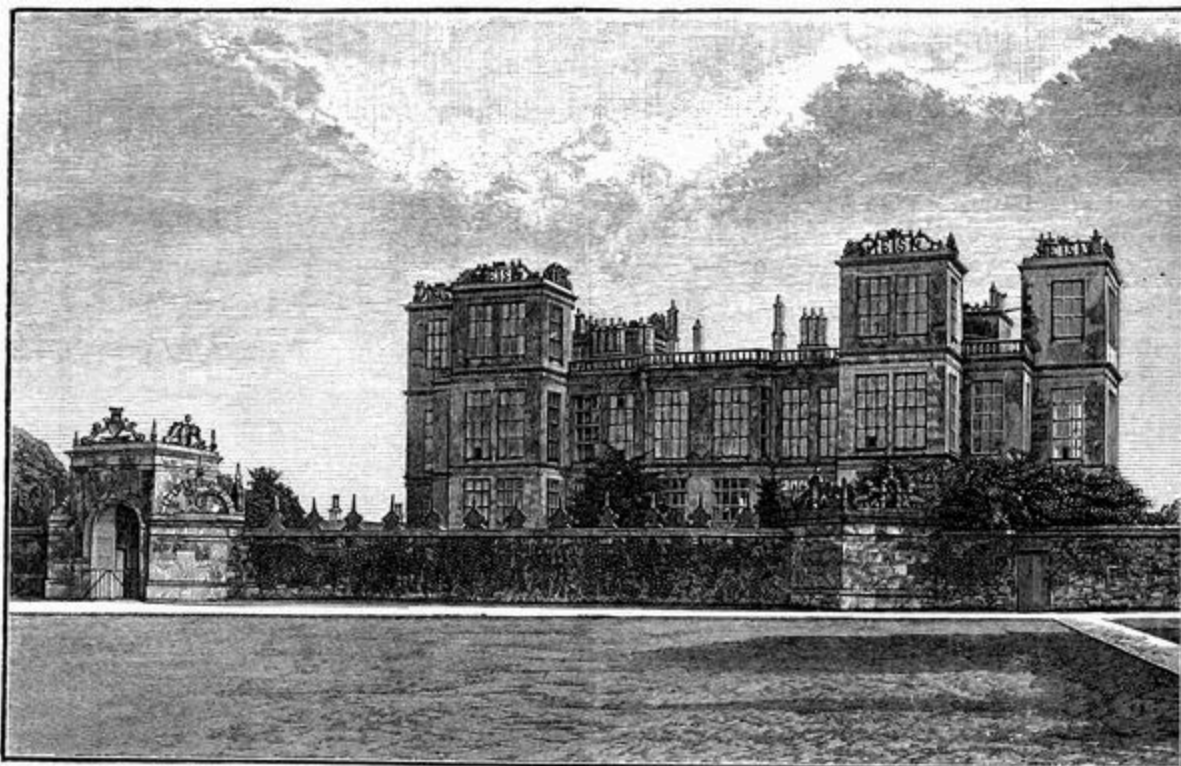
shape of the letter E, in honour, as is sometimes supposed, of the Queen's name, rose all over the country to take the place of the old castles. They had chimneys to carry off the smoke, which, in former days, had, in all but the largest houses, been allowed to escape through a hole in the roof. See pp. [466](#), [467](#), [469-471](#).



A mounted soldier at the end of the sixteenth century: from a broadside printed in 1596.



Wollaton Hall, Nottinghamshire; built by Thorpe for Sir Francis Willoughby about 1580-1588.



Hardwick Hall, Derbyshire; built by Elizabeth, Countess of Shrewsbury, about 1597.

11. Furniture.—The furniture within the houses underwent a change as great as the houses themselves. When Elizabeth came to the throne people of the middle class were content to lie on a straw pallet, with a log of wood, or at the best a bag of chaff, under their heads. It was a common saying that pillows were fit only for sick women. Before many years had passed comfortable bedding had been introduced. Pewter platters and tin spoons replaced wooden ones. Along with these improvements was noticed a universal chase after wealth, and farmers complained that landlords not only exacted higher rents, but themselves engaged in the sale of the produce of their lands.

12. Growing Strength of the House of Commons.—This increase of general prosperity could not but strengthen the House of Commons. It was mainly composed of country gentlemen, and it had been the policy of the Tudors to rely upon that class as a counterpoise to the old nobility. Many of the country gentlemen were employed as Justices of the Peace, and Elizabeth had gladly increased their powers. When, therefore, they came to fulfil their duties as members of Parliament, they were not mere talkers unacquainted with business, but practical men, who had been used to deal with their own local affairs before being called on to discuss the affairs of the country. Various causes made their opinions more important as the reign went on. In the first place, the national uprising against Spain drew with it a rapid increase of Protestantism in the younger generation, and, for this reason, the House of Commons, which, at the beginning of the reign, represented only a Protestant minority in the nation itself (see p. [428](#)), at the end of the reign represented a Protestant majority, and gained strength in consequence. In the second place, Puritanism tended to develop independence of character, whilst the queen was not only unable to overawe the Puritan members of the House, but, unlike her father, had no means of keeping the more worldly-minded in submission by the distribution of abbey lands.



E-shaped house, Beaudesert, Staffordshire; built by Thomas, Lord Paget, about 1601.

13. Archbishop Whitgift and the Court of High Commission. 1583.—

The Jesuit attack in **1580** and **1581** strengthened the queen's resolution to put an end to the divisions which weakened the English Church, as she was still afraid lest Puritanism, if unchecked, might give offence to her more moderately-minded subjects and drive them into the arms of the Papacy. In **1583**, on Grindal's death, she appointed to the Archbishopric of Canterbury Whitgift, who had taken a leading part in opposing Cartwright (see p. [446](#)). Whitgift held that as questions about vestments and ceremonies were unimportant, the queen's pleasure in such matters ought to be the rule of the Church. He was, however, a strict disciplinarian, and he was as anxious as the queen to force into conformity those clergy who broke the unity of the Church for the sake of what he regarded as mere crotchets of their own, especially as some of them were violent assailants of the established order. In virtue of a clause in the Act of Supremacy, passed in **1559**, the queen had in that year erected a Court of High Commission. Though many laymen were members of this court, they seldom attended its sittings, and it was practically managed by bishops and ecclesiastical lawyers. Its business was to enforce conformity on the clergy, and now under Whitgift it acted most

energetically, sitting permanently, and driving from their livings and committing to prison clergymen who refused to conform.

14. The House of Commons and Puritanism. 1584.—The severity of the High Commission roused some of the Puritan clergy to attempt—in private meetings—to bring into existence something of the system of Presbyterianism, but the attempt was soon abandoned. Few amongst the Protestant laity had any liking for Presbyterianism, which they regarded as oppressive and intolerant, and it had no deep roots even amongst the Puritan clergy. If many members of the House of Commons were attracted to Puritanism, as opposed to Presbyterianism, it was partly because at the time of a national struggle against Rome, they preferred those amongst the clergy whose views were most antagonistic to those of Rome; but still more because they admired the Puritans as defenders of morality. Not only were the Church courts oppressive and meddlesome, but plain men were disgusted at a system in which ignorant and lazy ministers who conformed to the Prayer Book were left untouched, whilst able and energetic preachers who refused to adopt its ceremonies were silenced.



Ingestre Hall, Staffordshire; built about 1601.

15. **The Separatists.**—The desire for a higher standard of morality, which made so many support the Puritan demand for a further reformation of the Church, drove others to denounce the Church as apostate. Robert Browne, a clergyman, was the first to declare in favour of a system which was neither Episcopal nor Presbyterian. He held it to be the duty of all true Christians to separate themselves from the Church, and to form congregations apart, to which only those whose religion and morality were beyond question should be admitted. These separatists, as they called themselves, were known as Brownists in common speech. Unfortunately their zeal made them uncharitably contemptuous of those who were less zealous than themselves, and it was from amongst them that there came forth—beginning in **1588**—a series of virulent and libellous attacks on the bishops, known as the Marprelate Tracts, printed anonymously at a secret press. Browne and his followers advocated complete religious liberty—denying the right of the State to interfere with the conscience. The doctrine was too advanced for general acceptance, and the violence of the Marprelate Tracts gave offence even to the Puritans. Englishmen might differ as to what sort of church the national church should be, but almost all were as yet agreed that there ought to be one national church and not a number of disconnected sects. In **1593** an act of Parliament was passed imposing punishment on those who attended conventicles or private religious assemblies, and in the course of the year three of the leading separatists—Barrow, Greenwood, and Penry—were hanged, on charges of sedition.

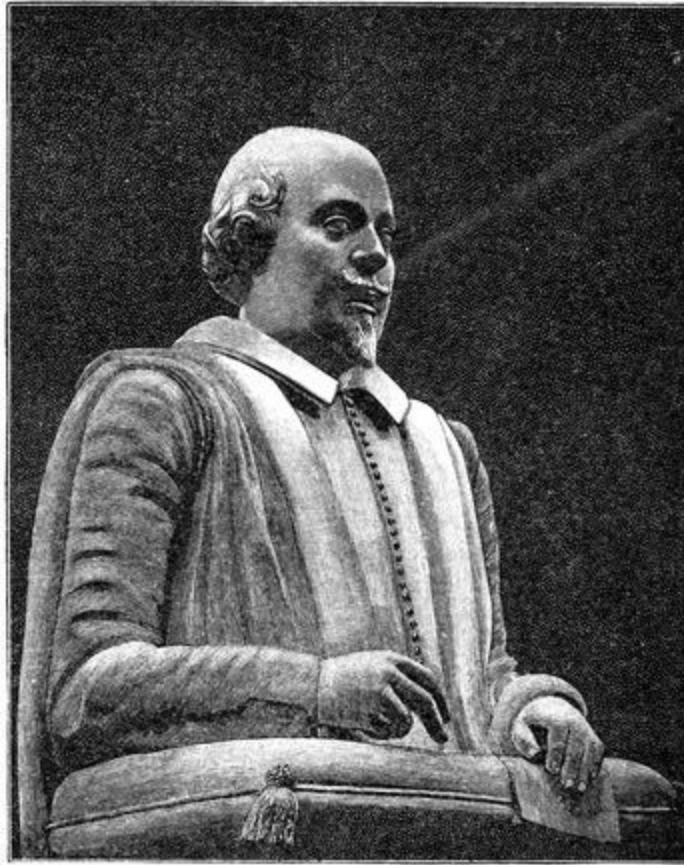
16. **Whitgift and Hooker.**—The Church of England would certainly not have sustained itself against the Puritans unless it had found a champion of a higher order than Whitgift. Whitgift maintained its organisation, but he did no more. Cranmer, at the beginning of the Reformation, had declared the Bible as interpreted by the writers of the first six centuries to be the test of doctrine, but this assertion had been met during the greater part of Elizabeth's reign, on the one hand by the Catholics, who asserted that the Church of the first six centuries differed much from the Church of England of their day, and on the other hand by the Puritans, who asserted that the testimony of the first six centuries was irrelevant, and that the Bible alone was to be consulted. Whitgift had called both parties to obedience, on the ground that they ought to submit to the queen in indifferent matters. Hooker

in the opening of his *Ecclesiastical Polity* called the Puritans to peace. "This unhappy controversy," he declared, "about the received ceremonies and discipline of the Church of England, which hath so long time withdrawn so many of her ministers from their principal work and employed their studies in contentious oppositions, hath, by the unnatural growth and dangerous fruits thereof, made known to the world that it never received blessing from the Father of peace." Hooker's teaching was distinguished by the importance which he assigned to 'law,' as against the blind acceptance of Papal decisions on the one side and against the Puritan reverence for the letter of the scriptures on the other. The Puritans were wrong, as he taught, not because they disobeyed the queen, but because they did not recognise that God revealed Himself in the natural laws of the world as well as in the letter of Scripture. "Of law," he wrote, "there can be no less acknowledged than that her seat is the bosom of God, her voice the harmony of the world: all things in heaven and earth do her homage—the very least as feeling her care, and the greatest as not exempted from her power: both angels and men and creatures of what condition soever—though each in different sort and manner, yet all with universal consent—admiring her as the mother of their peace and joy." It was therefore unnecessary, according to Hooker's teaching, to defend certain usages on the ground of their sanction by tradition or by Papal authority, as it was unreasonable to attack them on the ground that they were not mentioned in Scripture. It was sufficient that they were fitting expressions of the feelings of reverence which had been implanted by God in human nature itself.



Coaches in the reign of Elizabeth: from *Archæologia*.

17. **Spenser, Shakspeare, and Bacon.**—With the stately periods of Hooker English prose entered on a new stage. For the first time it sought to charm and to invigorate, as well as to inform the world. In Spenser and Shakspeare are to be discerned the same influences as those which made Hooker great. They, too, are filled with reverence for the reign of law. Spenser, in his *Faerie Queen*, set forth the greatness of man in following the laws which rule the moral world—the laws of purity and temperance and justice; whilst Shakspeare, in the plays which he now began to pour forth, taught them to recognise the penalties which follow hard on him who disregards not only the moral but also the physical laws of the world in which he lives, and to appraise the worth of man by what he is and not by the dogmas which he accepts. That nothing might be wanting to point out the ways in which future generations were to walk, young Francis Bacon began to dream of a larger science than had hitherto been possible—a science based on a reverent inquiry into the laws of nature.



William Shakspeare: from the bust on his tomb at Stratford-on-Avon.

18. Condition of the Catholics. 1588-1603.—Bacon cared for many matters, and one of his earliest recommendations to Elizabeth had been to make a distinction between the Catholics who would take an oath to defend her against all enemies and those who would not. The patriotism with which many Catholics had taken her side when the Armada appeared ought to have procured the acceptance of this proposal. It is seldom, however, that either men or nations change their ways till long after the time when they ought to change them. Spain and the Pope still threatened, and all Catholics were still treated as allies of Spain and the Pope, and the laws against them were made even more severe during the remainder of the reign.

19. Irish Difficulties. 1583-1594.—The dread of a renewal of a Spanish invasion was productive of even greater mischief in Ireland than in England. After the suppression of the Desmond insurrection, an attempt was made to colonise the desolate lands of Munster (see p. [453](#)) with English. The attempt failed, chiefly because—though courtiers willingly accepted

large grants of lands—English farmers refused to go to Ireland in sufficient numbers to till the soil. On the other hand, Irishmen enough reappeared to claim their old lands, to rob, and sometimes murder, the few settlers who came from England. The settlers retaliated by acts of violence. All over Ireland the soldiers, left without pay, spoiled and maltreated the unfortunate inhabitants. The Irish, exasperated by their cruelty, longed for someone to take up their cause, and in **1594** a rising in Ulster was headed by Hugh O'Neill, known in England as the Earl of Tyrone. How bitter the Irish feeling was against England is shown by the fact that the other Ulster chiefs, who usually quarrelled with one another, now placed themselves under O'Neill.

20. O'Neill and the Earl of Essex. 1595-1600.—In **1595** O'Neill applied to the king of Spain for help; but Spain was weaker now than in former years, and though Philip promised help, he died in **1598** without fulfilling his engagement, being succeeded by his son, Philip III. In the same year O'Neill utterly defeated an English army under Bagenal on the Blackwater. All Celtic Ireland rose in his support, and in **1599** Elizabeth sent her favourite, Essex, to conquer Ireland in good earnest, lest it should fall into the hands of the king of Spain. Essex, through mismanagement, failed entirely, and after a great part of his army had melted away he came back to England without leave. On his arrival, knowing Elizabeth's fondness for him, he hoped to surprise her into forgiveness of his disobedience, and rushed into Elizabeth's presence in his muddy and travel-stained clothes.



Robert Devereux, second Earl of Essex, K.G.; 1567-1601: from a painting by Van Somer, dated 1599, belonging to the Earl of Essex.



Queen Elizabeth, 1558-1603: from a painting belonging to the University of Cambridge.

21. **Essex's Imprisonment and Execution. 1599-1601.**—The queen, who was not accustomed to allow even her favourites to run away from their posts without permission, ordered him into confinement. In **1600**, indeed, she restored him to liberty, but forbade him to come to court. Essex could not brook the disgrace, especially as the queen made him suffer in his pocket for his misconduct. As she had little money to give away, Elizabeth was in the habit of rewarding her courtiers by grants of monopoly—that is to say, of the sole right of selling certain articles, thus enabling them to make a profit by asking a higher price than they could have got if they had been subjected to competition. To Essex she had given a monopoly of sweet wines for a term of years, and now that the term was at an end she refused to renew the grant. Early in **1601** Essex—professing not to want to injure the queen, but merely to force her to change her ministers—rode at the head of a few followers into the City, calling on the citizens to rise in his favour. He was promptly arrested, and in the course of the enquiries made into his conduct it was discovered that when he was in Ireland he had entered into

treasonable negotiations with James VI. At his trial, Bacon, who had been most kindly treated by Essex, shocked at the disclosure of these traitorous proceedings, turned against him, and, as a lawyer, argued strongly that he had been guilty. The Earl was convicted and executed.

22. Mountjoy's Conquest of Ireland. 1600-1603.—In **1600**, after Essex had deserted Ireland, Lord Mountjoy was sent to take his place. He completed the conquest systematically, building forts as places of retreat for his soldiers whenever they were attacked by overwhelming numbers, and from which he could send out flying columns to devastate the country after the enemy had retreated. In **1601** a Spanish fleet and a small Spanish army at last arrived to the help of the Irish, and seized Kinsale. The English forces hemmed them in, defeated the Irish army which came to their support, and compelled the Spaniards to withdraw. The horrid work of conquering Ireland by starvation was carried to the end. "No spectacle," wrote Mountjoy's English secretary, "was more frequent in the ditches of the towns, and especially in wasted countries, than to see multitudes of these poor people dead, with their mouths all coloured green by eating nettles, docks, and all things they could rend up above ground." In one place a band of women enticed little children to come among them, and murdered them for food. At last, in **1603**, O'Neill submitted. Ireland had been conquered by England as it had never been conquered before.

23. Parliament and the Monopolies. 1601.—The conquest of Ireland was expensive and in **1601** Elizabeth summoned Parliament to ask for supplies. The House of Commons voted the money cheerfully, but raised an outcry against the monopolies. Elizabeth knew when to give way, and she announced her intention of cancelling all monopolies which could be shown to be burdensome. "I have more cause to thank you all than you me," she said to the Commons when they waited on her to express their gratitude; "for had I not received a knowledge from you, I might have fallen into the lap of an error, only for lack of true information. I have ever used to set the last judgment-day before mine eyes, and so to rule as I shall be judged to answer before a higher Judge—to whose judgment-seat I do appeal, that never thought was cherished in my heart that tended not to my people's good. Though you have had, and may have, many princes, more mighty and

wise, sitting in this seat, yet you never had, or ever shall have, any that will be more careful and loving."



William Cecil, Lord Burghley, K.G., 1520-1598: from a painting in the Bodleian Library, Oxford.

24. The Last Days of Elizabeth. 1601-1603.—These were the last words spoken by Elizabeth to her people. She had many faults, but she cared for England, and, more than any one else, she had made England united and prosperous. She had found it distracted, but by her moderation she had staved off civil war, till the country had rallied round the throne. No doubt those who worked most hard towards this great end were men like Burghley and Walsingham in the State, and men like Drake and Raleigh at sea; but it was Elizabeth who, being what she was, had given to each his opportunity. If either Edward VI. or Mary had been in her place, such men would have found no sphere in which their work could have been done, and, instead of telling of 'the spacious times of great Elizabeth,' the historian would have had to narrate the progress of civil strife and of the mutual conflict of ever-narrowing creeds. The last days of the great queen were gloomy, as far as

she was personally concerned. Burghley, the wisest of her ministers, died in **1598**. In his last days he had urged the queen to bring to an end the war with Spain, which no longer served any useful purpose; and when Essex pleaded for its continuance, the aged statesman opened the Bible at the text, "Bloody and deceitful men shall not live out half their days." In **1603** Elizabeth herself died at the age of sixty-nine. According to law, the heir to the crown was William Seymour, who, being the son of the Earl of Hertford and Lady Catherine Grey, inherited the claims of the Suffolk line (see pp. [411](#), [435](#)). There were, however, doubts about his legitimacy, as, though his parents had been married in due form, the ceremony had taken place in private, and it was believed by many that it had never taken place at all. Elizabeth had always refused to allow her heir to be designated; but as death approached she indicated her preference for James, as having claim to the inheritance by descent from her own eldest aunt, Margaret (see p. [411](#)). "My seat," she said, "hath been the seat of kings, and I will have no rascal to succeed me." "And who," she added, "should that be but our cousin of Scotland?"

Books recommended for further study of Part V.

BREWER, J. S. The Reign of Henry VIII. from his Accession to the Death of Wolsey.

DIXON, CANON R. W. History of the Church of England from the Abolition of the Roman Jurisdiction.

FROUDE, J. A. History of England from the Fall of Wolsey to the Death of Elizabeth. Vols, v.-xii.

MOTLEY, J. L. The Rise of the Dutch Republic.

—— The History of the United Netherlands.

MULLINGER, J. B. History of the University of Cambridge. Vol. ii.

STRYPE, J. Annals of the Reformation.

—— Life and Acts of Aylmer.

—— " " Grindal.

—— " " Whitgift.

NICOLAS, SIR W. H. Life of Sir C. Hatton.

—— " W. Davison.

SPEDDING, J. Letters and Life of Francis Bacon. Vol. i.-iii.
p. 58.

EDWARDS, E. The Life of Sir W. Raleigh.

FISHER, H. A. L. The Political History of England. Vol. v.
From the Accession of Henry VII. to the Death of
Henry VIII. (1485-1547).

POLLARD, A. F. The Political History of England. Vol. vi.
From the Accession of Edward VI. to the Death of
Elizabeth (1547-1603).

PART VI

THE PURITAN REVOLUTION. 1603-1660

CHAPTER XXXI

JAMES I. 1603-1625

LEADING DATES

Accession of James I. 1603
The Hampton Court Conference 1604
Gunpowder Plot 1605
Foundation of Virginia 1607
The Great Contract 1610
Beginning of the Thirty Years' War 1618
Foundation of New England 1620
Condemnation of the Monopolies and fall of
Bacon 1621
Prince Charles's visit to Madrid 1623
Breach with Spain 1624
Death of James I. 1625

1. **The Peace with Spain. 1603-1604.**—At the end of Elizabeth's reign there had been much talk of various claimants to the throne, but when she died no one thought seriously of any one but James. The new king at once put an end to the war with Spain, though no actual treaty of peace was signed till **1604**. James gave his confidence to Sir Robert Cecil, Lord Burghley's second son, whom he continued in the office of Secretary of State, which had been conferred on him by Elizabeth. The leader of the war-party was Raleigh, who was first dismissed from his offices and afterwards

accused of treason, on the charge of having invited the Spaniards to invade England. It is most unlikely that the charge was true, but as Raleigh was angry at his dismissal, he may have spoken rashly. He was condemned to death, but James commuted the sentence to imprisonment.

2. The Hampton Court Conference. 1604.—The most important question which James had to decide on his accession was that of religious toleration. Many of the Puritan clergy signed a petition to him known as the Millenary Petition, because it was intended to be signed by a thousand ministers. A conference was held on January 14, **1604**, in the king's presence at Hampton Court, in which some of the bishops took part, as well as a deputation of Puritan ministers who were permitted to argue in favour of the demands put forward in the petition. The Puritan Clergy had by this time abandoned Cartwright's Presbyterian ideas (see p. [446](#)) and merely asked that those who thought it wrong to wear surplices and to use certain other ceremonies might be excused from doing so, without breaking away from the national church. James listened quietly to them, till one of them used the word Presbytery. He at once flew into a passion. "A Scottish Presbytery," he said, "agreeth as well with a monarchy as God with the devil. Then Jack and Tom and Will and Dick shall meet, and at their pleasures censure me and my council.... Until you find that I grow lazy—let that alone." James ordered them to conform or to leave the ministry. He adopted the motto, "No bishop, no king!" Like Elizabeth, he used the bishops to keep the clergy from gaining power independent of the Crown. The bishops were delighted, and one of them said that 'his Majesty spoke by the inspiration of God.'

3. James and the House of Commons.—In **1604** Parliament met. The members of the House of Commons had no more wish than James to overthrow the bishops, but they thought that able and pious ministers should be allowed to preach even if they would not wear surplices, and they were dissatisfied with the king's decision at Hampton Court. On the other hand, James was anxious to obtain their consent to a union with Scotland, which the Commons disliked, partly because the king had brought many Scotsmen with him, and had supplied them with English lands and money. Financial difficulties also arose, and the session ended in a quarrel between



Royal Arms borne by James I. and succeeding Stuart sovereigns.

the king and the House of Commons. Before the year was over he had deprived of their livings many of the clergy who refused to conform.

4. Gunpowder Plot. 1604-1605.—Not only the Puritans, but the Catholics as well, had appealed to James for toleration. In the first year of his reign he remitted the recusancy fines (see p. [454](#)). As might be expected, the number of recusants increased, probably because many who had attended church to avoid paying fines stayed away as soon as the fines ceased to be required. James took alarm, and in February **1604** banished the priests from London. On this, a Catholic

named Robert Catesby proposed to a few of his friends a plot to blow up king, Lords, and Commons with gunpowder at the opening of Parliament. The king had two sons, Henry and Charles, and a little daughter, Elizabeth. Catesby, expecting that the two princes would be destroyed with their father, intended to make Elizabeth queen, and to take care that she was brought up as a Roman Catholic. Guy Fawkes, a cool soldier, was sent for from Flanders to manage the scheme. The plotters took a house next to the House of Lords, and began to dig through the wall to enable them to carry the powder into the basement. The wall, however, was nine feet thick, and they, being little used to mason's work, made but little way. In the spring of **1605** James increased the exasperation of the plotters by re-imposing the recusancy fines on the Catholic laity. Soon afterwards their task was made more easy by the discovery that a coal-cellar reaching under the floor of the House of Lords was to be let. One of their number hired the cellar, and introduced into it barrels of powder, covering them with coals and billets of wood. Parliament was to be opened for its second session on November 5, and in the preceding evening Fawkes went to the cellar with a lantern, ready to fire the train in the morning. One of the plotters, however, had betrayed the secret. Fawkes was seized, and his companions were pursued. All the

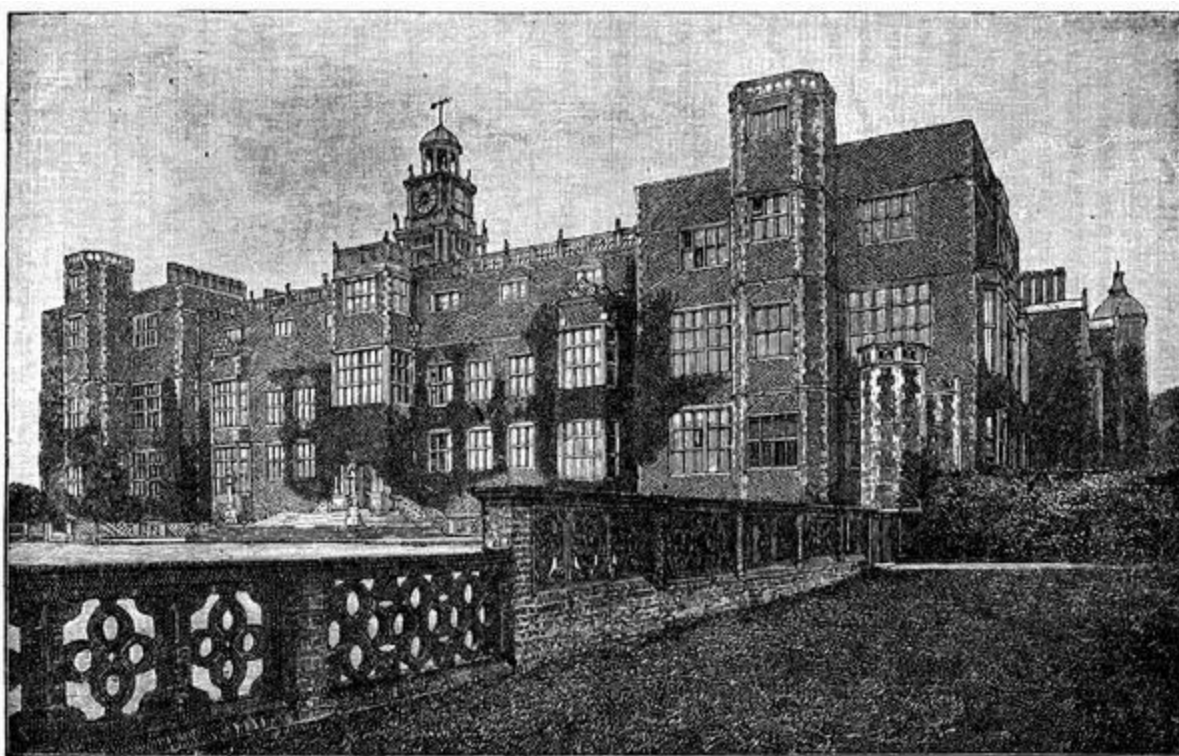
conspirators who were taken alive were executed, and the persecution of the Catholics grew hotter than before.

5. **The Post-nati. 1606-1608.**—When another session opened in 1606 James repeated his efforts to induce the Commons to do something for the union with Scotland. He wanted them to establish free trade between the countries, and to naturalise his Scottish subjects in England. Finding that he could obtain neither of his wishes from Parliament, he obtained from the judges a decision that all his Scottish subjects born after his accession in England—the *Post-nati*, as they were called—were legally naturalised, and were thus capable of holding land in England. He had to give up all hope of obtaining freedom of trade.

6. **Irish Difficulties. 1603-1610.**—James was the first English sovereign who was the master of the whole of Ireland. He tried to win the affection of the tribes by giving them the protection of English law against the exactions of their chiefs. Naturally, the chiefs resented the change, while the tribesmen distrusted the interference of Englishmen from whom they had suffered so much. In 1607 the chiefs of the Ulster tribes of O'Neill and O'Donnell—known in England as the Earls of Tyrone and Tyrconnell—seeing resistance hopeless, fled to Spain. James ignored the Irish doctrine that the land belonged to the tribe, and confiscated six counties as if they had been the property of the chiefs, according to the feudal principles of English law. He then poured in English and Scottish colonists, leaving to the natives only the leavings to live on.

7. **Bate's Case and the New Impositions. 1606-1608.**—The state of James's finances was almost hopeless. Elizabeth, stingy as she was, had scarcely succeeded in making both ends meet, and James, who had the expense of providing for a family, from which Elizabeth had been free, would hardly have been able to meet his expenditure even if he had been economical. He was, however, far from economical, and had given away lands and money to his Scottish favourites. There was, therefore, a large deficit, and James wanted all the money he could get. In 1606 a merchant named Bate challenged his right to levy an imposition on currants, which had already been levied by Elizabeth. The Court of Exchequer, however, decided that the king had the right of levying impositions—that is to say,

duties raised by the sole authority of the king—without a grant from Parliament—holding that the *Confirmatio Cartarum* (see p. 221), to which Bate's counsel appealed, only restricted that right in a very few cases. Whether the argument of the judges was right or wrong, they were the constitutional exponents of the law, and when Cecil (who had been James's chief minister from the beginning of the reign, and was created Earl of Salisbury in **1605**) was made Lord Treasurer as well as Secretary in **1608**, he at once levied new impositions to the amount of about 70,000*l.* a year, on the plea that more money was needed in consequence of the troubles in Ireland.



North-west view of Hatfield House, Herts; built for Robert Cecil, first Earl of Salisbury, between 1605 and 1611.

8. The Great Contract. 1610-1611.—Even the new impositions did not fill up the deficit, and Parliament was summoned in **1610** to meet the difficulty. It entered into a bargain—the Great Contract, as it was called—by which, on receiving 200,000*l.* a year, James was to abandon certain antiquated feudal dues, such as those of wardship and marriage (see p. 116). An agreement was also come to on the impositions. James voluntarily

remitted the most burdensome to the amount of 20,000*l.* a year, and the House of Commons agreed to grant him the remainder on his passing an Act declaring illegal all further levy of impositions without a Parliamentary grant. Unfortunately, before the details of the Great Contract were finally settled, fresh disputes arose, and early in **1611**, James dissolved his first Parliament in anger without settling anything either about the feudal dues or about the impositions.

9. Bacon and Somerset. 1612-1613.—In **1612** Salisbury died, and Bacon, always ready with good advice, recommended James to abandon Salisbury's policy of bargaining with the Commons. Bacon was a warm supporter of monarchy, because he was anxious for reforms, and he believed that reforms were more likely to come from the king and his Council than from a House of Commons—which was mainly composed of country gentlemen, with little knowledge of affairs of State. Bacon, however, knew what were the conditions under which alone a monarchical system could be maintained, and reminded James that king and Parliament were members of one body, with common interests, and that he could only expect the Commons to grant supplies if he stepped forward as their leader by setting forth a policy which would commend itself to them. James had no idea of leading, and, instead of taking Bacon's advice, resolved to do as long as he could without a Parliament. A few years before he had taken a fancy to a handsome young Scot named Robert Carr, thinking that Carr would be not only a boon companion, but also an instrument to carry out his orders, and relieve him from the trouble of dispensing patronage. He enriched Carr in various ways, especially by giving him the estate of Sherborne, which he took from Raleigh on the ground of a flaw in the title—though he made Raleigh some compensation for his loss. In **1613** he married Carr to Lady Essex, who had been divorced from her husband under very disgraceful circumstances, and created him Earl of Somerset. Somerset was brought by this marriage into connection with the family of the Howards—his wife's father, the Earl of Suffolk, being a Howard. As the Howards were for the most part Roman Catholics at heart, if not openly, Somerset's influence was henceforth used in opposition to the Protestant aims which had found favour in the House of Commons.

10. **The Addled Parliament. 1614.**—In spite of Somerset and the Howards, James's want of money drove him, in **1614**, to call another Parliament. Instead of following Bacon's advice that he should win popularity by useful legislative projects, he tried first to secure its submission by encouraging persons who were known as the Undertakers because they undertook that candidates who supported the king's interests should be returned. When this failed, he again tried, as he had tried under Salisbury's influence in **1610**, to enter into a bargain with the Commons. The Commons, however, replied by asking him to abandon the impositions and to restore the nonconforming clergy ejected in **1604** (see p. [482](#)). On this James dissolved Parliament. As it granted no supplies, and passed no act, it became known as the Addled Parliament.



An unknown gentleman: from a painting belonging to T. A. Hope, Esq.

11. **The Spanish Alliance. 1614-1617.**—James was always anxious to be the peacemaker of Europe, being wise enough to see that the religious wars

which had long been devastating the Continent might be brought to an end if only the contending parties would be more tolerant. It was partly in the hope of gaining influence to enable him to carry out his pacificatory policy that he aimed, early in his reign, at marrying his children into influential families on the Continent. In **1613** he gave his daughter Elizabeth to Frederick V., Elector Palatine, who was the leader of the German Calvinists, and he had long before projected a marriage between his eldest son, Prince Henry, and a Spanish Infanta. Prince Henry, however, died in **1612**, and, though James's only surviving son, Charles, was still young, there had been a talk of marrying him to a French princess. The breaking-up of the Parliament of **1614** left James in great want of money; and, as he had reason to believe that Spain would give a much larger portion than would be given with a French princess, he became keenly eager to marry his son to the Infanta Maria, the daughter of Philip III. of Spain. Negotiations with this object were not formally opened till **1617**, and in **1618** James learnt that the marriage could not take place unless he engaged to give religious liberty to the English Roman Catholics. He then offered to write a letter to the king of Spain, promising to relieve the Roman Catholics as long as they gave no offence, but Philip insisted on a more binding and permanent engagement, and, on James's refusal to do more than he had offered to do, Gondomar, the very able Spanish ambassador who had hitherto kept James in good humour, was withdrawn from England, and the negotiation was, for the time, allowed to drop.

12. The rise of Buckingham. 1615-1618.—In **1615** Somerset and his wife were accused of poisoning Sir Thomas Overbury. There can be no doubt that the Countess was guilty, but it is less certain what Somerset's own part in the matter was. In **1616** they were both found guilty, and, though James spared their lives, he never saw either of them again. He had already found a new favourite in George Villiers, a handsome youth who could dance and ride gracefully, and could entertain the king with lively conversation. The opponents of the Spanish alliance had supported Villiers against Somerset, but they soon found that Villiers was ready to throw himself on the side of Spain as soon as he found that it would please the king. James gave him large estates, and rapidly advanced him in the peerage, till, in **1618**, he created him Marquis of Buckingham. He also made him Lord Admiral in the hope that he would improve the navy, and

allowed all the patronage of England to pass through his hands. Statesmen and lawyers had to bow down to Buckingham if they wished to rise. No wonder the young man felt as if the nation was at his feet, and gave himself airs which disgusted all who wished to preserve independence of character.

13. The Voyage and Execution of Raleigh. 1617-1618.—In 1617 Raleigh, having been liberated through Buckingham's influence, sailed for the Orinoco in search of a gold-mine, of which he had heard in an earlier voyage in Elizabeth's reign (see p. [464](#)). He engaged, before he sailed, not to touch the land of the king of Spain, and James let him know that, if he broke his promise, he would lose his head. It was, indeed, difficult to say where the lands of the king of Spain began or ended, but James left the burden of proving this on Raleigh; whilst Raleigh, imagining that if only he could find gold he would not be held to his promise, sent his men up the river, without distinct orders to avoid fighting. They attacked and burnt a Spanish village, but never reached the mine. Heart-broken at their failure, Raleigh proposed to lie in wait for the Spanish treasure-ships, and, on the refusal of his captains to follow him in piracy, returned to England with nothing in his hands. James sent him to the scaffold for a fault which he should never have been given the chance of committing. Raleigh was the last of the Elizabethan heroes—a many-sided man: soldier, sailor, statesman, historian, and poet. He was as firmly convinced as Drake had been that there was no peace in American waters, and that to rob and plunder Spaniards in time of peace was in itself a virtue. James's unwise attempt to form a close alliance with Spain made Raleigh a popular hero.

14. Colonisation of Virginia and New England. 1607-1620.—Gradually Englishmen learned to prefer peaceable commerce and colonisation to piratical enterprises. In 1585 Raleigh had sent out colonists to a region in North America to which he gave the name of Virginia, in honour of Elizabeth, but the colonists either returned to England or were destroyed by the Indians. In 1607 a fresh attempt was made, and, after passing through terrible hardships, the Colony of Virginia grew into a tobacco-planting, well-to-do community. In 1608 a congregation of Separatists emigrated from England to Holland, and, after a while, settled at Leyden, where, anxious to escape from the temptations of the world, many of them resolved to emigrate to America, where they might lead an ideally

religious life. In **1620** the emigrants, a hundred in all, 'lifting up their eyes to heaven, their dearest country,' crossed the Atlantic in the 'Mayflower,' and found a new home which they named Plymouth. These first emigrants, the Pilgrim Fathers, as their descendants fondly called them, lost half their number by cold and disease in the first winter, but the remainder held on to form a nucleus for the Puritan New England of the future.

15. The Beginning of the Thirty Years' War. 1618-1620.—As yet, however, these small beginnings of a colonial empire attracted little attention in England. Men's thoughts ran far more on a great war—the Thirty Years' War—which, in **1618**, began to desolate Germany. In that year a revolution took place in Bohemia, where the Protestant nobility rose against their king, Matthias, a Catholic, who was at the same time Emperor, and, in **1619**, after the death of Matthias, they deposed his successor, Ferdinand, and chose Frederick, the Elector Palatine, James's Calvinist son-in-law, as king in his place. Almost at the same time Ferdinand became by election the Emperor Ferdinand II. James was urged to interfere on behalf of Frederick, but he could not make up his mind that the cause of his son-in-law was righteous, and he therefore left him to his fate. Frederick's cause was, however, popular in England, and in **1620**, when there were rumours that a Spanish force was about to occupy the Palatinate in order to compel Frederick to abandon Bohemia, James—drawing a distinction between helping his son-in-law to keep his own and supporting him in taking the land of another—went so far as to allow English volunteers, under Sir Horace Vere, to garrison the fortresses of the Palatinate. In the summer of that year, a Spanish army, under Spinola, actually occupied the Western Palatinate, and James, angry at the news, summoned Parliament in order to obtain a vote of supplies for war. Before Parliament could meet, Frederick had been crushingly defeated on the White Hill, near Prague, and driven out of Bohemia.



King James I.: from a painting by P. van Somer, dated 1621, in the National Portrait Gallery.

16. The Meeting of James's Third Parliament. 1621.—Parliament, when it met in **1621**, was the more distrustful of James, as Gondomar had returned to England in **1620** and had revived the Spanish marriage treaty. When the Houses met, they were disappointed to find that James did not propose to go to war at once. James fancied that, because he himself wished to act justly and fairly, every one of the other Princes would be regardless of his own interests, and, although he had already sent several ambassadors to settle matters without producing any results, he now proposed to send more ambassadors, and only to fight if negotiation failed. On learning this, the House of Commons only voted him a small supply, not being willing to grant war-taxes unless it was sure that there was to be a war. Probably James was right in not engaging England in hostilities, as ambition had as much to do with Frederick's proceedings as religion, and as, if James had helped his German allies, he could have exercised no control over them; but he had too little decision or real knowledge of the situation to inspire

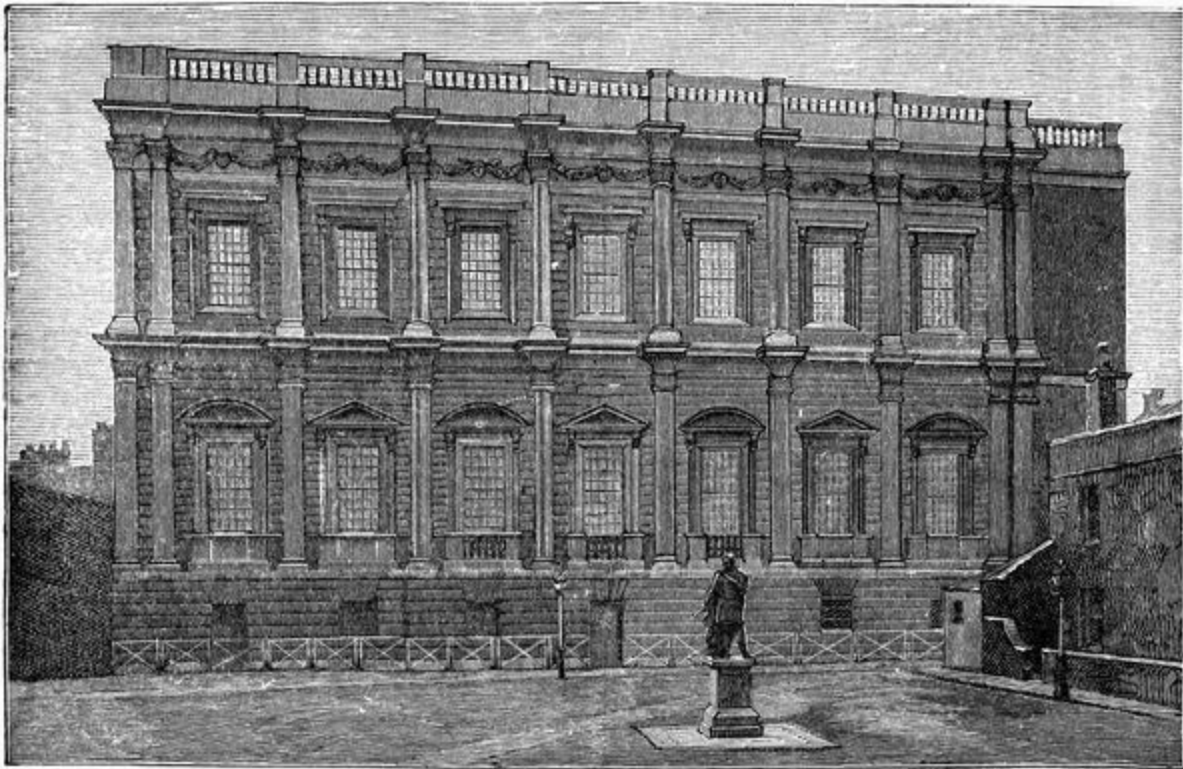
confidence either at home or abroad; and the Commons, as soon as they had granted a supply, began to criticise his government in domestic matters.



Civil costume about 1620: from a contemporary broadside.

17. The Royal Prerogative. 1616-1621.—Elizabeth had been high-handed enough, but she had talked little of the rights which she claimed, and had set herself to gain the affection of her subjects. James, on the other hand, liked to talk of his rights, whilst he took no trouble to make himself popular. It was his business, he held, to see that the judges did not break the law under pretence of administering it. "This," he said in **1616**, "is a thing regal and proper to a king, to keep every court within its true bounds." More startling was the language which followed. "As for the absolute prerogative of the Crown," he declared, "that is no subject for the tongue of a lawyer, nor is it lawful to be disputed. It is atheism and blasphemy to dispute what God can do: good

Christians content themselves with His will revealed in His word; so it is presumption and high contempt in a subject to dispute what a king can do, or say that a king cannot do this or that; but rest in that which is the king's will revealed in his law." What James meant was that there must be in every state a power above the law to provide for emergencies as they arise, and to keep the authorities—judicial and administrative—from jostling with one another. At present this power belongs to Parliament. When Elizabeth handed on the government to James, it belonged to the Crown. What James did not understand was that, in the long run, no one—either king or Parliament—will be allowed to exercise powers which are unwisely used. Such an idea probably never entered into James's mind, because he was convinced that he was himself not only the best but the wisest of men, whereas he was in reality—as Henry IV. of France had said of him—'the wisest fool in Christendom.'



The Banqueting Hall of the Palace of Whitehall (from the north-east): built from the designs of Inigo Jones. 1619-1621.

18. Financial Reform. 1619.—James not only thought too highly of his own powers of government, but was also too careless to check the misdeeds of his favourites. For some time his want of money led him to have recourse to strange expedients. In **1611** he founded the order of baronets, making each of those created pay him 1,080*l.* a year for three years to enable him to support soldiers for the defence of Ulster. After the first few years, however, the money, though regularly required of new baronets, was invariably repaid to them. More disgraceful was the sale of peerages, of which there were examples in **1618**. In **1619**, however, through the exertions of Lionel Cranfield, a city merchant recommended to James by Buckingham, financial order was comparatively restored, and in quiet times the expenditure no longer much exceeded the revenue.

19. Favouritism and Corruption.—Though James did not obtain much money in irregular ways, he did not keep a watchful eye on his favourites and ministers. The salaries of Ministers were low, and were in part themselves made up by the presents of suitors. Candidates for office, who

looked forward to being enriched by the gifts of others, knew that they must pay dearly for the goodwill of the favourites through whom they gained promotion. In **1620** Chief Justice Montague was appointed Lord Treasurer. "Take care, my lord," said Bacon to him, when he started for Newmarket to receive from the king the staff which was the symbol of his office, "wood is dearer at Newmarket than in any other place in England." Montague, in fact, had to pay 20,000*l.* for his place. Others, who were bachelors or widowers, received promotion on condition of marrying one of the many penniless young ladies of Buckingham's kindred.

20. The Monopolies Condemned. 1621.—The Commons, therefore, in looking for abuses, had no lack of subjects on which to complain. They lighted upon monopolies. James, soon after his accession, had abolished most of those left by Elizabeth, but the number had been increased partly through a wish to encourage home manufactures, and partly from a desire to regulate commerce. One set of persons, for example, had the sole right of making glass, because they bound themselves to heat their furnaces with coal instead of wood, and thus spared the trees needed for shipbuilding. Others had the sole right of making gold and silver thread, because they engaged to import all the precious metals they wanted, it being thought, in those days, that the precious metals alone constituted wealth, and that England would therefore be impoverished if English gold and silver were wasted on personal adornment. There is no doubt that courtiers received payments from persons interested in these grants, but the amount of such payments was grossly exaggerated, and the Commons imagined that these and similar grievances owed their existence merely to the desire to fill the pockets of Buckingham and his favourites. There was, therefore, a loud outcry in Parliament. One of the main promoters of these schemes, Sir Giles Mompesson, fled the kingdom. Others were punished, and the monopolies recalled by the king, though as yet no act was passed declaring them to be illegal.



Francis Bacon, Viscount St. Alban, Lord Chancellor: from the National Portrait Gallery.

21. The Fall of Bacon. 1621.—After this the Commons turned upon Bacon. He was now Lord Chancellor, and had lived to find that his good advice was never followed. He had, nevertheless, been an active and upright judge. The Commons, however, distrusted him as having supported grants of monopolies, and, when charges of bribery were brought against him, sent them up to the Lords for enquiry. At first Bacon thought a political trick was being played against him. He soon discovered that he had thoughtlessly taken gifts even before judgment had been given, though if they had been taken after judgment, he would—according to the custom of the time—have been considered innocent. His own opinion of the case was probably the true one. His sentence, he said, was 'just, and for reformation's sake fit.' Yet he was 'the justest Chancellor' that had been since his father's time, his father, Sir Nicholas Bacon, having creditably occupied under Elizabeth the post which he himself filled under James. He was stripped of office, fined, and imprisoned. His imprisonment, however, was extremely brief, and his fine was ultimately remitted. Though his trial was not exactly like that of the old impeachments, it was practically the revival of the

system of impeachments which had been disused since the days of Henry VI. It was a sign that the power of Parliament was increasing and that of the king growing less.

22. Digby's Mission, and the Dissolution of Parliament. 1621.—The king announced to Parliament that he was about to send an ambassador to Vienna to induce the Emperor Ferdinand to be content with the re-conquest of Bohemia, and to leave Frederick undisturbed in the Palatinate. Parliament was therefore adjourned, in order to give time for the result of this embassy to be known; and the Commons, at their last sitting, declared—with wild enthusiasm—that, if the embassy failed, they would support Frederick with their lives and fortunes. When Lord Digby, who was the chosen ambassador, returned, he had done no good. Ferdinand was too anxious to push his success further, and Frederick was too anxious to make good his losses for any negotiation to be successful. The Imperialists invaded the Palatinate, and in the winter James called on Parliament—which had by that time re-assembled after the adjournment—for money sufficient to defend the Palatinate till he had made one more diplomatic effort. The Commons, believing that the king's alliance with Spain was the root of all evil, petitioned him to marry his son to a Protestant lady, and plainly showed their wish to see him at war with Spain. James replied that the Commons had no right to discuss matters on which he had not consulted them. They drew up a protestation asserting their right to discuss all matters of public concernment. James tore it out of their journal-book, and dissolved Parliament, though it had not yet granted him a penny.

23. The Loss of the Palatinate. 1622.—In **1614**, James, being in want of money, had had recourse to a benevolence—the lawyers having advised him that, though the Act of Richard III. (see p. 342) made it illegal for him to compel its payment, there was no law against his asking his subjects to pay it voluntarily. He took the same course in **1622**, and got enough to support the garrisons in the Palatinate for a few months, as many who did not like to give the money feared to provoke the king's displeasure by a refusal. Before the end of the year, however, the whole Palatinate, with the exception of one fortress, had been lost.

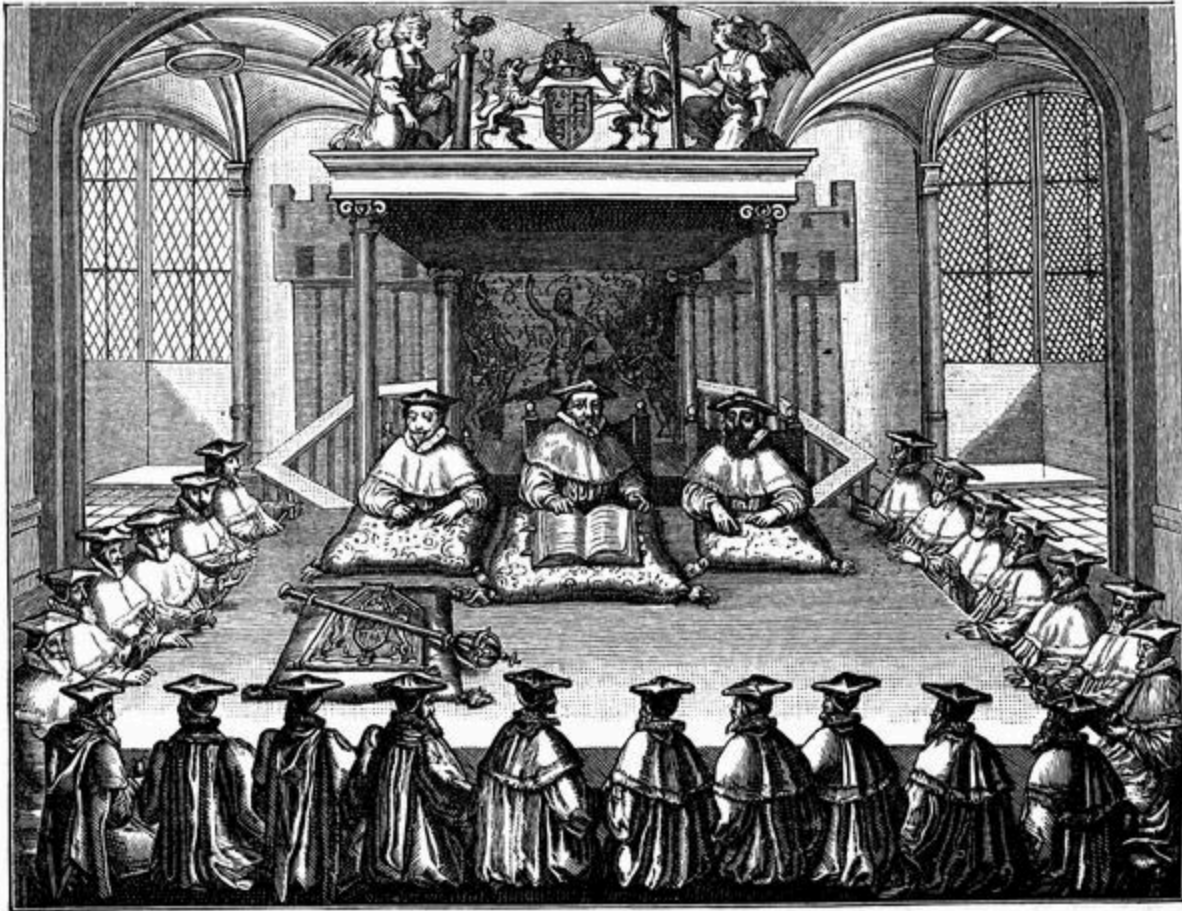
24. Charles's Journey to Madrid.

1623.—It was now time to try if the Spanish alliance was worth anything. Early in **1623**, Prince Charles, accompanied by Buckingham, started for Madrid to woo the Infanta in person. The young men imagined that the king of Spain would be so pleased with this unusual compliment, that he would use his influence—and, if necessary, his troops—to obtain the restitution of the Palatinate to Charles's brother-in-law, the Elector Frederick. The Infanta's brother, Philip IV., was now king of Spain, and he had lately been informed by his sister that she was resolved not to marry a heretic. Her confessor had urged her to refuse. "What a comfortable bedfellow

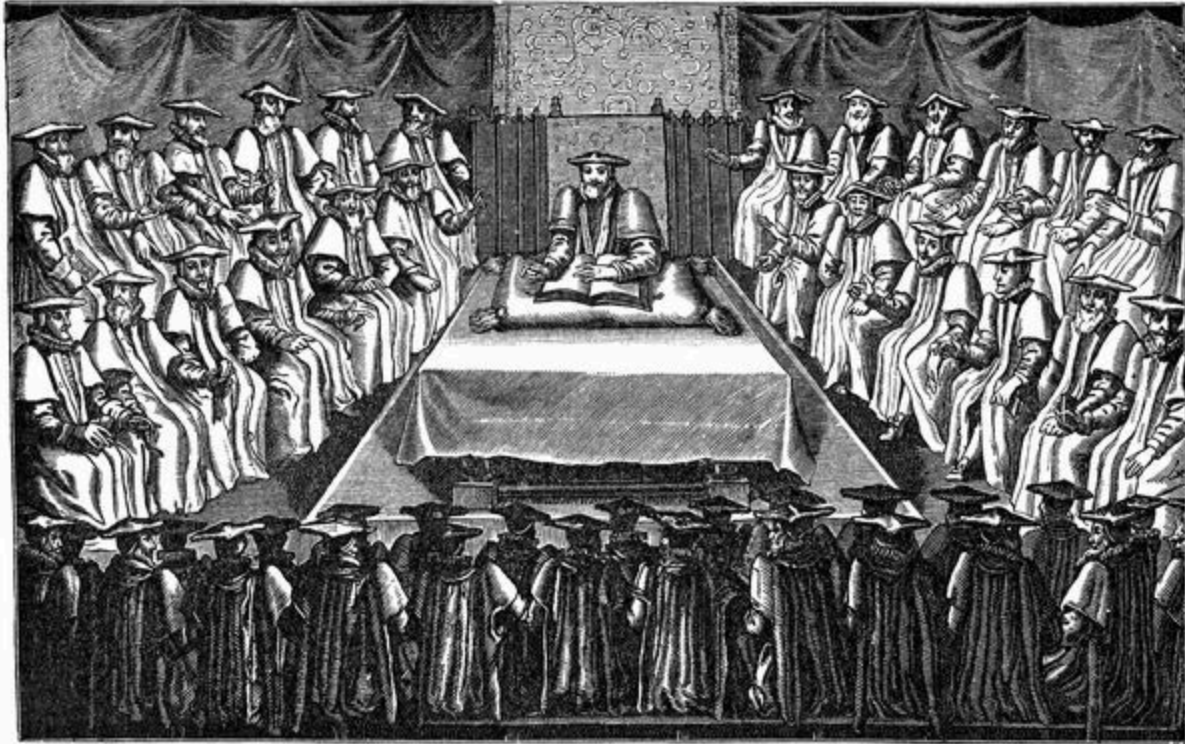
you will have!" he said to her: "he who lies by your side, and will be the father of your children, is certain to go to hell." Philip and his prime minister Olivares feared lest, if they announced this refusal, it would lead to a war with England. They first tried to convert the prince to their religion, and when that failed, secretly invited the Pope to refuse to grant a dispensation for the marriage. The Pope, however, fearing that, if he caused a breach, James and Charles would punish him by increasing the persecution of the English Catholics, informed Philip that he should have the dispensation for his sister, on condition not only that James and Charles should swear to grant religious liberty to the Catholics in England, but that he should himself swear that James and Charles would keep their word.



Costume of a lawyer: from a broadside, dated 1623.



The Upper House of Convocation: from a broadside, dated 1623.



The Lower House of Convocation: from a broadside, dated 1623.

25. **The Prince's Return. 1623.**—Philip referred the point whether he could conscientiously take the oath to a committee of theologians. In the meantime, Charles attempted to pay court to the Infanta. Spanish etiquette was, however, strict, and he was not allowed to speak to her, except in public and on rare occasions. Once he jumped over a wall into a garden in which she was. The poor girl shrieked and fled. At last Charles was informed that the theologians had come to a decision. He might marry if he pleased, but, the moment that the ceremony was over, he was to leave for England. If, at the end of six months, he had not only promised religious liberty to the Catholics, but had actually put them in the enjoyment of it, then, and only then, his wife should be sent after him. Charles was indignant—the more so because he learnt that there was little chance that the king of Spain would interfere to restore the Protestant Frederick by force—and returned to England eager for war with Spain. Never before or after was he so popular as when he landed at Portsmouth—not so much because he had come back, as because he had not brought the Infanta with him.

26. The Last Parliament of James I. 1624.—James's foreign policy had now hopelessly broken down. He had expected that simply because it seemed to him to be just, Philip would quarrel with the Emperor for the sake of restoring the Palatinate to a Protestant. When he found that this could not be, he had nothing more to propose. His son and his favourite, who had been created Duke of Buckingham whilst he was in Spain, urged him to go to war, and early in **1624** James summoned a new Parliament, which was entirely out of his control. For the time Buckingham, who urged on the war, was the most popular man in England. A large grant of supply was given, but the Commons distrusting James, ordered the money to be paid to treasurers appointed by themselves, and to be spent only upon four objects—the repairing of forts in England, the increase of the army in Ireland, the fitting-out of a fleet, and the support of the Dutch Republic, which was still at war with Spain, and of other allies of the king. The king, on his part, engaged to invite friendly states to join him in war for the recovery of the Palatinate, and to summon Parliament in the autumn to announce the result. The Commons were the less anxious to trust James with money as they were in favour of a maritime war against Spain, whilst they believed him to be in favour of a military war in Germany. They had reason to think that Cranfield, who was now Earl of Middlesex and Lord Treasurer, had used his influence with the king to keep him from a breach with Spain; and, with Charles and Buckingham hounding them on, they now impeached Middlesex on charges of malversation, and drove him from office. It was generally believed that the Lord Treasurer owed his fall to his dislike of a war which would be ruinous to the finances which it was his business to guard. The old king could not resist, but he told his son that, in supporting an impeachment, he was preparing a rod for himself. Before the end of the session the king agreed to an act abolishing monopolies, except in the case of new inventions.

27. The French Alliance.—Even before Parliament was prorogued, a negotiation was opened for a marriage between Charles and Henrietta Maria, the sister of Louis XIII., king of France. Both James and Charles had promised Parliament that, if the future queen were a Roman Catholic, no religious liberty should be granted to the English Catholics by the marriage treaty. Both James and Charles gave way when they found that Louis insisted on this concession, and promised religious liberty to the Catholics.

Consequently, they did not venture to summon Parliament till the marriage was over and it was too late to complain. Yet Buckingham, who was more firmly rooted in Charles's favour than he had ever been in that of his father, had promised money in all directions. Before the end of the year he had engaged to find large sums for the Dutch Republic to fight Spain, 30,000*l.* a month for Christian IV., king of Denmark, to make war in Germany against the Emperor, 20,000*l.* a month for Count Mansfeld, a German adventurer, to advance to the Palatinate, and anything that might be needed for a fleet to attack the Spanish ports. James, in short, was for a war by land, the Commons for a war by sea, and Buckingham for both.

28. Mansfeld's Expedition, and the Death of James I. 1624-1625.—Before the end of **1624**, twelve thousand Englishmen were gathered at Dover to go with Mansfeld to the Palatinate. The king of France, who had promised to help them, refused to allow them to land in his dominions. It was accordingly resolved that they should pass through Holland. James, however, had nothing to give them, and they were consequently sent across the sea without money and without provisions. On their arrival in Holland they were put on board open boats to make their way up the Rhine. Frost set in, and the boats were unable to stir. In a few weeks three-fourths of the men were dead or dying. It was Buckingham's first experience of making war without money and without Parliamentary support. Before anything further could be done, James was attacked by a fever, and, on March 27, **1625**, he died. Though his reign did not witness a revolution, it witnessed that loosening of the bonds of sympathy between the ruler and the ruled which is often the precursor of revolution.

CHAPTER XXXII
THE GROWTH OF THE PERSONAL GOVERNMENT OF
CHARLES I.
1625-1634

LEADING DATES
The Reign of Charles I., 1625-1649

Charles's first Parliament and the expedition to Cadiz 1625

Charles's second Parliament and the impeachment of Buckingham. 1626

The expedition to Ré 1627

Charles's third Parliament and the Petition of Right 1628

Dissolution of Charles's third Parliament 1629

Laud, Archbishop of Canterbury 1633

Prynne's sentence executed 1634

1. Charles I. and Buckingham. 1625.—The new king, Charles I., was more dignified than his father, and was conscientiously desirous of governing well. He was, unfortunately, extremely unwise, being both obstinate in persisting in any line of conduct which he had himself chosen, and ready to give way to the advice of others in matters of detail. Buckingham, who sympathised with him in his plans, and who was never at a loss when called on to express an opinion on any subject whatever, had now made himself completely master of the young king, and was, in reality, the governor of England far more than Charles himself. On May 1 Charles was married by proxy to Henrietta Maria, and Buckingham fetched home the bride.

2. Charles's First Parliament. 1625.—Charles was eager to meet his first Parliament, because he thought that it would grant him enormous sums of money to carry on the war with Spain, on which he had set his heart. He forgot that its members would be disgusted at the mismanagement of Mansfeld's expedition, and at the favour shown by himself to the Catholics in consequence of his marriage. When Parliament met on June 18, the House of Commons voted a small sum of 140,000*l.*, and asked him to put in execution the recusancy laws. Charles adjourned Parliament to Oxford, as the plague was raging in London, in order that he might urge it to vote him a larger sum. It met at Oxford on August 1, but the Commons refused to vote more money, unless counsellors in whom they could confide—in other words, counsellors other than Buckingham—had the spending of it. Charles seeing that, if the Commons could force him to accept ministers against his

wish, they would soon control himself, dissolved the Parliament. On everything else he was ready to give way—making no objection to the renewal of the persecution of the Catholics, whom a few months ago he had solemnly promised in his marriage treaty to protect. Though the question now raised was whether England was to be ruled by the king or by the House of Commons, it would be a mistake to think that the Commons were consciously aiming at sovereignty. They saw that there was mismanagement, and all that they wanted was to stop it.

3. The Expedition to Cadiz. 1625.—Charles thought that, if he could gain a great victory, there would be no further talk about mismanagement. Scraping together what money he could, he sent a great fleet and army, under the command of Sir Edward Cecil, to take Cadiz, the harbour of which was the port at which the Spanish treasure ships arrived from America once a year, laden with silver and gold from the mines of America. The greater part of Cecil's fleet was made up of merchant-vessels pressed by force into the king's service. Neither soldiers nor sailors had any heart in the matter. The masters of the merchant-vessels did all they could to keep themselves out of danger. The soldiers after landing outside the town got drunk in a body, and would have been slaughtered if any Spaniards had been near. Cecil failed to take Cadiz, and after he left it, the Spanish treasure-ships from America, which he hoped to capture, got safely into Cadiz harbour, whilst he was looking for them in another part of the sea. The great expedition sent by Buckingham to Cadiz was as complete a failure as that which he had sent out the year before under Mansfeld. Whilst Cecil was employed in Spain Buckingham himself went to the Hague to form a continental alliance for the recovery of the Palatinate, hoping especially to secure the services of Christian IV., king of Denmark. Finding Christian quite ready to fight, Buckingham tried to pawn the king's jewels at Amsterdam in order to supply him with 30,000*l.* a month, which he had promised to him. No one would lend money on the jewels, and Buckingham came back, hoping that a second Parliament would be more compliant than the first.



King Charles I.: from a painting by Van Dyck.

4. Charles's Second Parliament. 1626.—The new Parliament met on February 6, **1626**. Charles, in order to secure himself against what he believed to be the attacks of interested and ambitious men, had hit on the clever expedient of making sheriffs of the leaders of the Opposition, so as to secure their detention in their own counties. The Opposition, however, found a leader in Sir John Eliot, who, though he had formerly been a friend of Buckingham, was now shocked at the misconduct of the favourite and regarded him as a selfish and unprincipled adventurer. Eliot was not only a natural orator, but one of the most pure-minded of patriots, though the vehemence of his temperament often carried him to impute more evil to men of whom he thought badly than they were really guilty of. At present, he was roused to indignation against Buckingham, not only on account of the recent failures, but because, in the preceding summer, he had lent some English ships to the French, who wanted to use them for suppressing the Huguenots of Rochelle, then in rebellion against their king, Louis XIII.

Before long the Commons, under Eliot's guidance, impeached Buckingham of all kinds of crime, making against him charges of some of which he was quite innocent, whilst others were much exaggerated. The fact that the only way to get rid of an unpopular minister was to accuse him of crime, made those who would otherwise have been content with his dismissal ready to believe in his guilt. Charles's vexation reached its height when he heard that Eliot had branded Buckingham as Sejanus. "If he is Sejanus," he said, "I must be Tiberius." Rather than abandon his minister, he dissolved Parliament, before it had voted him a sixpence.

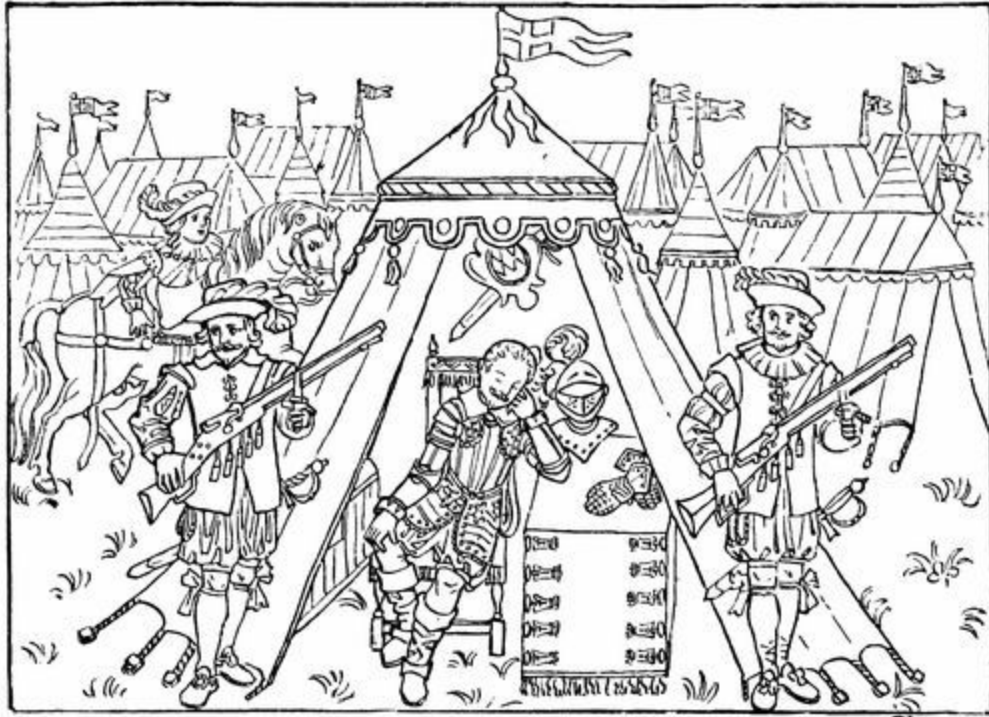


Queen Henrietta Maria, wife of Charles I.: from a painting by Van Dyck.

5. **The Forced Loan. 1626.**—If the war was to go on, money must in some way or other be had. Charles asked his subjects to bestow on him a free gift for the purpose. Scarcely any one gave him anything. Then came news that the king of Denmark, to whom the promised 30,000*l.* a month had not been paid (see p. [501](#), [503](#)), had been signally defeated at Lutter, so that the recovery of the Palatinate was further off than ever. Some clever person suggested to Charles that, though the Statute of Benevolences (see p. 342) prohibited him from making his subjects give him money, no law

forbade him to make them lend, even though there was no chance that he would ever be able to repay what he borrowed. He at once gave orders for the collection of a forced loan. Before this was gathered in, troubles arose with France. Louis XIII. was preparing to besiege Rochelle, and Charles believed himself to be in honour bound to defend it because Louis had at one time promised him that he would admit his Huguenot subjects to terms. Besides, he had offended Louis by sending out of the country the queen's French attendants, thinking, probably with truth, that they encouraged her to resent his breach of promise about the English Catholics (see p. [501](#)).

6. The Expedition to Ré. 1627.—In 1627 war broke out between France and England. Payment of the forced loan was urged in order to supply the means. Chief Justice Crewe, refusing to acknowledge its legality, was dismissed. Poor men were forced to serve as soldiers; rich men were sent to prison. By such means a considerable sum was got together. A small force was sent to help the king of Denmark, and a fleet of a hundred sail, carrying soldiers on board, was sent to relieve Rochelle, under the command of Buckingham himself. On July 12 Buckingham landed on the Isle of Ré, which would form a good base of operations for the relief of Rochelle. He laid siege to the fort of St. Martin's on the island, and had almost starved it into surrender, when, on September 27, a relieving force of French boats dashed through the English blockading fleet, and re-victualled the place. Buckingham, whose own numbers had dwindled away, called for reinforcements from England. Charles did what he could, but Englishmen would lend no money to succour the hated Buckingham; and, before reinforcements could arrive, a French army landed on the Isle of Ré, and drove Buckingham back to his ships. Out of 6,800 soldiers, less than 3,000—worn by hunger and sickness—returned to England.



Tents and military equipment in the early part of the reign of Charles I.: from the monument of Sir Charles Montague (died in 1625) in the church of Barking, Essex.

7. **The Five Knights' Case. 1627.**—Buckingham was more unpopular than ever. "Since England was England," we find in a letter of the time, "it received not so dishonourable a blow." Attention was, however, chiefly turned to domestic grievances. Soldiers had been billeted on householders without their consent, and martial law had been exercised over civilians as well as soldiers. Moreover, the forced loan had been exacted, and some of those who refused to pay had been imprisoned by the mere order of the king and the Privy Council. Against this last injury, five knights, who had been imprisoned, appealed to the Court of King's Bench. A writ of *habeas corpus* was issued—that is to say, an order was given to the gaoler to produce the prisoners before the Court, together with a return showing the cause of committal. All that the gaoler could show was that the prisoners had been committed by order of the king, signified by the Privy Council. The lawyers employed by the five knights argued that every prisoner had a right to be tried or liberated on bail; that, unless cause was shown—that is to say, unless a charge was brought against him—there was nothing on which he could be tried; and that, therefore, these prisoners ought to be bailed. The lawyers for the Crown argued that when the safety of the state was

concerned, the king had always been allowed to imprison without showing cause, and that his discretion must be trusted not to imprison any one excepting in cases of necessity. The judges did not decide this point, but sent the five knights back to prison. In a few days, all the prisoners were set free, and Charles summoned a third Parliament, hoping that it would vote money for a fresh expedition to relieve Rochelle.

8. Wentworth and Eliot in the Third Parliament of Charles I. 1628.—Charles's third Parliament met on March 17, **1628**. The leadership was at once taken by Sir Thomas Wentworth, who, as well as Eliot, had been imprisoned for refusing to pay the loan. Though the two men now worked together, they were, in most points, opposed to one another. Eliot had been a warm advocate of the war with Spain, till he found it useless to carry on the war under Buckingham's guidance. Wentworth disliked all wars, and especially a war with Spain. Eliot believed in the wisdom of the House of Commons, and thought that, if the king always took its advice, he was sure to be in the right. Wentworth thought that the House of Commons often blundered, and that the king was more likely to be in the right if he took advice from wise counsellors. Wentworth, however, believed that in this case Charles had unfortunately preferred to take the advice of foolish counsellors, and though not sharing the opinions of Eliot and his friends, threw himself into the struggle in which the House of Commons was trying to stop Buckingham in his rash course. From time to time Wentworth contrived to show that he was no enemy of the king, or of a strong government such as that which had existed in the reign of Elizabeth. He was, however, an ardent and impetuous speaker, and threw himself into any cause which he defended with more violence than he could, in calmer moments, have justified to himself. He saw clearly that the late aggressions on the liberty of the subject weakened, instead of strengthening, the Crown; and he now proposed a bill which should declare them illegal in the future. Charles refused to accept the bill, and Wentworth, unwilling to take a prominent part in a struggle with the king himself, retired into the background for the remainder of the session.

9. The Petition of Right. 1628.—Instead of Wentworth's bill, Eliot and the lawyers—Coke and Selden being prominent amongst them—brought forward a Petition of Right, not merely providing for the future, but also

declaring that right had actually been violated in the past. Charles was willing to promise everything else asked of him, but he resisted the attempt to force him to promise never to imprison without showing cause, and thus to strip himself of the power of punishing offences directed against the safety of the State. The Commons, who held that he had directed his powers against men who were patriots, proved inexorable. Charles needed money for another fleet which he was preparing for the relief of Rochelle, which was straitly besieged by the French king. He tried hard to get over the difficulty by an evasive answer, but at last, on June 7, he gave way, and the Petition of Right became the law of the land. After that, so far as the law went, there was to be no more martial law or enforced billeting, no forced loans or taxes imposed without a Parliamentary grant, or imprisonment without cause shown.



George Villiers, first Duke of Buckingham, 1592-1628: from the National Portrait Gallery.

10. Tonnage and Poundage. 1628.—Before the end of the session a fresh question was raised. For many reigns Parliament had voted to each king for life, at the beginning of his reign, certain customs duties known as Tonnage and Poundage. In addition to these James had added the impositions (see p. [484](#)) without a Parliamentary grant. In the first Parliament of Charles, the Commons, probably wishing to settle the question of impositions before permanently granting Tonnage and Poundage, had passed a bill granting the latter for a single year; but that Parliament had been dissolved before the bill had passed the Lords. The second Parliament was dissolved before the Commons had even discussed the subject, and the third Parliament now sitting had found no time to attend to it till after the Petition of Right had been granted. Now that the session was drawing to a close the Commons again proposed to grant Tonnage and Poundage for a year only. Charles, who had been levying the duties ever since his accession, refused to accept a grant on these terms, and the Commons then asserted that the clause of the Petition of Right forbidding him to levy taxes without a vote of Parliament made his raising of Tonnage and Poundage illegal. It was a nice legal point whether customs were properly called taxes, and Charles answered that he did not think that in demanding the petition they had meant to ask him to yield his right to Tonnage and Poundage, and that he was sure he had not meant to do so. The Commons then attacked Buckingham, and on June 26 Charles prorogued Parliament.

11. Buckingham's Murder. 1628.—In return for the Petition of Right Charles had received a grant of money large enough to enable him to send out his fleet. In August Buckingham went to Portsmouth to take the command. He was followed by John Felton, an officer to whom he had refused employment, and who had not been paid for his former services. Language used by the House of Commons in their recent attack on Buckingham persuaded Felton that he would render service to God and man by slaying the enemy of both. On August 23 he stabbed the Duke as he came out from breakfast, crying, 'God have mercy on thy soul!' Buckingham fell dead on the spot. The fleet went out under the command of the Earl of Lindsey to relieve Rochelle, but it failed utterly. There was no heart in the sailors or resolution in the commanders. Rochelle surrendered

to the King of France, and Charles was left to bear the weight of the unpopularity of his late favourite.

12. The Question of Sovereignty. 1628.—Charles was anxious to come to terms with his Parliament on the question of Tonnage and Poundage, and would probably have consented to accept the compromise proposed in **1610** (see p. [486](#)). Neither party, indeed, could afford to surrender completely to the other. The customs duties were already more than a third of the revenue, and, if Charles could levy what he pleased, he might so increase his income as to have no further need of parliaments; whereas, if the Commons refused to make the grant, the king would soon be in a state of bankruptcy. The financial question, in short, involved the further question whether Charles or the Parliament was to have the sovereignty. Dangerous as it would be for both parties to enter upon a quarrel which led up to such issues, it was the more difficult to avoid it because the king and the Commons were already at variance on another subject of pre-eminent importance.

13. Protestantism of the House of Commons. 1625-1628.—That subject was the subject of religion. The country gentlemen, who almost entirely filled the benches of the House of Commons, were not Puritan in the sense in which Cartwright had been Puritan in Elizabeth's reign (see p. [446](#)). They did not wish to abolish episcopacy or the Prayer Book; but they were strongly Protestant, and their Protestantism had been strengthened by a sense of danger from the engagements in favour of the English Catholics into which James and Charles had entered. Lately, too, the power of the Catholic States on the Continent had been growing. In **1626** the King of Denmark had been defeated at Lutter. In **1628** the French Huguenots had been defeated at Rochelle. It was probably in consequence of these events that there was in England a revival of that attachment to Calvinistic doctrines which had accompanied the Elizabethan struggle against Spain and the Pope.

14. Religious Differences. 1625-1628.—On the other hand, a small but growing number amongst the clergy were breaking away from the dogmas of Calvinism, and especially from its stern doctrine on the subject of predestination. The House of Commons claimed to represent the nation, and it upheld the unity of the national belief as strongly as it had been upheld by

Henry VIII. In **1625** the House summoned to its bar Richard Montague, who had challenged the received Calvinist opinions on the ground that they were not the doctrines of the Church of England. In **1626** it impeached him. Naturally, Montague and those who agreed with him warmly supported the royal power, and in **1627** urged the duty of paying the forced loan. Another clergyman, Roger Manwaring, preached sermons in which Parliaments were treated with contempt, and the Commons retaliated by impeaching the preacher. Charles would have acted in a spirit in advance of his times, and certainly in advance of his opponents, if he had merely upheld the right of the minority to liberty of speech. Instead of contenting himself with this he made Montague Bishop of Chichester and gave Manwaring a good living.

15. The King's Declaration. 1628.—With the intention of smoothing matters down, Charles issued a declaration prefixed to the Articles, which would, as he hoped, make for peace. No one was in future to speak in public on the controverted points. Charles probably believed himself to be acting fairly, whilst, in reality, his compromise was most unfair. The Calvinists, who believed their views about predestination to be of the utmost importance to the souls of Christians, were hardly treated by the order to hold their tongues on the subject. Their opponents did not care about the doctrine at all, and would be only too glad if nothing more was heard of it. Charles, however, was but following in Elizabeth's steps in imposing silence and calling it peace. But the times were different. There was no longer a Catholic claimant of the throne or a foreign enemy at the gates to cause moderate men to support the government, even in its errors.

16. The Second Session of the Third Parliament of Charles I. 1629.—The Houses met for a second session on January 20, **1629**. The Commons attacked the clergy on a side on which they were especially vulnerable. Some of those who had challenged the Calvinistic doctrines had revived certain ceremonial forms which had generally fallen into disuse. In Durham Cathedral especially, parts of the service had been sung which had not been sung before, and the Communion table, which had hitherto stood at the north door and had been moved to the middle of the choir when needed, had been permanently fixed at the east end of the chancel. The Commons were indignant at what they styled Popish practices, and summoned the offenders before them. Then they turned to Tonnage and Poundage. Eliot, instead of

confronting the difficulty directly, attempted to make it a question of privilege. The goods of a member of the House, named Rolle, had been seized for non-payment of Tonnage and Poundage, and Eliot wished to summon the Custom House officers to the bar, not for seizing the goods of an Englishman, but for a breach of privilege in seizing the goods of a member of Parliament. Pym, who occupied a prominent position amongst the popular party, urged the House to take broader ground: "The liberties of this House," he said, "are inferior to the liberties of this kingdom. To determine the privileges of this House is but a mean matter, and the main end is to establish possession of the subjects."[\[20\]](#) Eliot carried the House with him, but Charles supported his officers, and refused to allow them to appear at the bar of the House. Once more the question of sovereignty was raised. The House was adjourned by the king's order in the hope that a compromise might be discovered.

17. Breach between the King and the Commons. 1629.—No compromise could be found, and on March 2 a fresh order for adjournment was given. When Finch, the Speaker, rose to announce it, two strong young members, Holles and Valentine, pushed him back into his chair whilst Eliot read three resolutions to the effect that whoever brought in innovations in religion, or introduced opinions differing from those of the true and orthodox church; whoever advised the levy of Tonnage and Poundage without a grant by Parliament; and whoever voluntarily paid those duties, was an enemy to the kingdom and a betrayer of its liberties. A wild tumult arose. A rush was made to free the Speaker, and another rush to hold him down. One member, at least, laid his hand on his sword. The doors were locked, and, amidst the hubbub, Holles repeated the resolutions, which were accepted with shouts of 'Aye, aye.' Then the doors were opened, and the members poured out. The king at once dissolved Parliament, and for eleven years no Parliament met again in England.

18. The Constitutional Dispute. 1629.—The constitutional system of the Tudor monarchy had practically broken down. The nation had, in the sixteenth century, entered upon a struggle for national independence. Henry VIII. and Elizabeth had headed it in that struggle, and the House of Commons had but represented the nation in accepting Henry VIII. and Elizabeth as supreme rulers. The House of Commons now refused to admit

that Charles was its supreme ruler, because he could neither head the nation, nor understand either its wants or its true needs. Yet the House had not as yet shown its capacity for taking his place. It had criticised his methods of government effectively, but had displayed its own intolerance and disregard for individual liberty. Yet, till it could learn to respect individual liberty, it would not be likely to gain the sovereignty at which it aimed. A king becomes powerful when men want a strong government to put down enemies abroad or petty tyrants at home. A Parliament becomes powerful when men want to discuss political questions, and political discussion cannot thrive when voices disagreeable to the majority are silenced. The House of Commons had thought more of opposing the king than of laying a wide basis for its own power, and now it was, for a time at least, silenced.

19. The Victory of Personal Government. 1629-1632.—Charles was now to show whether he could do better than the Commons. He had gained one great convert soon after the end of the first session of the last Parliament. Wentworth, satisfied, it is to be supposed, with the Petition of Right, and dissatisfied with the claim to sovereignty put forward by the Commons, came over to his side and was made first a baron and then a viscount, after which before the end of **1628** he was made President of the Council of the North (see p. [397](#)). Wentworth was no Puritan, and the claim of the Commons, in the second session, to meddle with religion no doubt strengthened him in his conviction that he had chosen the right side. Before the end of **1629** he became a Privy Councillor. The most influential member of Charles's Council, however, was Weston, the Lord Treasurer. Peace was made with France in **1629**, and with Spain in **1630**. To bring the finances into order, the king insisted on collecting the customs without a Parliamentary grant, and Chambers, a merchant who refused to pay, was summoned before the Council, and then fined 2,000*l.* and imprisoned for saying that merchants were more wrung in England than they were in Turkey. The leading members who had been concerned in the disturbance at the last meeting of Parliament were imprisoned, and three of them, Eliot, Holles, and Valentine, were charged before the King's Bench with riot and sedition. They declined to plead, on the ground that the judges had no jurisdiction over things done in Parliament. The judges held that riot and sedition must be punished somewhere, and that as Parliament was not always sitting it must be punished by themselves. As the accused still

refused to plead they were fined and imprisoned. Eliot died of consumption in the Tower in **1632**. Charles had refused to allow him to go into the country to recover his health, and after his death he refused to allow his children to dispose of his body. Eliot was the martyr, not of individual liberty, but of Parliamentary supremacy. Charles hated him because he regarded him as the factious accuser of Buckingham.

20. Star Chamber Sentences. 1630-1633.—The first years of unparliamentary government were, on the whole, years of peace and quiet. The Star Chamber, which under Henry VII. had put down the old nobility, was now ready to put down the opponents of the king. Its numbers had grown with its work, and all of the Privy Councillors were now members of it, the only other members being two judges. It was therefore a mere instrument in the king's hands. In **1630** Alexander Leighton was flogged and mutilated by order of the Star Chamber for having written a virulent libel against the bishops; in which he blamed them for all existing mischiefs, including the extravagance of the dress of the ladies, and ended by advising that they should be smitten under the fifth rib. In **1633** the same court fined Henry Sherfield for breaking a church window which he held to be superstitious. The bulk of Englishmen were not touched by these sentences, and there was more indignation when, in order to pay off debts contracted in time of war, Charles ordered the enforcement of fines upon all men holding by military tenure lands worth 40*l.* a year who had neglected to be knighted. The Court of Exchequer held that the fines were legal; but the whole system of military tenure was obsolete, and those who suffered regarded themselves as wronged through a mere technicality.



Sir Edward and Lady Filmer: from their brass at East Sutton, Kent, showing armour and dress worn about 1630.

21. Laud's Intellectual Position. 1629-1633.—For all matters relating to the Church Charles's principal adviser was William Laud, now Bishop of London. As far as doctrine was concerned Laud carried on the teaching of Cranmer and Hooker. He held that the basis of belief was the Bible, but that the Bible was to be interpreted by the tradition of the early church, and that all doubtful points were to be subjected, not to heated arguments in the pulpits, but to sober discussion by learned men. His mind, in short, like those of the earlier English reformers, combined the Protestant reliance on the Scriptures with reverence for ancient tradition and with the critical spirit of the Renaissance. Laud's difficulty lay, as theirs had lain, in the impossibility of gaining over any large number of his fellow-countrymen. Intelligent criticism and intelligent study were only for the few. Laud, as he himself plaintively declared, was in danger of being crushed between the upper and lower mill-stones of Puritanism and the Papacy.

22. Laud as the Upholder of Uniformity.—In all this there was nothing peculiar to Laud. What was peculiar to him was his perception that intellectual religion could not maintain itself by intellect alone. Hooker's appeals to Church history and to the supremacy of reason had rolled over the heads of men who knew nothing about Church history, and who did not reason. Laud fell back upon the influence of ceremonial. "I laboured nothing more," he afterwards said, "than that the external public worship of God—too much slighted in most parts of the kingdom—might be preserved, and that with as much decency and uniformity as might be; being still of opinion that unity cannot long continue in the Church when uniformity is shut out of the Church door." He, like Eliot and the Parliamentarians, was convinced that there could be but one Church in the nation. As they sought to retain their hold on it by the enforcement of uniformity of doctrine, Laud sought to retain his hold on it by enforcing uniformity of worship. To do this he attempted to put in force the existing law of the Church as opposed to the existing practice. What he urged men to do he believed to be wholly right. He himself clung with all his heart to the doctrine of the divine right of episcopacy, of the efficacy of the Sacraments, and to the sobering influence of appointed prayers and appointed ceremonies. What he lacked was broad human sympathy and respect for the endeavour of each earnest man to grow towards perfection in the way which seems to him to be best. Men were to obey for their own good, and to hold their tongues. The king was the supreme governor, and with his authority, as exercised in the Courts of Star Chamber and High Commission, Laud hoped to rescue England from Pope and Puritan.



Archbishop Laud: from a copy in the National Portrait Gallery by Henry Stone, from the Van Dyck at Lambeth.



Silver-gilt tankard made at London in 1634-35, now belonging to the Corporation of Bristol.

23. The Beginning of Laud's Archbishopric. 1633-1634.—In 1633 Laud became Archbishop of Canterbury. He at once made his hand felt in every direction. By his advice, in consequence of an attempt of the judges to put an end to Sunday amusements, Charles republished the *Declaration of Sports* which had been issued by his father, authorising such amusements under certain restrictions. Where, however, James had contented himself with giving orders, Charles insisted on having the Declaration read in church by all the clergy, and roused the resistance of those who regarded Sunday amusements as a breach of the Sabbath. Laud was also anxious to see the Communion table standing everywhere at the east end of the church. No doubt his anxiety came in part from his reverence of the holy sacrament for which it was set apart, but it also arose from his dislike to the base purposes for which it was often made to serve. Men often put their hats on it, or used it as a writing table. The canons, or laws of the Church, indeed,

directed that the position of the table should, when not in use, be at the east end, though at the time of Communion it was to be placed in that part of the church or chancel from which the minister could best be heard. A case was brought before the king and the Privy Council in **1633**, and it was then decided that the bishop or other proper authority should settle what was the position from which the minister could best be heard. Of course the bishops settled that that place was the east end of the chancel.

24. Laud and Prynne. 1633-1634.—Amongst the most virulent opponents of Laud was William Prynne, a lawyer whose extensive study of theology had not tended to smooth away the asperities of his temper. He was, moreover, a voluminous writer, and had written books against drinking healths and against the wearing of long hair by men, in which these follies had been treated as equally blameworthy with the grossest sins. Struck by the immorality of the existing drama, he attacked it in a heavy work called *Histrion-mastix*, or The scourge of stage players, in which he held the frequenting of theatres to be the cause of every crime under the sun. He pointed out that all the Roman emperors who had patronised the drama had come to a bad end, and this was held by the courtiers to be a reflection on Charles, who patronised the drama. He inserted in the index a vile charge against all actresses, and this was held to be an insult to the queen, who was at the time taking part in the rehearsal of a theatrical representation. Accordingly in **1633** Prynne was sentenced by the Star Chamber to lose his ears in the pillory, to a heavy fine, and to imprisonment during the king's pleasure. In **1634** the sentence was carried out. Prynne's case, however, awakened no general sympathy, and the king does not appear to have as yet become widely unpopular. The young lawyers came to Whitehall to give a masque or dramatic representation in presence of the king and queen, in order to show their detestation of Prynne's conduct, whilst John Milton, the strictest and most pure-minded of poets, wrote a masque, *Comus*, to show how little sympathy he had with Prynne's sweeping denunciations. Yet, though Milton opposed Prynne's exaggeration, his own poetry was a protest against Laud's attempt to reach the mind through the senses. Milton held to the higher part of the Puritan teaching, that the soul is to lead the body, and not the body the soul. "So dear," he wrote in *Comus*,

to Heaven is saintly chastity,
That, when a soul is found sincerely so,
A thousand liveried angels lackey her,
Driving far off each thing of sin and guilt,
And, in clear dream and solemn vision,
Tell her of things that no gross ear can hear,
Till oft converse with heavenly habitants
Begin to cast a beam on the outward shape,
The unpolluted temple of the mind,
And turns it by degrees to the soul's essence,
Till all be made immortal.

CHAPTER XXXIII

THE OVERTHROW OF THE PERSONAL GOVERNMENT OF CHARLES I. 1634-1641

LEADING DATES

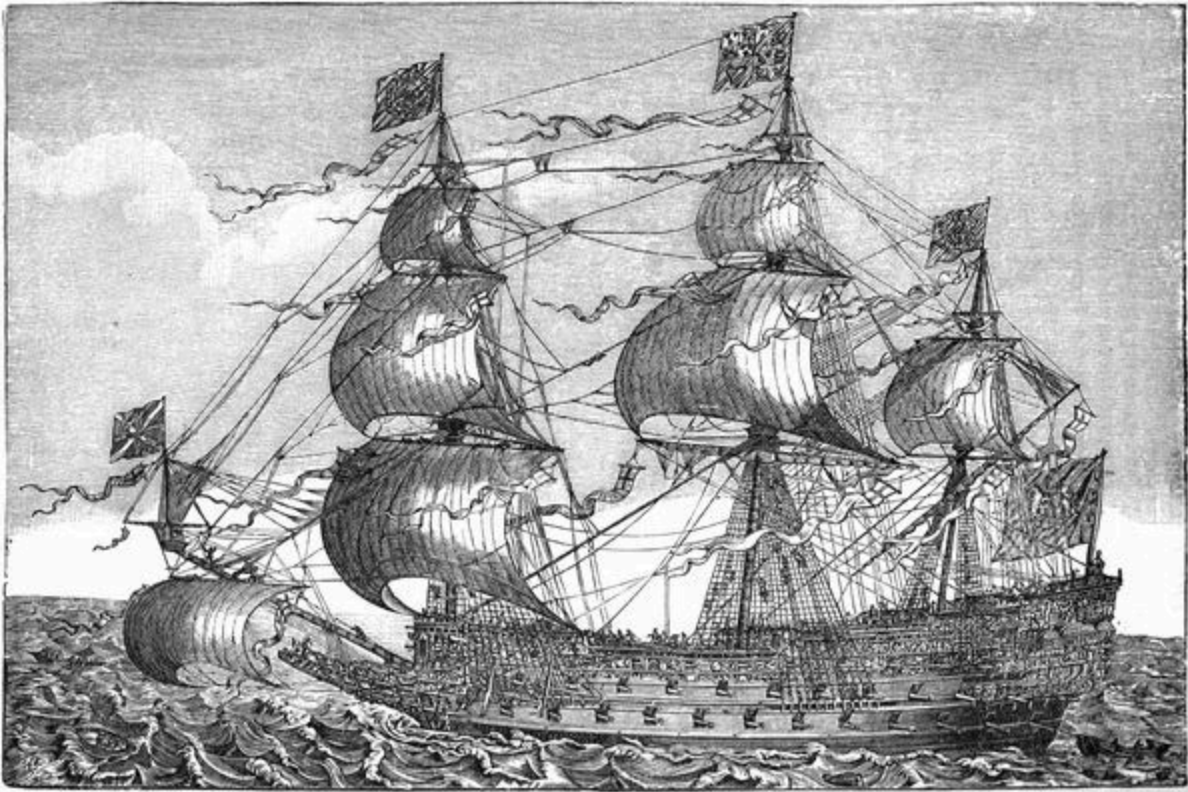
The Reign of Charles I., 1625-1649

The Metropolitan Visitation 1634
First Ship-money Writ (to the port-towns)
1634
Second Ship-money Writ (to all the counties)
1635
Prynne, Burton, and Bastwick in the pillory
1637
Riot in Edinburgh 1637
Scottish National Covenant 1638
Judgment in Hampden's Case 1637-1638
First Bishops' War 1639
Short Parliament 1640
Second Bishops' War 1640
Meeting of the Long Parliament 1640
Execution of Strafford, and Constitutional
Reforms 1641

1. **The Metropolitan Visitation. 1634-1637.**—The antagonism which Laud had begun to rouse in the first months of his archbishopric became far more widely spread in the three years beginning in **1634** and ending in **1637**, in consequence of a Metropolitan Visitation—that is to say, a visitation which he conducted by the Metropolitan or Archbishop—either in person or by deputy—to enquire into the condition of the clergy and churches of the Province of Canterbury; a similar visitation being held in the Province of York by the authority of the Archbishop of York. Every clergyman who refused to conform to the Prayer Book, who resisted the removal of the Communion table to the east end of the chancel, or who objected to bow when the sacred name of Jesus was pronounced, was called in question, and if obstinate, was brought before the High Commission and suspended from the exercise of his functions or deprived of his living. Laud wanted to reach unity through uniformity, and made the canons of the Church his standard of uniformity. Even moderate men suspected that he sought to subject England again to the Pope. The queen, too, entertained a Papal agent at her Court, and a few successful conversions, brought about by Con, who at one time resided with her in that capacity, frightened the country into the belief that a plot existed to overthrow Protestantism. Some of Laud's clerical supporters favoured this idea, by talking about such topics as altars and the invocation of the saints, which had hitherto been held to have no place in Protestant teaching. The result was that moderate Protestants now joined the Puritans in opposing Laud.

2. **Prynne, Bastwick, and Burton. 1637.**—Laud had little hope of being able to abate the storm. One of his best qualities was that he was no respecter of persons, and he had roused animosity in the upper classes by punishing gentlemen guilty of immorality or of breaches of church discipline as freely as he punished more lowly offenders. In **1637** he characteristically attempted to defend himself from the charge of being a Papist and an innovator in religion by bringing three of his most virulent assailants—Prynne, Bastwick, and Burton—before the Star Chamber. The trial afforded him the opportunity of making a speech in his own defence, to which nobody paid the least attention. As a matter of course the accused were heavily punished, being sentenced to lose their ears in the pillory, to pay a fine of 5,000*l.*, and to imprisonment for life. It was not now as it had been in **1634**, when Prynne stood alone in the pillory, no man regarding

him. The three victims had a triumphal reception on their way to the pillory. Flowers and sweet herbs were strewed in their path. The crowd applauded them whilst they suffered. On their way to their several prisons in distant parts of the country men flocked to greet them as martyrs.



The 'Sovereign of the Seas,' built for the Royal Navy in 1637: from a contemporary engraving by John Payne.

3. Financial Pressure. 1635-1637.—Revolutions are never successful without the guidance of men devoted to ideas; but on the other hand they are not caused only by grievances felt by religious or high-minded people. To stir large masses of men to resistance, their pockets must be touched as well as their souls. In **1635** Weston, who had been created Earl of Portland, died, and a body of Commissioners of the Treasury, who succeeded him, laid additional impositions on commerce and established corporations for exercising various manufactures under the protection of monopolies. This proceeding was according to the letter of the law, as corporations had been exempted from the act in restraint of monopolies which had been passed in **1624** (see p. [501](#)). So, too, was a claim put forward by Charles in **1637** to levy fines from those who had encroached on the old boundaries of the

forests. It is true that, in the teeth of the opposition roused, Charles exacted but a small part of the fines imposed, but he incurred almost as much obloquy as if he had taken the whole of the money.

4. Ship-money. 1634-1637.—More important was Charles's effort to provide himself with a fleet. As the Dutch navy was powerful, and the French navy was rapidly growing in strength, Charles, not unnaturally, thought that England ought to be able to meet their combined forces at sea. In **1634**, by the advice of Attorney-General Noy, he issued writs to the port towns, to furnish him with ships. He took care to ask for ships larger than any port—except London—had got, and then offered to supply ships of his own, on condition that the port towns should equip and man them. In **1635**—Noy having died in the meantime—Charles asked for ships not merely from the ports, but from the inland as well as from the maritime counties. Again London alone provided ships; in all the rest of England money had to be found to pay for the equipment and manning of ships belonging to the king. In this way Charles got a strong navy which he manned with sailors in the habit of managing ships of war, and entirely at his own orders. The experience of the Cadiz voyage had shown him that merchant-sailors, such as those who had done good service against the Armada, were not to be trusted to fight in enterprises in which they took no interest, and it is from the ship-money fleet that the separation of the naval and mercantile marine dates. Necessarily, however, Englishmen began to complain, not that they had a navy, but that the money needed for the navy was taken from them without a Parliamentary grant. Year after year ship-money was levied, and the murmurs against it increased. In February, **1637**, Charles consulted the judges, and ten out of the twelve judges declared that the king had a right to do what was necessary for the defence of the realm in time of danger, and that the king was the sole judge of the existence of danger.

5. Hampden's Case. 1637-1638.—It was admitted that, in accordance with the Petition of Right, Charles could not levy a tax without a Parliamentary grant. Charles, however, held that ship-money was not a tax, but money paid in commutation of the duty of all Englishmen to defend their country. Common sense held that, whether ship-money was a tax or not, it had been levied without consulting Parliament, simply because the king shrank from consulting Parliament; or, in other words, because he was

afraid that Parliament would ask him to put an end to Laud's system of managing the Church. Charles was ready, as he said, to allow to Parliament liberty of counsel, but not of control. The sense of irritation was now so great that the nation wanted to control the Government, and knew that it would never be able to do so if Charles could, by a subterfuge, take what money he needed without summoning Parliament. Of this feeling John Hampden, a Buckinghamshire squire, became the mouthpiece. He refused to pay 20s. levied on his estate for ship-money. His case was argued before the twelve judges sitting in the Exchequer Chamber. In **1638** two pronounced distinctly in his favour, three supported him on technical grounds, and seven pronounced for the king. Charles continued to levy ship-money, but the arguments of Hampden's lawyers were circulated in the country, and the judgment of the majority on the Bench was ascribed to cowardice or obsequiousness. Their decision ranged against the king all who cared about preserving their property, as the Metropolitan visitation had ranged against him all who cared for religion in a distinctly Protestant form. Yet, even now, the Tudor monarchy had done its work too thoroughly, and had filled the minds of men too completely with the belief that armed resistance to a king was unjustifiable, to make Englishmen ripe for rebellion. They preferred to wait till some opportunity should arrive which would enable them to express their disgust in a constitutional way.

6. Scottish Episcopacy. 1572-1612.—The social condition of Scotland was very different from that of England. The nobles there had never been crushed as they had been in England, and they had tried to make the reformation conduce to their own profit. In **1572** they obtained the appointment of what were known as Tulchan bishops, who, performing no episcopal function, received the revenues of their sees and then handed them over to certain nobles.^[21] The Presbyterian clergy, however, represented the popular element in the nation—and that element, though it had hitherto been weak, was growing strong through the discipline which it received in consequence of the leading share assigned to the middle and lower classes in the Church Courts (see p. [434](#)). The disagreement between these classes and the nobles gave to James the part of arbitrator, and thus conferred on him a power which no Scottish king had had before. After much vacillation, he consented, in **1592**, to an act fully re-establishing the Presbyterian system. It was not long before he repented. The Presbyterian

clergy attacked his actions from the pulpit, and one of them, Andrew Melville, plucking him by the sleeve, called him 'God's silly vassal.' The nobles, too, were angry because the clergy assailed their vices, and tried to subject them to the discipline of the Church. Though their ancestors had, at almost all times, been the adversaries of the kings, they now made common cause with James. Gradually episcopacy was restored. Bishops were re-appointed in **1599**. Step by step episcopal authority was regained for them. In **1610** three of their number were consecrated in England, and in **1612** the Scottish Parliament ratified all that had been done.

7. The Scottish Bishops and Clergy. 1612-1637.—In England bishops had a party (lay and clerical) behind them. In Scotland they were mere instruments of the king and the nobles to keep the clergy quiet. In **1618**, James, supported by the bishops and the nobles, forced upon a general assembly the acceptance of the Five Articles of Perth, the most important of which was a direction that the Communion should be received in a kneeling posture. Yet, in spite of all that James had done, the local popular Church courts still existed, and the worship of the Church remained still distinctly Calvinistic and Puritan. Charles was more eager than his father to alter the worship of the Scottish Church, and, in **1637**, at his command, certain Scottish bishops—often referring for advice to Laud—completed a new Prayer Book, not unlike that in use in England, but differing from it, for the most part, in a sense adverse to Puritanism. The clergy declared against it, and this time the clergy had on their side the nobles, who not only feared lest Charles should take from them the Church lands appropriated by their fathers, but were also irritated at the promotion of some bishops to high offices which they claimed for themselves.

8. The Riot at Edinburgh and the Covenant. 1637-1638.—On July 23, **1637**, an attempt was made to read the new service in St. Giles's, at Edinburgh. The women present burst into a riot, and one of them threw her stool at the head of the officiating minister, fortunately missing him. All Scotland took part with the rioters. The new Prayer Book was hated, not only because it was said to be Popish, but also because it was English. In November four committees, known as the Tables, practically assumed the government of Scotland. In February, **1638**, all good Scots were signing a National Covenant. Nothing was said in it about episcopacy, but those who

signed it bound themselves to labour, by all means lawful, to recover the purity and liberty of the Gospel, as it was established and professed before the recent innovations.

9. The Assembly of Glasgow, and the Abolition of Episcopacy. 1638.

—The greater part of **1638** was passed by Charles in an endeavour to come to an understanding with the Scots. On September 2 he revoked the Prayer Book, and offered to limit the powers of the bishops. On November 21 a general assembly met at Glasgow, in which ninety-six lay members—for the most part noblemen—sat with 144 clergymen, and which may therefore be regarded as a sort of Ecclesiastical Parliament in which the clergy predominated as the nobles predominated in the single house which made up the real Parliament. The Assembly claimed to judge the bishops, on which the king's commissioner, the Marquis of Hamilton, dissolved the Assembly rather than admit its claim. The Assembly, however, on the ground that it possessed a Divine right to settle all affairs relating to the Church independently of the King, sat on, as if nothing had happened, deposed the bishops, and re-established the Presbyterian system.

10. The First Bishops' War. 1639.—In refusing to obey the order for dissolution, the Scottish General Assembly had practically made itself independent of the king, and Charles was driven—unless he cared to allow the establishment of a precedent, which might some day be quoted against him in England—to make war upon the Scots. Yet he dared not summon the English Parliament, lest it should follow their example, and he had to set forth on what came to be known as the First Bishops' War—because it was waged in the cause of the bishops—with no more money than he could get from a voluntary contribution, not much exceeding 50,000*l*. Soon after he reached Berwick with his army, he found that the Scots had, on Dunse Law, [\[22\]](#) an army almost equal to his own in numbers, commanded by Alexander Leslie, an old soldier who had fought in the German wars, and mainly composed of veterans, who had seen much service on the Continent, whilst his own men were raw recruits. His money soon came to an end, and it was then found impossible to keep the army together. The war was one in which there was no fighting, and in which only one man was killed, and he by an accident. On June 24 Charles signed the Treaty of Berwick. Both sides passed over in silence the deeds of the Glasgow Assembly, but a promise

was given that all affairs civil and ecclesiastical should be settled in an assembly and Parliament. Assembly and Parliament met at Edinburgh, and declared in favour of the abolition of episcopacy; but Charles, who could not, even now, make up his mind to submit, ordered the adjournment of the Parliament, and prepared for a new attack on Scotland.

11. Wentworth in Ireland. 1633-1639.—In preparing for a new war, Charles had Wentworth by his side. Wentworth, who was by far the ablest of his advisers, after ruling the north of England (see p. [514](#)) in a high-handed fashion, had, in **1632**, been appointed Lord Deputy of Ireland. In **1634** he summoned an Irish Parliament, taking care that the English Protestant settlers and the Irish Catholics should be so evenly balanced that he could do what he would with it. He carried through it admirable laws and a vote of money which enabled him to be independent of Parliament for some time to come. As far as its material interests were concerned, Ireland had never been so prosperous. Trade grew, and the flax industry of the North sprang into existence under Wentworth's protection. Churches which had lain in ruins since the desolating wars of Elizabeth's reign were rebuilt, and able and active ministers were invited from England. The Earl of Cork, who had illegally seized Church property to his own use, was heavily fined, and Lord Mountnorris, a self-seeking official, who refused to resign his office, was brought before a court-martial and condemned to death; though Wentworth



Soldier armed with a pike: from a broadside, printed *circa* 1630.



let him know that his life was in no danger, and that all that was wanted of him was the resignation of an office

Soldier with musket and crutch: from a broadside printed about 1630.

which he was unfitted to fill. Wentworth required all the officers of the Crown to live up to the motto of 'Thorough,' which he had adopted for himself, by which he meant a 'thorough' devotion to the service of the king and the State, without regard for private interests.

12. The Proposed Plantation of Connaught.—Wentworth gave great offence to the English officials and settlers by the harsh and overbearing way in which he kept them in order. His conduct to the Celtic population was less violent than that of some other lord deputies, but he had no more idea than his predecessors of leaving the Irish permanently to their own customs and religion. He believed that, both for their own good and for the safety of the English Crown, they must be made as like Englishmen as possible, and that, to effect this, it would be necessary to settle more Englishmen in Ireland to overawe them. Accordingly, in **1635**, he visited Connaught, where he raked up an old claim of the king's to the whole land of the province, though Charles had promised not to put forward any such claim at all. In every county of Connaught except Galway, a jury was found to give a verdict in favour of the king's claim. The jury in County Galway refused to do his bidding, and Wentworth had the jurymen fined, and the land of the county seized by the order of the Irish Court of Exchequer, which pronounced judgment without a jury. He then invited English settlers to Connaught; but he found that few English settlers would go to such a distance from their homes. Perhaps many refused to come because they distrusted Wentworth. Yet, for the moment, his government appeared successful. In **1639** he visited England, and Charles, who needed an able counsellor, made him Earl of Strafford, and from that time took him for his chief adviser.

13. The Short Parliament. 1640.—Strafford's advice was that Charles should summon an English Parliament, whilst he himself held a Parliament in Dublin, which might show an example of loyalty. The Irish Parliament did all that was expected of it, the Catholic members being especially forward in voting supplies in the hope that, if they helped Charles to conquer the Scots, he would allow freedom of religion in Ireland. In

England, Parliament met on April 13. Pym at once laid before the Commons a statement of the grievances of the nation, after which the House resolved to ask for redress of these grievances before granting supply. Charles offered to abandon ship-money if the Commons would give him twelve subsidies equal to about 960,000*l*. The Commons hesitated about granting so much, and wished the king to yield on other points as well as upon ship-money. In the end they prepared to advise Charles to abandon the war with Scotland altogether, and, to avoid this, he dissolved Parliament on May 5. As it had sat for scarcely more than three weeks, it is known as the Short Parliament.

14. The Second Bishops' War. 1640.—In spite of the failure of the Parliament, Charles gathered an army by pressing men from all parts of England, and found money to pay them for a time by buying a large quantity of pepper on credit and selling it at once for less than it was worth. The soldiers, as they marched northwards, broke into the churches, burnt the Communion rails, and removed the Communion tables to the middle of the building. There was no wish amongst Englishmen to see the Scots beaten. The Scots, knowing this, crossed the Tweed, and, on August 28, routed a part of the English army at Newburn on the Tyne. Even Strafford did not venture to advise a prolongation of the war. Negotiations were opened at Ripon, and Northumberland and Durham were left in the hands of the Scots as a pledge for the payment of 850*l*. a day for the maintenance of their army, till a permanent treaty could be arranged. Charles, whose money was already exhausted, summoned a Great Council, consisting of Peers alone, to meet at York. All that the Great Council could do was to advise him to summon another Parliament, and that advice he was obliged to take.

15. The Meeting of the Long Parliament. 1640.—On November 3, 1640, the new Parliament, which was to be known as the Long Parliament, met. Pym once more took the lead, and proposed the impeachment of Strafford, as the king's chief adviser in the attempt to carry on war in defiance of Parliament. Strafford had also collected an Irish army for an attack on Scotland, and it was strongly believed that he had advised the king to use that army to reduce England as well as Scotland under arbitrary government. The mere suspicion that he had threatened to bring an Irish army into England roused more than ordinary indignation, as, in those days,

Irishmen were both detested and despised in England. Strafford was therefore impeached, and sent to the Tower. Laud was also imprisoned in the Tower, whilst other officials escaped to the Continent to avoid a similar fate. The Houses then proceeded to pass a Triennial Bill, directing that Parliament should meet every three years, even if the king did not summon it, and to this, with some hesitation, Charles assented. He could not, in fact, refuse anything which Parliament asked, because, if he had done so, Parliament would give him no money to satisfy the Scots, and if the Scots were not satisfied, they would recommence the war.

16. The Impeachment of Strafford. 1641.—On March 22, 1641, Strafford's trial was opened in Westminster Hall. All his overbearing actions were set forth at length, but, after all had been said, a doubt remained whether they constituted high treason, that crime having been strictly defined by a statute of Edward III. (see p. 250). Young Sir Henry Vane, son of one of the Secretaries of State, found amongst his father's papers a note of a speech delivered by Strafford in a Committee of the Privy Council just after the breaking up of the Short Parliament, in which he had spoken of the king as loose and absolved from all rules of government. "You have an army in Ireland," Strafford was reported to have said, "you may employ here to reduce this kingdom, for I am confident as anything under heaven, Scotland shall not hold out five months." The Commons were convinced that 'this kingdom' meant England and not Scotland; but there were signs that the lords would be likely to differ from them, and the Commons accordingly abandoned the impeachment in which the lords sat as judges, and introduced a Bill of Attainder (see p. [401](#), note), to which, after the Commons had accepted it, the lords would have to give their consent if it was to become law, as in the case of any ordinary Bill.

17. Strafford's Attainder and Execution.—Pym would have preferred to go on with the impeachment, because he believed that Strafford was really guilty of high treason. He held that treason was not an offence against the king's private person, but against the king as a constitutional ruler, and that Strafford had actually diminished the king's authority by attempting to make him an absolute ruler, and thereby to weaken Charles's hold upon the goodwill of the people. This argument, however, did not break down the scruples of the Peers, and if Charles had kept quiet, he would have had

them at least on his side. Neither he nor the queen could keep quiet. Before the end of **1640** she had urged the Pope to send her money and soldiers, and now she had a plan for bringing the defeated English army from Yorkshire to Westminster to overpower Parliament. Then came an attempt of Charles to get possession of the Tower, that he might liberate Strafford by force. Pym, who had learnt the secret of the queen's army-plot, disclosed it, and the peers, frightened at their danger, passed the Bill of Attainder. A mob gathered round Whitehall and howled for the execution of the sentence. Charles, fearing lest the mob should take vengeance on his wife, weakly signed a commission appointing commissioners to give the royal assent to the Bill, though he had promised Strafford that not a hair of his head should be touched. With the words, "Put not your trust in princes" on his lips, the great royalist statesman prepared for the scaffold. On May 12 he was beheaded, rather because men feared his ability than because his offences were legally punishable with death.

18. Constitutional Reforms. 1641.—Englishmen would not have feared Strafford if they could have been sure that the king could be trusted to govern according to law, without employing force to settle matters in his own way. Yet, though the army-plot had made it difficult to feel confidence in Charles, Parliament was at first content to rely on constitutional reforms. On the day on which Charles assented to the bill for Strafford's execution he assented to another bill declaring that the existing Parliament should not be dissolved without its own consent, a stipulation which made the House of Commons legally irresponsible either to the king or to its constituents, and which could only be justified by the danger of an attack by an armed force at the bidding of the king. Acts were passed abolishing the Courts of Star Chamber and the High Commission, declaring ship-money to be illegal, limiting the king's claims on forests, prohibiting fines for not taking up knighthood, and preventing the king from levying Tonnage and Poundage or impositions without a Parliamentary grant. Taking these acts as a whole, they stripped the Crown of the extraordinary powers which it had acquired in Tudor times, and made it impossible for Charles, legally, to obtain money to carry on the government without the goodwill of Parliament, or to punish offenders without the goodwill of juries. All that was needed in the way of constitutional reform was thus accomplished. As far as law could do it, the

system of personal government which Charles had in part inherited from his predecessors and in part had built up for himself, was brought to an end.

CHAPTER XXXIV

THE FORMATION OF PARLIAMENTARY PARTIES AND THE FIRST YEARS OF THE CIVIL WAR. 1641-1644

LEADING DATES

Reign of Charles I., 1625-1649

The Debate on the Grand Remonstrance Nov.
23, 1641

The Attempt on the Five Members Jan. 4,
1642

The Battle of Edgehill Oct. 23, 1642

The Fairfaxes defeated at Adwalton Moor
June 30, 1643

Waller's Defeat at Roundway Down July 13,
1643

The Raising of the Siege of Gloucester Sept.
5, 1643

The First Battle of Newbury Sept. 20, 1643

The Solemn League and Covenant taken by
the Houses Sept. 25, 1643

The Scottish Army crosses the Tweed Jan. 19,
1644

The Battle of Marston Moor July 2, 1644

Capitulation of Essex's Infantry at Lostwithiel
Sept. 2, 1644

The Second Battle of Newbury Oct. 27, 1644

1. The King's Visit to Scotland. 1641.—If Charles could have inspired his subjects with the belief that he had no intention of overthrowing the new arrangements by force, there would have been little more trouble.

Unfortunately, this was not the case. In August, indeed, the Houses succeeded in disbanding the English army in Yorkshire, and in dismissing the Scottish army across the Tweed; but, in the same month, Charles set out for Scotland, ostensibly to give his assent in person to the Acts abolishing episcopacy in that country, but in reality to persuade the Scots to lend him an army to coerce the English Parliament. Pym and Hampden suspecting this, though they could not prove it, felt it necessary to be on their guard.

2. Parties formed on Church Questions. 1641.—There would, however, have been little danger from Charles if political questions alone had been at stake. Parliament had been unanimous in abolishing his personal government, and no one was likely to help him to restore it by force. In ecclesiastical questions, however, differences arose early. All, indeed, wished to do away with the practices introduced by Laud, but there was a party, which though willing to introduce reforms into the Church, and to subject it to Parliament, objected to the introduction of the Presbyterian system, lest presbyters should prove as tyrannical as bishops. Of this party, the leading members were Hyde, a politician who surveyed State affairs with the eyes of a lawyer, and the amiable Lord Falkland, a scholar and an enthusiast for religious toleration. On the other hand, there was a party which believed that the abolition of episcopacy was the only possible remedy for ecclesiastical tyranny. If Charles had openly supported the first party, it might, perhaps, have been in a majority; but as he did nothing of the sort, an impression gained ground that if bishops were not entirely abolished, they would sooner or later be restored by the king to their full authority, in spite of any limitations which Parliament might put upon them. Moreover, the lords, by throwing out a bill for removing the bishops from their House, exasperated even those members who were still hesitating. A majority in the Commons supported a bill, known as the Root and Branch Bill, for the abolition of episcopacy and for the transference of their jurisdiction to committees of laymen in each diocese. Though this bill was not passed, its existence was sure to intensify the dislike of the king to those who had brought it in.

3. Irish Parties. 1641.—Before the king returned from Scotland, news arrived from Ireland which increased the difficulty of maintaining a good understanding with Charles. Besides the English officials, there were two

parties in Ireland discontented with Strafford's rule. Of these one was that of the Catholic lords, mostly of English extraction, who wanted toleration for their religion and a large part in the management of the country. The other was that of the native Celts, who were anxious to regain the lands of which they had been robbed and to live again under their old customs. Both parties were terrified at the danger of increased persecution by the Puritan Parliament at Westminster, especially as the government at Dublin was in the hands of two lords justices, of whom the more active, Sir William Parsons, advocated repressive measures against the Catholics, and the introduction of fresh colonists from England to oust the Irish more completely from the land. In the spring of **1641** the Catholic lords had emissaries at Charles's court offering to send an army to his help in England, if he would allow them to seize Dublin and to overthrow the Government carried on there in his name.

4. The Irish Insurrection. 1641.—Nothing was settled when Charles left England, and in October the native Irish, impatient of delay, attempted to seize Dublin for themselves. The plot was, however, detected, and they turned savagely on the English and Scottish colony in Ulster. Murders, and atrocities worse than ordinary murder, were committed in the North of Ireland. At Portadown the victims were driven into a river and drowned. Women were stripped naked and turned into the wintry air to die of cold and starvation, and children were slaughtered as ruthlessly as full-grown men. The lowest estimate of the destruction which reached England raised the number of victims to 30,000, and, though this was doubtless an immensely exaggerated reckoning, the actual number of victims must have reached to some thousands. In England a bitter cry for vengeance went up, and with that cry was mingled distrust of the king. It was felt to be necessary to send an army into Ireland, and, if the army was to go under the king's orders, there was nothing to prevent him using it—after Ireland had been subdued—against the English Parliament.

5. The Grand Remonstrance. 1641.—The perception of this danger led the Commons to draw up a statement of their case, known as the Grand Remonstrance. They began with a long indictment of all Charles's errors from the beginning of his reign, and, though the statements were undoubtedly exaggerated, they were adopted by the whole House. When,

however, it came to the proposal of remedies, there was a great division amongst the members. The party led by Pym and Hampden, by which the Remonstrance had been drawn up, asked for the appointment of ministers responsible to Parliament, and for the reference of Church matters to an Assembly of divines nominated by Parliament. The party led by Hyde and Falkland saw that the granting of these demands would be tantamount to the erection of the sovereignty of Parliament in Church and State; and, as they feared that this in turn would lead to the establishment of Presbyterian despotism, they preferred to imagine that it was still possible to make Charles a constitutional sovereign. On November 23 there was a stormy debate, and the division was not taken till after midnight. A small majority of eleven declared against the king. The majority then proposed to print the Remonstrance for the purpose of circulating it among the people. The minority protested, and, as a protest was unprecedented in the House of Commons, a wild uproar ensued. Members snatched at their swords, and it needed all Hampden's persuasive pleadings to quiet the tumult.

6. The King's Return. 1641.—Charles had at last got a party on his side. When, on November 25, he returned to London, he announced that he intended to govern according to the laws, and would maintain the 'Protestant religion as it had been established in the times of Elizabeth and his father.' He was at once greeted with enthusiasm in the streets, and felt himself strong enough to refuse to comply with the request of the Remonstrance. If only he could have kept quiet, he would probably, before long, have had a majority, even in the House of Commons, on his side. It was, however, difficult for Charles to be patient. He was kept short of money by the Commons, and he had not the art of conciliating opponents. On December 23 he appointed Lunsford, a debauched ruffian, Lieutenant of the Tower, and the opponents of the Court naturally saw in this unwarrantable proceeding a determination to use force against themselves. On December 26 they obtained Lunsford's dismissal, but on the following day they heard that the rebellion in Ireland was spreading, and the increased necessity of providing an army for Ireland impressed on them once more the danger of placing under the orders of the king forces which he might use against themselves.

7. The Impeachment of the Bishops. 1641.—In order to make sure that the House of Lords would be on their side in the time of danger which was approaching, the Commons and their supporters called out for the exclusion of the bishops and the Roman Catholic peers from their seats in Parliament. A mob gathered at Westminster, shouting, No bishops! No Popish lords! The king gathered a number of disbanded officers at Whitehall for his protection, and these officers sallied forth beating and chasing the mob. Another day Williams, Archbishop of York, having been hustled by the crowd, he and eleven other bishops sent to the Lords a protest that anything done by the House of Lords in their absence would be null and void. The Peers, who had hitherto supported the king, were offended, and, for a time, made common cause with the other House against him; whilst the Commons impeached as traitors the twelve bishops who had signed the protest, wanting, not to punish them, but merely to get rid of their votes.

8. The Impeachment of the Five Members. 1642.—Charles, on his part, was exasperated, and fancied that he could strike a blow which his opponents would be unable to parry. He knew that the most active of the leaders of the opposition, Lord Kimbolton in the House of Lords, and Pym, Hampden, Hazlerigg, Holles, and Strode in the Commons, had negotiated with the Scots before they invaded England in **1640**, and he believed that they had actually invited them to enter the kingdom in arms. If this was true, they had legally been guilty of treason, and on January 3, **1642**, Charles ordered the Attorney-General to impeach them as traitors. Doubts were afterwards raised whether the king had a right to impeach, but Charles does not seem to have doubted at the time that he was acting according to law.

9. The Attempt on the Five Members. 1642.—As the Commons showed signs of an intention to shelter these five members from arrest, Charles resolved to seize them himself. On the 4th of January, followed by about 500 armed men, he betook himself to the House of Commons. Leaving his followers outside, he told the House that he had come to arrest five traitors. As they had already left the House and were on their way to the city, he looked round for them in vain, and asked Lenthall, the Speaker, where they were. "May it please your Majesty," answered Lenthall, kneeling before him, "I have neither eyes to see nor tongue to speak in this

place, but as this House is pleased to direct me." Charles eagerly looked round for his enemies. "The birds are flown," he exclaimed, when he failed to descry them. He had missed his prey, and, as he moved away, shouts of "Privilege! privilege!" were raised from the benches on either side.

10. The Commons in the City. 1642.—The Commons, believing that the king wanted, not to try a legal question, but to intimidate the House by the removal of its leaders, took refuge in the City. The City, which had welcomed Charles in November, when it was thought that he was come to maintain order according to law, now declared for the Commons. On January 10 Lord Kimbolton and the five members were brought back in triumph to Westminster by the citizens. Charles had already left Whitehall, never to return till the day on which he was brought back to be tried for his life.

11. The Struggle for the Militia. 1642.—There was little doubt that if Charles could find enough support, the questions at issue would have to be decided by arms. To gain time, he consented to a Bill excluding the bishops from their seats in the House of Lords, and he then sent the queen abroad to pawn or sell the Crown jewels and to buy arms and gunpowder with the money. He turned his own course to the north. A struggle arose between him and the Houses as to the command of the militia. There was no standing army in England, but the men of military age were mustered every year in each county, the fittest of them being selected to be drilled for a short time, at the expiration of which they were sent home to pursue their ordinary avocations. These drilled men were liable to be called out to defend their county against riots or invasion, and when they were together were formed into regiments called trained bands. All the trained bands in the country were spoken of as the militia. The Houses asked Charles to place the militia under officers of their choosing. "Not for an hour," replied Charles; "it is a thing with which I would not trust my wife and children." The feeling on both sides grew more bitter; Charles, after taking up his quarters at York, rode to Hull, where there was a magazine of arms of which he wished to possess himself. Sir John Hotham, the Parliamentary commander, shut the gates in his face. Both Charles and the Parliament began to gather troops. The Parliament appointed the Earl of Essex, the son of Elizabeth's favourite, a steady, honourable man, without a spark of

genius, as their general. On August 22, **1642**, Charles set up his standard at Nottingham as a sign of war.

12. Edgehill and Turnham Green. 1642.—The richest part of England—the south-east—took, on the whole, the side of the Parliament; the poorer and more rugged north-west took, on the whole, the side of the king. The greater part of the gentry were cavaliers or partisans of the king; the greater part of the middle class in the towns were partisans of the Parliament, often called Roundheads in derision, because some of the Puritans cropped their hair short. After a successful skirmish at Powick Bridge Charles pushed on towards London, hoping to end the war at a blow. On October 23 the first battle was fought at Edgehill. The king's nephew, Prince Rupert, son of Elizabeth and the Elector Palatine, commanded his cavalry. With a vigorous charge he drove before him the Parliamentary horse in headlong flight; but he did not pull up in time, and when he returned from the pursuit he found that the royalist infantry had been severely handled, and that it was too late to complete the victory which he had hoped to win. The fruits of victory, however, fell to the king. The cautious Essex drew back and Charles pushed on for London, reaching Brentford on November 12. That he did not enter London as a conqueror was owing to the resistance of the London trained bands, the citizen-soldiery of the capital. On the 13th they barred Charles's way at Turnham Green. The king hesitated to attack, and drew back to Oxford. He was never to have such another chance again.

13. The King's Plan of Campaign. 1643.—Charles's hopes of succeeding better in **1643** were based on a plan for overwhelming London with superior force. He made Oxford the headquarters of his own army, and he had a second army under Sir Ralph Hopton in Cornwall, and a third army under the Earl of Newcastle in Yorkshire. His scheme was, that whilst he himself attacked London in front, Hopton should advance through the southern counties into Kent, and Newcastle through the eastern counties into Essex. Hopton and Newcastle would then be able to seize the banks on either side of the Thames below London, and thus to interrupt the commerce of the city, without which it would be impossible for it to hold out long.

14. Royalist Successes. 1643.—The weak point in Charles's plan was that his three armies were far apart, and that the Earl of Essex, now stationed in London, might fall upon his main army before Newcastle and Hopton could come to its aid. Towards the end of April, Essex besieged and took Reading, but his troops melted away from disease, and he did not advance against Oxford till June, when his cautious leadership was not likely to effect anything decisive. In the meanwhile the king's party was gaining the upper hand elsewhere. On May 16 Hopton completely defeated the Parliamentarians at Stratton in Cornwall, and was then ready to march eastwards. On June 18 Hampden received a mortal wound in a skirmish at Chalgrove Field. On July 5 Hopton got the better of one of the most energetic of the Parliamentary generals, Sir William Waller, on Lansdown, near Bath, and on July 13 his army thoroughly overthrew the same commander at Roundway Down, near Devizes. On July 26 Bristol was stormed by Rupert. Hopton now hoped to be able to push on towards Kent without difficulty. In the north, too, the king's cause was prospering. On June 30, Newcastle defeated the Parliamentarians, Lord Fairfax and his son, Sir Thomas Fairfax, at Adwalton Moor, close to Bradford. He, too, hoped to be able to push on southwards. It seemed as if the king's plan would be carried out before the end of the summer, and that London would be starved into surrender.

15. The Siege of Gloucester. 1643.—Charles, however, failed to accomplish his design, mainly because the armies of Hopton and Newcastle were formed for the most part of recruits, levied respectively in the west and in the north of England, who cared more for the safety of their own property and families than for the king's cause. In the west, Plymouth, and in the north, Hull, were still garrisoned by the Parliament. Hopton's men were, therefore, unwilling to go far from their homes in Cornwall as long as their fields were liable to be ravaged by the garrison of Plymouth, and in the same way, Newcastle's men would not go far from Yorkshire as long as their fields were liable to be ravaged by the garrison of Hull. The Welshmen, also, who served in the king's own army found their homes endangered by a Parliamentary garrison at Gloucester, and were equally unwilling to push forward. Charles had, therefore, to take Plymouth, Hull, and Gloucester, if he could, before he could attack London. In August he laid siege in person to Gloucester. The London citizens at once perceived

that, if Gloucester fell, their own safety would be in peril, and amidst the greatest enthusiasm the London trained bands marched out to its relief. On September 5 the king raised the siege on their approach.

16. The First Battle of Newbury. 1643.—Charles did not, however, give up the game. Hurrying to Newbury, and reaching it before Essex could arrive there on his way back to London, he blocked the way of the Parliamentary army. Essex, whose provisions were running short, must force a passage or surrender. On September 20 a furious battle was fought outside Newbury, but when the evening came, though Essex had gained ground, the royal army still lay across the London road. It had, however, suffered heavy losses, and its ammunition being almost exhausted, Charles marched away in the night, leaving the way open for Essex to continue his retreat to London. In this battle Falkland was slain. He had sided with the king, not because he shared the passions of the more violent Royalists, but because he feared the intolerance of the Puritans. Charles's determination to conquer or perish rather than to admit of a compromise had saddened his mind, and he went about murmuring, 'Peace! peace!' He was weary of the times, he said, on the morning of the battle, but he would 'be out of it ere night.' He threw himself into the thick of the fight and soon found the death which he sought.

17. The Eastern Association. 1643.—Whilst in the south the resistance of Gloucester had weakened the king's power of attack, a formidable barrier was being raised against Newcastle's advance in the east. Early in the war, certain counties in different parts of the country had associated themselves together for mutual defence, and of these combinations the strongest was the Eastern Association, comprising the counties of Norfolk, Suffolk, Essex, Cambridge and Hertford. These five counties raised forces in common and paid them out of a common purse.

18. Oliver Cromwell. 1642-1643.—The strength which the Eastern Association soon developed was owing to its placing itself under the leadership of Oliver Cromwell, a member of Parliament, who had taken arms when the civil war began, and who soon distinguished himself by his practical sagacity. "Your troops," he said to Hampden after the flight of the Parliamentary cavalry at Edgehill, "are, most of them, old decayed serving

men and tapsters, and such kind of fellows, and their troops are gentlemen's sons, younger sons, and persons of quality; do you think that the spirits of such base and mean fellows will ever be able to encounter gentlemen that have honour and courage and resolution in them? You must get men of a spirit, and take it not ill what I say—I know you will not—of a spirit that is likely to go on as far as gentlemen will go; or else you will be beaten still." It was this idea which Cromwell, having been appointed a colonel, put in execution in the Eastern Association. He took for his soldiers sternly Puritan men, who had their hearts in the cause; but he was not content with religious zeal alone. Every one who served under him must undergo the severest discipline. After a few months he had a cavalry regiment under his orders so fiery and at the same time so well under restraint that no body of horse on either side could compare with it.

19. The Assembly of Divines. 1643.—Whilst the armies were fighting with varying success, Pym, with undaunted courage, was holding the House of Commons to its task of resistance. After the Royalist successes in June and July, the great peril of the Parliamentary cause made him resolve to ask the Scots for help. The Scots, thinking that if Charles overthrew the English Parliament he would next fall upon them, were ready to send an army to fight against the king, but only on the condition that the Church of England should become Presbyterian like their own. Already some steps had been taken in this direction, and on July 1 a Puritan Assembly of divines met at Westminster to propose ecclesiastical alterations, which were to be submitted to Parliament for its approval.

20. The Solemn League and Covenant. 1643.—In August, commissioners from the English Parliament, of whom the principal was Sir Henry Vane, arrived in Edinburgh to negotiate for an alliance. The result was a treaty between the two nations, styled the Solemn League and Covenant—usually known in England simply as the Covenant, but altogether different from the National Covenant, signed by the Scots only in **1638** (see p. [525](#)). The Scots wished the English to bind themselves to 'the reformation of religion in the Church of England according to the example of the best reformed churches'; in other words, according to the Presbyterian system. Vane, however, who was eager for religious liberty, insisted on slipping in the words, 'and according to the Word of God.' The

Scots could not possibly refuse to accept the addition, though, by so doing, they left it free to every Englishman to assert that any part of the Presbyterian system which he disliked was not 'according to the Word of God.' The Covenant, thus amended, was carried to England, and on September 25, five days after the battle of Newbury, was sworn to by the members of the House of Commons, and was soon afterwards ordered to be sworn to by every Englishman. Money was then sent to Scotland, and a Scottish army prepared to enter England before the opening of the next campaign.

21. The Irish War. 1641-1643.—Whilst Parliament looked for help to Scotland, Charles looked to Ireland. The insurrection in the north of Ireland in October, **1641** (see p. [533](#)) had been the affair of the Celtic natives; but in December they were joined by the Catholic lords and gentry of Norman or English descent. For the first time in Ireland there was a contest between Catholic and Protestant, instead of a contest between Celts on one side, and those who were not Celts on the other. The allies were not likely to be very harmonious, as the Celts wished to return to their old tribal institutions, and the Catholic lords wished to be predominant in Parliament in agreement with the king. For the present, however, they were united by the fear that the Puritan Parliament in England and the Puritan Government in Dublin (see p. [533](#)) would attempt to destroy them and their religion together. The outbreak of the Civil War in England, in **1642**, made it impossible for either king or Parliament to send sufficient troops to overpower them. In May they had chosen a Supreme Council to govern revolted Ireland, and in October a General Assembly of the Confederate Catholics, as they styled themselves, was held at Kilkenny. The Assembly petitioned Charles for the redress of grievances, and in January, **1643**, Charles opened negotiations with them, hoping to obtain an Irish army with which he might carry on war in England. In March they offered him 10,000 men if he would consent to allow a Parliament mainly composed of Catholics to meet at Dublin and to propose bills for his approval. Charles, who liked neither to make this concession nor to relinquish the hope of Irish aid, directed a cessation of arms in Ireland, in the hope that an agreement of some kind might ultimately be come to. In accordance with this cessation, which was signed on September 15, the coast-line from Belfast to Dublin, and a patch of land round Cork, was in the possession of the English forces, whilst a body of

Scots, under Monro, held Carrickfergus, but all the rest of Ireland was in the hands of the Confederates.

22. Winceby and Arundel. 1643-1644.—As yet Charles had to depend on his English forces alone. In the beginning of September, Newcastle, lately created a Marquis, laid siege to Hull. If Hull fell, he would be able to sweep down on the Eastern Association. The Earl of Manchester—known as Lord Kimbolton at the time of the attempt on the five members—had been appointed general of the army of that Association, with Cromwell as his lieutenant-general. On October 11 Cromwell defeated a body of Royalist horse at Winceby. On the 12th, Newcastle raised the siege of Hull. All danger of Newcastle's marching southwards was thus brought to an end. In the South, Hopton succeeded in reaching Sussex, and, in December, took Arundel Castle; but the place was retaken by Sir William Waller on January 6, **1644**. Here, too, the Royalist attack received a check, and there was no longer any likelihood that the king's forces would be able to starve out London by establishing themselves on the banks of the Thames.

23. The Committee of Both Kingdoms. 1644.—Pym, whose statesmanship had brought about the alliance with the Scots, died on December 8, **1643**. On January 19 the Scots crossed the Tweed again under the command of Alexander Leslie (see p. [526](#)), who had been created Earl of Leven when Charles visited Edinburgh in **1641**. On the 25th, Sir Thomas Fairfax defeated, at Nantwich, a force of English soldiers who had been freed from service in Ireland by the cessation of arms, and had been sent by Ormond, who had recently been named by Charles Lord Lieutenant of Ireland, to support the royalist cause in England. Pym's death, and the necessity of carrying on joint operations with the Scots, called for the appointment of some definite authority at Westminster, and, on February 16, a Committee of Both Kingdoms, composed of members of one or other of the two Houses, and also of Scottish Commissioners sent to England by the Parliament of Scotland, was named to control the operations of the armies of the two nations.

24. The Campaign of Marston Moor. 1644.—The spring campaign opened successfully for Parliament. In March, indeed, Rupert relieved Newark, which was hardly pressed by a Parliamentary force; but in March

Waller defeated Hopton at Cheriton near Alresford, whilst in the North, Sir Thomas Fairfax, together with his father, Lord Fairfax, seized upon Selby, and joined the Scots in besieging York, into which Newcastle had been driven. In May, Manchester stormed Lincoln, and he too joined the forces before York. At the king's headquarters there was deep alarm. Essex and Waller were approaching to attack Oxford, but Charles slipping out of the city before it was surrounded despatched Rupert to the relief of York. At Rupert's approach the besiegers retreated. On July 2 Rupert and Newcastle fought a desperate battle on Marston Moor, though they were decidedly outnumbered by their opponents. The whole of the right wing of the Parliamentarians, and part of the centre, fled before the Royalist attack; but on their left, Cromwell restored the fight, and drove Rupert in flight before him. Cromwell did not, however, as Rupert had done at Edgehill, waste his energies in the pursuit of the fugitives. Promptly drawing up, he faced round, and hurled his squadrons upon the hitherto victorious Royalists in the other parts of the field. The result was decisive. "It had all the evidence," wrote Cromwell, "of an absolute victory, obtained by the Lord's blessing upon the godly party principally. We never charged but we routed the enemy. God made them as stubble to our swords." All the north of England, except a few fortresses, fell into the hands of Parliament and the Scots.

25. **Presbyterians and Independents. 1644.**—Cromwell spoke of Marston Moor as a victory of the 'godly party.' The Westminster Assembly of Divines had declared strongly in favour of Presbyterianism, but there were a few of its members—only five at first, known as the five Dissenting Brethren—who stood up for the principles of the Separatists (see p. [470](#)) wishing to see each congregation independent of any general ecclesiastical organisation. From holding these opinions they were beginning to be known as Independents. These men now attracted to themselves a considerable number of the stronger-minded Puritans, such as Cromwell and Vane, of whom many, though they had no special attachment to the teaching of the Independent divines, upheld the idea of toleration, whilst others gave their adherence to one or other of the numerous sects which had recently sprung into existence. Cromwell, especially, was drawn in the direction of toleration by his practical experience as a soldier. It was intolerable to him to be forbidden to promote a good officer on the ground that he was not a

Presbyterian. On one occasion he was asked to discard a certain officer because he was an Anabaptist. "Admit he be," he had replied; "shall that render him incapable to serve the public? Take heed of being too sharp, or too easily sharpened by others, against those to whom you can object little but that they square not with you in every opinion concerning matters of religion." He had accordingly filled his own regiments with men of every variety of Puritan opinion, choosing for promotion the best soldier, and not the adherent of any special Church system. These he styled 'the godly party,' and it was by the soldiers of 'the godly party,' so understood, that Marston Moor had been won.

26. Essex's Surrender at Lostwithiel. 1644.—Essex was the hope of the Presbyterians who despised the sects and hated toleration. Being jealous of Waller, he left him to take Oxford alone, if he could, and marched off to the West, to accomplish what he imagined to be the easier task of wresting the western counties from the king. Charles turned upon Waller, and fought an indecisive action with him at Cropredy Bridge, after which Waller's army, being composed of local levies with no heart for permanent soldiering, melted away. Charles then marched in pursuit of Essex, and surrounded him at Lostwithiel, in Cornwall. Essex's provisions fell short; and on September 2, though his horse cut their way out, and he himself escaped in a boat, the whole of his infantry capitulated.

27. The Second Battle of Newbury. 1644.—London was thus laid bare, and Parliament hastily summoned Manchester and the army of the Eastern Association to its aid. Manchester, being good-natured and constitutionally indolent, longed for some compromise with Charles which might bring about peace. Cromwell, on the other hand, perceived that no compromise was possible with Charles as long as he was at the head of an army in the field. A second battle of Newbury was fought, on October 27, with doubtful results: Manchester showed little energy, and the king was allowed to escape in the night. Cromwell, to whom his sluggishness seemed nothing less than treason to the cause, attacked Manchester in Parliament, not from personal ill-will, but from a desire to remove an inefficient general from his command in the army. Two parties were thus arrayed against one another: on the one side the Presbyterians, who wanted to suppress the sects and, if possible, to make peace; and on the other side the Independents, who

wanted toleration, and to carry on the war efficiently till a decisive victory had been gained.

CHAPTER XXXV **THE NEW MODEL ARMY. 1644-1649**

LEADING DATES **Reign of Charles I., 1625-1649**

Battle of Naseby June 14, 1645
Glamorgan's Treaty Aug. 25, 1645
Charles in the hands of the Scots May 5, 1646
Charles surrendered by the Scots Jan. 30, 1647
Charles carried off from Holmby June 5, 1647
The Army in Military Possession of London Aug. 7, 1647
Charles's Flight from Hampton Court Nov. 11, 1647
The Second Civil War April to Aug., 1648
Pride's Purge Dec. 6, 1648
Execution of Charles Jan. 30, 1649

1. The Self-denying Ordinance and the New Model. 1645.—Cromwell dropped his attack on Manchester as soon as he found that he could attain his end in another way. A proposal was made for the passing of a Self-denying Ordinance,[\[23\]](#) which was to exclude all members of either House from commands in the army. The Lords, knowing that members of their House would be chiefly affected by it, threw it out, and the Commons then proceeded to form a New Model Army—that is to say, an army newly organised, its officers and soldiers being chosen solely with a view to military efficiency. Its general was to be Sir Thomas Fairfax, whilst the lieutenant-general was not named; but there can be little doubt that the post was intended for Cromwell. After the Lords had agreed to the New Model,

they accepted the Self-denying Ordinance in an altered form, as, though all the existing officers were directed to resign their posts, nothing was said against their re-appointment. Essex, Manchester, and Waller resigned, but when the time came for Cromwell to follow their example, he and two or three others were appointed to commands in the new army. Cromwell became Lieutenant-General, with the command of the cavalry. The New Model was composed partly of pressed men, and was by no means, as has been often said, of a sternly religious character throughout; but a large number of decided Puritans had been drafted into it, especially from the army of the Eastern Association; and the majority of the officers were Independents, some of them of a strongly Sectarian type. The New Model Army had the advantage of receiving regular pay, which had not been the case before; so that the soldiers, whether Puritans or not, were now likely to stick to their colours.

2. **Milton's 'Areopagitica.'** 1644.—By Cromwell, who in consequence of his tolerance was the idol of the Sectarians in the army, religious liberty had first been valued because it gave him the service of men of all kinds of opinions. On November 24, 1644, Milton, some of whose books had been condemned by the licensers of the press appointed by Parliament, issued *Areopagitica*, in which he advocated the liberty of the press on the ground that excellence can only be reached by those who have free choice between good and evil. "He that can apprehend," he wrote, "and consider vice with all her baits and seeming pleasures, and yet abstain—he is the true warfaring Christian. I cannot praise a fugitive and cloistered virtue, unexercised and unbreathed, that never sallies out and seeks her adversary, but slinks out of the race, when that immortal garland is to be run for, not without dust and heat." Liberty was good for religion as much as it was for literature. "These are the men," he continued, "cried out against for schismatics and sectaries, as if, while the temple of the Lord was building, there should be a sort of irrational men who could not consider there must be many schisms and many dissections made in the quarry and in the timber ere the house of God can be built." The perfection of the building consisted "in this—that out of many moderate varieties and brotherly dissimilitudes that are not vastly disproportional, arises the goodly and the graceful symmetry that commends the whole pile and structure."

3. The Execution of Laud. 1645.—In Parliament, at least, there was one direction in which neither Presbyterian nor Independent was inclined to be tolerant. They had all suffered under Laud, and Laud's impeachment was allowed to go on. The House of Lords pronounced sentence against him, and on January 10, **1645**, he was beheaded. The Presbyterians had the majority in the House of Commons, and they were busy in enforcing their system, as far as Parliamentary resolutions would go. The Independents had to wait for better times.

4. Montrose and Argyle. 1644.—For the present, however, the two parties could not afford to quarrel, as a powerful diversion in the king's favour was now threatening them from Scotland. The Marquis of Montrose, who, in the Bishops' Wars, had taken part with the Covenanters, had grown weary of the interference of the Scottish Presbyterian clergy with politics, and still more weary of the supremacy in Scotland of the Marquis of Argyle, who had all the organisation of the Presbyterian Church at his disposal. Montrose saw that, though Argyle was too strong for him in the Lowlands, it was possible to assail him with effect in the Highlands, where he had made many enemies. In the Lowlands Argyle was regarded as a Scottish nobleman. In the Highlands he was the chief of the clan of the Campbells, which had often unscrupulously extended its borders at the expense of its neighbours, especially at the expense of the various clans of the Macdonalds. Montrose therefore hoped that if he threw himself into the Highlands, he might make use of the enmity of these clans against the Campbells to crush Argyle and to exalt the king.

5. Montrose in the Highlands. 1644-1645.—In **1644**, shortly after the battle of Marston Moor, Montrose made his way to the Highlands with only two followers. He was the first to discover the capacity of the Highlanders for war. With their help, and with the help of a trained Irish contingent, mostly composed of the descendants of Highlanders who had emigrated to Ireland, he beat the Scottish forces at Tippermuir and Aberdeen, and then, crossing the mountains, amidst the snows of winter, harried the lands of the Campbells. On February 2, **1645**, he defeated Argyle's clansmen at Inverlochy, whilst Argyle himself—who was no warrior—watched their destruction from a boat. Wherever Montrose went the heavy Lowland troops toiled after him in vain. On May 9 he overthrew another army under

Baillie at Auldearn. Leven's Scottish army in Yorkshire had enough to do to bar the way against Montrose in case of his issuing from the mountains and attempting to join forces with Charles in England. With any other troops Montrose would probably have made the attempt already; but his Highlanders were accustomed to return home to deposit their booty in their own glens as soon as a battle had been won, and, therefore, victorious as he had been, he was unable to leave the Highlands.

6. The New Model Army in the Field. 1645.—The New Model army started on its career in April. Cromwell, with his highly-trained horse, swept round Oxford, cutting off Charles's supplies; whilst Fairfax was sent by the Committee of Both Kingdoms (see p. [542](#)) to the relief of Taunton, which had been gallantly holding out under Robert Blake. A detachment of Fairfax's force sufficed to set Taunton free. His main force was stupidly sent by the Committee to besiege Oxford, though the king was marching northwards, and might fall upon Leven's Scots as soon as he reached them. On May 31, however, Charles turned sharply round, and stormed Leicester. The popular outcry in London compelled the Committee to allow their commander-in-chief to act on his own discretion; and Fairfax, abandoning the siege of Oxford, marched straight in pursuit of the Royal army.

7. The Battle of Naseby. 1645.—On June 14 Fairfax overtook the king at Naseby. In the battle which followed, the Parliamentary army was much superior in numbers, but it was largely composed of raw recruits (see p. [545](#)), and its left wing of cavalry—under Ireton, who, in the following year, became Cromwell's son-in-law—was routed by the king's right, under Rupert. As at Edgehill, Rupert galloped hard in pursuit, without looking back. The Parliamentary infantry in the centre was by this time pressed hard, but Cromwell, on the right, at the head of a large body of cavalry, scattered the enemy's horse before him. Then, as at Marston Moor, he halted to see how the battle went elsewhere. Sending a detachment to pursue the defeated Royalists, he hurled the rest of his horse on the king's foot, who were slowly gaining ground in the centre. In those days, when half of every body of infantry fought with pikes, and the other half with inefficient muskets, it was seldom that foot-soldiers could withstand a cavalry charge in the open, and the whole of Charles's infantry, after a short resistance, surrendered on the spot. Rupert returned only in time to see that defeat was

certain. The king, with what horse he could gather round him, made off as fast as he could. The stake played for at Naseby was the crown of England, and Charles had lost it.

8. The Results of Naseby. 1645.—Disastrous as Charles's defeat had been, he contrived to struggle on for some months. The worst thing that befel him after the battle was the seizure of his cabinet containing his correspondence, which revealed his constant intrigues to bring alien armies—French, Lorrainers, and Irish—into England. It was, therefore, in a more determined spirit than ever that Parliament carried on the war. After retaking Leicester, on June 18, Fairfax marched on to the West, where the king's eldest son, Charles, Prince of Wales, had been since the summer of **1644**, and where debauched and reckless Goring was at the head of a Royalist army. On July 10 Fairfax routed him at Langport, and on July 23 took Bridgwater. Then, leaving forces to coop up Goring's remaining troops, Fairfax turned eastward, took Sherborne on August 2, whilst the Scots, who after Naseby had marched southwards, were besieging Hereford. On September 1, however, the king relieved Hereford, and fancied he might still retrieve his fortunes. On September 10, he received a severe blow. Fairfax stormed the outer defences of Bristol, and Rupert, who commanded the garrison, at once capitulated. There can be little doubt that he had no other choice; but Charles would hear no excuse, and dismissed him from his service.

9. Charles's Wanderings. 1645.—Charles's hopes were always springing up anew, and now that Rupert had failed him, he looked to Montrose for deliverance. Montrose, on July 2, had won another victory at Alford, and, on August 15, a still more crushing victory at Kilsyth, after which he had entered Glasgow, and received the submission of the Lowlands. Charles marched northward to meet him, but on the way was met and defeated by the Parliamentary general, Poyntz, on Rowton Heath. Almost immediately afterwards he heard the disastrous news that David Leslie, an able officer who had won renown in the German wars, and had fought well at Marston Moor, had been despatched from the Scottish army in England, had fallen upon Montrose at Philiphaugh, at a time when he had but a scanty following with him, and had utterly defeated him. After this Cromwell reduced the South, capturing Winchester and Basing House,

whilst Fairfax betook himself to the siege of Exeter. In October, Charles, misled by a rumour that Montrose had recovered himself, made one more attempt to join him; but he was headed by the enemy, and compelled to retreat to Oxford, where, with all his followers ardently pleading for peace, he still maintained that his conscience would not allow him to accept any terms from rebels, or to surrender the Church of England into their hands.

10. Glamorgan in Ireland. 1645-1646.—Not one of Charles's intrigues with foreign powers did him so much harm as his continued efforts to bring over an Irish army to fight his battles in England. In **1645** he despatched the Roman Catholic Earl of Glamorgan to Ireland, giving him almost unlimited powers to raise money and men, and to make treaties with this object, but instructing him to follow the advice of Ormond. When Glamorgan arrived in Ireland, in August, he found that the Confederate Catholics were resolved to demand that all the churches in Ireland, except the few still in the hands of the English, should be given permanently to the Catholics, and that permission should be granted to their clergy to exercise jurisdiction in matters spiritual and ecclesiastical. Though Glamorgan knew that Charles had never approved of these concessions, he signed a treaty, on August 25, **1645**, in which he granted all that was asked, in consideration of an engagement by the Confederates to place him at the head of 10,000 Irishmen destined for England. Before anything had been done, a Papal Nuncio, Rinuccini, landed in Ireland and required fresh concessions, to which Glamorgan readily assented. On January 16, **1646**, however, before Glamorgan's army was ready to start, the treaty which he had made in August became known at Westminster; and, though Charles promptly disavowed having authorised its signature, there remained a grave suspicion that he was not as innocent as he pretended to be.



A gentleman.



A gentlewoman.

Ordinary civil costume *temp.* Charles I.: from Speed's map of 'The Kingdom of England,' 1646.

11. The King's Flight to the Scots. 1646.—In the beginning of **1646** the Civil War virtually came to an end. On March 14, Charles's army in the West surrendered to Fairfax in Cornwall, and in the same month the last force which held the field for him was overthrown at Stow-on-the-Wold. Many fortresses still held out, but, as there was no chance of relief, their capture was only a question of time; and though the last of them—Harlech Castle—did not surrender till **1647**, there was absolutely no doubt what the result would be. Charles, now again at Oxford, had but to choose to whom he would surrender. He chose to give himself up to the Scots, whose army was at the time besieging Newark. He seems to have calculated that they would replace him on the throne without insisting on very rigorous conditions, thinking that they would rather restore him to power than allow the English army, formidable as it was, to have undisputed authority in England, and possibly to crush the independence of Scotland. The Scots, on

the other hand, seem to have thought that, when Charles was once in their power, he must, for his safety's sake, agree to establish Presbyterianism in England, by which means the party which would of necessity lean for support on themselves would have the mastery in England. On May 5, **1646**, Charles rode in to the quarters of the Scottish army at Southwell, a few miles from Newark.



A citizen.



A citizen's wife.

Ordinary civil costume *temp.* Charles I.: from Speed's map of 'The Kingdom of England', 1646.

12. **Charles at Newcastle. 1646.**—Newark at once surrendered, and Charles was conveyed to Newcastle, where, as he refused to consent to the establishment of Presbyterianism in England, he was practically treated as a prisoner. At the end of **1645** and the beginning of **1646** there had been fresh elections to fill up seats in the House of Commons left vacant by Royalists expelled for taking the king's part; but, though many Independent officers were chosen, there was still a decidedly Presbyterian majority. On July 14 propositions for peace were delivered to Charles on behalf of Parliament and the Scots. He was to surrender his power over the militia for twenty years, to take the Covenant, and to support Presbyterianism in the Church. Charles, in his correspondence with his wife, showed himself more ready to abandon the militia than to abandon episcopacy; whilst she, being a Roman Catholic, and not caring for bishops whom she counted as heretics, advised him at all hazards to cling to the command of the militia. Charles hoped

everything from mere procrastination. "All my endeavours," he wrote to the queen, "must be the delaying of my answer till there be considerable parties visibly formed"—in other words, till Presbyterians and Independents were ready to come to blows, and, therefore, to take him at his own price. In order to hasten that day, he made in October a proposal of his own, in which he promised, in case of his being restored to power, to establish Presbyterianism for three years, during which time the future settlement of the Church might be publicly discussed. He, however, took care to make no provision for the very probable event of the discussion leaving parties as opposed to one another as they had been before the discussion was opened, and it was obvious that, as he had never given the royal assent to any Act for the abolition of episcopacy, the whole episcopal system would legally occupy the field when the three years came to an end. The Presbyterians would thus find themselves checkmated by an unworthy trick.



A countryman.



A countrywoman.

Ordinary civil costume *temp.* Charles I.: from Speed's map of 'The Kingdom of England,' 1646.

13. The Removal of the King to Holmby. 1647.—The Scots, discontented with the king's refusal to accept their terms, began to open their ears to an offer by the English Parliament to pay them the money owing to them for their assistance, on the open understanding that they would leave England, and the tacit understanding that they would leave the king behind them. Once more they implored Charles to support Presbyterianism, assuring him that, if he would, they would fight for him to a man. On his refusal, they accepted the English offer, took their money, and on January 30, **1647**, marched away to their own country, leaving Charles in the hands of Commissioners of the English Parliament, who conveyed him to Holmby House, in Northamptonshire.

14. Dispute between the Presbyterians and the Army. 1647.—The leading Presbyterians, of whom the most prominent was Holles (see p. [535](#)), were so anxious to come to terms with the king, that before the end of January they accepted Charles's illusory proposal of a three years' Presbyterianism (see p. [552](#)), offering to allow him to come to London or its neighbourhood in order to carry on negotiations. The fact was, that they were now more afraid of the army than of the king, believing it to be ready to declare not merely for toleration of the sects, but also for a more democratic form of government than suited many of the noblemen and gentlemen who sat on the benches of the Lords and Commons. In March the Commons voted that only a small body of cavalry should be kept up in England, and no infantry at all, except a small force needed to garrison the fortresses, and also that when the infantry regiments were broken up the disbanded soldiers should be asked to volunteer for service in Ireland. Of the cavalry in England Fairfax was to be general, but no officer under him was to hold a higher rank than that of colonel, a rule which would enable Cromwell's opponents in Parliament to oust him from his position in the army. So strong was the feeling in the nation for peace, and for the diminution of the heavy burden of taxation which the maintenance of the army required, that the Presbyterians would probably have gained their object had they acted with reasonable prudence, as a large number of soldiers had no sympathy with the religious enthusiasts in the ranks. There were, however, considerable arrears of pay owing to the men, and had they been paid in ready money, and an ordinance passed indemnifying them for acts done in war-time, most, if not all, would, in all probability, either have

gone home or have enlisted for Ireland. Instead of doing this, Parliament only voted a small part of the arrears, and fiercely denounced the army for daring to prepare a petition to Fairfax asking for his support in demanding full pay and indemnity. In a few weeks Parliament and army were angrily distrustful of one another, and the soldiers, organising themselves, chose representatives, who were called Agitators^[24] or agents, to consult on things relating to their present position.

15. Cromwell and the Army. 1647.—Cromwell's position during these weeks was a delicate one. He sympathised not only with the demands of the soldiers for full pay, but also with the demand of the religious enthusiasts for toleration. Yet he had a strong sense of the evil certain to ensue from allowing an army to overthrow the civil institutions of the country,^[25] and both as a member of the House of Commons and as an officer he did his best to avert so dire a catastrophe. In March he had even proposed to leave England and take service in Germany under the Elector Palatine, the son of Frederick and Elizabeth (see p. ⁴⁸⁸). As this plan fell through, he was sent down, in May, with other commissioners, to attempt to effect a reconciliation between the army and the Parliament. In this he nearly succeeded; but a few days after his return to Westminster Parliament decided to disband the army at once, without those concessions which, in consequence of Cromwell's report, it at first seemed prepared to make. The soldiers, finding that only a small portion of their arrears was to be paid, refused to disband, and before the end of May everything was in confusion.

16. The Abduction of the King. 1647.—The fact was that the Presbyterian leaders fancied themselves masters of the situation. Receiving a favourable answer from the king to the proposals made by them in January (see p. ⁵⁵³), they entered into a negotiation with the French ambassador and the Scottish commissioners to bring about a Scottish invasion of England on the king's behalf, and this invasion was to be supported by a Presbyterian and Royalist rising in England. In the meanwhile Charles was to be conveyed away from Holmby to preserve him from the army. This design was betrayed to Cromwell, and, in consequence, he secretly gave instructions to a certain Cornet Joyce to take a body of cavalry to hinder the Scots and Presbyterians from carrying off the king, but only, as it seems, to remove him from Holmby if force was likely to be used

on the other side. On June 3, Joyce, with a picked body of horse, appeared at Holmby, where he received news which led him to think that a Presbyterian body of troops was approaching with the intention of taking possession of the king's person. Late in the evening, therefore, imagining that the danger foreseen as possible in Cromwell's instructions had really arrived, he invited the king to leave Holmby the next morning. When the morning came Charles, stepping out on the lawn, asked Joyce for a sight of the commission which authorised him to give such unexpected orders. "There is my commission," answered Joyce, pointing to his soldiers. There was no resisting such an argument, and Charles was safely conducted to Newmarket.

17. The Exclusion of the Eleven Members. 1647.—Parliament, dissatisfied with this daring act, began to levy troops in London, and reorganised the London trained bands, excluding all Independents from their ranks. The army declared that eleven members of the House of Commons—the leaders of the Presbyterian party—were making arrangements for a new war, and sent in charges against them. The eleven members, finding themselves helpless, asked leave of absence. The City of London was as Presbyterian as Parliament. A mob burst into the House, and, under stress of violence, the Independent members, together with the Speakers of the two Houses, left Westminster and sought protection with the army. The Presbyterians kept their seats, and voted to resist the army by force. The army took advantage of the tumult to appear on the scene as the vindicators of the liberties of Parliament and, marching upon London, passed through the City on August 7, leaving sufficient forces behind to occupy Westminster and the Tower. The eleven Presbyterian members sought refuge on the Continent.

18. The Heads of the Proposals. 1647.—In the meanwhile Cromwell was doing his best to come to an understanding with Charles. A constitutional scheme, to which was given the name of *The Heads of the Proposals*, was drawn up by Ireton and presented in the name of the army to the king. It provided for a constant succession of biennial Parliaments with special powers over the appointment of officials, and it proposed to settle the religious difficulty by giving complete religious liberty to all except Roman Catholics. Those who chose to do so might submit to the

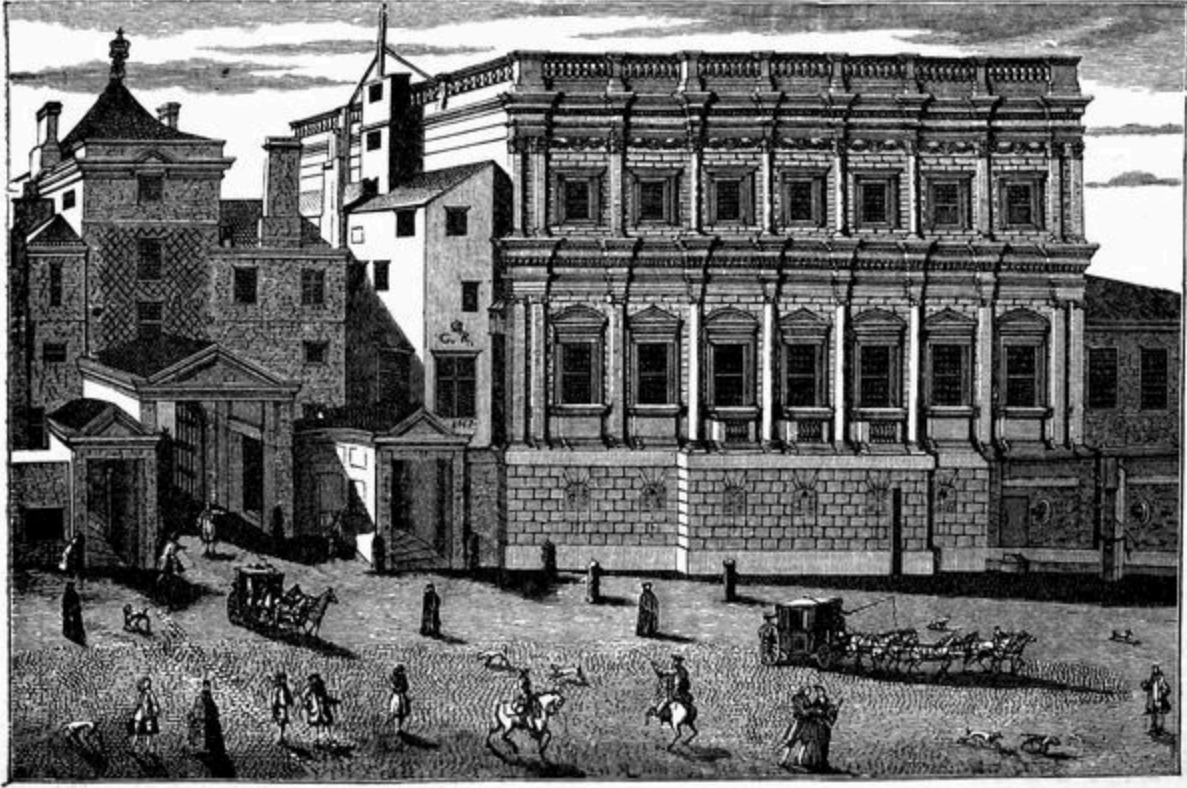
jurisdiction of bishops, and those who chose to do so might submit to the jurisdiction of a presbytery; but no civil penalties were to be inflicted on those who objected either to Episcopacy or to Presbyterianism or to both.

19. The King's Flight to the Isle of Wight. 1647.—No proposals so wise and comprehensive had yet been made, but neither Charles nor the Parliament was inclined to accept them. Many of the Agitators, finding that there was still a Presbyterian majority in Parliament, talked of using force once more and of purging the Houses of all the members who had sat in them whilst the legitimate Speakers were absent. In the meanwhile the king grew more hostile to Cromwell every day, and entered secretly into a fresh negotiation with the Scottish commissioners who formed part of the Committee of both Kingdoms, asking them for the help of a Scottish army. The more advanced Agitators proposed a still more democratic constitution than *The Heads of the Proposals*, under the name of *The Agreement of the People*, and attempted to force it upon their officers by threats of a mutiny. At the same time, they and some of the officers talked of bringing the king to justice for the bloodshed which he had caused. Charles, becoming aware of his danger, fled on November 11 to the Isle of Wight, thinking that it would be easy to escape whenever he wished. He was, however, detained in Carisbrooke Castle, where he was treated very much as a prisoner.

20. The Scottish Engagement, and the Vote of No Addresses. 1647-1648.—Cromwell put down the mutiny in the army, but he learnt that the king was intriguing with the Scots, and at last abandoned all hope of settling the kingdom with Charles's help. On December 26, **1647**, Charles entered into an *Engagement* with the Scottish commissioners. On the condition of having toleration for his own worship, according to the Prayer Book, he agreed to establish Presbyterianism in England for three years, and to suppress all heresy. The Scottish army was then to advance into England to secure the king's restoration to power in accordance with the wishes of a free Parliament, to be chosen after the existing one had been dissolved. The English Parliament, indeed, had no knowledge of this engagement, but finding that Charles refused to accept their terms, they replied, on January 17, **1648**, by a Vote of No Addresses, declaring that they would make no more proposals to the king.

21. The Second Civil War. 1648.—The majority of Englishmen were, on the contrary, ready to take Charles at his word. Men were weary of being controlled by the army, and still more of paying the taxes needed for the support of the army. There were risings in Wales and Kent, and a Scottish army prepared to cross the borders under the Duke of Hamilton. The English army had, however, made up its mind that Charles should not be restored. Fairfax put down the rising in Kent after a sharp fight at Maidstone, and drove some of the fugitives across the Thames into Essex, where being outnumbered they took refuge in Colchester. Fairfax, following them up, laid siege to Colchester, though the Londoners threatened to rise in his rear, and a great part of the fleet deserted to the Prince of Wales, who came from France to take the command. In the meanwhile Cromwell suppressed the insurrection in Wales, and then marched northwards. On August 17, with less than 9,000 men, he fell upon the 24,000 who followed Hamilton, and, after three days' fighting, routed them utterly. On August 28 Colchester surrendered to Fairfax.

22. Pride's Purge. 1648.—The army had lost all patience with the king, and it had also lost all patience with Parliament. Whilst Fairfax and Cromwell were fighting, the Houses passed an ordinance for the suppression of heresy, and opened the negotiations with the king which bear the name of the Treaty^[26] of Newport. The king only played with the negotiations, trying to spin out the time till he could make his escape, in order that he might, with safety to his own person, obtain help from Ireland or the Continent. The army was tired of such delusions, seeing clearly that there could be no settled government in England as long as Charles could play fast-and-loose with all parties, and it demanded that he should be brought to justice. By military authority he was removed on December 1 from Carisbrooke to the desolate Hurst Castle, where no help could reach him. On December 5 the House of Commons declared for a reconciliation with the king. On the 6th a body of soldiers, under the command of Colonel Pride, forced it to serve the purposes of the army by forcibly expelling all members who took the side of the king. This act of violence is commonly known as Pride's Purge.



View of the west side of the Banqueting House, Whitehall: from an engraving by Terasson, dated 1713. It is believed that Charles came out through the window above which a crown is marked.

23. The High Court of Justice. 1649.—On January 1, **1649**, the purged House proposed to appoint a High Court of Justice to try Charles, but the Lords refused to take part in the act. On the 4th the Commons declared that the people were, under God, the source of all just power, and that the House of Commons, being chosen by the people, formed the supreme power in England, having no need of either king or House of Lords. Never was constitutional pedantry carried further than when this declaration was issued by a mere fragment of a House which, even if all its members had been present, could only claim to have represented the people some years before. On January 6 a special High Court of Justice was constituted by the mutilated House of Commons alone, for the trial of the king. On January 19 Charles was brought up to Westminster. Only the sternest opponents of Charles would consent to sit on the Court which tried him. Of 135 members named, only 67 were present when the trial began. Fairfax was amongst those appointed, but he absented himself, and when his name was called, his wife cried out, "He is not here, and will never be; you do wrong to name him."



Execution of King Charles I., January 30, 1649: from a contemporary broadside.

24. The King's Trial and Execution. 1649.—Charles's accusers had on their side the discredit which always comes to those who, using force, try to give it the appearance of legality. Charles had all the credit of standing up for the law, which, in his earlier life, he had employed to establish absolutism. He refused to plead before the Court, on the ground that it had no jurisdiction over a king. His assailants fell back on the merest technicalities. Instead of charging him with the intrigues to bring foreign armies into England, of which he had been really guilty, they accused him of high treason against the nation, because, forsooth, he had appeared in arms against his subjects in the first Civil War. The Court, as might have been expected, passed sentence against him, and, on January 30, he was beheaded on a scaffold in front of his own palace at Whitehall.

25. Results of Charles's Execution. 1649.—With the king's execution all that could be permanently effected by his opponents had been accomplished. When the Long Parliament met, in November **1640**, all Englishmen had combined to bring Charles to submit to Parliamentary control. After the summer of **1641** a considerable part of the nation, coming to the conclusion that Charles was ready to use force rather than to submit, took arms against him to compel him to give way. Towards the end of **1647**

a minority of Englishmen, including the army, came to the conclusion that it was necessary to deprive Charles of all real power, if the country was not to be exposed to constantly recurring danger whenever he saw fit to re-assert his claims to the authority which he had lost. In **1648** a yet smaller minority came to the conclusion that security could only be obtained if he were deprived of life. In depriving the king of life all had been done which force could do. The army could guard a scaffold, but it could not reconstruct society. The vast majority of that part of the nation which cared about politics at all disliked being ruled by an army even more than it had formerly disliked being ruled by Charles, and refused its support to the new institutions which, under the patronage of the army, were being erected in the name of the people.

CHAPTER XXXVI

THE COMMONWEALTH AND PROTECTORATE. 1649-1660

LEADING DATES

The Establishment of the Commonwealth
1649

Cromwell in Ireland 1649

Battle of Dunbar Sept. 3, 1650

Battle of Worcester Sept. 3, 1651

The Long Parliament dissolved by Cromwell
April 20, 1653

The so-called Barebones Parliament July 4 to
Dec. 11, 1653

Establishment of the Protectorate Dec. 16,
1653

The First Protectorate Parliament Sept. 3,
1654, to Jan. 22, 1655

Treaty of Alliance with France Oct. 24, 1655

The Second Protectorate Parliament Sept. 17,
1656, to Feb. 4, 1658

Death of Oliver Cromwell Sept. 3, 1658

Richard Cromwell's Protectorate Sept. 3,
1658, to April 22, 1659
The Long Parliament Restored May 7 to Oct.
13, 1659
Military Government Oct. 13 to Dec. 26, 1659
The Long Parliament a Second Time Restored
Dec 26, 1659, to March 16, 1660
The Declaration of Breda April 4, 1660
Meeting of the Convention Parliament April
14, 1660
Resolution that the Government is by King,
Lords, and Commons May 1, 1660

1. **Establishment of the Commonwealth. 1649.**—It was not to be expected that the men in Parliament or in the army by whom great hopes of improvement were entertained should discover that they had done all that it was possible for them to do. They believed it to be still in their power to regenerate England. The House of Commons declared England to be a Commonwealth, 'without a king or House of Lords,' and, taking the name of Parliament for itself, appointed forty-one persons to be a Council of State, charged with the executive government, and renewed annually. Most members of the Council of State were also members of Parliament; and, as the attendance in Parliament seldom exceeded fifty, the Councillors of State (if they agreed together) were able to command a majority in Parliament, and thus to control its decisions. Such an arrangement was a mere burlesque on Parliamentary institutions, and could hardly have existed for a week if it had not been supported by the ever-victorious army. In the army, indeed, it had its opponents, who, under the name of Levellers, called out for a more truly democratic government; but they had no man of influence to lead them. Cromwell had too much common sense not to perceive the difficulty of establishing a democracy in a country in which that form of government had but few admirers, and he suppressed the Levellers with a strong hand. In quiet times, Cromwell would doubtless have made some attempt to place the constitution of the Commonwealth on a more satisfactory basis, but for the present it needed to be defended rather than improved.

2. Parties in Ireland. 1647-1649.—In Ireland the conjunction formed at the end of **1641** between the Catholic lords and the native Irish broke down in **1647**. Rinuccini, the Papal Nuncio (see p. [550](#)), discovered that Ireland could only be organised to resist English Puritanism under the authority of the Papal clergy, as there was not sufficient union amongst the Irish themselves to admit the existence of lay national institutions. He was unable to carry his idea into effect. Ormond, the king's Lord-lieutenant, who was himself a Protestant, left Ireland, and handed over Dublin to the Parliamentary troops under Michael Jones, rather than see it in the hands of Rinuccini and the Celts. Even the Catholic lords objected to become the servants of a clerical State, and Rinuccini, baffled on every side, was obliged to return to Italy. In September, **1648**, Ormond returned to Ireland, where he soon afterwards entered into a close alliance with the Catholic lords, who were to receive religious toleration, and in return to defend the king. After the king's execution, Charles II. was proclaimed in Ireland. Ormond, having now an army in which Irish Catholics and English Royalist Protestants were combined, hoped to be able to overthrow the Commonwealth both in Ireland and in England.

3. Cromwell in Ireland. 1649-1650.—To Cromwell such a situation was intolerable. His Puritan zeal led him to regard with loathing Ormond's league with the Catholics, and he was too thorough an Englishman not to resolve that, if there was to be a struggle, England must conquer Ireland, and not Ireland England. On August 15 he landed at Dublin. On September 11 he stormed Drogheda, where he put 2,000 men to the sword, a slaughter which was in strict accordance with the laws of war of that day, which left garrisons refusing, as that of Drogheda had done, to surrender an indefensible post, when summoned to do so, to the mercy or cruelty of the enemy. Cromwell had a half-suspicion that some farther excuse was needed. "I am persuaded," he wrote, "that this is a righteous judgment of God upon those barbarous wretches who have imbrued their hands in so much innocent blood; and that it will tend to prevent the effusion of blood for the future—which are the satisfactory grounds to such actions, which otherwise cannot but work remorse and regret." At Wexford, where the garrison continued to defend itself after the walls had been scaled, there was another slaughter. Town after town surrendered. In the spring of **1650** Cromwell left Ireland. The conquest was prosecuted by his successors,

Ireton and Ludlow, with savage effectiveness; and when at last, in **1652**, the war came to an end, a great part of three out of the four provinces of Ireland was confiscated for the benefit of the conquering race. The Catholic landowners and other persons who had borne arms against the Parliament were driven into the wilds of Connaught, to find there what sustenance they could.

4. Montrose and Charles II. in Scotland. 1650.—In **1650** Cromwell's services were needed in Scotland. In the spring, Montrose reappeared in the Highlands, but was betrayed, carried to Edinburgh, and executed as a traitor. On June 24 Charles II. landed in Scotland, and, on his engaging to be a Presbyterian king, found the whole nation ready to support him. Fairfax declined to lead the English army against Charles, on the plea that the Scots had a right to choose their own form of government. Cromwell had no such scruples, knowing that, if Charles were once established in Scotland, the next thing would be that the Scots would try to impose their form of government on England. Cromwell, being appointed General in the room of Fairfax, marched into Scotland, and attempted to take Edinburgh; but he was out-manœuvred by David Leslie (see p. [549](#)), who was now the Scottish commander, and, to save his men from starvation, had to retreat to Dunbar.

5. Dunbar and Worcester. 1650-1651.—Cromwell's position at Dunbar was forlorn enough. The Scots seized the passage by which alone he could retreat to England by land, whilst the mass of their host was posted inaccessibly on the top of a long hill in front of him. If he sailed home, his flight would probably be the signal for a rising of all the Cavaliers and Presbyterians in England. The Scots, however, relieved him of his difficulties. They were weary of waiting, and, on the evening of September 2, they descended the hill. Early on the morning of the 3rd, Cromwell, crying "Let God arise; let His enemies be scattered," charged into their right wing before the whole army had time to draw up in line of battle, and dashed them into utter ruin. Edinburgh surrendered to him, but there was still a large Scottish army on foot, and, in August **1651**, its leaders, taking Charles with them, pushed on into England, where they hoped to raise an insurrection before Cromwell could overtake them. On they marched, with Cromwell following hard upon their heels. Fear kept those who

sympathised with Charles from rising, and, at Worcester, on September 3—the anniversary of the battle of Dunbar—Cromwell absolutely destroyed the Scottish army. Those who were not slain were taken prisoners, and many of the prisoners sent as slaves to Barbadoes. "The dimensions of this mercy," wrote Cromwell, "are above my thoughts. It is, for aught I know, a crowning mercy." He spoke truly. Never again was he called on to draw sword in England. Charles succeeded in making his escape to France, on one occasion concealing himself amidst the thick leafage of an oak, whilst his pursuers rode unwittingly below.



A coach of the middle of the seventeenth century: from an engraving by John Dunstall.

6. The Navigation Act. 1651.—Ever since the days of James I. there had existed a commercial rivalry between England and the Dutch Republic, and disputes relating to trade constantly arose. Latterly these disputes had been growing more acute. Early in **1648** Spain came to terms with the Dutch by acknowledging their independence, and, later in the same year, the Thirty Years' War in Germany was brought to an end by the Peace of Westphalia, though war between France and Spain still continued. Henceforth religion was no longer made the pretext for war on the Continent; and States contended with one another because they wished either to annex territory, or to settle some trade dispute in their own favour. In **1650** the Stadholder,

William II.—the son-in-law of Charles I.—died, and the office which he held was abolished, the government of the Dutch Republic falling completely under the control of the merchants of the Province of Holland, in which were situated the great commercial ports of Amsterdam and Rotterdam. The Dutch had got into their hands the carrying trade of Europe. In **1651** the English Parliament passed the Navigation Act, to put an end to this state of things. English vessels alone were to be allowed to import goods into England, except in the case of vessels belonging to the country in which the goods which they carried were produced.

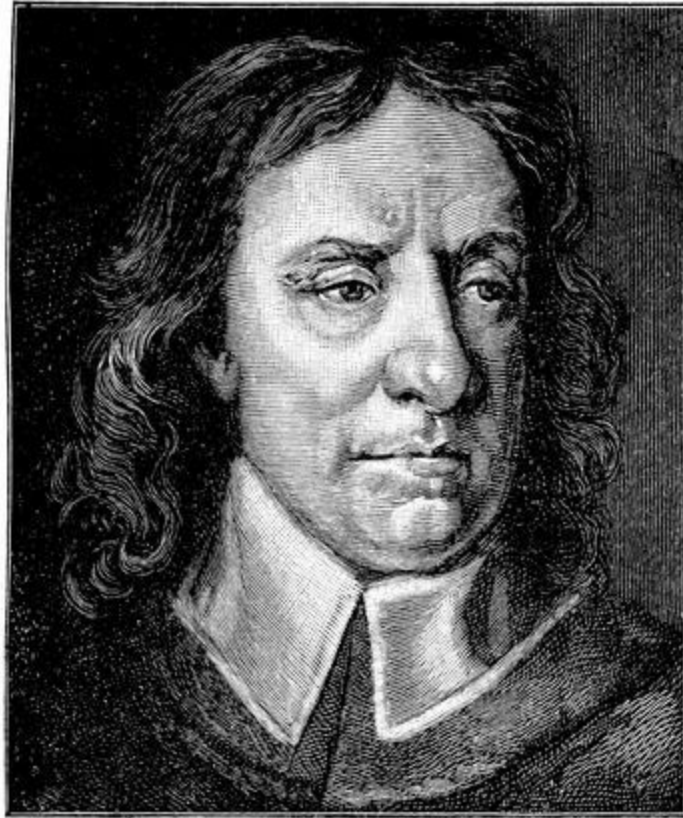
7. The Dutch War. 1652-1653.—War with the Dutch soon followed. Vane, the leading man in the Committee of the Council of State which managed the navy, had put the fleet into excellent condition. Its command was given to Blake, who had been noted as a soldier by the defence of Taunton (see p. [547](#)) in the Civil War, but who never went to sea till **1649**, when he was over fifty. Yet Blake soon found himself at home on board ship, and won the confidence of officers and men. Battle after battle was fought between the English and Dutch fleets. The sturdy antagonists were well matched, though the English ships were larger and more powerfully armed. In November **1652**, Tromp (the Dutch Admiral) got the better of Blake, but in February **1653** there was another battle, in which Blake got the upper hand; but it was no crushing victory, like Dunbar and Worcester. In the summer of **1653** the English gained two more victories, but though they attempted to blockade the Dutch ports, they were obliged to give up the attempt.

8. Unpopularity of the Parliament. 1652-1653.—At home, the truncated Parliament was becoming increasingly unpopular. Ever since the end of the first Civil War, Parliament had supplied itself with money by forcing Royalists to compound—that is to say, to pay down a sum of money, without which they were not allowed to enjoy their estates; and these compositions, as they were called, were still exacted from men who had joined in the second Civil War, or had favoured the invasion by Charles II. The system, harsh in itself, was not fairly carried out. Members of Parliament took bribes, and let the briber off more easily than they did others who neglected to give them money. Those who were not Royalists had grievances of their own. Many of the members used their power in their

own interest, disregarding justice, and promoting their sons and nephews in the public service.

9. Vane's Reform Bill. 1653.—For a long time Cromwell and the officers had been urging Parliament to dissolve itself and to provide for the election of a new Parliament, which would be more truly representative. Vane had, indeed, brought in a Reform Bill, providing for a redistribution of seats, depriving small hamlets of the franchise, and conferring it upon populous towns and counties; but the discussion dragged on, and the army was growing impatient. Yet, impatient as the army was, officers and politicians alike recognised that a freely-elected Parliament would probably overthrow the Commonwealth and recall the king. Cromwell suggested that a committee of officers and politicians should be formed to consult on securities to be taken against such a catastrophe. The securities which pleased the members of Parliament were, that all members then sitting should continue to sit in the next Parliament, without fresh election, and should be formed into a committee having power to reject any new member whom they considered it desirable to exclude.

10. Dissolution of the Long Parliament by Cromwell. 1653.—Cromwell, who disliked this plan, was assured, on April 19, by one of the leading members of Parliament that nothing would be done in a hurry. On the next day, April 20, he heard that the House was passing its bill in the form which he disliked. Going to the House, when the last vote on the bill was about to be taken he rose to speak. Parliament, he said, had done well in its care for the public good, but it had been stained with 'injustice, delays of justice, self-interest.' Being interrupted by a member, he blazed up into anger. "Come, come!" he cried; "we have had enough of this. I will put an end to this. It is not fit you should sit here any longer." He called in his soldiers, and bade them clear the House, following the members with words of obloquy as they passed out. "What shall we do with this bauble?" he asked, taking up the mace. "Take it away." "It is you," he said to such of the members as still lingered, "that have forced me to do this. I have sought the Lord night and day, that He would rather slay me than put me upon the doing of this work."



Oliver Cromwell: from the painting by Samuel Cooper at Sidney Sussex College, Cambridge.

11. The so-called Barebone's Parliament. 1653.—Cromwell and the officers shrank from summoning an elected Parliament. They gathered an assembly of their own nominees, to which men gave, in derision, the title of the Barebone's Parliament, because a certain Praise-God Barebone sat in it. In a speech at its opening, on July 4, Cromwell told them that England ought to be governed by godly men, and that they had been selected to govern it because they were godly. Unfortunately, many of these godly men were crotchety and impractical. A large number of them wanted to abolish the Court of Chancery without providing a substitute, and a majority resolved to abolish tithes without providing any other means for the support of the clergy. At the same time, enthusiasts outside Parliament—the Fifth Monarchy men, as they were called—declared that the time had arrived for the reign of the saints, and that they were themselves the saints. All who had anything to lose were terrified, and turned to Cromwell for support, as it was known that no man in England had stronger common sense, or was less likely to be carried away by such dreamers. In the Parliament itself there was a strong minority which thought it desirable that, if tithes were

abolished, support should be provided for the clergy in some other way. These men, on December 11, got up early in the morning, and, before their opponents knew what they were about, declared Parliament to be dissolved, and placed supreme authority in the hands of Cromwell.

12. The Protectorate, and the Instrument of Government. 1653.—On December 16 a constitutional document, known as *The Instrument of Government*, was drawn up by Cromwell's military supporters, and accepted by himself. Cromwell was to be styled Lord Protector, a title equivalent to that of Regent, of which the last instance had been that of the Protector Somerset (see p. [412](#)). The Protector was to enter, to some extent, upon the duties which had formerly devolved on the king. There was to be a Parliament consisting of a single House, which was to meet once in three years, from which all who had taken the king's part were excluded, as they also were from voting at elections. The constituencies were to be almost identical with the reformed ones established by Vane's Reform Bill (see p. [566](#)). The Protector was to appoint the executive officials, and to have a fixed revenue sufficient to pay the army and navy and the ordinary expenses of Government; but if he wanted more for extraordinary purposes he could only obtain it by means of a Parliamentary grant. New laws were to be made by Parliament alone, the Protector having no veto upon them, though he was to have an opportunity of criticising them, if he wished to urge Parliament to change its purpose. The main lines of the constitution were, however, laid down in the Instrument itself, and Parliament had no power given it to make laws contrary to the Instrument. In the executive government the Protector was restrained, not by Parliament, but by a Council of State, the members of which he could not dismiss as the king had dismissed his Privy Councillors. The first members were nominated in the Instrument, and were appointed for life; but when vacancies occurred, Parliament was to give in six names, of which the Council was to select two, leaving to the Protector only the final choice of one out of two. Without the consent of this entirely independent Council, the Protector could take no step of importance.

13. Character of the Instrument of Government.—The Instrument of Government allowed less Parliamentary control than had been given to the Long Parliament after the passing of the Triennial Act and the Tonnage and

Poundage Act (see pp. [530](#), [531](#)): as, though Parliament could now pass laws without any check corresponding to the necessity of submitting them to the royal assent, it could not pass laws on the constitutional points which the Instrument of Government professed to have settled for ever. Neither—except when there was an extraordinary demand for money—could it stop the supplies, so as to bring the executive under its power. It was, rather, the intention of the framers of the Instrument to prevent that Parliamentary absolutism which had proved so hurtful in the later years of the Long Parliament. On the other hand, they gave to the Council of State a real control over the Protector; and it is this which shows that they were intent on averting absolutism in the Protector, as well as absolutism in Parliament, though the means taken by them to effect their end was different from anything adopted by the nation in later years.

14. Oliver's Government. 1653-1654.—Before meeting Parliament, Oliver had some months in which he could show the quality of the new Government. On April 5, **1654**, he brought the war with the Dutch to a close, and subsequently concluded treaties with other European powers. On July 10 he had Dom Pantaleon Sa, the brother of the Portuguese ambassador, beheaded for a murder. He had more than enough domestic difficulties to contend with. The Fifth-Monarchy men, and other religious enthusiasts, attacked him for treachery to republicanism, whilst Charles II. incited his followers to rise in insurrection against the usurper. Some republicans were imprisoned, and the royalists Gerard and Vowel, who tried to assassinate Oliver, were executed. In the meanwhile, the Protector and Council moved forward in the path of conservative reform. The Instrument allowed them to issue ordinances, which would be valid till Parliament could examine them; and, amongst others which he sent forth, was one to reform the Court of Chancery, and another to establish a Commission of Triers, to reject all ministers presented to livings, if it considered them to be unfit, and another Commission of Ejectors, to turn out those who, being in possession, were deemed unworthy. Oliver would have nothing to say to the Voluntary system. Tithes were to be retained, and religious worship was to be established; but there was to be no inquiry whether the ministers were Presbyterians, Independents, or anything else, provided they were Puritans. There was to be complete toleration of other Puritan congregations not belonging to the established churches; whilst the Episcopalians, though not

legally tolerated, were as yet frequently allowed to meet privately without notice being taken of them. Other ordinances decreed a complete Union with Scotland and Ireland, both countries being ordered to return members to the Parliament at Westminster. As far as the real Irish were concerned, the Union was entirely illusory, as all Roman Catholics were excluded from the franchise.

15. The First Protectorate Parliament. 1654-1655.—On September 3, 1654, the First Protectorate Parliament met. Its first act was to question the authority of private persons to frame a constitution for the State, on which Oliver required the members of Parliament to sign a paper acknowledging the government as established in a single person and in Parliament, and turned out of the House those who refused to sign it. The House, thus diminished, drew up a new constitution, altering the balance in favour of Parliament, and expressly declaring that the constitution was liable to revision whenever the Protector and Parliament agreed to change it. It is probable that Oliver would have consented to this change, but a dispute arose upon the control of the army. Oliver wished that it should permanently remain under the Protector, and that Parliament should be unable to withdraw the sums of money fixed for its maintenance. Parliament, on the other hand, insisted on voting the money only for five years, thus claiming to determine, at the end of that time, whether the army should be disbanded or not. The only real solution of the difficulty lay in a frank acknowledgment that the nation must be allowed to have its way for evil or for good. Oliver, however, suspected—doubtless with truth—that, if the nation were freely consulted, it would sweep away not only the Protectorate, but Puritanism itself. Practically, therefore, the question at issue was whether the Government should be controlled by Parliament or by the army. On January 22, finding that the House was not likely to give way, he dissolved Parliament.

16. The Major-Generals. 1655.—The Instrument of Government authorised the Protector to levy sufficient taxes without consent of Parliament to enable him to meet the expenditure in quiet times, and after the dissolution Oliver availed himself of this authorisation. Many people, however, refused to pay, on the ground that the Instrument, unless recognised by Parliament, was not binding; and, as some of the judges

agreed with them, Oliver could only enforce payment by turning out those judges who opposed him, and putting others in their places. Moreover, the Government was embarrassed by attempts to overthrow it. There were preparations for resistance by the republicans in the army—suppressed, indeed, by the arrest and imprisonment of the leaders—and there was an actual Royalist outburst, with wide ramifications, which showed itself openly in the South of England, where a Royalist gentleman named Penruddock rode into Salisbury at the head of 200 men, and seized the judges who had come down for the assizes. In the face of such danger, Oliver abandoned all pretence of constitutional government. He divided England into eleven military districts, over each of which he set a Major-General, with arbitrary powers for maintaining order, and, by a mere stroke of the pen, ordered a payment of 10 per cent. on the incomes of Royalists. Military rule developed itself more strongly than before. On November 27 Oliver, in his fear of the Royalists, ordered the suppression of the private worship of those who clung to the Book of Common Prayer; perceiving rightly that the most dangerous opponents of his system were to be found amongst sincere Episcopalians. He also made use of the Major-Generals to suppress vice and immorality by shutting up alehouses and imprisoning persons whose lives were disorderly.

17. Oliver's Foreign Policy. 1654-1655.—Partly, perhaps, because he hoped to divert attention from his difficulties at home, partly because he wished his country to be great in war as well as in peace, Oliver had for some time been engaging in naval enterprise. In the early part of his career he had been friendly to Spain, because France intrigued with the Presbyterians and the king. France and Spain were still at war, and when Cromwell became Protector he offered his alliance to Spain, on condition that Spain would help him to reconquer Calais, and would place Dunkirk in his hands as a pledge for the surrender of Calais after it had been taken. He also asked that commerce between England and her own West Indian colonies should be free from Spanish attacks, and for more open liberty of religion for the English in the Spanish dominions than had been offered by Spain in its treaty with Charles I. The Spanish ambassador replied that to ask these two things was to ask his master's two eyes, and plainly refused to admit an English garrison into Dunkirk. Upon this, Cromwell sent out, in the end of **1654**, two fleets, one—under Blake—to go to the Mediterranean,

to get reparation from the pirates of Tunis and Algiers for wrongs done to English commerce; and the other—under Penn and Venables—to seize a Spanish island in the West Indies. Blake was successful, but Penn and Venables failed in an attempt on San Domingo, though they took possession of Jamaica, which at that time was not thought to be of much value.

18. The French Alliance. 1655.—As Oliver could not get what he wanted from Spain, he agreed to a treaty with France to end what had been virtually a maritime war, in which trading-ships had been seized on both sides. Freedom of religion was to be accorded to Englishmen in France. Before any treaty had been signed, news arrived that the Duke of Savoy had sent his soldiers to compel his Vaudois subjects to renounce their religion, which was now similar to that of the Protestants, though they had revolted from the Papacy long before Luther's Reformation. These soldiers committed terrible outrages amongst the peaceful mountaineers. Those who escaped the sword were carried off as prisoners, or fled to the snowy mountains, where they perished of cold and hunger. Milton's voice was raised to plead for them. "Avenge," he wrote—

"O Lord, thy slaughtered saints, whose bones
Lie scattered on the Alpine mountains cold—
Even men who kept thy truth, so pure of old,
When all our fathers worshipped stocks and stones."

Cromwell at once told Mazarin that, if he cared for peace with England, this persecution must stop. Mazarin put pressure on the Duke of Savoy, and liberty of worship was secured to the Vaudois. Then, on October 24, **1655**, Oliver concluded the treaty with France.

19. Oliver's Second Parliament, and the Humble Petition and Advice. 1656.—War with Spain was a necessary consequence of the seizure of Jamaica, and, in **1656**, Oliver called a second Parliament, to give him money. Yet it was certain that any freely-elected Parliament would try to grasp authority for itself. When Parliament met, on September 17, Cromwell began by excluding about a hundred members who were likely to oppose him. After this, his relations with the House were smoother than they had been in **1654**—especially as news arrived that Stainer, with some of Blake's ships, had captured part of the Spanish treasure-fleet on its way

from America; and, soon, thirty-eight waggons laden with Spanish silver, rolled through the London streets. Parliament voted the money needed, and Oliver, in return, withdrew the Major-Generals. Then there was discovered a plot to murder the Protector, and Parliament, anxious for security, drew up amendments to the Constitution, known as *The Humble Petition and Advice*. Members of the Council of State were to be approved by Parliament, and the power of excluding members from the House of Commons was to be renounced by the Protector. There was also to be a second House named in the first instance by the Protector, who was given power to exclude members subsequently named by himself or his successors from taking their seats. The object of this curious provision was to secure a house which might be trusted for all time to throw out measures opposed to Puritanism, even when they were supported by the House of Commons. Oliver was asked to take the title of king, with the right of naming his own successor. He refused the kingship, as the army disliked it, and also, perhaps, because he felt that there would be an incongruity in its assumption by himself. The rest of the terms he accepted, and, on June 26, **1657**, before the end of the session, he was installed as Lord Protector with greater solemnity than before. It was already known that, on April 20, Blake had destroyed a great Spanish fleet at Santa Cruz, in Teneriffe. On his way back, on August 7, he died at sea, and was brought home to be buried in Westminster Abbey.

20. The Dissolution of the Second Protectorate Parliament. 1658.—On January 20, **1658**, Parliament met for its second session. The House of Commons had to take back the hundred excluded members who were enemies of Oliver, and to lose a large number of Oliver's warmest supporters, who were removed to the other House. The Commons had no longer an Oliverian majority, and, without attacking the Protector himself, they now attacked the second House, which gave itself the airs of the ancient House of Lords. On February 4, in a speech of mingled sadness and irritation, Oliver dissolved his second Parliament. "The Lord," he said, "judge between me and you."

21. Victory Abroad and Failure at Home. 1657-1658.—Abroad, Oliver's policy was crowned with success. In **1657**, a treaty of alliance was made with France, and 6,000 English troops, co-operating with the French

army, captured Mardyke. On June 4, **1658**, they defeated the Spanish army in a great battle on the Dunes, and on the 14th Dunkirk surrendered, and was placed in the hands of the English. It has often been doubted whether these successes were worth gaining. France was growing in strength, whilst Spain was declining, and it would not be long before France would become as formidable to England as Spain had been in the days of Elizabeth. Cromwell, however, was not the man to base his policy on the probabilities of the future. At home and abroad he faced the present, and, since the day on which the king had mounted the scaffold, the difficulties at home had been overwhelming. Though his efforts to restore constitutional order had been stupendous, and his political aims had been noble, yet he was attempting that which he, at least, could never do. Men will submit to the clearly expressed will of the nation to which they belong, or to a government ruling in virtue of institutions which they and their ancestors have been in the habit of obeying, but they will not long submit to a successful soldier, even though, like Oliver, he be a statesman as well.

22. Oliver's Death. 1658.—Oliver was growing weary of his unending, hopeless struggle. On August 6, **1658**, he lost his favourite daughter, and soon afterwards he sickened. There were times when old doubts stole over his mind: "It is a fearful thing," he repeated, "to fall into the hands of the living God." Such fears did not retain their hold on his brave spirit for long: "I am a conqueror," he cried, "and more than a conqueror, through Christ that strengtheneth me." On August 30 a mighty storm passed over England. The devil, said the Cavaliers, was fetching home the soul of the usurper. Oliver's own soul found utterance in one last prayer of faith: "Lord," he murmured, "though I am a miserable and wretched creature, I am in covenant with Thee through grace; and I may, I will come to Thee, for Thy people. Thou hast made me, though very unworthy, a mean instrument to do them some good, and Thee service; and many of them have set too high a value upon me, though others wish, and would be glad of, my death.... Pardon such as desire to trample upon the dust of a poor worm, for they are Thy people too; and pardon the folly of this short prayer, even for Jesus Christ's sake, and give us a good night, if it be Thy pleasure. Amen." For three days more Oliver lingered on. On September 3, the anniversary of Dunbar and Worcester, he passed away to the rest which he had never known on earth.

23. Richard Cromwell. 1658-1659.—On his deathbed Oliver named, or was said to have named, his eldest son Richard as his successor. The nation preferred Richard to his father, because he was not a soldier, and was very little of a Puritan. On January 27, **1659**, a new Parliament met, chosen by the old, unreformed constituencies, as they had existed in the time of Charles I.; and not by those reformed ones appointed by the Instrument of Government, though Royalists were still excluded both from voting at the elections and from sitting in Parliament. In this Parliament a majority supported Richard, hoping that he would consult the wishes of the army less than his father had done. For that very reason the officers of the army turned against him, and asked not only that Fleetwood, Oliver's son-in-law, should be their commander, but that he should be entirely independent of the authority of the Protector. Richard nominated Fleetwood, but insisted upon his acting under the Protector as his Lieutenant-General. Parliament upheld the control of the civil power over the army. On April 22 the soldiers forced Richard to dissolve Parliament. On May 25 Richard abdicated and the Protectorate came to an end.

24. The Long Parliament Restored. 1659.—Already on May 7, at the invitation of the soldiers, forty-two members of the so-called Rump—the portion of the Long Parliament which had continued sitting till it was ejected by Cromwell in **1653** (see p. [566](#))—had installed themselves at Westminster. No hereditary king was ever more tenacious of his rights than they. They told the officers 'that the Parliament expected faithfulness and obedience to the Parliament and Commonwealth,' and, declaring all Oliver's acts to have been illegal, resolved that all who had collected taxes for him must repay the money. The officers, many of whom had, as Major-Generals, gathered taxes by authority from Oliver, were naturally indignant. "I know not," said Lambert—one of the most distinguished of Oliver's officers—"why they should not be at our mercy as well as we at theirs." Before anything could be done, news arrived that Sir George Booth had risen in Cheshire for Charles II. Lambert marched against him, and defeated him at Winnington Bridge. When he returned, the officers made high demands of Parliament, and, when these were rejected, they sent troops, on October 13, to keep the members out of the House. "Do you not know me?" said the Speaker, Lenthall. "If you had been with us at Winnington Bridge," said a soldier, "we should have known you."

25. Military Government. 1659.—The soldiers had come to despise civilians merely because they were civilians. They tried to govern directly, without any civilian authority whatever. The attempt proved an utter failure. It was discovered that taxes were paid less readily than when there had been a civilian Government to exact them. The soldiers quarrelled amongst themselves, and the officers, finding themselves helpless, restored the Rump a second time. On December 26 it resumed its sittings at Westminster.

26. Monk and the Rump. 1660.—George Monk, who commanded the forces in Scotland, had little inclination to meddle with politics; but he was a thorough soldier, and being a cool, resolute man, was determined to bear this anarchy no longer. On January 1, **1660**, he crossed the Border with his army, and on January 11 was joined by Fairfax at York, who brought with him all the weight of his unstained name and his high military reputation. On February 3 Monk entered London, evidently wishing to feel his way. On February 6 the City of London, which had no members sitting in the Rump, declared that it would pay no taxes without representation. Monk was ordered by the Rump to suppress the resistance of the City. On the 10th he reached Guildhall. Keeping his ears open, he soon convinced himself that the Rump was detested by all parties, and, on the morning of the 16th, declared for a free Parliament.

27. End of the Long Parliament. 1660.—It was easy to coerce the Rump, without the appearance of using violence. On February 26, under pressure from Monk, it called in the Presbyterian members shut out by Pride's Purge (see p. [557](#)). After they had taken their seats, a dissolution, to be followed by new elections, was voted. At last, on March 16, the Long Parliament came, by its own act, to its unhonoured end. The destinies of England were to be placed in the hands of the new Parliament, which was to be freely elected. The Restoration was a foregone conclusion. The predominant wish of Englishmen was to escape from the rule of soldiers, and, as every recent form of civil government had been discredited, it was natural to turn back to that which had flourished for centuries, and which had fallen rather through the personal demerits of the last king than through any inherent vices of the system.

28. The Declaration of Breda. 1660.—On April 4 Charles signed a declaration, known as the Declaration of Breda. He offered a general pardon to all except those specially exempted by Parliament, and promised to secure confiscated estates to their new owners in whatever way Parliament should approve. He also offered to consent to a bill for satisfying the arrears of the soldiers, and to another bill for the establishment of 'a liberty for tender consciences.' By the Declaration of Breda, Charles had carefully thrown upon Parliament the burden of proposing the actual terms on which the settlement was to be effected, and at the same time had shaken himself free from his father's policy of claiming to act independently of Parliament. The new Parliament, composed of the two Houses of Lords and Commons, was known as the Convention Parliament, because, though conforming in every other respect to the old rules of the Constitution, the House of Commons was chosen without the king's writs. It met on April 25. The Declaration of Breda reached it on May 1. After unanimously welcoming the Declaration, Parliament resolved that, 'according to the ancient and fundamental laws of this kingdom, the Government is, and ought to be, by King, Lords, and Commons.' The Puritan Revolution had come to an end.

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PART VII
THE POLITICAL REVOLUTION. 1660-1689

CHAPTER XXXVII
CHARLES II. AND CLARENDON. 1660-1667

LEADING DATES
Reign of Charles II., 1660-1685.

Charles II. lands at Dover May 25, 1660
Dissolution of the Convention Parliament
Dec. 29, 1660
Meeting of the Cavalier Parliament May 8,
1661
Corporation Act 1661
Act of Uniformity 1662
Expulsion of the Dissenting Ministers Aug.
24, 1662
The King declares for Toleration Dec. 26,
1662
Repeal of the Triennial Act 1664
Conventicle Act 1664
First Dutch War of the Restoration 1665
The Plague 1665
Five Mile Act 1665
Fire of London 1666
Peace of Breda July 31, 1667
Clarendon's Fall 1667

1. **Return of Charles II. 1660.**—On May 25, 1660, Charles II. landed at Dover, amidst shouting crowds. On his thirtieth birthday, May 29, he entered London, amidst greater and equally enthusiastic crowds. At Blackheath was drawn up the army which had once been commanded by Cromwell. More than anything else, the popular abhorrence of military rule had brought Charles home, whilst the army itself, divided in opinion, and falling under the control of Monk, was powerless to keep him away. When the king reached Whitehall he confirmed Magna Carta, the Petition of Right, and other statutes by which the royal power had at various times been limited.



Charles II.: from the portrait by Sir Peter Lely in Christ's Hospital, London.

2. **King and Parliament. 1660.**—Something more than Acts of Parliament was needed to limit the power of the king. It had been found useless to bind Charles I. by Acts of Parliament, because he tried again and again to introduce foreign armies into England to set Parliament at naught. Charles II. was, indeed, a man of far greater ability than his father, and was

quite as ready as his father to use foreign help to get his way at home. In the first year after his return he tried to get money both from the Dutch and from the Spaniards in order to make himself independent of Parliament, but his character was very different from his father's, in so far as he always knew—what Charles I. never knew—how much he could do with impunity. Having none of his father's sense of duty, he was always inclined to give way whenever he found it unpleasant to resist. He is reported to have said that he was determined that, whatever else happened, he would not go on his travels again, and he was perfectly aware that if a single foreign regiment were brought by him into England, he would soon find himself again a wanderer on the Continent. The people wished to be governed by the king, but also that the king should govern by the advice of Parliament. The restoration was a restoration of Parliament even more than a restoration of the king.

3. Formation of the Government. 1660.—The Privy Council of Charles II. was, at the advice of Monk, who was created Duke of Albemarle in July, composed of Cavaliers and Presbyterians. It was, however, too numerous to direct the course of government, and Charles adopted his father's habit of consulting, on important matters, a few special ministers, who were usually known as the Junto. Albemarle, as he knew little and cared less about politics, soon lost the lead, and the supreme direction of affairs fell to Hyde, the Lord Chancellor. Charles was too indolent and too fond of pleasure to control the government himself, and was easily guided by Hyde, who was thoroughly loyal to him, and an excellent man of business. Hyde stood to the king's other advisers very much in the position of a modern Prime Minister, but he carefully avoided introducing the name, though it was already in vogue in France, and contented himself with the real influence given him by his superior knowledge. In religion and politics he was still what he had been in **1641** (see pp. [533](#), [534](#)). He was a warm supporter of episcopacy and the Prayer Book. As a lawyer, he applauded the political checks upon the Crown which had been the work of the first months of the Long Parliament, whilst he detested all the revolutionary measures by which, in the autumn of **1641**, attempts had been made to establish the supremacy of Parliament over the king.

4. The Political Ideas of the Convention Parliament. 1660.—Hyde's position was the stronger because, in politics at least, the Convention Parliament agreed with him. The Cavaliers in it naturally accepted the legislation of the Long Parliament, up to August **1641**, when Charles I. left for Scotland (see p. [532](#)), as their own party had concurred in it. The Presbyterians, on the other hand, who now represented the party which had formerly been led by Pym and Hampden, saw no reason to distrust Charles II. as they had distrusted his father, and were, therefore, ready to abandon the demand for further restrictions on the royal power, on which they had vehemently insisted in the latter part of **1641** and in the earlier part of **1642** (see p. [534](#)). In constitutional matters, therefore, Cavaliers and Presbyterians were fused into one, on the basis of taking up the relations between the Crown and Parliament as they stood in August **1641**. This view of the situation was favoured by the lawyers, one of whom, Sir Orlando Bridgman, pointed out that, though the king was not responsible, his ministers were; and, for the time, every one seemed to be satisfied with this way of keeping up the indispensable understanding between king and Parliament. What would happen if a king arose who, like Charles I., deliberately set himself against Parliament, no one cared to inquire.



Edward Hyde, first Earl of Clarendon, 1608-1674: from an engraving by Loggan.

5. Execution of the Political Articles of the Declaration of Breda. 1660.—Of the four articles of the Declaration of Breda, three were concerned with politics, and these were adopted by Parliament, with such modifications as it pleased to make. The estates of the king and of the bishops and chapters were taken out of the hands of those who had acquired them, but all private sales were declared valid, though Royalists had often sold their land in order to pay the fines imposed on them by the Long Parliament. An Act of Indemnity was passed, in which, however, there were many exceptions, and, in the end, thirteen regicides, together with Vane, were executed, and the bodies of Cromwell, Ireton, and Bradshaw dug up and hanged. The bodies of other noted persons, including those of Pym and Blake, which had been buried in Westminster Abbey, were also dug up, and thrown into a pit outside. Many regicides and other partisans of the Commonwealth and Protectorate were punished with imprisonment and loss of goods, whilst others, again, who escaped, remained exiles till their death. Money was raised in order that the army might be paid as had been

promised, after which it was disbanded. Feudal dues and purveyance were abolished, and an excise voted to Charles in their place. The whole revenue of the Crown was fixed at 1,200,000*l*.



A mounted nobleman and his squire: from Ogilby's *Coronation Procession of Charles II*.

6. Ecclesiastical Debates. 1660.—On ecclesiastical matters the two parties were less harmonious. The cavaliers wanted to restore episcopacy and the Prayer Book. The Presbyterians were ready to go back in religion, as in politics, to the ideas of August, **1641**, and to establish a modified episcopacy, in which bishops would be surrounded with clerical councillors, whose advice they would be bound to take. To this scheme Charles gave his approval, and it is probable that if nothing else had been in question Parliament would have accepted



Dress of the Horse Guards at the Restoration: from Ogilby's *Coronation*

it. Charles, however, had an object of his own. His life was dissolute, and, being without any religious convictions, he cherished, like some other dissolute men of that time, a secret attachment to the Church of Rome. In order to do that Church a good turn, he now asked for a toleration in which all religions should be included. The proposal to include Roman Catholics in the proposed toleration wrecked the chances of modified episcopacy. Cavaliers and Presbyterians were so much afraid of the Roman Catholics that when a bill for giving effect to the scheme for uniting episcopacy and Presbyterianism was brought into Parliament, it was rejected through fear lest it should be a prelude to some other tolerationist measure favouring the Roman Catholics. On December 29, **1660**, the Convention Parliament was dissolved.

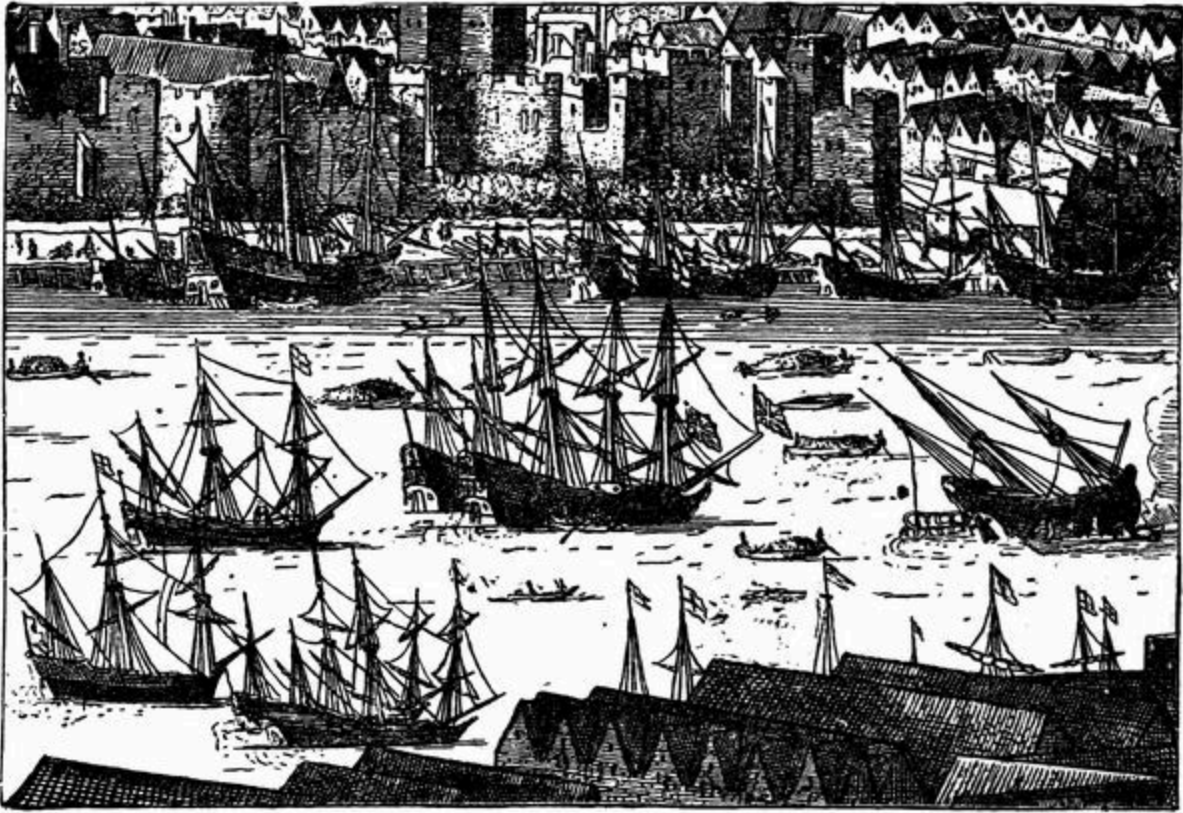
Procession of Charles II.



Yeoman of the Guard: from Ogilby's
Coronation Procession of Charles II.

7. Venner's Plot and its Results. 1661.—No one in the Convention Parliament had had any sympathy with the Independents, and still less with the more fanatical sects which had received toleration when the Independents were in power. The one thing which the people of England as a body specially detested was the rule of the Cromwellian army, and the two parties therefore combined to persecute the Independents by whom that army had been supported. In January, **1661**, a party of fanatics, knowing that they at least had nothing to hope, rose in insurrection in London under one Venner, a cooper. The rising was easily put down, but it gave an excuse to Charles—who was just then paying off the army—to retain two regiments, one of horse and one of foot, besides a third, which was in garrison at Dunkirk. There was thus formed the nucleus of an army the numbers of which, before long, amounted to 5,000. To have an armed force at all was likely to bring suspicion upon Charles, especially as his revenue

did not suffice for the payment of 5,000 men without having recourse to means which would cause ill-feeling between himself and Parliament.



Shipping in the Thames, *circa 1660*: from Pricke's *South Prospect of London*.

8. The Cavalier Parliament, and the Corporation Act. 1661.—On May 8, **1661**, a new Parliament, sometimes known as the Cavalier Parliament, met. In times of excitement, nations are apt to show favour to the party which has a clear and decided opinion; and, on this occasion, nine-tenths of the new members were Cavaliers. The new Parliament voted that neither House could pretend to the command of the militia, nor could lawfully make war upon the king. Before the end of **1661** it passed the Corporation Act, which was aimed at the Presbyterians as well as at the Independents. All who held office in municipal corporations were to renounce the Covenant, and to take an oath of non-resistance, declaring it to be unlawful to bear arms against the king; and no one in future was to hold municipal office who had not received the Sacrament according to the rites of the Church of England. This Act did more than exclude from corporations those who objected to submit to its injunctions. In many towns

the corporations elected the members of the House of Commons, and hence, by excluding non-conformists from corporations in towns, Parliament indirectly excluded them from many seats in the House of Commons.

9. The Savoy Conference, and the Act of Uniformity. 1661-1662.—After the dissolution of the Convention Parliament, the old number of bishops was filled up, and, in April **1661**, a conference between some bishops and some Presbyterian clergy was held at the Savoy Palace, and has therefore been known as the Savoy Conference. The two parties differed too much to come to terms, and the whole question of the settlement of the Church was left to the Cavalier Parliament. In **1662** Parliament decided it by passing the Act of Uniformity. Every clergyman and every schoolmaster refusing to express, by August 24, his unfeigned consent to everything contained in the Book of Common Prayer, was to be precluded from holding a benefice. On August 24 (St. Bartholomew's day), about 2,000 clergy resigned their cures for conscience' sake, as their opponents had, in the time of Puritan domination, been driven from their cures, rather than take the Covenant.

10. The Dissenters. 1662.—The expulsion of the dissenting clergy, as they were now called, made a great change in the history of English Christianity. The early Puritans wished, not to separate from the national Church, but to mould the national Church after their own fashion. The Independents set the example of separating from the national Church, in order to form communities outside it. The Presbyterian clergy who kept up the tradition of the early Puritans were now driven out of the national Church, and were placed in very much the same position as the Independents. Hence, these two bodies, together with the Baptists and the Society of Friends—popularly known as Quakers—and other sects which had recently arisen, began to be known by the common name of Dissenters. The aim of those who had directed the meeting of the Savoy Conference had been to bring about comprehension, that is to say, the continuance within the Church of those who, after its close, became Dissenters. Their failure had resulted from the impossibility of finding any formularies which could satisfy both parties; and in consequence of this failure the Dissenters now abandoned all thought of comprehension, and contented themselves

with asking for toleration, that is to say, for permission to worship apart from the Church, in their own assemblies.

11. The Parliamentary Presbyterians. 1662.—The Presbyterian clergy were followed by most of their supporters among the tradesmen and merchants of the towns. They were not followed by the Presbyterians among the gentry. The party in Parliament, which had hitherto styled itself Presbyterian, had originally become so mainly through dislike of the power of the bishops. They now consented to accept the Prayer Book, when they found that the regulation of the Church was to depend on Acts of Parliament and not either on the bishops or the king. The few members of the House of Commons who had hitherto been known as Presbyterians formed the nucleus of a party of toleration, asking for a modification of the law against Dissenters, though refusing to become Dissenters themselves.

12. Profligacy of the Court. 1662.—On the other hand, the members of the Cavalier party had, in **1641**, become Royalists because they desired the retention of the doctrine and discipline of the Church of England, and, in **1662**, the Cavaliers were supporters of the Church even more than they were Royalists. As soon as Charles expressed his approval of the Act of Uniformity, and not before, the House of Commons voted him a chimney tax of two shillings on every chimney. If Charles had been an economical man, instead of an extravagant one, he might possibly have contrived to live within his income. He was, however, beyond measure extravagant. The reaction against Puritanism was not political only. There were plenty of sober men amongst the English gentry, but there were also many who had been so galled by the restrictions of Puritanism that they had thrown off all moral restraint. Riot and debauchery became the fashion, and in this bad fashion Charles's court led the way.

13. Marriage of Charles II., and Sale of Dunkirk. 1662.—In **1662** Charles married Catharine of Braganza, a Portuguese Princess. He professed his intention of leading a new life, but he was weak as water, and he soon returned to his evil courses. Politically alone was the marriage of importance. Catharine brought with her the possessions of Tangier, and of Bombay, the first spot on the soil of India acquired by the English Crown. It was also a seal of friendship between Charles and Louis XIV. of France.

Louis had made peace with Spain by the Treaty of the Pyrenees in **1659**, but he still sympathised with the efforts of Portugal to maintain the independence of which Spain had robbed her in **1580** (see p. [454](#)), and which she had recovered in **1640**. Charles's marriage was, therefore, a declaration in favour of France. In November, **1662**, after Parliament had dispersed for a vacation, he further showed his attachment to France, by selling Dunkirk to Louis for 200,000*l*. By abandoning Dunkirk, Charles saved an annual cost of 120,000*l*., which he would be able, if he pleased, to spend on an army. It may be doubted whether the possession of Dunkirk was of any real use, but there was a howl of indignation, in consequence of its loss, especially directed against Hyde, who had been created Earl of Clarendon in **1661**, and was building a town house on a scale commensurate with his dignity. This house was popularly called Dunkirk House, it being falsely supposed that Clarendon received from Louis bribes which were expended upon it.

14. The Question of Toleration Raised. 1662-1663.—Before Parliament met, Charles, on December 26, **1662**, issued a declaration in favour of toleration. He asked Parliament to pass an Act enabling him to mitigate the rigour of the Act of Uniformity by exercising that dispensing power 'which he conceived to be inherent in him.' Again and again, in former reigns, the king had dispensed from the penalties imposed by various laws, though there had been times when Parliament had remonstrated in cases where those penalties were imposed to restrain the Roman Catholic religion. When Parliament met again in **1663**, the Cavaliers rejected the king's proposal. They would hear nothing of toleration for Dissenters, and still less of toleration for 'Papists.' The fear of a restoration of 'Popery' was the strongest motive of Englishmen of that day, and Charles, who, unlike his father, always recoiled from strong opposition, even consented to banish all Roman Catholic priests. Yet it was in their interest and not in that of the Dissenters that he had issued his declaration. This affair sowed the first seeds of ill-will between Charles and Clarendon, as the latter had warmly supported the opposition to the Declaration.

15. The Conventicle Act. 1664.—Parliament was roused to proceed still farther in its course of intolerance. The Act of Uniformity had turned the Dissenting clergy out of the Church, but had not prevented them from

holding meetings for worship. In May **1664** a Conventicle Act was passed, by which any adult attending a conventicle was made liable to an ascending scale of penalties, ending in seven years' transportation, according to the number of times that the offence had been committed. A conventicle was defined as being a religious meeting not in accordance with the practice of the Church of England, at which more than four persons were present in addition to the household. The sentence of transportation was, indeed, a terrible one, as it implied working like a slave, generally under the burning sun in Barbadoes or some West India colony. The simple-minded Pepys, whose Diary throws light on the social conditions of the time, met some of the worshippers on their way to the inevitable sentence. "They go like lambs," he writes, "without any resistance. I would to God they would conform, or be more wise and not be caught." It was fear which produced the eagerness of English gentlemen to persecute Dissenters. They remembered how they had themselves been kept under by Cromwell's Puritan army, and, knowing that most of Cromwell's soldiers were still in the prime of life, they feared lest, if the Dissenters were allowed to gather head, they might become strong enough to call again to arms that ever-victorious army.

16. The Repeal of the Triennial Act. 1664.—In the spring of **1664**, before the passing of the Conventicle Act, the Cavalier Parliament had been alarmed lest it should be thought that it ought to be dissolved in the following May, because it would then have sat three years, in compliance with the Triennial Act. In reality there was nothing in the Triennial Act or in any other Act which rendered Parliament liable to dissolution, as long as the king lived, unless he chose to dissolve it; but Charles, who did not like the fetters which that Act imposed upon him, took the opportunity to ask Parliament to repeal it. This was promptly done, though in the Act of Repeal was included a clause to the effect that there should, in future, be no intermission of Parliaments for more than three years. As the whole of the machinery invented by the Long Parliament for giving effect to such a clause (see p. [530](#)) had vanished, no king could now be compelled to summon Parliament unless he wished to do so.

17. Growing Hostility between England and the Dutch. 1660-1664.—It was not fear, but commercial rivalry, which made England hate the

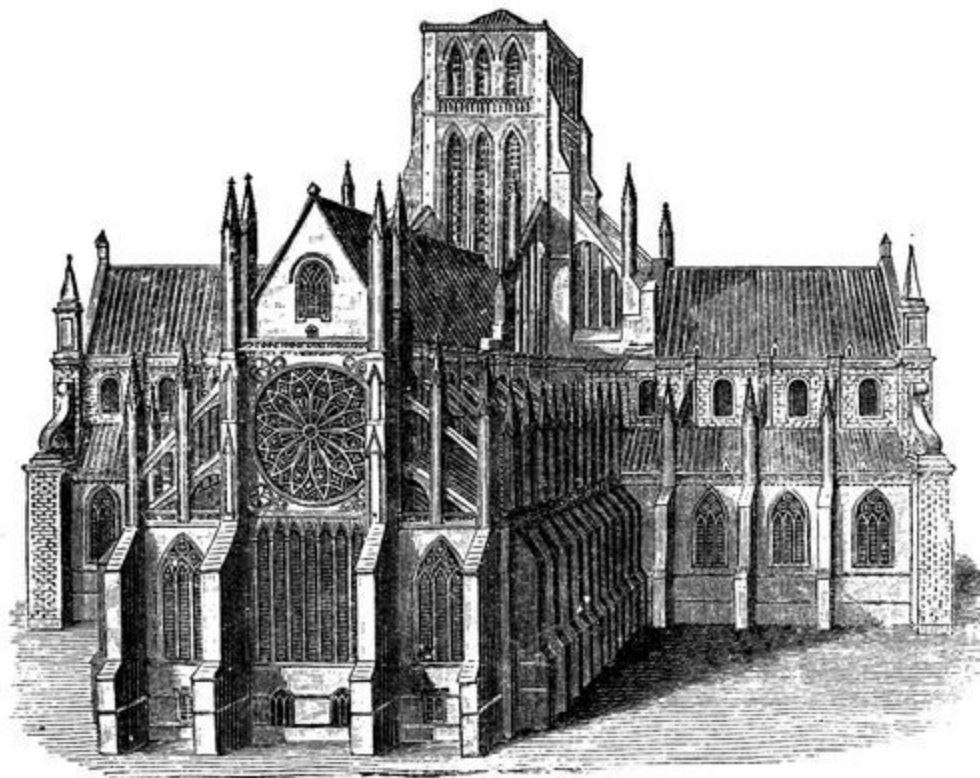
Dutch. In **1660** the Convention Parliament had re-enacted the Navigation Act (see p. [565](#)). Legislation alone, however, could not prevent the Dutch from driving the English out of the markets of the world, either by superior trading capacity, or by forcibly excluding them from ports in which Dutch influence was supreme. Besides this, the Dutch refused to surrender Pularoon, a valuable spice-bearing island in the East Indies, though they had engaged to do so by treaty. If there was anything about which Charles II. was in earnest it was in the spread of English colonies and commerce. He had also private reasons for bearing ill-will against the Dutch, who by abolishing the office of Stadholder (see p. [565](#)) in **1650**, had deprived the young William of Orange, the son of Charles's sister Mary, of any post in the Republic. The seven provinces were held together by the necessity of following the counsels of the Province of Holland, by far the most extensive and the wealthiest of the seven, if they were to preserve any unity at all. The opinion of this Province was the more readily accepted because the provincial states by which it was governed submitted to be led by their pensionary, John de Witt, one of the most vigorous and most prudent statesmen of the age. A pensionary was only an officer bound to carry out the orders of the States, but the fact that all business passed through his hands made a man of John de Witt's ability, the director of the policy which he was supposed to receive from others.

18. Outbreak of the First Dutch War of the Restoration. 1664-1665.—In **1664** hostilities broke out between England and the Dutch Republic, without any declaration of war. English fleets captured Dutch vessels on the coast of Africa, seized islands in the West Indies, and took possession of the Dutch settlement in America called by its founders New Amsterdam, but re-named by the English New York, after the king's only surviving brother, the Duke of York, who was Lord High Admiral. Later in the year, De Ruyter, one of the best of the Dutch admirals, retaliated by seizing most of the English forts on the coast of Guinea, and in **1665** war was openly declared. Parliament made what was then the enormous grant of 2,500,000*l.*, and on June 3 a battle was fought off Lowestoft in which the English were completely victorious.

19. The Plague. 1665.—The rejoicing in England was marred by a terrible calamity. For more than half a century the Plague had appeared in

England, at intervals of five years. It now broke out with unusual virulence, especially in London. The streets there were narrow and dirty, and the air was close, because the upper storeys of the houses overhung the lower ones. No medical aid appeared to avail anything against the Plague. On the door of every house in which it appeared was painted a red cross with the words, "The Lord have mercy upon us." Every one rich enough fled into the country and spread the infection. "How fearful," wrote a contemporary, "people were, thirty or forty, if not a hundred miles from London, of anything that they brought from any mercer's or draper's shop; or of any goods that were brought to them; or of any persons that came to their houses! How they would shut their doors against their friends: and if a man passed over the fields, how one would avoid another!" The dead were too numerous to be buried in the usual way, and carts went their rounds at night, accompanied by a man ringing a bell and calling out, "Bring out your dead." The corpses were flung into a huge pit without coffins, there being no time to provide them for so many. It was not till winter came that the sickness died away.

20. The Five Mile Act. 1665.—In October, Parliament met at Oxford, through fear of the Plague. It offered the king 1,250,000*l.* for the war if he would consent to fresh persecution of the Dissenters. He took the money, and gave his assent to the Five Mile Act. The Conventicle Act had been largely evaded, and, during the Plague, Dissenting ministers had preached in pulpits from which the clergy had fled through fear of infection. The Five Mile Act was to strike at the ministers ejected on St. Bartholomew's day. Not one of them was allowed to come within five miles of a borough town, or of any place in which he had once held a cure, and was therefore likely to find a congregation, unless he would take the oath of non-resistance, and swear that he would never endeavour to alter the government in Church or State, a condition to which few, if any, of the Dissenters were willing to submit.



Old St. Paul's, from the east, showing its condition just before the Great Fire from an engraving by Hollar.

21. Continued Struggle with the Dutch. 1665-1666. In the autumn of **1665** the ravages of the Plague kept the English fleet in the Thames, and the Dutch held the sea. On land they were exposed to some peril. Ever since their peace with Spain, in **1648**, they had allowed their military defences to fall into decay, on the supposition that they would have no more enemies who could dispose of any formidable land-force. Now even a petty prince like the Bishop of Münster, hired by Charles, was able, in October, to overrun two of their eastern provinces. The Dutch called upon the king of France, Louis XIV., for help, and he, being bound by treaty to assist them, declared war against England in January **1666**. If he had given earnest support to the Dutch the consequences would have been serious for England, but though he and other continental allies of the Dutch frightened off the Bishop of Münster from his attack on the Republic, Louis had no wish to help in the destruction of the English navy. What he wanted was to see the Dutch and English fleets destroy one another in order that his own might be mistress of the sea. Through the first four days of June a desperate naval battle was fought between the English and the Dutch, off the North

Foreland, at the end of which the English fleet, under Albemarle and Rupert, was driven to take shelter in the Thames, whilst the Dutch had been so crippled as to be forced to put back to refit. On July 25 and 26 there was another battle off the mouth of the Thames. This time the Dutch had the worst, and in August the English fleet sailed along the islands at the entrance of the Zuyder Zee, destroying 160 merchant ships and burning a town. The struggle had been a terrible one. The sailors of both nations were equally brave, and equally at home in a sea-fight, but the English ships were better built and the English guns were better, whilst the Dutch commanders did not work well together in consequence of personal and political jealousies.

22. The Fire of London. 1666.—In September, **1666**, London suffered a calamity only second to that of the Plague. A fire broke out, and burnt for three days. All the City from the Tower to the Temple, and from the Thames to Smithfield, was absolutely destroyed. Old St. Paul's, the longest cathedral in England, perished in the flames. Great as the suffering caused by the fire was, it was not without its benefits, as the old houses with their overhanging storeys were destroyed by it, and were replaced by new ones built in the modern fashion, so that there was more air in the streets. After this reconstruction of London it was never again visited by the Plague.

23. Designs of Louis XIV. 1665-1667.—Soon after the fire died down Parliament voted 1,800,000*l.* for continuing the war, but the country was exhausted, and it was known that it would be impossible to collect so large a sum. Both king and Parliament were therefore anxious for peace, and there were now reasons which made the Dutch also ready to make peace. In **1665** Philip IV. of Spain died, and was succeeded by his only surviving son, Charles II., as yet a mere child, hopelessly weak in body and mind. Philip also left two daughters, the elder, Maria Theresa, a child of his first wife, being the wife of Louis, whilst the younger, Margaret Theresa, the wife of the Emperor Leopold I., was, with Charles II., the offspring of a second marriage.^[27] Both of the daughters had renounced all future claim to the Spanish Crown, but Louis, knowing that the young Charles II. of Spain was so sickly as to make his early death probable, was prepared to assert his wife's claim whenever that event took place. In the meanwhile he put forward a demand that the greater part of the Spanish Netherlands should be

immediately handed over to her, because in those countries there was a law, known as the law of devolution, enacting that the daughter of a first wife should receive a larger share of her father's property than a son of the second. Louis chose to construe a right to succeed to property as though it implied a right to govern. In March, **1667**, he made a secret treaty with Charles II. of England, in which, on condition of his engaging not to help the Dutch, he was allowed to do as he pleased in the Spanish Netherlands. In May he began what is known as the War of Devolution, with Spain. Spain had neither money nor means to defend her territory in the Netherlands, and the French armies captured one place after another.

24. The Dutch in the Medway, and the Peace of Breda. 1667.—The advance of Louis into the Spanish Netherlands and the establishment of the French armies so near their frontier in the place of the now exhausted forces of Spain greatly alarmed the Dutch. The mere risk of this danger had, even before the war between France and Spain began, inclined them to peace with England, and a conference was opened at Breda to consider the terms. All was quickly agreed on except the question about the right of England to Pularoon (see p. [589](#)), and Charles, imagining that this would be settled in his favour, dismissed his sailors and dismantled his fleet, in order to save money to spend on his own extravagant pleasures. The Dutch fleet at once entered the Thames, sailed up the Medway, burnt three men-of-war, and carried off a fourth. For some days it blockaded the Thames, so that the Londoners could get no coals. Men openly said that such things would not have happened if Oliver had been living. Orders were sent to the English ambassadors at Breda to give up Pularoon, and on July 31 the Treaty of Breda was signed. It was not wholly disastrous. If England lost her last hold on the spice islands of the East, she gained New York and all the territory formerly Dutch in the West, which had broken up the continuity of her colonies in America.

25. Clarendon and the House of Commons. 1667.—The events of the last months of the war had produced important effects upon the temper of Parliament. Long before the Dutch appeared in the Medway, the House of Commons had demanded an inquiry into the expenditure of the money granted to the Crown, suspecting that much of the supply distinctly intended for purposes of war had been diverted to pay for the amusements

of the Court. This demand, which opened a new chapter in the history of the financial struggle between the House of Commons and the Crown, brought the Commons into collision with Clarendon. It had been settled by the Long Parliament that the king was to levy no taxes without a grant from Parliament. The Cavalier Parliament, Royalist as it was, was beginning to ask that the king should not spend the proceeds of taxes without the approbation of Parliament. When once this had been secured, Parliament would indubitably become supreme. Against this attempt to obtain the mastery Clarendon struggled. He was a good lawyer and an excellent man of business, but he was not a statesman of genius. He wanted each part of the government to act in harmony with the others; but he could never understand the meaning of the saying that if two men ride on horseback, one must ride in front. He wanted the king and Parliament both to ride in front, both—that is to say—to have their own way in certain directions. His notion of a king was that of one prudently doing his best for his people, always ruling according to law, and irresponsible in everything, even in the expenditure of money. A wasteful, riotous Charles II. was a phenomenon for the control of which his constitutional formulas were not prepared.

26. The Fall of Clarendon. 1667.—Though Clarendon was unable to concur in any diminution of the power of the Crown, his eyes were widely open to the profligacy of Charles's life. Again and again he had remonstrated with him, and had refused to pass under the great seal grants in favour of Lady Castlemaine, to whom, amongst his many mistresses, Charles was at this time most completely subjugated. As might have been expected, this abandoned woman irritated her paramour against his upright Chancellor, telling him that he was no king as long as he was ruled by Clarendon. As Parliament continued its attacks, Charles, on August 30, dismissed Clarendon from office. On October 10, the fallen minister was impeached by the House of Commons, on charges the greater part of which were ridiculously untrue. He tried to rouse Charles to support him, reminding him that, after Charles I. allowed Strafford to die, the king's own head had fallen on the scaffold. Charles II., an easy-going but clever politician, probably thought that he could always escape his father's fate by refraining from imitating his father's stiffness. He gave Clarendon a strong hint to withdraw, and on November 29 the minister who had done more

than any other man to establish the restored monarchy, fled to France, never to return alive.

27. Scotland and Ireland. 1660.—At the Restoration, the close connection established by Cromwell between England and Scotland was necessarily broken up. Scotland hated English control even when it came in the guise of a union of Parliaments, and the old relation of separate states united only by the Crown was at once resumed. Argyle and his principal followers were executed as traitors. The main profit of the restoration in Scotland, however, fell to the nobility. The clergy was discredited by its divisions, and the noblemen, whose fathers had supported Presbyterianism against Charles I., now supported Charles II. against Presbyterianism. Once more, as in the days of James I., the clergy were muzzled by the restoration of episcopacy and the assertion of the authority of the Crown. In Ireland the main question was how to satisfy alike the recent English immigrants who had received lands from Cromwell and the Irish proprietors who had been deprived of their lands in favour of the intruders. In **1661**, at the king's desire, an Act of Settlement was passed, making, in elaborate detail, an attempt to satisfy as many as possible of both parties; but as men of English descent and Protestant religion filled the Irish House of Commons, the English settlers contrived to maintain, by constitutional authority, much of what they had taken with the strong hand. According to the best evidence now procurable, whereas before **1641** about two-thirds of Irish lands fit for cultivation had been in the hands of Catholics, before the end of the reign of Charles II. two-thirds were in the hands of Protestants.

CHAPTER XXXVIII

CHARLES II. AND THE CABAL. 1667-1674

LEADING DATES
Reign of Charles II., 1660-1685

Treaty of Dover June 1, 1670
Second Dutch War of the Restoration March
13, 1672

Declaration of Indulgence March 15, 1672

Test Act March 29, 1673

Dismissal of Shaftesbury Nov. 9, 1673

Peace with the Dutch Feb. 19, 1674

1. **Milton and Bunyan.**—Whilst Clarendon and his allies were fortifying the legal position of the Church of England, the old Puritanism which they attempted to crush found a voice in literature. Milton, who had become blind, in consequence of his intense devotion to the service of the State, as the secretary of Cromwell, at last, after long preparation, gave to the world 'Paradise Lost,' in **1667**. The poem was Puritan, not only because its main theme was the maintenance or destruction of the purity of a single human soul, but because it based that purity on obedience to the commands of the great Taskmaster; whilst, in the solemn cadence of its blank verse there is something to remind the reader of the stern world of duty, in the midst of which the nobler spirits of the Commonwealth and Protectorate had moved. As Milton was the poet of Puritanism, John Bunyan was the prose-poet of Dissent. He had himself fought as a soldier on the side of Parliament in the Civil War, and, having become an earnest Baptist preacher, he continued to preach after the Restoration, and, boldly defying the law, was requited with a long imprisonment. His masterpiece, 'The Pilgrim's Progress,' was probably not written till **1675**, but many of his religious writings were published before that date. His force of imagination made him the greatest allegorist the world has seen. His moral aim lay in the preservation of a few choice souls from the perils and temptations of a society wholly given up to evil.



John Milton in 1670.

2. **Butler and the Dramatists.**—There was, doubtless, much in the world round Milton and Bunyan to awake indignation. Samuel Butler was a man of genius, but his 'Hudibras,' which appeared in **1663**, shows but poorly by the side of 'Paradise Lost' and 'The Pilgrim's Progress.' This mock-heroic account of a Puritan knight is the work of a strong writer, who can find nothing better to do with the warriors and disputants who had lately controlled England than to laugh at them. The mass of Restoration poetry was far weaker than 'Hudibras,' whilst its dramatic writers vied with one another in the expression of licentious thought either in prose or in the regular heroic couplets which were, at this time, in vogue. It was, indeed, impossible to put much human passion into two neat lines which had to be made to rhyme; but at Court love-making had been substituted for passion, and the theatres, now re-opened, after they had been suppressed by the Puritans, were meant for the vicious Court and not for the people at large.

3. **Reason and Science.**—The satire of Butler, and the licentiousness of the dramatists, both sprang from a reaction against the severe morality of

the Puritans; but it would have been a poor prospect for the generation following that of Puritan repression if the age had not produced any positive work of its own. Its work was to be found in the increase of respect for human reason. In the better minds amongst the clergy of the Restoration, the reasonable character of the Church of England was more than ever predominant. A few, such as Wilkins, Bishop of Chester, and Stillingfleet, Dean of St. Paul's, were even anxious to find some way of comprehension by which Dissenters might be reconciled to the Church, whilst others, like Morley and Barrow, attached far more importance to arguments addressed to the understanding, than to that uniformity of ceremonial which had been so dear to the mind of Laud. Still more important was the spread of devotion to natural science. The Royal Society, founded for its promotion in **1660**, brought together men who thought more about air-pumps than about the mysteries of theology; and it was mainly the results of their inquiries which made any renewed triumph of Puritanism impossible. In 'The Pilgrim's Progress' the outer world was treated as a mere embarrassment to the pursuit of spiritual perfection. By the Fellows of the Royal Society it was treated as calling for reverent investigation, in order that, in the words of Bacon, nature might be brought into the service of man by his obedience to her laws.

4. Charles II. and Toleration. 1667.—In the long run the rise of the scientific spirit would conduce to religious toleration, because scientific men have no reason to desire the suppression of any form of religious belief. The first step taken after the restoration in the direction of religious toleration had come from Charles (see p. [581](#)), who was actuated partly by a sneaking fondness for the Roman Catholic Church and partly by dislike of being dictated to by Parliament. He therefore, after Clarendon's fall, gave his confidence mainly to men who, for various reasons, were inclined to support his wishes in this respect.

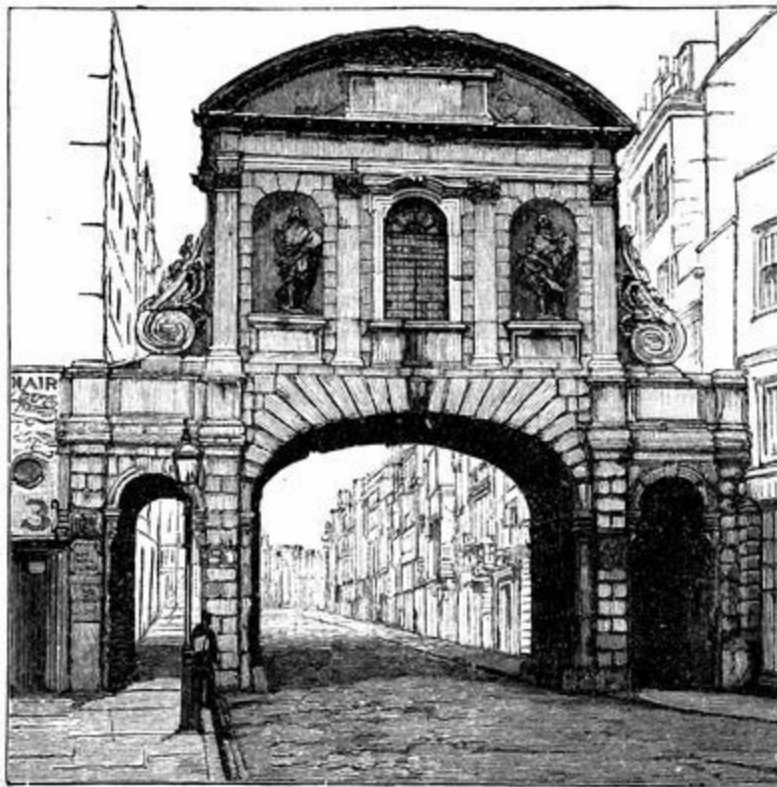
5. Buckingham and Arlington. 1667-1669.—Amongst these men the principal were the Duke of Buckingham and Lord Arlington. Buckingham, the son of the favourite of Charles I.—'everything by turns and nothing long'—was trying his hand at politics by way of amusement. Arlington, who, like Charles, hardly knew whether he was Catholic or Protestant, was entrusted, as Secretary of State, with the direction of foreign affairs. He was

a man of considerable ability, but perfectly unscrupulous in shifting his ground to suit his personal ambition. Both hated Clarendon as sour and austere, and both were ready to support the king in any scheme upon which he might set his heart. The Dissenters confined to prison were liberated, and a Bill prepared to modify the ceremonies of the Church, so as to enable the expelled Presbyterians to re-enter the Church. When, however, Parliament met in February, **1668**, it showed its determination to have nothing to do with either toleration or comprehension (see p. [598](#)). It offered the king 300,000*l.*, but only under the implied condition that he would abandon his scheme. Charles took the money and dropped his scheme. He prorogued Parliament in May, and did not re-assemble it till October, **1669**. Whilst Parliament was not in session Charles sheltered the Dissenters from persecution, and even thought of dissolving Parliament. Albemarle (see p. [580](#)), however, cautiously reminded him that, even if he got a new Parliament in which the Dissenters and their friends were predominant, it would probably cause him trouble by wanting to persecute those who had hitherto persecuted the Dissenters. Accordingly Charles, who hated nothing so much as trouble, not only allowed the old Parliament to meet again, but even issued a proclamation enforcing the penal laws against Dissenters.

6. The Triple Alliance. 1668.—In **1668** a triple alliance was formed between England, the Dutch Republic, and Sweden, to put an end to the War of Devolution (see p. [593](#)). Its originators were De Witt, and Sir William Temple, the English ambassador at the Hague. The allies demanded that Louis should content himself with certain strong towns on his northern frontier which he had already conquered from Spain, and should desist from attempting to conquer more. Louis assented, and the Peace of Aix-la-Chapelle was signed on these conditions. In England there was already a rising feeling against the French, and Charles acquired no little popularity by his supposed firmness. In reality he had betrayed the secrets of the alliance to Louis, and had only shown his teeth to gain good terms for himself from the French king.

7. Charles's Negotiations with France. 1669-1670.—Louis owed the Dutch a deep grudge, and set himself to win Charles to neutrality, if not to active help, in the war which he now purposed to make against them. Charles disliked the Dutch as the commercial rivals of England, and was

ready to sell himself to Louis if only the price offered was high enough. Though Charles never suffered religion of any kind to be a check on his conduct, his facile nature yearned after the imposing authority of the Roman Church. In **1669** his brother, James, avowed himself a Catholic, and in the same year Charles, under the strictest secrecy, declared his own conversion to a small circle of men whom he could trust. Before the end of the war he offered Louis support against the Dutch, but asked such enormous concessions in return that Louis refused to agree to them. Charles, before lowering the terms of his bargain with Louis, drove another bargain with his Parliament. In the spring of **1670**, by dropping his demand for toleration, he obtained a grant of 300,000*l.* a year for eight years. In return he gave the royal assent to a second Conventicle Act, even more stringent than the first.



Temple Bar, London, built by Sir Christopher Wren in 1670. Taken down in 1878 and since rebuilt at Waltham Cross.

8. The Treaty of Dover. 1670.—Having secured a grant, Charles prorogued Parliament, which he had deceived by giving it to understand that he had abandoned the idea of toleration, and turned to Louis. Louis sent

over Charles's youngest sister, Henrietta, Duchess of Orleans, to conclude an alliance, and on June 1, **1670**, a treaty between England and France was secretly signed at Dover. Charles agreed to join Louis in his projected war against the Dutch, by sending an English force of 6,000 men to serve in the French army, and to assist Louis to seize upon the territories of the Spanish monarchy in the event of the death of Charles II. of Spain without male heirs. Charles was also to acknowledge himself a Catholic whenever he thought fit to do so. To support Charles against his subjects in case of their resisting him in the declaration of his conversion, Louis was to give him 154,000*l.* and the aid of 6,000 troops to be employed in England in his defence. Moreover, Charles was to receive 230,000*l.* a year during the proposed war, and thirty French ships were to serve under an English admiral. At the end of the war he was to receive Walcheren, Sluys and Cadsand from the Dutch Republic, and ultimately, if Louis made good his claims to the Spanish monarchy, he was to gain from Spain, Ostend, Minorca, and various territories in South America. Charles II. was no more scrupulous than his father had been about using the troops of foreign princes to suppress the opposition of his own subjects, but he was shrewd enough to know—what Charles I. had never known—that foreign princes would not lend him troops unless he gave them something in return. The breach of the Triple Alliance and the assistance offered by Charles to Louis in the proposed war against the Dutch were considered in France to be a fair equivalent for the payments which Louis had bound himself to make. It was another question whether Charles could be kept to his engagements. To secure this as much as possible Louis sent him over a new French mistress, Louise de Keroualle. Charles soon created her Duchess of Portsmouth, and she fulfilled her duty to her own king by betraying to him all the secrets of her lover.

9. The Cabal. 1670.—After Clarendon's fall Charles had been his own chief minister. The ministers whom he consulted from time to time were known as his Cabal, a word then applied to any body of secret advisers, without carrying with it the opprobrious meaning which it now has. At last the wits discovered that the initials of five ministers who were principally consulted about the time of the Treaty of Dover, Clifford, Arlington, Buckingham, Ashley, and Lauderdale, spelt the word cabal, and writers have since talked about them as forming what has been called the Cabal

Ministry, though no such ministry, in the modern sense of the word, ever existed. Not only did they not form a council meeting for purposes of government, but, though they agreed together in favouring toleration, they disagreed on other points. Nor were they usually consulted by Charles in a body. Sometimes he took the advice of persons not of their number; sometimes he took the advice of some of them only, whilst he kept the others entirely in the dark. Thus Clifford, who was a brave and honest Catholic, and Arlington, who would support any measure as long as it was his interest to do so, knew all about the Treaty of Dover, whilst Buckingham, Lauderdale, and Ashley were in complete ignorance of it. Of Buckingham and Arlington enough has been already said (see p. [599](#)). Lauderdale, who had little to do with English affairs, kept himself almost entirely to the task of building up the king's authority in Scotland, where he had already got together an army completely at Charles's disposal. The character of Ashley deserves a longer consideration.

10. **Ashley's Policy.**—Anthony Ashley Cooper,[\[28\]](#) who had been created Lord Ashley since the Restoration, had changed sides again and again during the late troubles. He was a born party-leader, and had signalled himself as a youth at Exeter College, Oxford, by leading a successful revolt of the freshmen against the older undergraduates, who, according to custom, tried to skin the chins of the freshmen and to force them to drink a nauseous compound prepared for the occasion. Though in party conflict he was quite unscrupulous and despised no means which would enable him to gain his ends, he had the statesmanlike qualities of common sense and moderation. He had deserted Charles I. when he leant upon the Catholics (see p. [541](#)), had supported Cromwell in his struggle with the zealots of the Barebone's Parliament (see p. [566](#)), and had left him when he rejected the constitutional scheme of the first Parliament of the Protectorate (see p. [570](#)). In disgust at the humours of the Rump and the army, he had done everything in his power to hasten the Restoration, and had soon shown hostility to Clarendon and to the persecuting laws of the Cavalier Parliament. In fact, there were two principles to which he was never entirely false, a love of Parliamentary government and a love of toleration, which last was based, not as was that of Oliver, upon sympathy with religious zeal of every kind, but upon dislike of clerical interference. At present he attached himself to Charles, because he knew of Charles's

alleged wish to establish toleration, and knew nothing of the conspiracy against Parliament on which Charles had embarked, or of Charles's secret design to favour the Roman Church under cover of a general scheme of toleration.

11. Buckingham's Sham Treaty. 1671.—To deceive those who were in ignorance of the secret treaty of the previous year, Buckingham was sent to Paris to negotiate a sham treaty in which all mention of Charles's conversion was omitted, and the whole of the money offered by Louis represented as given solely for the war. Charles particularly enjoyed making a fool of Buckingham, who imagined himself to be exceedingly clever, and he had also the temporary satisfaction of gaining the hearty support of Ashley as well as Buckingham, because Ashley was quite ready to accept Louis' help in a joint enterprise for crushing the commerce of the Dutch, and had no scruples about abandoning the Triple Alliance. Charles was the more ready to begin the war because he had lately succeeded in obtaining from Parliament another 800,000*l.* on the false plea that he wanted the money to enable him to hold head at sea against the French as well as the Dutch. As soon as the money was obtained he prorogued Parliament.

12. The Stop of the Exchequer. 1672.—Charles prudently delayed the declaration of his conversion to a more convenient season, but the opening of the war was fixed for the spring of **1672**. In spite of the large sums which he drew from Louis and from Parliament, his finances were in hopeless confusion, because of the enormous amount of money which he squandered on his numerous mistresses and his illegitimate children. It is said that the yearly income of the Duchess of Portsmouth was 40,000*l.*, and that in one year she received no less than 136,000*l.* A caricature published in Holland aptly represented him as standing between two women, with empty pockets hanging out. At this time he had in his exchequer 1,400,000*l.*, lent to him by the goldsmiths who, in those days, acted as bankers. On January 2, **1672**, probably at Clifford's suggestion, he refused to repay the principal, and arbitrarily diminished the interest from 12 to 6 per cent.^[29] In consequence of this stop of the exchequer, as it was called, many of the goldsmiths became bankrupt, but Clifford became a peer and Lord High Treasurer.



Anthony Ashley-Cooper, first Earl of Shaftesbury, 1621-1683: from the National Portrait Gallery.

13. **The Declaration of Indulgence. 1672.**—On March 15, Charles, though still hesitating to proclaim himself a Catholic, issued a Declaration of Indulgence. Claiming a dispensing power,^[30] he suspended all penal laws in matters ecclesiastical, affecting either recusants or non-conformists, thus giving complete religious liberty to Roman Catholics as well as to Dissenters. To this measure, wise and statesmanlike in itself, but marred by the motives of its author and by its defiance of the law and of public opinion, Ashley gave his hearty support. He was rewarded with the Earldom of Shaftesbury. He had shortly before been made Lord Chancellor: being the last who held that post without being a lawyer. At that time the decisions of the Court of Chancery were still given in accordance with the view taken by the Chancellor of what seemed fair and equitable, and did not therefore require any elaborate legal knowledge. Even Shaftesbury's bitterest enemies acknowledged that he was scrupulously just.

14. **The Second Dutch War of the Restoration. 1672.**—Both Charles and Louis had resolved to take the Dutch by surprise. On March 13, Admiral Holmes, obeying orders, attacked a rich Dutch merchant fleet sailing up the Channel, before war was declared, but only succeeded in taking two vessels. In the war now begun the discipline of the English navy was worse, and that of the Dutch navy better, than it had been in the former war (see p. [591](#)). On June 7 there was a fierce sea-fight in Southwold Bay, in which the Dutch had slightly the advantage. Louis, on his part, crossed the Rhine, and fell upon the Dutch territory. As a land attack had not been expected, the military preparations were incomplete, and the fortresses out of repair. One place after another capitulated to the French. The young William III., Prince of Orange, Charles's nephew, had been named Captain-General, but his army was too small to encourage him to risk a battle. Then De Witt took a heroic resolution. On June 18 he cut the dykes which protected the low-lying land from the sea which stood at a higher level. In rushed the waters, Louis found his progress stopped. De Witt had the blame of the failure to prevent the invasion; William, coming after him, had the credit of the resistance. The Republic needed a strong hand to preserve it, and the office of Stadholder was revived and given to William. Shortly afterwards De Witt, together with his brother, was brutally murdered at the Hague. William, who detested De Witt for having so long deprived him of the power which he considered his due, not only took no steps to hinder the assassination, but actually protected the murderers. Disgraceful as his conduct was, he had a temper as heroic as De Witt's. Buckingham came to urge him to submit to Louis' terms. "Do you not see," said the Englishman, "that the Republic is lost?" "I know one sure means of never seeing it," was William's firm reply—"to die on the last dyke." His confidence was justified. Louis could not pierce the girdle of waters which surrounded the Dutch towns, and, returning to Paris, brought the campaign to an end.

15. **'Delenda est Carthago.'** 1673.—On February 4, 1673.—Charles, having once more spent all his money, again met his Parliament. Shaftesbury urged the voting of supply for the war with the Dutch, whom he styled the eternal enemies of England, quoting the saying of Cato—*Delenda est Carthago*—as though they were to be destroyed as being to England what Carthage had been to Rome. So far as the war was concerned,

the House of Commons answered his appeal by offering 1,260,000*l.*, though they kept back the Bill till they had brought him to terms.

16. Withdrawal of the Declaration of Indulgence. 1673.—It was at the withdrawal of the Declaration of Indulgence that the House was aiming. In vain Charles simulated firmness, declaring himself to be resolved to stick to his declaration. The Commons bitterly resented his interference with the law. Forty statutes, it was said, had been violated by the Declaration, and the house passed a resolution that 'penal statutes in matters ecclesiastical cannot be suspended but by act of Parliament.' Both sides were anxious to limit the question to ecclesiastical statutes: Charles, because the powers over the Church conferred on the Tudor sovereigns were vague, and therefore more defensible than those exercised by them in political matters; the Commons, because they had precedents of Parliamentary resistance to dispensations granted to recusants, whereas former kings had usually been allowed without contradiction to suspend the law in commercial matters. Charles tried to evade the summons of the Commons, but the Lords having come on March 7 to the same conclusion as the other House, he gave way on the 8th and recalled his Declaration. As no new statute was passed on the subject, the legal question remained just where it was before.

17. The Test Act. 1673.—Charles had entered on a struggle with Parliament and had been defeated. The Royalist Parliament of **1661** was still Royalist so far as the maintenance of the throne was concerned, but it had entered on a course of opposition which had brought it into open collision with the king. From first to last the chief characteristic of this Parliament was its resolution to maintain the supremacy of the Church, and it was now obvious that the Church was in more danger from Roman Catholics than from Dissenters. Though Charles's conversion (see p. [600](#)) was unknown, it was no secret that the Duke of York, the heir to the throne, was a Catholic, and, in spite of the veil thrown over the terms of the Treaty of Dover, the danger of an invasion by French troops in support of the English Catholics was obvious to all. For the first time since the Restoration a Bill was brought in to relieve Protestant Dissenters, and, though this proposal came to nothing, the very fact of its being made showed that a new state of feeling was growing up. Arlington, seeing how things stood, and wishing to oust the Catholic Clifford from the Treasury that he might be his

successor, put up a member of the Commons to propose a Bill which soon became law under the name of the Test Act. By it, no one was to hold office who refused to take the test—that is to say, to make a declaration of his disbelief in the doctrine of Transubstantiation and to receive the Sacrament according to the rites of the Church of England. It was only after Charles had given his assent to this Act on March 29 that the proposed grant of 1,260,000*l.* was actually made.

18. Results of the Test Act. 1673.—Though most Dissenters were excluded from office by the latter clause of the Test Act, there were some who did not feel their opposition to the Church to be so strong as to preclude them from taking the Sacrament occasionally according to its rites. Every honest Roman Catholic, on the other hand, was at once driven from office. The Duke of York surrendered the Admiralty and Clifford the Treasury. The Test Act was not a persecuting Act in the sense in which the Conventicle Act and the Five Mile Act were persecuting Acts. It inflicted no direct penalty on the mere holding of a special belief, or on the attendance on a special form of worship, but excluded persons holding a certain religious belief from offices the retention of which, according to the prevalent conviction, would be dangerous to the State.

19. Continuance of the Dutch War. 1673.—The Treasurer-ship, taken from Clifford, was given, not to Arlington, but to Sir Thomas Osborne, whose sentiments, being strongly in favour of maintaining the predominance of the Church of England, were likely to commend him to the goodwill of the Houses. In foreign policy he represented what was fast becoming a general opinion, that, as the main danger to England came from France, it had been a mistake to go to war with the Dutch. This belief was driven home by disasters at sea in the summer of **1673**. In May, a combined French and English fleet, under Prince Rupert, fought without advantage against the Dutch. In August Rupert was defeated off the Texel, because the French fleet, which accompanied him, took no part in the action, Louis not wishing to see the English masters of the sea. On this, the English nation turned all its hatred against France.

20. The Duke of York's Marriage and Shaftesbury's Dismissal. 1673.—The alarm inspired by the Catholics was increased in the course of **1673**

by a marriage which took place in the Royal family. Soon after the Restoration the Duke of York had married Clarendon's daughter, Anne Hyde, and had by her two daughters, Mary and Anne, both of whom were brought up as Protestants, so that, if the Duke outlived his brother, he would, when he himself died, transmit the crown to a Protestant queen. He was now, however, a widower, and took as his second wife a Catholic princess, Mary of Modena. If the new Duchess should bear a son, the boy, who would inevitably be educated as a Catholic, would be the future king of England. When Parliament met in October it was highly indignant, and, as it attacked the king's ministers, it was prorogued after a session of a few days. Charles revenged himself by dismissing a minister whom the Commons had not attacked. Shaftesbury had, earlier in the year, learned the contents of the secret articles of the Treaty of Dover, and had thereby discovered that Charles had made a fool of him as completely as he had made a fool of Buckingham when he sent him to negotiate a sham treaty (see p. [603](#)). Shaftesbury remained true to his policy of toleration, but it was now to be toleration for Dissenters alone. Toleration for Catholics, he now knew, was connected with a scheme for overthrowing English independence with the aid of French soldiers. Accordingly, he supported the Test Act, and, as he continued uncompliant, Charles, on November 9, dismissed him. Shaftesbury at once threw himself into the most violent opposition. Buckingham was dismissed not long afterwards, and the so-called Cabal was thus finally broken up.

21. Peace with the Dutch. 1674.—The war with the Dutch was brought to an end by a treaty signed on February 19, **1674**. On the 24th Charles prorogued Parliament, and did not summon it again for more than a year. During the interval, he attempted to win friends all round, without committing himself to any definite policy. On the one hand, he remained on friendly terms with Louis, whilst, on the other hand, he offered the hand of Mary, the eldest child of his brother James, to her cousin, William of Orange. William's position was far higher than it had been two years before. He was now at the head of an alliance in which the Emperor Leopold, the King of Spain, and the Duke of Lorraine combined with him to restrain the inordinate ambition of Louis. It is true that his generalship was less conspicuous than his diplomacy, and that in the whole course of his life he never succeeded in beating a French army in the field. Yet even in war his indomitable courage and conspicuous coolness stood him in good stead, and he knew better than most commanders how to gather his troops after a defeat and to place them in strong positions in which the enemy did not dare to attack them. The history of Europe during the remainder of his life was the history of a duel between the ambitious and autocratic Louis and the cool-headed William, the first magistrate of a republic in which his action was checked by constitutional restraints on every side, and the head of a coalition of which the members were always prone to take offence and to pursue their individual interests at the sacrifice of the common good. To win England to the alliance was, for William, a most desirable object, but he knew that James might very well have a son by his second marriage, and, knowing that in that case he would reap no political advantage from a marriage with Mary, he for the present refused the offer of her hand.[\[31\]](#)

CHAPTER XXXIX
DANBY'S ADMINISTRATION AND THE THREE SHORT
PARLIAMENTS. 1675-1681

LEADING DATES
Reign of Charles II., 1660-1685

Rejection of the Non-Resistance Bill 1675
Marriage of William and Mary Nov. 15, 1677
The Peace of Nymwegen July 31, 1678
The Popish Plot 1678
Dissolution of the Cavalier Parliament Jan.
24, 1679
The First Short Parliament March 6—May 27,
1679
The Second Short Parliament Oct. 21, 1680—
Jan. 18, 1681
The Third Short Parliament March 21—
March 28, 1681

1. **Growing Influence of Danby. 1675.**—Charles's effort to govern in his own way having ended in failure, and, in what he thought to be of more consequence, discomfort to himself, he discovered that he would lead an easier life if he were on good terms with his Parliament than if he quarrelled with it. Being now disposed to throw over whatever troublesome convictions he had imagined himself to have, he gave his confidence to Osborne (see p. [607](#)), whom he had recently created Earl of Danby. Danby revived the domestic policy of Clarendon by maintaining, in accordance with the majority of the Cavalier Parliament, the supremacy of the Church of England over Catholics and Dissenters, and, equally in accordance with the majority of that Parliament, opposed Louis abroad.

2. **Parliamentary Parties. 1675.**—The decision of Charles to support Danby in carrying out a definite policy completed the formation of separate Parliamentary parties. These had, indeed, existed in the Long Parliament under various names, and had reappeared after the Restoration; but in the Cavalier Parliament the minority in favour of toleration had, at first, been exceedingly small, and, though it had grown larger in the days of the Cabal, it had been distracted by distrust of Charles when he appeared as a patron of toleration. The situation was now clear and the leaders distinctly known. On the one side was Danby and 'No toleration,' on the other side was Shaftesbury and 'Toleration for Dissenters only.' Neither side shrank from base means of acquiring strength. The ministers who formed the Cabal are

said to have been the first who bribed members of the House of Commons, but it was Danby who reduced bribery to a system which was afterwards extended by his successors. Shaftesbury's followers, on the other hand, were quite ready to enter into the pay of Louis, if he would help them to overthrow Danby and would strengthen them against the king.

3. **The Non-Resistance Bill. 1675.**—

When Parliament met in April **1675**, Danby produced a Bill which was intended to secure his hold on the House of Commons, whatever might be the opinion prevailing in the country. No one was to be allowed to hold office or to sit in Parliament unless he would swear that he believed resistance to the Crown to be in all cases illegal, and that he would never endeavour to alter the government in Church or State. If the Bill had passed, the future liberty of Parliament would have been fettered, and few, if any, who did not approve of the existing Church system could have entered Parliament. The Bill passed the Lords, but while it was still under discussion in the Commons Shaftesbury stirred up so bitter a quarrel between the Houses, that Charles prorogued Parliament before the Bill could be converted into law.



Ordinary dress of gentlemen in 1675:
from Loggan's *Oxonia Illustrata*.

4. **Charles a Pensionary of France. 1675-1676.**—Parliament, in its distrust of the king, refused him supplies, upon which Charles prorogued it for fifteen months. Louis, who feared lest Parliament should drive Charles into joining the alliance against him, was so pleased to see its sittings interrupted for so long a time that he granted to Charles a pension of 100,000*l.* a year, to make him independent of his subjects. The result was that whilst Charles allowed Danby to have his own way in domestic affairs, he refused to allow him to detach England from the French alliance. It was not, however, merely his personal interests which drew him to Louis, as he

took a real interest in the prosperity of English trade, and was unable to get over his jealousy of the Dutch. In November **1676**, he obtained from Louis a treaty by which the French renounced a claim made by them to seize Dutch goods conveyed in English ships, hoping by this to gain the goodwill of Parliament at its next meeting. He could not understand how completely the alarm of his subjects lest their national religion and independence should be assailed by the French had made them forgetful of their commercial jealousy of the Dutch.



Cup presented, 1676, by King Charles II.
to the Barber Surgeons' Company.

5. Two Foreign Policies. 1677.—On February 15, **1677**, Parliament again met. Shaftesbury and his allies attempted to steal a march on Danby by producing two old statutes of Edward III. which directed that Parliaments should be held every year, founding on it an argument that the existing Parliament, not having met for a year, had legally ceased to exist. The House of Lords sent Shaftesbury and three other peers to the Tower for their pains, and the Commons contemptuously rejected a similar argument put forward in their own House. Danby found himself triumphant. The Commons granted 600,000*l.* for increasing the navy. Danby then carried a Bill through the House of Lords for securing the Protestant religion in the

event of a Catholic—James being, of course, intended—coming to the throne, though the Bill did not pass the Commons, apparently from a feeling that its provisions were insufficient. The eyes of Englishmen were, however, principally fixed on the Continent. In the preceding year the French had gained two great naval victories, in one of which De Ruyter had been slain, and in the spring of **1677** Louis carried one place after another in the Spanish Netherlands. Both Houses now asked Charles to join the alliance against France, whereupon Charles indignantly prorogued Parliament. When he was urged by the Dutch ambassador to act upon the

wishes of the Houses he threw his handkerchief into the air, with the accompanying words: "I care just that for Parliament."

6. The Marriage of the Prince of Orange. 1677.—Louis paid to Charles 1,600,000*l.* for the prorogation which rid France for a time from the danger of a war with England. Charles, however, shrank from a renewal of the struggle with his Parliament on its next meeting, and, though he was resolved not to go to war with France if he could help it, he was ready to help in bringing about a general peace which would relieve him from all further invitation to join the allies. He accordingly welcomed Danby's suggestion that the plan for a marriage between the Prince of Orange and James's daughter Mary should be again taken up, especially as he hoped that it would break down the good understanding which existed between the Prince and Shaftesbury, and would smooth away the hostility of his subjects to his brother's right of succession. William, knowing that the feeling of Englishmen of both parties was in his favour, visited his uncles, and his marriage with Mary took place on November 15, **1677**. The marriage, which was to prove of incalculable importance in the future, was of great significance even at the time, as it marked the end of the hostile feeling against the Dutch which, for so many years, had been the dominant note of English foreign politics.

7. Danby's Position. 1677.—Though Danby had brought Charles round to support his foreign as well as his domestic policy, his success was more apparent than real. The fact was that his foreign and domestic policies were inconsistent with one another. In the long run it would be found impossible to contend against the French king and the English Catholics supported by him, without calling in the aid of those Protestant Dissenters who were most hostile to Louis. Englishmen attached to the Church were being led by their growing distrust of France to a tenderer feeling towards Dissenters, and the spread of this feeling made in favour of Shaftesbury, who favoured toleration, and not in favour of Danby, who opposed it. For the present, however, Danby could count on the Parliamentary majority which agreed with him, and neither he nor the king wished to risk a dissolution.

8. The Peace of Nymwegen. 1678.—When Parliament met in February **1678**, Charles appeared full of determination. He declared that, unless Louis



Steeple of the Church of St. Mary-le-Bow, London; built by Sir Christopher Wren between 1671 and 1680.

agreed to make peace with the Dutch on reasonable terms, he would go to war with France. The Commons at once resolved to grant him 1,000,000*l.*, and to support an army of 30,000 men and a fleet of 90 ships. Before this resolution was embodied in an Act, without which Charles could not touch the money, the followers of Shaftesbury took alarm. They believed—and, as is now known, not without reason—that Charles intended to use the troops to make himself absolute. They not only pressed him to disband what troops he had, but they entered into communication with Louis' ambassador, in the hope that he would support them in forcing Charles to dismiss his troops and to dissolve Parliament, some of them even accepting from him gifts of money. Charles, on his part, vacillated, doubting which was the best policy for him to adopt. At one time he was eager to assist the Dutch, and sent troops to their succour in the hope that a victorious army might afterwards be useful to him in England. At another time he made overtures to Louis with the object of securing his support. In the end,

on July 31, Louis and the Dutch made peace at Nymwegen without consulting Charles at all. Louis gained Franche Comté and a large number of fortresses on his northern frontier, which had formerly belonged to Spain. Though he had failed to destroy the Dutch Republic, he had shown himself superior in war to a great continental coalition, and had made France the predominant power in Europe.

9. The Popish Plot. 1678.—The part played by the king left the English people gravely dissatisfied with him. They feared lest he should seek to

overwhelm their liberties by military force and should bring in French regiments to support his own troops. Their suspicions were heightened by the knowledge that, if Charles died, his brother, an uncompromising Roman Catholic, would succeed him. In August, **1678**, a villain appeared to profit by this prevalent distrust. Titus Oates, a liar from his youth up, who had tried various religions and had recently professed himself a Catholic, announced the existence of a great 'Popish plot.' Charles, he said, was to be murdered, and James set upon the throne as the agent of the Jesuits. A French army was to land to support him, and Protestantism was to be absolutely suppressed. It was true that many Catholics were anxious to see James on the throne and had expressed contempt at Charles's conduct in refusing to declare himself one of themselves, but the rest of Oates's story was absolutely false.

10. Growing Excitement. 1678.—Oates's depositions were taken before a Middlesex magistrate, Sir Edmond Berry Godfrey. Not long afterwards Godfrey was found murdered in the fields near Primrose Hill. All London was wild with excitement. It was widely believed that 'the Papists' had murdered him to punish him for listening to Oates. It was also held to be an undoubted truth that 'the Papists' were about to set fire to London, and to murder all good Protestants. A joiner named College made his fortune by inventing a pocket flail, tipped with lead, which was called the Protestant flail, and was to be used by sober citizens to brain 'Popish' assassins. When Parliament met on October 21 Shaftesbury, who had been liberated early in the year, unscrupulously encouraged belief in the supposed plot. Up to that time Catholic peers had kept their seats in the House of Lords, and a few Catholics had surreptitiously sat in the Commons. A new Test Act was now passed by which they were excluded^[32] from both Houses, though the Duke of York was exempted by name from its operation. Five Catholic peers were thrown into the Tower, and Coleman, the secretary of the Duchess of York, who had in his custody papers implying that James had a design for forwarding the interests of his religion, was tried and executed.

11. Danby's Impeachment and the Dissolution of the Cavalier Parliament. 1678-1679.—The mark at which Shaftesbury aimed was the overthrow of Danby. Danby had always, as far as his own opinion went, been a warm antagonist of France, but a minister was still, in those days, in

reality the servant of the king, and was bound to carry out his master's orders, even when they were against his own conviction. Danby had, therefore, at the time when the Peace of Nymwegen was under discussion, written letters to Ralph Montague, the English ambassador in France, bidding him to ask Louis for a considerable payment to Charles, and, at the same time, explaining that the money was needed to make Charles independent of Parliament. Montague, having subsequently returned to England, brought this letter before the House of Commons. The House at once impeached Danby, under the false impression that he had been really subservient to France all the while. Charles had become attached to Danby, and knew that, if the proceedings against him were carried on, matters would come to light which he had every reason to conceal. To save himself and his minister, on January 24, **1679**, he dissolved the Cavalier Parliament, which had now sat for more than seventeen years.

12. The Meeting of the First Short Parliament. 1679.—When the elections to a new Parliament—the first of three short Parliaments—were completed, Charles found that, with the exception of at most thirty members, the opposition had gained every seat. Bowing to the storm, he sent his brother to Brussels, and expressed his readiness to place himself at the head of the Protestants of the Continent. When, however, Parliament met, on March 6, **1679**, it was found that both Houses were more anxious about the fate of Protestantism at home than about that of Protestants abroad. The Commons renewed the impeachment of Danby, upon which Danby produced a free pardon from the king. The Lords decided that a pardon could not be pleaded in bar of an impeachment, but, in the end, proceedings against Danby were dropped on his being deprived of office and committed to the Tower. By the advice of Sir William Temple, Charles tried a new experiment in government. A new Privy Council was appointed of thirty members, fifteen being ministers of the Crown and fifteen influential lords and commoners, by the advice of which the king was always to be guided. Shaftesbury was appointed President of this Council, but it was soon found to be too large a body to manage affairs which required secrecy, and a small committee was therefore formed out of it for the consideration of all important business.

13. The Exclusion Bill and the Habeas Corpus Act. 1679.—Charles, now that he experienced the strength of the opposition, was prepared to give way on every point except one—the maintenance of his brother's right of succession, which the new House of Commons was prepared to attack. He accordingly offered to place the strongest restrictions upon the power of a Catholic king. To the House of Commons, on the other hand, all restrictions appeared insufficient. The members believed seriously that no law would be able to bind a 'Popish' king. They thought that if he was determined—and it was taken for granted that he would be determined—to overthrow the Protestant religion, he would be able to do so. Lord Russell, the eldest son of the Duke of Bedford—the chief leader of Shaftesbury's party in the House of Commons—was not in the habit of using exaggerated language. Yet even he declared that, if James became king, his subjects must make up their mind to become 'Papists' or to be burnt. An Exclusion Bill was brought in, excluding the Duke of York from the throne. It was read twice, but not passed, as Charles first prorogued, and then, on May 27, dissolved Parliament. The only Act of importance produced in this Parliament was the *Habeas Corpus Act*, which finally put an end to sundry methods by which the Crown had evaded the rule requiring the issue of writs of *Habeas Corpus*, by which prisoners secured their right to be tried or liberated.

14. Shaftesbury and the King. 1679.—New elections were held, with the result that a House of Commons was chosen even more bitterly hostile to the Court than its predecessor. Shaftesbury was now at the height of his glory. Oates and other informers were adding new lies to those which they had told before, and the continual trials and executions of the Catholics for participation in the supposed Popish Plot kept the excitement in favour of the Exclusion Bill at a fever heat. Shaftesbury's position was very similar to Pym's in **1641**. He had on his side the fundamental principle that a nation cannot safely be governed by a ruler whose ideas on the most important question of the day are directly opposed to those of his subjects, and he was right, as the result showed, in holding that, in the seventeenth century, a Catholic king could not satisfactorily govern a Protestant people. After Danby's fall, the king became the real head of the party opposed to Shaftesbury. His ability had always been great, but hitherto he had alienated those who were disposed to be his friends by attempting to establish an absolute government with the help of the king of France and of an army

dependent on himself. He now set himself to overthrow Shaftesbury by appealing to a popular sentiment which was quite as strong, and might be stronger, than the dislike of a Catholic successor; that is to say, to the horror with which anything which threatened a new civil war filled the hearts of his subjects.

15. Shaftesbury and Halifax. 1679.—Shaftesbury had already allowed it to be known that he intended, if he carried the Exclusion Bill, to propose that the future king should be the Duke of Monmouth. Monmouth was the eldest of Charles's illegitimate sons, and it was currently, though falsely, believed that Charles had been privately married to his mother, so that he might rightly be regarded as the heir to the Crown. Charles, who knew better than any one else that this story was untrue, stood faithfully by his brother, and, though his constancy made little impression as yet, he had on his side a man whose judgment might usually be taken as an indication of the ultimate decision of public opinion. That man was George Savile, Earl, and afterwards Marquis of Halifax. He had been one of the bitterest enemies of Danby, but he devoted himself to no party. He called himself a Trimmer, as if his business was to trim the boat, and to throw himself against each party in turn as it grew violent in consequence of success. He now supported the king against Shaftesbury, on the ground that it was uncertain whether James would survive his brother, and that, if he did, he was not likely to survive him long; whereas, the succession of the Duke of Monmouth would not only exclude from the throne the Catholic James, but also his daughters, who were both Protestants. As Monmouth had no real hereditary right, there was every likelihood that, even if he ascended the throne, his claim would be opposed by partisans of James's eldest daughter, the Princess of Orange, and that a civil war would ensue.

16. The Divine Right of Kings. 1679.—The fear of civil war already frightened some, and would in time frighten more, into the acceptance of a doctrine which seems very absurd now—the doctrine of Divine indefeasible hereditary right—that is to say, that the succession as it was established by English law was established by Divine appointment, so that, though indeed subjects might refuse to obey the king, if he ordered them to commit sin, it was their duty to bear uncomplainingly any punishment that he might impose on them, however tyrannical he might be. Such a doctrine was

credited, not because those who held it were absolutely silly, but because they were more afraid of rebellion and civil war than they were of the tyranny of kings. For the present, however, such ideas had little hold on the new Parliament, and Charles prorogued it to give time for them to grow.

17. The Highland Host. 1677-1678.—Events were in the meanwhile passing in Scotland which helped to impress upon those who were easily frightened the idea that the only security against rebellion lay in a general submission to established institutions in Church and State. For many years Lauderdale had been, with Charles's full support, the absolute ruler of Scotland. He put down with a high hand the opposition of noblemen in Parliament, but he could not put down the religious zeal of the peasants, who, especially in the western Lowlands, combined zeal for Presbyterianism and the Covenant with exasperation against a Government which persecuted them. They held meetings for prayer and preaching on the open hill-sides, and the Government, failing to suppress these Conventicles, as they were called, by process of law, sent into the disaffected districts, in **1677**, a body of half-savage Highlanders known as the Highland Host, to reduce them to obedience by plunder and outrage.

18. Drumclog and Bothwell Bridge. 1679.—When the Highland Host had done its work it left behind a people whose temper was thoroughly soured. Political hatred of the oppressors mingled with religious zeal. The Covenanters, as those were called who denounced episcopacy as a breach of the Covenant (see p. [525](#)), regarded themselves as God's chosen people and all who supported their persecutors as the children of the devil, against whom it was lawful to draw the sword. To many of the Scottish gentry such talk as this appeared to be contemptible and dangerous fanaticism. Amongst those who strove most heartily against it was an active officer, John Graham of Claverhouse, who, being employed to quiet the country, shot or haled to prison men whom he thought likely to be forward in rebellion. On May 3, **1679**, a band of fanatics murdered, on Magus Moor, near St. Andrews, James Sharp, Archbishop of St. Andrews, who was known to be eager to call for the persecution of the Covenanters, and who was peculiarly hated as having been once a Presbyterian himself. On June 3 Claverhouse was driven back at Drumclog by an armed conventicle which he attempted to suppress. The peasants of the West rose in arms and declared against the

king's supremacy over the Church, and against Popery, Prelacy, and the succession of the Duke of York, but on June 22, Monmouth, who had been sent at the head of an army against them, defeated them at Bothwell Bridge, near Hamilton, and entirely suppressed the rebellion. Many of the prisoners were executed after being tortured to extract from them information against their accomplices, and this cruelty was exercised under the orders of the Duke of York, who had been sent to Scotland as Lord High Commissioner.

[\[33\]](#)

19. Petitioners and Abhorrrers. 1680.—Encouraged by his success in Scotland, Charles dismissed Shaftesbury from the presidency of the Council and got rid of his principal supporters. Temple's reformed Council came thereby to an end. When Monmouth returned from Scotland his father refused to see him and sent him away from London. In the beginning of **1680** Shaftesbury's party sent up numerous petitions to ask Charles to allow Parliament to meet, and his opponents sent up petitions expressing abhorrence at such an attempt to force the king's will. For a time the two parties were known as Petitioners and Abhorrrers, names which were soon replaced by those of Whigs and Tories. These celebrated names were at first merely nicknames. The courtiers called the Petitioners Whigs—an abbreviation of Whigamore, the name by which the peasants of the west of Scotland were familiarly known, from the cry of 'Whiggam' with which they were accustomed to encourage their horses. The name Whig therefore implied that the petitioners were no better than Covenanting rebels. The Petitioners, on the other hand, called their opponents Tories—the name given to brigands in Ireland, implying that they were no better than Popish thieves.

20. The Second Short Parliament. 1680-1681.—Each party did all that could be done to court popularity. Monmouth made a triumphant progress in the west of England. On the other hand, James, on his return from Scotland, had a good reception even in London, the headquarters of his opponents. On June 26, **1680**, Shaftesbury appeared at Westminster and indicted James as a recusant. At last, on October 21, the second Short Parliament met. The Exclusion Bill was rapidly passed through the Commons. In the Lords, Halifax carried the House with him by an eloquent and closely-reasoned speech, in which the claims of the Princess of Orange

were dwelt on as superior to those of Monmouth, and the Bill was, in consequence, rejected. On December 29 Lord Stafford, a Catholic peer, was executed on a false charge of a design to murder the king. When he protested his innocence on the scaffold, shouts were raised of "God bless you, my lord! We believe you, my lord!" Charles saw in these shouts an indication that the tide of opinion was turning in his favour, and, on January 18, **1681**, dissolved Parliament.

21. The Third Short Parliament. 1681.—Charles summoned a new Parliament to meet at Oxford, where it would not be exposed to any violent interruption by Shaftesbury's 'brisk boys'—as his noisy London supporters were called—who might, it was feared, repeat the exploits of the City mob in **1641** (see p. [535](#)). The new House of Commons was again predominantly Whig, and it was thought by the Whigs that Oxford had been selected as the place of meeting because the University was eminently Tory, with the deliberate intention of overpowering them by force. Their alarm increased when they learned that the king was bringing his guards with him. Accordingly the Whigs armed themselves and their servants in self-defence, and, in this guise, rode into Oxford. Parliament was opened on March 21, **1681**, and Charles then offered to assent to any scheme for stripping his brother of royal authority, if only he were recognised as king. Shaftesbury replied that the only way of ending the dispute was to declare Monmouth heir to the Crown. As the Commons supported Shaftesbury, Charles, on March 28, dissolved his third Short Parliament. So much was he afraid that the Whig members and their servants might lay violent hands on him, that he drove in one coach to Christchurch Hall, where the House of Lords was sitting, and sent his robes by another, in order that it might not be guessed that a dissolution was intended. He soon found that he could now count on popular support in almost every part of England. The mass of people judge more by what they see than by what they hear. The pistols in the hands of the Whig members when they rode into Oxford had driven into men's heads the belief that they intended to gain their ends by civil war, and, much as the nation disliked the idea of having a 'Popish' king, it disliked the idea of civil war still more, and rallied round the king.

CHAPTER XL THE LAST YEARS OF CHARLES II. 1681-1685

LEADING DATES Reign of Charles II., 1660-1685

Tory Reaction 1681
Flight of Shaftesbury 1682
Forfeiture of the Charter of the City of
London 1683
The Rye House Plot 1683
Executions of Russell and Sidney 1683
Death of Charles II. Feb. 6, 1685

1. **Tory Reaction. 1681.**—The Tory reaction which followed made itself especially felt in the law-courts. Judges and juries who had combined to send to death innocent Catholics, upon the testimony of forsworn informers, now combined to send to death ardent Whigs, upon the testimony of informers equally base. Colledge, the inventor of the Protestant flail (see p. [615](#)), was condemned to death, as having borne arms in Oxford during the last Parliament, and others shared his fate on equally slight grounds. In the City of London, however, it was still impossible to secure a verdict against a Whig. Juries were everywhere nominated by the sheriff of the county, and sheriffs were, in political cases, ready to compose a jury of political partisans. In every part of England except Middlesex, the sheriffs were named by the king, and were, therefore, Tories. The City of London, which was strongly Whig, had the privilege of electing sheriffs for London and Middlesex, and these sheriffs took care that Middlesex juries should be composed of Whigs. Shaftesbury was accused of high treason, but before he could be tried the Grand Jury of Middlesex had to find a true bill against him—that is to say, to declare that there was sufficient evidence against him to call for a trial. On November 24, **1681**, the Grand Jury, composed of his own political partisans, threw out the bill, and he was at once set at liberty.

2. **'Absolom and Achitophel.' 1681.**—A few days before Shaftesbury's release, Dryden, the greatest living master of the heroic couplet, strove to stir up men's minds against the prisoner by his satire of 'Absolom and

Achitophel,' in which the part of the tempter Achitophel was assigned to Shaftesbury and the part of the tempted Absalom to Monmouth. Shaftesbury was described as

For close designs and crooked councils fit;
Sagacious, bold, and turbulent of wit;
Restless, unfixed in principles and place;
In power unpleased, impatient of disgrace;
A fiery soul, which worketh out its way,
Fretted the pigmy body to decay,
And o'er-informed the tenement of clay.
A daring pilot in extremity;
Pleased with the danger when the waves ran high,
He sought the storms; but, for a calm unfit,
Would steer too nigh the sands to show his wit.

3. The Scottish Test Act and the Duke of York's Return. 1681-1682.—The 'daring pilot's' course was nearly run. Before long, on May 27, **1682**, Shaftesbury's most conspicuous enemy, the Duke of York, returned from Scotland. Whilst he was in Scotland he had obtained an Act from the Scottish Parliament, binding on all officials a new test, requiring them to swear to the doctrine of hereditary right and to the maintenance of the episcopal Church. The Earl of Argyle, the son of the Marquis of Argyle, the political leader of the Covenanters against Charles I., having inherited his father's Presbyterianism, not only refused the oath, but gave reasons for refusing. The Crown lawyers declared that his reasons poisoned the minds of the subjects against the king, and he was tried and condemned to death under an old statute against leasing-making—literally, the making of lies—which had been passed about a century before to punish court favourites who sowed dissension between the king and his people by poisoning the mind of the king against his subjects. Argyle, however, escaped to Holland, and on April 20, **1682**, James reached London.

4. The City Elections. 1682.—The first thing on which, after James's return, the king's ministers set their heart, was to strike a blow at Shaftesbury. As he lived in his house in Aldersgate Street and took care never to leave the City, it was impossible to bring him to trial as long as the

sheriffs of London and Middlesex were Whigs. The Lord Mayor, Moore, was gained by the Court, and, by various unscrupulous contrivances, he secured the appointment of two Tory sheriffs, and, even before the end of **1682**, of a Tory Lord Mayor named Prichard as his own successor. There would no longer be any difficulty in filling the Middlesex jury box with Tories.

5. Flight and Death of Shaftesbury. 1682-1683.—Shaftesbury had for some time been keenly alive to the danger impending over him. He had wild followers in the City ready to follow him in acts of violence, and he had proposed to Russell and Monmouth that the king's guards at Whitehall should be attacked, and the king compelled to do his bidding. Russell and Monmouth recoiled from an act of violence which would certainly end in bloodshed. Shaftesbury still hoped to effect his end by the aid of his less scrupulous supporters; but time slipped away, and on October 19, three days before Prichard's election, he fled to Holland, where he died on January 22, **1683**. With all his faults, he had led the way on that path in which the English nation was, before long, to walk, as he had latterly striven for a combination of Parliamentary supremacy with toleration for dissenters and without toleration for Catholics. His personal failure was due to the disquietude caused by his turbulence in the minds of that large part of the community which regards orderly government as a matter of primary necessity.

6. The Attack on the City. 1682-1683.—The difficulty which Charles had experienced in bending the city to his will made him anxious to provide against similar resistance in the future. Taking care to effect his objects under, at least, the form of law, he enforced on the electors in the City, who were called in December to choose the Common Council, the oath of supremacy and the proof required by the Corporation Act of having received the Sacrament in the Church. The result was that a Tory majority was returned on the Common Council. Following up this blow in **1683**, he called on the City to show cause, by a writ known as '*Quo Warranto*,' before the King's Bench, why its charter should not be forfeited, in consequence of its having imposed irregular tolls and having attacked the king's authority in a petition exhibited in **1680**. The King's Bench decided against the City, and the king then offered to restore the charter on certain conditions, of which

the principal was, that he was to have a veto on the election of its principal officers. At first the City accepted his terms, but, before the end of the year, it drew back, and the king then named the Lord Mayor and other officers directly, paying no further regard to the municipal self-government under which the City had, for many centuries, conducted its own affairs.

7. The Remodelling of the Corporations. 1683-1684.—A large number of other corporate towns were treated as London had been treated. By a plentiful use of writs of *Quo Warranto*, the judges on circuit obtained the surrender of their charters, after which the king issued new ones in which Tories alone were named as members of the corporations. It was said of Jeffreys, one amongst the judges who was most subservient, that he 'made all charters, like the walls of Jericho, fall down before him.' The object of these proceedings was to make sure of a Tory Parliament when the time came for fresh elections. In a large number of boroughs the corporations chose the members, and in such cases wherever the corporation had been remodelled, there would be a safe Tory seat. At the same time the laws against the Dissenters were strictly executed, and the prisons filled with their ministers.

8. The Rye House Plot. 1683.—When injustice is done under legal forms, there are usually some persons who think it allowable to appeal to force. Some of Shaftesbury's more violent followers formed a plot to attack the king and his brother at the Rye House on their return from Newmarket, and either to seize or murder them. The plot failed, as Charles passed the Rye House some days earlier than was expected, and several of the conspirators were taken and executed.

9. The Whig Combination. 1683.—The discovery of the Rye House Plot brought to light a dangerous combination amongst the Parliamentary Whigs, in which Monmouth, Russell, Essex, Lord Howard of Escrick, and other notable persons were implicated. They had, indeed, kept themselves free from any intention to offer personal violence to the king, but they had attempted to form an association strong enough to compel him to summon another Parliament, though apparently without coming to a definite conclusion as to the way in which they were to use compulsion. In their own eyes their project was no more than constitutional agitation. In the eyes

of the king and of the Crown lawyers it was a preparation for rebellion. Essex committed suicide in prison, whilst Howard of Escrick turned informer against his friends.

10. Trial and Execution of Lord Russell. 1683.—Russell was accordingly put on his trial as a traitor. In those days no one on his trial for treason was allowed to be defended by a lawyer, as far as the facts of the case were concerned, but no objection was taken to his having some one near him to take notes of the evidence and to assist his memory. "Your friends," wrote his wife to him shortly before the trial, "believing I can do you some service at your trial, I am extremely willing to try. My resolution will hold out, pray let yours." Her offer was accepted, and she gave her husband all the help that it was possible to give. The jury, however, brought in a verdict of guilty, and sentence of death followed. In prison Russell was visited by two ministers, Tillotson and Burnet. No clergymen in England were more liberal-minded than these two, yet they urged the prisoner to acknowledge that resistance to the king was in all cases unlawful. Russell maintained that, in extreme cases, subjects might resist. Here lay the root of the political animosity between Whig and Tory. Whether an extreme case had occurred was a matter of opinion. "As for the share I had in the prosecution of the Popish Plot," Russell declared on the scaffold, "I take God to witness that I proceeded in it in the sincerity of my heart, being then really convinced, as I am still, that there was a conspiracy against the king, the nation, and the Protestant religion." It was because the nation at large no longer held this to be true that the Tories were in power.

11. Execution of Algernon Sidney. 1683.—Russell's trial was followed by that of Algernon Sidney. Though the real charge against him was that of having conspired against the king, only one, and that a not very credible, witness could be produced as evidence of this; and the prosecuting lawyers then brought forward a treatise, written in his own hand, but neither printed nor circulated in manuscript, in which he had advocated the right of subjects to depose their king. This was held to be equivalent to having a second witness against him, and Sidney was condemned and executed. He was a theoretical Republican, and it was hard to bring up against him a writing which he had never published. Other less important Whigs were also put to death. Monmouth owed his pardon to his father's tenderness, but,

as he still continued to bear himself as the head of a party, he was sent into honourable exile in Holland.

12. Parties at Court. 1684.—In the spring of **1684** three years had passed without a Parliament, although the statute repealing the Triennial Act (see p. [588](#)) had declared that Parliament ought to be summoned every three years. So sure was Charles of his ground that he liberated Danby without causing a murmur of complaint. At Court there were two parties, one led by Halifax, which urged that, by summoning a Parliament now, Charles would not only comply with the law, but would have a Parliament as loyal as the Cavalier Parliament had been; the other, led by Lawrence Hyde, the second son of Clarendon, who had recently been created Earl of Rochester. Rochester, who was the highest of Tories, pointed out that the law prescribed no means by which the king could be compelled to call a Parliament if he did not wish to do so, and that, after all, the Cavalier Parliament, loyal as it was at first, had made itself very disagreeable to the king during the latter years of its existence. All through the year Charles hesitated and left the question undecided. The king of France, who was renewing his aggressions on the Continent under the guise of legal claims, was ready to do all he could to prevent the meeting of an English Parliament, which would, in all probability, declare against him, and by sending money to Charles from time to time, he saved him from the necessity of asking his subjects for support.

13. Death of Charles II. 1685.—On February 2, **1685**, before anything had been decided, Charles was struck down by an apoplectic stroke. It was soon known that he was dying. Sancroft, the Archbishop of Canterbury, spoke plainly to him: "It is time," he said, "to speak out; for, sir, you are about to appear before a Judge who is no respecter of persons." The king took no notice, and, after a while, the Duke of York came to his bed-side and asked his brother whether he wished to be reconciled to the Church of Rome. "Yes," murmured the dying man, "with all my heart!" James sent for a priest, directing the bishops and the courtiers to leave the room. Charles was duly reconciled, receiving absolution and the sacraments of the Roman Church. He lingered for some days, and begged pardon of those around him. He had been, he said, an unconscionable time in dying, but he hoped they would excuse it. On February 6 he died.



Dress of ladies of quality: from
Sandford's *Coronation Procession of
James II.*

14. Constitutional Progress. 1660-1685.—The twenty-five years of the reign of Charles II. were years of substantial constitutional progress. Charles did not, indeed, acknowledge that Parliament had that right of directing the choice of his ministers which the Long Parliament had upheld against his father in the Grand Remonstrance; but though he took care that his ministers should be responsible to himself and not to Parliament, he had also taken care, on the whole, to adapt the selection of his ministers to the changing temper of Parliament and the nation. Clarendon, the Cabal, and Danby had all been allowed to disappear from office when Parliament turned against them. The formation of Parliamentary parties, again, was itself a condition of Parliamentary strength. The

Cavalier Parliament had been weakened in its later years by the uncertainty of its aims. At one time the king's reliance upon France and his tendency to rest his government on armed force provoked a majority to vote against him. At another time some concession made by him to their wishes brought round a majority to his side. In the latter years of Charles's reign this uncertainty was at an end. Charles had thrown his dependence on France and the army into the background, and in a struggle, the successful issue of which would bring no personal advantage to himself, had taken his stand on the intelligible principle of defending his brother's succession. He had consequently rallied round the throne all who thought the maintenance of order to be of supreme importance, whilst all who suspected that the order which Charles maintained was hurtful and oppressive combined against him. This sharp division of parties ultimately strengthened the power of Parliament. The intemperance of Charles's adversaries had indeed given him the upper hand for the time, but, if ever the day came when a king made himself unpopular, a Parliament opposed to him would be all the stronger if its majority were of one mind in supporting definite principles

under definite leaders. Charles II., in short, did not live to see the establishment of Parliamentary government, but he unwittingly prepared the way for it.

15. Prosperity of the Country.—The horror of a renewal of civil war, which was partly the result of sad experience, was also the result of the growth of the general well-being of the community. The population of England now exceeded 5,000,000. Rents were rising, and commerce was rapidly on the increase. Fresh colonies—amongst them Pennsylvania and Carolina—were founded in America. In England itself the growth of London was an index to the general prosperity. In those days the City was the home of the merchants, who did not then leave the place where their business was done to spend the evening and night in the suburbs. Living side by side, they clung to one another, and their civic ardour created a strength which weighed heavily in the balance of parties. The opposition of the City to Charles I. had given the victory to Parliament in the civil war, and its dislike of military government had done much to bring about the Restoration. The favour of the City had been the chief support of Shaftesbury, and it was only by overthrowing its municipal institutions that Charles II. had succeeded in crippling its power to injure him. In the meantime a new forest of houses was springing up on sites between Lincoln's Inn and what is now known as Soho Square, and round St. James's Church. The Court and the frequent meetings of Parliament attracted to London many families which, a generation earlier, would have lived entirely in the country.



Ordinary attire of women of the lower classes: from Sandford's *Coronation Procession of James II.*



Coach of the latter half of the seventeenth century: from Loggan's *Oxonia Illustrata*.



Wagon of the second half of the seventeenth century: from Loggan's *Oxonia Illustrata*.

16. **The Coffee Houses.**—Nothing has made a greater change in the material habits of Europeans than the introduction of warm beverages. Chocolate first made its way into England in the time of the Commonwealth, but it was for some time regarded merely as a medicine, not to be taken by the prudent except under a physician's orders, though those interested in its sale declared that it was suitable for all, and would cure every possible complaint. Chocolate was soon followed by coffee, and coffee soon became fashionable, not as a medicine, but as a pleasant substitute for beer and wine. The introduction of tea was somewhat later. It was in the reign of Charles II. that coffee-houses arose in London, and became places of resort, answering the purposes of the modern clubs. They soon acquired political importance, matters of state being often discussed in them, and the opinion of their frequenters carrying weight with those who were directly concerned with Government. The gathering of men of intellectual prominence to London was a marked feature of the time, and,

except at the universities, there was scarcely a preacher or a theological writer of note who was not to be found either in the episcopate or at the head of a London parish.



Reaping and harvesting in the second half of the seventeenth century; Cambridge in the distance:
from Loggan's *Cantabrigia Illustrata*.

17. Condition of London.—The arrangements for cleanliness did not keep pace in London with the increased magnificence of the dwellings. The centre of Lincoln's Inn Fields, for instance, was a place where rubbish was shot, and where beggars congregated. St. James's Square was just as bad, whilst filthy and discoloured streams poured along the gutters, and carts and carriages splashed mud and worse than mud over the passengers on foot. At the beginning of the reign of Charles II. the streets were left in darkness, and robbers made an easy prey of those who ventured out after dark. Young noblemen and gentlemen when drunk took pleasure in knocking down men and insulting women. These were they of whom Milton was thinking when he declared that

In luxurious cities, when the noise
Of riot ascends above their loftiest towers,
And injury, and outrage: and when night

Darkens the streets, then wander forth the sons
Of Belial, flown with insolence and wine.

Something was, however, done before the end of the reign to mitigate the dangers arising from darkness. One man obtained a patent for lighting London, and it was thought a great thing that he placed a lantern in front of one door in every ten in winter only, between six and midnight.

18. Painting.—The art of the time, so far as painting was concerned, was entirely in the hands of foreigners. Van Dyck, a Fleming, from Antwerp, had left to the world numerous representations of Charles I. and Henrietta Maria, of Strafford and Laud, and of the ladies and gentlemen who thronged the Court. An Englishman, Samuel Cooper, made posterity acquainted with the features of Cromwell (see p. [567](#)). Charles II. again called in the services of a foreigner, whose real name was Van der Goes, but who called himself Lely, because his father's house on the borders of Germany and the Netherlands was known by the sign of the Lily. Lely painted Court beauties and Court gentlemen. He had far less power than Van Dyck of presenting on canvas the mind which lies behind the features, and in many cases those who sat to him had minds less worthy of being presented than those with which Van Dyck had to do. When Charles II. wished for a painting of the sea and of shipping he had to send for a Dutch painter, Vandevelde; whilst an Italian, Verrio, decorated his ceilings with subjects taken from heathen mythology.

19. Architecture.—In architecture alone English hands were found to do the work required; but the style in which they built was not English but Italian. The rows of pillars and round arches, with the meaningless decorations which bespoke an age preferring sumptuousness to beauty, superseded the quaint Elizabethan and early Jacobean houses, which seemed built for comfort rather than for display, such as Ingestre Hall (see p. [471](#)) and Hatfield House (see p. [485](#)). In the reign of James I., Inigo Jones planned the great banqueting hall at Whitehall (see p. [493](#)), and so contemptuous was he of the great architecture of the middle ages, that he fitted on an Italian portico to the west front of the old St. Paul's. This style of building culminated in the work of Sir Christopher Wren. The fire of London gave him an opportunity which he did not throw away. The steeple

of St. Mary-le-Bow is an example of his powers of design (see p. [614](#)), but his greatest achievement, the new St. Paul's, was, when Charles II. died, only slowly rising from the ground, and it remained uncompleted till long after Charles II. had been laid in the grave.

20. **Science.**—The foundation of the Royal Society (see p. [598](#)) had borne ample fruit. Halley and Flamsteed were the astronomers of the time till their fame was eclipsed by that of Isaac Newton, who before the end of the reign of Charles II. was already meditating on the views contained in his 'Principia,' in which the law of gravitation was set forth, though that work was not written till after the death of that king.



Costume of a gentleman: from
Sandford's *Coronation Procession of
James II.*

21. **Difficulties of Communication.**—

Difficulties of communication served both to encourage town life and to hinder the increase of manufactures at any considerable distance from the sea. The roads were left to each parish to repair, and the parishes usually did as little as possible. In many places a mere quagmire took the place of the road. Young and active men, and sometimes ladies, travelled on horseback, and goods of no great weight were transmitted on packhorses. The family coach, in which those who were too dignified or too weak to ride made their way from one part of the country to another, was dragged by six horses, and often sank so deeply in the mud as only to be extricated by the loan of additional plough horses from a

neighbouring farm, whilst heavy goods were conveyed in lumbering waggons, still more difficult to move even at a moderate speed. For passengers who could not afford to keep a coach the carrier's waggon served as a slow conveyance; but before the end of the reign of Charles II. there had been introduced a vehicle known as The Flying Coach, which

managed to perform a journey at the rate of fifty miles a day in summer and thirty in winter, in districts in which roads were exceptionably good.

22. The Country Gentry and the Country Clergy.—These difficulties of communication greatly affected the less wealthy of the country gentry and the country clergy. A country gentleman of large fortune, indeed, would occasionally visit London and appear as a visitor at the house of some relative or friend to whom he was specially attached. The movements, however, even of this class were much restricted, whilst men of moderate estate seldom moved at all. The refinements which at present adorn country life were not then to be found. Books were few, and the man of comparatively slender means found sufficient occupation in the management of his land and in the enjoyment of field sports. His ideas on politics were crude, and, because they were crude, were pertinaciously held. The country clergyman was relatively poorer than the country squire; and had few means of cultivating his mind or of elevating the religion of his parishioners. The ladies of the houses of even the richest of the landed gentry were scarcely educated at all, and, though there were bright exceptions, any one familiar with the correspondence of the seventeenth century knows that, if he comes across a letter particularly illegible and uninteresting, there is a strong probability that the writer was a woman.

23. Alliance between the Gentry and the Church.—A common life passed in the country under much the same conditions naturally drew together the squire and the rector or vicar of his parish. A still stronger bond united them for the most part in a common Toryism. They had both suffered from the same oppression: the squire, or his predecessor, had been heavily fined by a Puritan Parliament or a Puritan Lord Protector, whilst the incumbent or his predecessor had been expelled from his parsonage and deprived of his livelihood by the same authority. They therefore naturally combined in thinking that the first axiom in politics was to keep Dissenters down, lest they should do again what men like-minded with themselves had done before. Unless some other fear, stronger still, presented itself to them, they would endure almost anything from the king rather than risk the return to power of the Dissenters or of the Whigs, the friends of the Dissenters.

CHAPTER XLI

JAMES II. 1685-1689

LEADING DATES

Accession of James II. Feb. 6, 1685
Meeting of Parliament May 19, 1685
Battle of Sedgemoor July 6, 1685
Prorogation of Parliament Nov. 20, 1685
The Judges allow the King's Dispensing
Power June 21, 1686
First Declaration of Indulgence April 4, 1687
Second Declaration of Indulgence April 22,
1688
Birth of the Son of James II. June 10, 1688
Acquittal of the Seven Bishops June 30, 1688
Landing of William of Orange Nov. 5, 1688
The Crown accepted by William and Mary
Feb. 13, 1689

1. **The Accession of James II. 1685.**—The character of the new king, James II., resembled that of his father. He had the same unalterable belief that whatever he wished to do was absolutely right; the same incapacity for entering into the feelings or motives of his opponents, and even more than his father's inability to see faults in those who took his side. He was bent on procuring religious liberty for the Catholics, and at first imagined it possible to do this with the help of the clergy and laity of the Church of England. In his first speech to the Privy Council he announced his intention of preserving the established government in Church and State. He had mass, indeed, celebrated with open doors in his chapel at Whitehall, and he continued to levy taxes which had been granted to his brother for life only; yet, as he issued writs for a Parliament, these things did not count much against him. Unless, indeed, he was to set the law and constitution at defiance he could do no otherwise than summon Parliament, as out of 1,400,000*l.* which formed the revenue of the Crown, 900,000*l.* lapsed on Charles's death. James, however, secured himself against all eventualities by procuring from Louis a promise of financial aid in case of Parliament's

proving restive. Before Parliament met, the king's inclinations were manifested by sentences pronounced by judges eager to gain his favour. On the one hand, Titus Oates was subjected to a flogging so severe that it would have killed anyone less hardy than himself. On the other hand, Richard Baxter, the most learned and moderate of Dissenters, was sent to prison after being scolded and insulted by Jeffreys, who, at the end of the late reign, had, through James's influence, been made Chief Justice of the King's Bench.



James II.: from the National Portrait Gallery.

2. A Tory Parliament. 1685.—Parliament met on May 19. The House of Commons was Tory by an enormous majority, partly because the remodelled corporations (see p. [625](#)) returned Tory members, but still more because the feeling of the country ran strongly in James's favour. The Commons granted to him the full revenue which had been enjoyed by his brother, and refused to listen to a few of its members who raised objections to some things which had been recently done. The House had not been long

in session when it heard of two invasions, the one in Scotland and the other in England.



Yeomen of the Guard: from Sandford's
Coronation Procession of James II.

3. Argyle's Landing. 1685.—In Scotland the upper classes were animated by a savage resolve to keep no terms with the Covenanters, whose fanatical violence alarmed them. The Scottish Parliament, soon after the accession of James, passed a law punishing with death any one attending a conventicle. Argyle, believing, in his exile in Holland, that all honest Scots would be ready to join him against the tyranny of the Government, sailed early in May at the head of a small expedition, and arrived in the Firth of Clyde. He had himself no military skill, and his followers, no less ignorant than himself, overruled everything that he proposed. Soon after landing he was

captured and carried to Edinburgh, where, as he was already legally condemned to death (see p. [623](#)), he was executed on June 30 without further trial. On the night before his death a member of the Council came to see him in his cell, where he found him in a placid slumber. The visitor rushed off in agony to the house of a friend. "I have been," he said, "in Argyle's prison. I have seen him within an hour of eternity, sleeping as sweetly as ever man did. But as for me—" His voice failed him, and he could say no more.

4. Monmouth's Landing. 1685.—In the meanwhile Monmouth, the champion of the Dissenters and extreme Protestants, had, on June 11, landed at Lyme. So popular was he in the west of England that the trained bands could not be trusted to oppose him, and he was left unassailed till regiments of the regular army could be brought against him. The peasants and townsmen of the western counties flocked to join Monmouth, and he entered Taunton at the head of 5,000 men; but not a single country gentleman gave him his support. Parliament passed against him an Act of

Attainder, condemning him to death without further trial, and the king marched in person against him at the head of a disciplined force. Monmouth declared himself to be the legitimate king, and, his name being James, he was popularly known amongst his followers as King Monmouth, in order to prevent confusion. He advanced as far as Philip's Norton: there, hopeless of gaining support amongst the governing classes, he fell back on Bridgwater. The king followed him with 2,500 regular troops, and 1,500 from the Wiltshire trained bands. Monmouth was soldier enough to know that, with his raw recruits, his only chance lay in surprising the enemy. The king's army lay on Sedgemoor, and Monmouth, in the early morning of July 6, attempted to fall on the enemy unawares. Broad ditches filled with water checked his course, and the sun was up before he reached his goal. It was inevitable that he should be beaten; the only wonder was that his untrained men fought so long as they did. Monmouth himself fled to the New Forest, where he was captured and brought to London. James admitted him to his presence, but refused to pardon him. On July 15 he was executed as an attainted traitor without further trial.

5. The Bloody Assizes. 1685.—Large numbers of Monmouth's followers were hanged by the pursuing soldiers without form of law. Many were thrust into prison to await their trial. Jeffreys, the most insolent of the judges, was sent to hold, in the western counties, what will always be known as the Bloody Assizes. It is true that the law which he had to administer was cruel, but Jeffreys gained peculiar obloquy by delighting in its cruelty, and by sneering at its unhappy victims. At Winchester he condemned to death an old lady, Alice Lisle, who was guilty of hiding in her house two fugitives from vengeance. At Dorchester 74 persons were hanged. In Somersetshire no less than 233 were put to death. Jeffreys overwhelmed his victims with scornful mockery. One of them pleaded that he was a good Protestant: "Protestant!" cried Jeffreys, "you mean Presbyterian; I'll hold you a wager of it, I can smell a Presbyterian forty miles." Some one tried to move his compassion in favour of one of the accused. "My lord," he said, "this poor creature is on the parish." "Do not trouble yourselves," was the only answer given, "I will ease the parish of the burden," and he ordered the man to be hanged at once. The whole number of those who perished in the Bloody Assizes was 320, whilst 841 were transported to the West Indies to work as slaves under a broiling sun.

James welcomed Jeffreys on his return, and made him Lord Chancellor as a reward for his achievements.

6. The Violation of the Test Act. 1685.—James's success made him believe that he could overpower any opposition. He had already increased his army and had appointed officers who had refused to take the test. On his return to London he resolved to ask Parliament to repeal the Test Act, and dismissed Halifax for refusing to support his proposal. It would probably have been difficult for him to obtain the repeal even of the Recusancy Laws which punished Catholics for acting on their religious belief. It was not only hopeless, but rightly hopeless, for him to ask for a repeal of the Test Act, which, as long as a Catholic king was on the throne, stood in the way of his filling all posts in the army as well as in the state with men who would be ready to assist him in designs against the religion and liberties of Englishmen. If anything could increase the dislike of the nation to the repeal of the Test Act it was the fact that, in that very year, Louis had revoked the Edict of Nantes issued by his ancestor, Henry IV., to protect the French Protestants, and had handed them over to a cruel persecution. It might be fairly argued that what Louis had done, James, if he got the power, might be expected to do hereafter.

7. Breach between Parliament and King. 1685.—When the Houses, which had adjourned when the king went into the West, met again on November 9, James informed them not only that he had appointed officers disqualified by law, but that he was determined not to part with them. The House of Commons, the most loyal House that had ever been chosen, remonstrated with him, and there were signs that the Lords intended to support the remonstrance. On November 20 James prorogued Parliament.

8. The Dispensing Power. 1686.—Like his father, James liked to think that, when he broke the laws, he was acting legally, and he remembered that the Crown had, in former days, exercised a power of dispensing with the execution of the laws (see p. [604](#)). This power had, indeed, been questioned by the Parliament in 1673 (see p. [606](#)), but there was no statute or legal judgment declaring it to be forbidden by law. James now wanted to get a decision from the judges that he possessed the dispensing power, and when he found that four of the judges disagreed with him, he replaced them by

four judges who would decide in his favour. Having thus packed the Bench, he procured the bringing of a collusive action against Sir Edward Hales, who, having been appointed an officer in the army, had, as a Catholic, refused to take the test. Hales produced a dispensation from the king, and, on June 21, **1686**, the judges decided that such dispensations freed those who received them from the penalties imposed by any laws whatever.

9. The Ecclesiastical Commission. 1686.—James, in virtue of his dispensing power, had already authorised some clergymen of the Church of England, who had turned Roman Catholics, to retain their benefices. Obadiah Walker, the Master of University College, Oxford, became a Roman Catholic, set up a press for the printing of Roman Catholic tracts, and had mass celebrated openly in the college. Yet he was allowed to retain his post. Then the king appointed Massey, an avowed Roman Catholic, to the Deanery of Christchurch, and Parker, a secret Roman Catholic, to the Bishopric of Oxford. Naturally the clergy who retained the principles of the Church of England preached sermons warning their hearers against the errors of the Church of Rome. James ordered them to be silent, and directed Compton, Bishop of London, to suspend Sharp, the Dean of Norwich, for preaching against the Papal doctrines. As Compton refused to obey, James, on July 11, constituted an Ecclesiastical Commission Court, at the head of which was Jeffreys. It is true that the Court of High Commission had been abolished by a statute of the Long Parliament, but James argued that his father's court, having power to punish the laity as well as the clergy, could be abolished by Act of Parliament, whereas, a king being supreme governor of the Church, might provide for the punishment of the clergy alone, in any way that he thought fit, without taking account of Acts of Parliament. The first act of the new court was to suspend Compton for his refusal to suspend Sharp. James therefore had it in his power to stop the mouths of all the religious teachers in the realm.

10. Scotland and Ireland. 1686-1687.—In Scotland James insisted on a Parliamentary repeal of all laws imposing penalties on Roman Catholics. The Scottish Parliament, subservient as it had been to Charles II., having refused to comply with this demand, James dispensed with all these laws by his own authority, thereby making Scottish Episcopalians almost as sullen as Scottish Covenanters. In Ireland James had on his side the whole

Catholic Celtic population, which complained of wrongs committed against their religion and property by the English colonists. James determined to redress these wrongs. In February, **1687**, he sent over to Ireland as Lord Deputy the Earl of Tyrconnel, whose character was low, and who had been known at Charles's Court as Lying Dick Talbot. He was, however, a Roman Catholic, and would carry out the king's will in Ireland without remorse.

11. The Fall of the Hydes. 1686-1687.—To make way for Tyrconnel, the former lord-lieutenant, Clarendon, the eldest son of the late Chancellor, was recalled from Ireland, his fall being preceded by that of his younger brother Rochester (see p. [627](#)). Rochester was devoted to the maintenance of the Royal power; but James told him that he must change his religion if he wished to keep his office, and on his refusal he was dismissed.

12. The Declaration of Indulgence. 1687.—The dismissal of Rochester was the strongest possible evidence that James's own spirit was intolerant. Yet he was driven, by the course which he had taken, into the adoption of the principle of toleration, and no doubt persuaded himself that he accepted toleration on its own merits. At first he had hoped to obtain favours for the Roman Catholics with the goodwill of the Church of England, whilst continuing the persecution of Dissenters. He now knew that this was impossible, and he therefore resolved to make friends of the Dissenters by pronouncing for a general toleration. He first had private interviews with the leading men in both Houses, in the hope that they would, if Parliament were re-assembled, assist in the repeal of all penal laws bearing on religion. These closetings, as they were called,^[34] proving ineffectual, he issued, by his own authority, on April 4, **1687**, a Declaration of Indulgence, suspending all laws against Roman Catholics and Dissenters alike, and giving permission to both to worship publicly. The result of the Declaration was not all that James desired. Many of the Dissenters, indeed, accepted their freedom joyfully. Most of them, however, dreaded a gift which seemed only intended to elevate the Roman Catholics, and opened their ears to the pleadings of the Churchmen, who now assured their old enemies that if they would have a little patience they should, in the next Parliament, have a toleration secured by law. This, argued the Churchmen, would be of far more use to them than one granted by the king, which would avail them

nothing whenever the king died and was succeeded by his Protestant daughter, the Princess of Orange.

13. The Expulsion of the Fellows of Magdalen. 1687.—Scarcely was the Declaration issued when James showed how little he cared for law or custom. There was a vacancy in the President-ship of Magdalen College, Oxford, and James commanded the Fellows to choose one Farmer, a man of bad character, and a Roman Catholic. On April 15 the Fellows, as they had the undoubted right to do, chose Hough. In June they were summoned before the Ecclesiastical Commission, which declared Hough's election to be void, and ordered them to choose Parker, who, though at heart a Roman Catholic, was nominally the Protestant Bishop of Oxford (see p. [638](#)). They answered simply that, as Hough had been lawfully elected, they had no right to choose another President in his lifetime. Jeffreys bullied them in vain. James insisted on their accepting Parker, and on acknowledging the legality of the proceedings of the Ecclesiastical Commission. All but two, having refused to submit, were turned out of the College and left to beg their bread. When the Commissioners attempted to install Parker in his office not a blacksmith in Oxford would consent to break open the lock of the President's lodgings. The servants of the Commissioners were at last employed to force the door, and it was in this way that Parker took possession of the residence to which Hough alone had a legal claim. The expelled Fellows were not left to starve, as there was scarcely a gentleman in England who would not have been proud to receive one of them into his house.

14. An Attempt to pack a Parliament. 1687.—James was anxious to obtain Parliamentary sanction for his Declaration of Indulgence. He dissolved the existing Parliament, hoping to find a new one more to his taste. As he had packed the Bench of Judges in **1686**, he tried to pack a Parliament in **1687**. A board of regulators was appointed, with Jeffreys at its head, to remodel the corporations once more, appointing Roman Catholics and Dissenters to sit in them. James expected that these new members would elect tolerationists to the next House of Commons. So strong, however, was public opinion against the king that even the new members chosen expressly to vote for the king's nominees could not be relied on. The design of calling a new Parliament was therefore abandoned for the time.

15. A Second Declaration of Indulgence. 1688.—On April 22, 1688, James issued a second Declaration of Indulgence, which he ordered to be read in all the churches. Most of the clergy objecting to read it, seven bishops signed a petition asking that the clergy might be excused. Six of these bishops—Sancroft, the Archbishop of Canterbury, who was the seventh, having been forbidden to appear before the king—presented the petition to James at Whitehall. James was startled when it was placed in his hands. "This," he said, "is a great surprise to me. I did not expect this from your Church, especially from some of you. This is a standard of rebellion." In vain the bishops protested that they hated the very sound of rebellion. James would not listen to their excuses. "This," he persisted in saying, "is rebellion. This is a standard of rebellion. Did ever a good churchman question the dispensing power before? Have not some of you preached for it and written for it? It is a standard of rebellion. I will have my declaration published." One of the bishops replied that they were bound to fear God as well as to honour the king. James only grew more angry and told them, as he sent them away, that he would keep their petition, with the evident intention of taking legal proceedings against them. "God," he said, as he dismissed them, "has given me the dispensing power, and I will maintain it. I tell you there are still seven thousand of your Church who have not bowed the knee to Baal."

16. Resistance of the Clergy. 1688.—When the day came for the reading of the Declaration scarcely a clergyman obeyed the king's order. In one of the London churches Samuel Wesley, father of the John Wesley who was, by his preaching, to move the hearts of the next generation, preached a sermon on the text, "Be it known unto thee, O king, that we will not serve thy gods, nor worship the golden image which thou hast set up." In Westminster Abbey, when the officiating minister, Bishop Sprat, a courtly prelate, began to read the Declaration, the whole congregation rose in a body and streamed out of the church.

17. The Trial of the Seven Bishops. 1688.—James ordered that the seven bishops should be tried, on the plea that their petition was a seditious libel. The trial took place in Westminster Hall on June 29. The first difficulty of the prosecution was to show that the so-called libel had been published—that is to say, had been shown to any one—as no one was



Dress of a bishop in the second half of the seventeenth century: from Sandford's *Coronation Procession of James II.*

present besides the bishops when James received it, and the king could not be put into the witness-box. At last sufficient evidence was tendered by the Earl of Sunderland—a minister who, unlike Rochester, had changed his religion to keep his place—to convince the court that the petition had been delivered to James. The lawyers on both sides then addressed the jury on the question whether the petition was really a libel. The jury retired to deliberate, and at first nine of them were for the bishops and three for the king. Two of the latter gave way, but the other, a certain Arnold, who was the king's brewer, held out. "Whatever I do," he said, "I am sure to be half ruined. If I say *Not Guilty* I shall brew no more for the king, and if I say *Guilty* I shall brew no more for anybody else." He decided that the king's custom

was the best worth keeping. To a gentleman named Austen who proposed to argue with him he replied that his mind was already made up. "If you come to that," replied Austen, "look at me. I am the largest and strongest of this twelve; and before I find such a petition a libel, here I will stay till I am no bigger than a tobacco pipe." The jury were locked up through the night, and when the morning of the 30th came Arnold had given way. A verdict of *Not Guilty* was given in. The crowds in Westminster Hall and in the streets of London burst out into shouts of joy. At Hounslow, where James was reviewing the regiments on which he trusted to break down all popular resistance, the soldiers shouted like the rest. James asked what it all meant. "Nothing," he was told; "the soldiers are glad that the bishops are acquitted." "Do you call that nothing?" he answered. "So much the worse for them."

18. Invitation to William of Orange. 1688.—The acquittal of the Bishops would, but for one circumstance, have strengthened the nation in

its resolution patiently to wait till James's death placed his daughter on the throne. On June 10, however, a son had been born to James, and that fact changed the whole situation. The boy would be educated in his father's religion, and England was threatened with a Roman Catholic dynasty in which each successive ruler would, from his childhood, be brought up in the belief that he might break through all legal restraints whenever he could have the approval of judges appointed by himself and liable to dismissal whenever he pleased. At first the general dislike of this disagreeable fact took the shape of incredulity, and it was almost universally believed, without a shadow of foundation, that the boy was a supposititious child procured from some poor mother and brought in a warming-pan into the queen's chamber. Whether he were supposititious or not, there was no doubt that he would be treated as James's heir. Tories were as much concerned as Whigs at the prospect before them. The doctrine of non-resistance was forgotten, and on June 30, the day of the bishops' acquittal, seven important personages, some being Whigs and some Tories, invited the Prince of Orange to land with an armed force to defend the liberties of England.

19. Landing of William. 1688.—William would probably not have accepted the invitation if the constitutional rights of Englishmen had alone been at stake; but he had made it the object of his life to struggle against Louis, and he knew that war was on the point of breaking out between Louis and an alliance in which almost every European prince took part excepting James. He accepted the invitation that he might bring England into that alliance; and made preparations, which could not be hidden from James. James made concessions, abolished the Ecclesiastical Commission, gave back the charters of the City of London and the other corporations, and restored the Fellows of Magdalen. Anxious as William was to come, he was delayed for some time. The army of Louis was on the southern frontier of the Spanish Netherlands, and William could not stir as long as an invasion of his Spanish allies was threatened. Louis, however, offered James the assistance of his fleet to repel the expected Dutch expedition. James replied that he was quite able to take care of himself. Louis lost his temper, withdrew his army from the frontier of the Netherlands, and sent it to begin the war with the allies by burning and ravaging the Palatinate. William put to sea, intending to land in Torbay. On the morning of November 5 it was found that the fleet had passed the haven for which it

was bound; and as the wind was blowing it strongly on, there seemed no possibility of returning. William believed that nothing but failure was before him. "You may go to prayers, doctor," he said to Burnet, an English clergyman who accompanied him; "all is over." In a moment the wind changed and bore the fleet back into Torbay, and William was enabled to land safely at Brixham. Burnet, a warm-hearted but garrulous and inquisitive man, began asking him questions about his plans. If there was one thing that William disliked more than another, it was the interference of clergymen in military matters. He therefore looked Burnet in the face, replying only by another question: "Well, doctor, what do you think of predestination now?" Both he and Burnet were convinced that God had Himself guided them thus far in safety for the deliverance of His people.

20. William's March upon London. 1688.—William marched upon London, and, after a while, the gentry of the counties through which he passed poured in to support him. The north and the midlands rose under the Earls of Devonshire and Danby and other lords, Whig and Tory. The doctrine of non-resistance was thrown to the winds. James set out with his troops to combat William. He reached Salisbury, but the officers of his own army and his courtiers deserted him. Amongst those who fled to William was Lord Churchill, afterwards known as the Duke of Marlborough and the greatest soldier of the age. He had received many favours from James, which he now repaid by inciting all those whom he could influence to abandon their king. Amongst these was James's younger daughter Anne, over whom Churchill's wife exercised a most powerful influence, and who now, together with her husband, Prince George of Denmark, fled to William. James, left almost alone, made his way back to London, which he reached on November 27. On the 30th he ordered the preparation of writs for the election of a Parliament, and proposed an accommodation with William, who by that time had reached Hungerford. It was agreed that both armies should remain at a distance of forty miles from London in order to enable the new Parliament to meet in safety. James was, in reality, determined not to submit. On December 10 he sent his wife and son to France. On the 11th he attempted to follow them, burning the writs and dropping the great seal into the Thames, in the hope that everything might fall into confusion for want of the symbol of legitimate authority. There were riots in London, and the Roman Catholic chapels were sacked and

destroyed. There was a general call to William to hasten his march. On the 12th, however, James was stopped near Sheerness by some fishermen and brought back to London. William had no mind to have a second royal martyr on his hands, and did everything to frighten James into another flight. On December 18 James left London and William arrived at Whitehall. On December 23, with William's connivance, James embarked for France.

21. A Convention Parliament Summoned. 1688.—Amongst the crowd which welcomed William was Sergeant Maynard, an old man of ninety. "You must," said William to him, "have survived all the lawyers of your standing." "Yes, sir," replied Maynard, "and, but for your Highness, I should have survived the laws too." He expressed the general sense of almost every Englishman. How to return to a legal system with the least possible disturbance was the problem to be faced. William consulted the House of Lords and an assembly composed of all persons who had sat in any of Charles's Parliaments, together with special representatives of the City. Members of James's one Parliament were not summoned, on the plea that the return to it of members chosen by the remodelled corporations made it no true Parliament. The body thus consulted advised William to call a Convention, which would be a Parliament in everything except that there was no king to summon it.

22. The Throne declared Vacant. 1689.—On January 22, 1689, the Convention met. The House of Commons contained a majority of Whigs, whilst the Tories were in a majority in the Lords. On the 28th the Commons resolved that "king James II., having endeavoured to subvert the constitution of the kingdom by breaking the original contract between king and people, and by the advice of Jesuits and other wicked persons having violated the fundamental laws and having withdrawn himself out of the kingdom, had abdicated the government, and that the throne had thereby become vacant." This lumbering resolution was unanimously adopted. The Whigs were pleased with the clause which made the vacancy of the throne depend on James's misgovernment, and the Tories were pleased with the clause which made it depend on his so-called voluntary abdication. The Tories in the Lords proposed that James should remain nominally king, but that the country should be governed by a regent. Danby, however, and a

small knot of Tories supported the Whigs, and the proposal was rejected. Danby had, indeed, a plan of his own. James, he held, had really abdicated, and the crown had therefore passed to the next heir. That heir was not, according to him, the supposititious infant, but the eldest daughter of James, Mary Princess of Orange, who was now in her own right queen of England. It was an ingenious theory, but two circumstances were against its being carried into practice. In the first place, Mary scolded Danby for daring to set her above her husband. In the second place William made it known that he would neither be regent nor administer the government under his wife. Danby therefore withdrew his motion, and on February 6 the Lords voted, as the Commons had voted before, that James had abdicated and the throne was vacant.

23. William and Mary to be Joint Sovereigns. 1689.—A Declaration of Rights was prepared condemning the dispensing power as lately exercised and the other extravagant actions of James II., while both Houses concurred in offering the crown to William and Mary as joint sovereigns. As long as William lived he was to administer the government, Mary only attaining to actual power in the event of her surviving her husband. After the death of both, the crown was to go first to any children which might be born to them, then to Anne and her children, and, lastly, to any children of William by a second wife in case of his surviving Mary and marrying again. As a matter of fact, William had no children by Mary, who died about eight years before him, and he never married again. On February 13 William and Mary accepted the crown on the conditions offered to them.

24. Character of the Revolution.—The main characteristic of the revolution thus effected was that it established the supremacy of Parliament by setting up a king and queen who owed their position to a Parliamentary vote. People had been found to believe that James II. was king by a Divine right. Nobody could believe that of William. Parliament, which had set him up, could pull him down, and he would have therefore to conform his government to the will of the nation manifested in Parliament. The political revolution of **1689** succeeded, whilst the Puritan Revolution of **1641** failed, because, in **1641**, the political aim of setting the Parliament above the king was complicated by an ecclesiastical dispute which had split Parliament and the nation into two hostile parties. In **1689** there was practically neither a

political nor an ecclesiastical dispute. Tories and Whigs combined to support the change, and Churchmen and Dissenters made common cause against the small Roman Catholic minority which had only been dangerous because it had the Crown at its back, and because the Crown had been supported by Louis and his armies. A Revolution thus effected was, no doubt, far less complete than that which had been aimed at by the more advanced assailants of the throne of Charles I. It did not aim at changing more than a small part of the political constitution of the country, nor at changing any part whatever of its social institutions. Its programme, in short, was one for a single generation, not one, like that of the '*Heads of the Proposals*' (see p. [555](#)) or the '*Agreement of the People*' (see p. [556](#)) for several generations. Consequently it did not rouse the antagonism which had been fatal even to the best conceived plans of the Commonwealth and Protectorate. It is much to be regretted that the moral tone of the men who brought about the Revolution of **1689** was lower than that which had brought about the Revolution of **1641**. That this was the case, however, was mainly the fault of the unwise attempt of the Puritans to enforce morality by law. The individual liberty which was encouraged by the later revolution would in due time work for morality as well as for political improvement.

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**INDEX
TO
THE SECOND VOLUME**

Abbey lands, the, distributed by Henry VIII., [400](#);
 Mary wishes for the restoration of, [422](#)
Aberdeen, Montrose's victory at, [547](#)
Abhorrrers, party name of, [620](#)
Addled Parliament, the, [486](#)
Admonition to Parliament, An, [446](#)
Adwalton Moor, battle of, [538](#)
Agitators, choice of, [554](#);
 propose to purge the House, [556](#)
Agreement of the People, the, drawn up by the Agitators, [556](#)
Agriculture, More's views on the decline of, [368](#);
 progress of, in Elizabeth's reign, [464](#)
Aix-la-Chapelle, peace of, [599](#)
Alasco, opinions of, [418](#)
Albemarle, George Monk, Duke of, as George Monk, commands in
 Scotland, [575](#);
 effects the restoration, [576](#);
 created Duke of Albemarle, [580](#);
 holds a command in the battle off the North Foreland, [592](#);
 advises Charles II. not to dissolve Parliament, [599](#)
Alençon, Francis, Duke of, Elizabeth proposes to marry, [446](#);
 entertained by Elizabeth, [454](#);
 attacks Antwerp, [455](#);
 death of, [456](#)
Alexander VI., Pope, character of, [375](#)
Alford, battle of, [549](#)
Allen, Cardinal, founds a college at Douai, [453](#);
 plots to murder Elizabeth, [454](#)
Alva, Duke of, his tyranny in the Netherlands, [443](#);
 discusses the murder of Elizabeth, [445](#);
 fails to reduce the Dutch, [449](#)
Amicable Loan, the, [372](#)
Anjou, Henry, Duke of, see [Henry III.](#), king of France
Annates, first Act of, [388](#);
 second Act of, [390](#)
Anne, daughter of James II., birth of, [608](#);

- deserts James II., [645](#);
- settlement of the crown on, [647](#)
- Anne Boleyn, appears at Court, [380](#);
- is married to Henry VIII., [389](#);
- execution of, [395](#)
- Anne of Cleves married to Henry VIII., [400](#);
- divorce of, [401](#)
- Antwerp attacked by Alençon, [455](#);
- taken by Parma, [456](#)
- Appeals, Act of, [389](#);
- provision for the hearing of, [391](#)
- Architecture, Elizabethan, [465](#);
- Stuart, [631](#), [632](#)
- Areopagitica*, [546](#)
- Argyle, Archibald Campbell, Earl of, execution of, [636](#)
- Argyle, Archibald Campbell, Marquis of, opposed to Montrose, [547](#);
- execution of, [595](#)
- Arlington, Henry Bennet, Earl of, secretary to Charles II., [599](#);
- intrigues against Clifford, [607](#)
- Armada, the Invincible, sailing of, [458](#);
- destruction of, [462](#)
- Army, the New Model, formation of, [545](#);
- attempt of Parliament to disband, [553](#);
- choice of Agitators in, [554](#);
- gains possession of the king's person, [555](#);
- the heads of the proposals presented in the name of, *ib.*;
- drives out the eleven members, *ib.*;
- turns against the king, [556](#), [557](#);
- expels members by Pride's Purge, *ib.*;
- its inability to reconstruct society after the king's execution, [560](#);
- overthrows Richard Cromwell, restores and expels the Rump, [575](#);
- brings back the Rump, *ib.*;
- receives Charles II. on Blackheath, [578](#);
- paid off, [584](#)
- Army, the Royal, beginning of, [584](#)
- Army plot, the, [531](#)

Articles, the ten, [395](#);
the six, [399](#);
the forty-two, [420](#);
the thirty-nine, *ib.*;
declaration of Charles I., prefixed to, [512](#)
Arundel Castle taken and lost by Hopton, [542](#)
Ashley, Lord, see [Shaftesbury](#), Earl of
Aske heads the Pilgrimage of Grace, [397](#)
Assembly of divines, proposal to refer church questions to, [534](#);
meeting of, [540](#);
declares for Presbyterianism, [543](#)
Association, the, in defence of Elizabeth, [456](#)
Attainder, Bill of, against Thomas Cromwell, [401](#);
nature of a, *ib.*, note i.;
against Strafford, [531](#)
Auldearn, battle of, [547](#)

Babington plots the murder of Elizabeth, [457](#)
Bacon, Francis (Lord Verulam and Viscount St. Alban), scientific
aspirations of, [474](#);
advises Elizabeth as to the treatment of the Catholics, [475](#);
his conduct to Essex, [478](#);
gives political advice to James I., [486](#);
his jest on Montague's promotion, [494](#);
attacked about monopolies, [495](#);
disgrace of, [496](#)
Bagenal defeated by Hugh O'Neill, [475](#)
Ballard takes part in Babington's plot, [457](#)
Barbadoes, prisoners sent to, [564](#);
dissenters sent to, [588](#)
Barebone's Parliament, the, origin of the name of, [566](#);
dissolution of, [567](#)
Baronets, origin of the order of, [494](#)
Barrow, Henry, a separatist, hanged, [470](#)
Barrow, Isaac, addresses his sermons to the understanding, [598](#)
Basing House taken by Cromwell, [549](#)

Bastwick sentenced by the Star Chamber, [521](#)
Bate's case, [484](#)
Baxter, imprisoned by Jeffreys, [635](#)
Beaton, Cardinal, burns Wishart, [412](#);
 is murdered, [414](#)
Bedingfield, Sir Henry, takes charge of Elizabeth, [423](#)
Benevolences raised by James I., [497](#)
Berwick, Treaty of, [526](#)
Bible, the, Henry VIII. authorises the translation of, [396](#)
Bishops, nominated by *congé d'élire*, [391](#);
 first Bill for removing from the House of Lords, [533](#);
 impeachment of the twelve, [535](#);
 excluded from the House of Lords, [536](#)
Bishops' War, the first, [526](#);
 the second, [529](#)
Blackwater, the, defeat of Bagenal on, [475](#)
Blake, defends Taunton, [548](#);
 appointed to command the fleet, [565](#);
 sent to the Mediterranean, [571](#);
 destroys Spanish ships at Santa Cruz, [573](#);
 death of, *ib.*
Bloody Assizes, the, [637](#)
Bocher, Joan, burnt, [419](#)
Bohemia, outbreak of the Thirty Year War in, [490](#)
Boleyn, Anne, see [Anne Boleyn](#)
Bombay acquired by Charles II., [587](#)
Bonner, Bishop, deprived of his see, [416](#)
Booth, Sir George, defeated at Winnington Bridge, [575](#)
Bothwell, James Hepburn, Earl of, career of, [439](#)
Bothwell Bridge, defeat of the Covenanters at, [620](#)
Boulogne, taken by Henry VIII., [405](#);
 surrendered by Warwick, [417](#)
Bourbon, the Duke of, revolt of, [371](#);
 death of, [374](#)
Boxley, destruction of the rood of, [398](#)
Breda, declaration of, [576](#);
 treaty of, [593](#)

Brentford, Charles I. at, [537](#)
Bridgman, Sir Orlando, declares that the king's ministers are responsible, [581](#)
Bridgwater taken by Fairfax, [549](#);
 Monmouth at, [637](#)
Brill seized by exiles from the Netherlands, [449](#)
Bristol stormed by Rupert, [538](#)
Browne, Archbishop of Dublin, destroys relics and images in Ireland, [402](#)
Browne, Robert, founder of the Separatists, [470](#)
Brownists, *see* [Separatists](#)
Bucer, Martin, teaches in England, [410](#)
Buckingham, George Villiers, First Duke of, becomes Marquis of Buckingham and Lord Admiral, [488](#);
 accompanies Charles to Madrid, [497](#);
 becomes Duke of Buckingham, and advocates war with Spain, [500](#);
 promises money for foreign wars, [501](#);
 his ascendancy over Charles I., [502](#);
 tries to pawn the crown jewels, [503](#);
 lends ships to fight against Rochelle, [504](#);
 impeachment of, [505](#);
 leads an expedition to Ré, [506](#);
 feeling of Wentworth towards, [508](#);
 murder of, [510](#)
Buckingham, George Villiers, Second Duke of, in favour with Charles II., [599](#);
 his sham treaty with France, [603](#);
 dismissal of, [608](#)
Buckingham, Henry Stafford, Duke of, execution of, [369](#)
Buildings, improvement in, in Elizabeth's time, [465](#)
Bunyan writes *Pilgrim's Progress*, [596](#)
Burghley, William Cecil, Lord, as Sir William Cecil becomes the chief adviser of Elizabeth, [429](#);
 urges Elizabeth to assist the Scotch Protestants, [433](#);
 becomes Lord Burghley and discovers the Ridolfi plot, [445](#);
 death of, [480](#)

Burnet, Gilbert, his conversation with William of Orange, [645](#)
Burton, sentenced by the Star Chamber, [521](#)
Butler, author of *Hudibras*, [597](#)

Cadiz, capture of, [464](#);
 Cecil's expedition to, [503](#)
Calais, loss of, [427](#);
 Elizabeth's hope of regaining, [436](#);
 the Armada takes refuge in, [462](#);
 Cromwell's anxiety to recover, [571](#)
Calvin, his work at Geneva, [430](#)
Calvinism influences Elizabethan Protestantism, [430](#)
Cambrai, league of, [363](#);
 treaty of, [383](#)
Campeggio, Cardinal, appointed legate to hear the divorce case of
 Henry VIII., [382](#)
Campion lands in England, [453](#);
 execution of, [454](#)
Carberry Hill, Mary's surrender at, [439](#)
Cardinal College founded by Wolsey, [377](#), [383](#);
 see [Christchurch](#)
Carisbrooke Castle, detention of Charles I. in, [556](#)
Carolina, colonisation of, [629](#)
Cartwright advocates the Presbyterian system, [446](#)
Casket letters, the, [440](#)
Castlemaine, Lady, uses her influence against Clarendon, [594](#)
Câteau Cambresis, peace of, [431](#)
Catesby plans Gunpowder Plot, [483](#)
Catharine of Aragon, marriage of, [363](#);
 Henry VIII. grows tired of, [379](#);
 divorce suit against, [382](#);
 is divorced, [389](#);
 the sentence of Clement VII. in favour of, [390](#);
 death of, [395](#)
Catharine of Braganza marries Charles II., [587](#)
Catherine de Medicis, widow of Henry II., king of France, becomes

regent, [433](#);
takes part in the massacre of St. Bartholomew, [449](#)
Catherine Howard, marriage and execution of, [401](#)
Catherine Parr, marriage of, [401](#)
Catholics, Roman, laws directed against, [453](#), [454](#);
their position at the end of Elizabeth's reign, [475](#);
increased persecution of, after Gunpowder Plot, [483](#);
negotiation between James I. and Spain for the relief of, [488](#);
tendency of Charles II. to support, [584](#);
declaration for the toleration of, issued by Charles II., [587](#);
persecuted about the Popish Plot, [616](#);
efforts of James II. in favour of, [634](#), [638](#), [640](#)
Cecil, Sir Edward, commands the Cadiz expedition, [503](#)
Chancery, Court of, proposal of the Barebone's Parliament to
suppress, [567](#);
reformed by Cromwell, [569](#);
nature of the decisions of, [605](#)
Chantries, Act for the dissolution of, [412](#);
their income vested in the king, [415](#)
Charles I., intention of the Gunpowder plotters to blow up, [483](#);
proposals of marriage for, [488](#);
visits Spain, [497](#);
is eager for war with Spain, [500](#);
negotiation for marriage with Henrietta Maria, [501](#);
becomes king and marries Henrietta Maria, [502](#);
adjourns his first parliament to Oxford, *ib.*;
dissolves his first parliament and sends out the Cadiz expedition,
[503](#);
meets his second Parliament, *ib.*;
dissolves his second Parliament, [505](#);
orders the collection of a forced loan, [506](#);
meets his third Parliament, [508](#);
consents to the Petition of Right, [509](#);
claims a right to levy Tonnage and Poundage, [510](#);
issues a declaration on the Articles, [512](#);
dissolves his third Parliament, [513](#);
his personal government, [514](#);

levies knighthood fines, [515](#);
insists on the reading of the *Declaration of Sports*, [517](#);
levies fines for encroaching on forests, [523](#);
levies ship-money, *ib.*;
imposes a new prayer-book on Scotland, [525](#);
leads an army against the Scots, [526](#);
consults Wentworth, [527](#);
makes Wentworth Earl of Strafford, and summons the Short
Parliament, [528](#);
dissolves the Short Parliament, marches again against the Scots,
and summons the Long Parliament, [529](#);
assents to the Triennial Act, [530](#);
signs a commission for Strafford's execution, [531](#);
visits Scotland, [532](#);
returns to England, [534](#);
rejects the Grand Remonstrance, [535](#);
attempts to arrest the five members, [536](#);
fights at Edgehill, [537](#);
his plan of campaign, *ib.*;
besieges Gloucester, and fights at Newbury, [539](#);
looks to Ireland for help, [541](#);
sends Rupert to relieve York, [543](#);
compels Essex's infantry to surrender at Lostwithiel, and fights
again at Newbury, [544](#);
is defeated at Naseby, [548](#);
attempts to join Montrose, [549](#);
sends Glamorgan to Ireland, *ib.*;
gives himself up to the Scots, [551](#);
negotiates at Newcastle, *ib.*;
explains his plans to the Queen, [552](#);
conveyed to Holmby House, [553](#);
conducted by Joyce to Newmarket, [555](#);
attempt of Cromwell to come to an understanding with, [555](#);
takes refuge in the Isle of Wight, and enters into the *Engagement*
with the Scots, [556](#);
removed to Hurst Castle, [557](#);
trial of, [559](#);

execution of, [560](#)
Charles II., as Prince of Wales, possesses himself of part of the fleet, [557](#);
lands in Scotland, [563](#);
escapes to France, [564](#);
offers a reward for Cromwell's murder, [569](#);
issues the declaration of Breda, [576](#);
restoration of, [578](#);
confirms *Magna Carta*, *ib.*;
character of, [579](#);
leaves the government to Hyde, [580](#);
revenue voted to, [582](#);
approves a scheme of modified episcopacy, [583](#);
keeps a small armed force, [584](#);
retains three regiments on paying off the army, *ib.*;
profligacy of the court of, [586](#);
issues a declaration in favour of toleration, [587](#);
marriage of, and sale of Dunkirk by, *ib.*;
dismisses Clarendon, [594](#);
favours the Roman Catholics, [598](#);
thinks of tolerating dissenters, and supports Buckingham and Arlington, [599](#);
agrees to the treaty of Dover, [600](#);
supports the Cabal, [602](#);
extravagance of, [603](#);
issues a Declaration of Indulgence, [604](#);
goes to war with the Dutch, [605](#);
withdraws the Declaration of Indulgence, [606](#);
assents to the Test Act, [607](#);
dismisses Shaftesbury and makes peace with the Dutch, [608](#);
supports Danby, [610](#);
receives a pension from Louis XIV., [611](#);
is interested in commerce, [612](#);
refuses to make war on France, [613](#);
threatens France with war, [614](#);
dissolves the Cavalier Parliament, [616](#);
dissolves the first Short Parliament, [617](#);

supports his brother's claim to the crown, against Shaftesbury, [618](#);
prorogues the second Short Parliament, [619](#);
dismisses Shaftesbury, [620](#);
dissolves the second and third Short Parliaments, [621](#);
plot to murder, [625](#);
death of, [627](#);
constitutional progress in the reign of, *ib.*
Charles II., king of Spain, bad health of, [592](#)
Charles V., Emperor, as king of Spain becomes the rival of Francis I., [366](#);
vast inheritance of, [369](#);
is chosen emperor, *ib.*;
goes to war with France, [371](#);
captures Francis I. at Pavia, [372](#);
liberates Francis I., [374](#);
allies himself with Henry VIII., [405](#);
makes peace with France at Crêpy, [406](#);
defends Mary's mass, [417](#);
abdication of, [426](#)
Charles IX., king of France, accession of, [433](#);
takes part in the massacre of St. Bartholomew, [449](#);
death of, [450](#)
Charterhouse, the persecution of the monks of, [393](#)
Chaucer, influences of the Renaissance on, [367](#)
Cheriton, battle of, [542](#)
Chocolate, introduction of, [630](#)
Christchurch, foundation of, [377](#), [383](#)
Christian IV., king of Denmark, Buckingham's overtures to, [501](#), [504](#);
defeated at Lutter, [505](#), [506](#)
Church of England, see [England](#), [Church of](#)
Churchill, Lord, see [Marlborough](#), [Duke of](#)
Clarendon, Edward Hyde, first Earl of, as Edward Hyde is one of the leaders of the Anti-Presbyterian party in the Long Parliament, [533](#);
becomes Lord Chancellor after the Restoration, [580](#);

character of, *ib.*;
created Earl of Clarendon, [587](#);
is falsely supposed to be bribed, *ib.*;
fall of, [594](#);
escapes to France, [595](#)
Clarendon, Henry Hyde, second Earl of, recalled from Ireland, [640](#)
Claverhouse, *see* [Graham, John](#)
Clement VII., Pope, forms an Italian league against Charles V., [374](#);
appoints legates to try the divorce suit of Henry VIII., [382](#);
revokes the cause to Rome, [383](#);
gives sentence in favour of Catharine, [390](#)
Clergy, the country, [633](#)
Clifford, Thomas, Lord, a member of the Cabal, [602](#);
probable suggester of the Stop of the Exchequer, [604](#);
resignation of, [607](#)
Coaches, improvement in, [633](#)
Coffee-houses, introduction of, [630](#)
Coinage debased by Henry VIII., [409](#);
further debased by Somerset, [416](#)
Coke, Sir Edward, takes part in drawing up the Petition of Right, [508](#)
Colchester, execution of the Abbot of, [400](#);
reduced by Fairfax, [567](#)
Colet promotes the study of Greek, and founds St. Paul's School, [367](#)
Coligny, murder of, [449](#)
College invents the Protestant flail, [615](#);
condemned to death, [622](#)
Colonies founded in Virginia and New England, [489](#);
in Carolina, [629](#)
Common Prayer, the Book of, beginnings of, [409](#), [410](#);
the first, of Edward VI., [415](#);
the second, of Edward VI., [418](#);
alterations in, in Elizabeth's reign, [429](#);
Strickland proposes to amend, [445](#);
generally accepted by the Parliamentary Presbyterians, [586](#)
Commonwealth, the, establishment of, [561](#)

Commons, the House of, Wolsey's appearance in, [371](#);
made use of by Thomas Cromwell and Henry VIII., [389](#);
Elizabeth's relations with, [444](#);
Puritanism of, [445](#);
growing strength of, [468](#);
its tendencies to Puritanism rather than to Presbyterianism, [470](#);
attack on monopolies by, [478](#);
quarrels with James I., [482](#);
anxious to go to war for the Palatinate, [490](#);
votes a small supply, [491](#);
brings charges against Bacon, [495](#);
is eager for war with Spain, [500](#);
refuses supplies to Charles I., unless spent by counsellors in
whom it confides, [502](#);
impeaches Buckingham, [504](#), [505](#);
insists on the Petition of Right, [508](#);
claims Tonnage and Poundage, [510](#);
religious ideas prevailing in, [511](#);
its breach with the king, [513](#);
violent scene before the dissolution of, [514](#);
formation of parties in, [532](#);
scene in, at the passing of the Grand Remonstrance, [534](#);
Presbyterian majority in, [546](#);
new elections to, [551](#);
a mob in possession of, [555](#);
the Agitators propose to purge, [556](#);
Pride's purge of, [557](#);
declares itself supreme, *ib.*;
constitutes a high court of justice, [558](#);
dissolved by Cromwell, [566](#);
inquires into the expenditure of the crown, and impeaches
Clarendon, [594](#);
impeaches Danby, [616](#);
the Exclusion Bill in, [617](#), [621](#);
Tory majority in, [636](#);
James II. attempts to pack, [641](#);
discusses the abdication of James II., [646](#)

Committee of Both Kingdoms, formation of, [542](#)
Communion table, Laud's wish to fix at the east end, [517](#);
 decision of the Privy Council on the position of, [519](#);
 removed by the soldiers, [529](#)
Comprehension favoured by some of the clergy, [598](#);
 attempt of Charles II. to establish, [599](#)
Compton, Bishop of London, refuses to suspend Dr. Sharp, [639](#)
Con, Papal agent at the court of Henrietta Maria, [521](#)
Confederate Catholics of Ireland, the, cessation of hostilities with,
 [541](#)
Congé d'élire, provision for the issue of, [391](#)
Connaught, proposed plantation of, [528](#)
Constantinople taken by the Turks, [366](#)
Conventicle Act, the, [588](#)
Convention Parliament, the first, [577](#);
 the second, [646](#)
Convocation of province of Canterbury offers money for a pardon,
 [385](#);
 agrees to the submission of the clergy, [386](#)
Cornwall, insurrection in, [415](#)
Corporation Act, the, [585](#)
Corporations, remodelling of the, [625](#)
Council of State, the, appointment of, [561](#)
Covenant, the Scottish National, [525](#);
 see [Solemn League and Covenant](#)
Covenanters, the rise of, [619](#);
 insurrection of, [620](#)
Coverdale translates the New Testament, [396](#)
Cranfield, see [Middlesex, Earl of](#)
Cranmer, Archbishop of Canterbury, pronounces Catharine's
 marriage to be null, [389](#);
 is forced to dismiss his wife, [400](#);
 composes the English litany, [409](#);
 character and position of, [413](#);
 wishes to preserve the revenue of the chantries for the poor
 clergy, [415](#);
 tries to find common ground with the Zwinglian reformers, [416](#);

leaves his mark on the Prayer Book, [418](#);
supports Lady Jane Grey, [420](#);
burnt, [426](#)

Crêpy, peace of, [406](#)

Cromwell, Oliver, practical sagacity of, [539](#);
introduces discipline in the Eastern Association, [540](#);
defeats the royalists at Winceby, [542](#);
fights at Marston Moor, [543](#);
advocates toleration, *ib.*;
accuses Manchester, [544](#);
becomes Lieutenant-General of the New Model Army, [545](#);
cuts off the king's supplies, [547](#);
wins the victory at Naseby, [548](#);
reduces Winchester and Basing House, [549](#);
proposes to leave England, [554](#);
gives instructions to Cornet Joyce, [555](#);
attempts to come to an understanding with Charles, *ib.*;
puts down a mutiny in the army, [556](#);
suppresses a rising in Wales and defeats the Scots at Preston, [557](#);
suppresses the Levellers, [562](#);
his campaign in Ireland, *ib.*;
his victory at Dunbar, [563](#);
his victory at Worcester, [564](#);
dissolves the Long Parliament, [566](#);
opens the Barebone's Parliament, [567](#);
becomes Protector, [568](#);
plots against, [569](#);
ecclesiastical arrangements of, *ib.*;
convenes and dissolves his first Parliament, [570](#);
establishes major-generals, *ib.*;
foreign policy of, [571](#);
calls a second Parliament, [572](#);
joins France against Spain, *ib.*;
dissolves his second Parliament, [573](#);
makes war against Spain, *ib.*;
death of, [574](#)

Cromwell, Richard, succeeds to the Protectorate, [574](#);

abdicates, [575](#)
Cromwell, Thomas, advises Henry VIII. to rely on the House of Commons, [385](#);
becomes the king's secretary, and vicar-general, [393](#);
attacks the monks of the Charterhouse, *ib.*;
inquires into the state of the monasteries, [394](#);
attacks the greater monasteries, [397](#);
execution of, [401](#)
Cropredy Bridge, battle of, [544](#)

Danby, Thomas Osborne, Earl of, as Sir T. Osborne, becomes Lord Treasurer, [607](#);
policy of, [610](#);
fails to pass a Non-resistance Bill, [611](#);
promotes the marriage of William of Orange, [613](#);
impeachment of, [616](#);
imprisonment of, [617](#);
liberated, [626](#);
rises in support of William, [645](#);
recommends that the crown be given to Mary, [646](#)
Darnley, Henry Stuart, Lord, marries Mary, [438](#);
murder of, [439](#)
Darvel Gathern, burning of the wooden figure of, [398](#)
Davison sends the warrant for Mary's execution, [457](#);
dismissal of, [458](#)
Declaration of Breda, see [Breda, Declaration of](#)
Declaration of Indulgence issued by Charles II., [604](#);
withdrawn by Charles II., [606](#);
issued by James II., [640](#);
reissued, [642](#)
Declaration of Rights, the, [647](#)
Declaration of Sports, the, ordered to be read in churches, [517](#)
Defender of the Faith, title of, [379](#)
Desmond, Gerald Fitzgerald, Earl of, insurrection and death of, [453](#)
Devolution, the war of, [593](#)
Devonshire, insurrection in, [415](#)

Devonshire, William Cavendish, Earl of, rises in support of William of Orange, [645](#)

Digby, John, Lord, his mission to Germany, [497](#)

Dispensing power, the, claimed by Charles II., [604](#);
acknowledged by the judges, [639](#)

Dissenters, the, origin of their name, [585](#);
Charles II. issues a declaration for the toleration of, [587](#);
Conventicle Act against, [588](#);
Five-mile Act against, [590](#);
favour of Charles II. to, [599](#);
reception of the Declaration of Indulgence by, [640](#)

Dissenting Brethren, the five, [543](#)

Divine Right of Kings, doctrine of the, [619](#)

Douai, College at, [453](#)

Dover, treaty of, [600](#)

Drake, Francis, lands at Nombre de Dios, [448](#);
vows to sail on the Pacific, [449](#);
his voyage round the world, [450](#);
(Sir Francis) sings the king of Spain's beard, [458](#);
has a command against the Armada, [460](#);
pursues the Armada, [462](#);
sacks Corunna, and fails before Lisbon, [464](#);
death of, *ib.*

Dramatic writers of the Restoration, [598](#)

Dreux, battle of, [436](#)

Drogheda, slaughter at, [562](#)

Drumclog, skirmish at, [620](#)

Dublin, attempt to seize, [533](#)

Dudley, see [Empson and Dudley](#)

Dudley, Lord Guilford, marries Lady Jane Grey, [420](#);
executed, [423](#)

Dunbar, battle of, [563](#)

Dunes, the, battle of, [573](#)

Dunkirk, Cromwell wishes Spain to place in his hands, [571](#);
taken from Spain by Cromwell's troops, [573](#);
abandoned by Charles II., [587](#)

Dunkirk House, [587](#)

Dunse Law, Scottish army on, [526](#)
Dunstable, marriage of Catharine of Aragon annulled at, [389](#)
Durham, temporary suppression of the see of, [418](#);
 celebration of the mass in the cathedral of, [441](#)
Dutch Republic, the, foundation of, [449](#);
 abolition of the Stadholderate in, [565](#);
 war between the English Commonwealth and, *ib.*;
 peace with, [569](#);
 first war between Charles II. and, [589](#);
 military weakness of, [591](#);
 treaty of Breda with, [593](#);
 takes part in the Triple Alliance, [599](#);
 combination of England and France against, [600](#);
 towns to be taken from, *ib.*;
 the second war between Charles II. and, [605](#);
 resists Louis XIV., *ib.*;
 animosity of Shaftesbury against, [606](#);
 peace made by England with, [608](#);
 makes peace with France at Nymwegen, [614](#)

Eastern Association, the, formation of, [539](#);
 Cromwell's activity in, [540](#);
 Manchester in command of the army of, [542](#)
Ecclesiastical Commission, the, established by James II., [639](#);
 abolition of, [644](#)
Ecclesiastical Courts, the, attacks on, [385](#)
Edgehill, battle of, [537](#)
Edinburgh, burnt by Hertford, [409](#);
 riot in St. Giles's in, [525](#);
 Montrose executed at, [563](#);
 surrenders to Cromwell, *ib.*
Edinburgh, treaty of, [433](#)
Edward VI., birth of, [397](#);
 accession of, [412](#);
 precocity of, [419](#);
 death of, [420](#)

Ejectors, Commission of, [569](#)
Eleven Members, the, excluded from the House of Commons, [555](#)
Eliot, Sir John, attacks Buckingham, [504](#);
 compares Buckingham to Sejanus, [505](#);
 his policy compared with that of Wentworth, [508](#);
 vindicates the privileges of the House, [512](#);
 imprisonment and death of, [514](#)
Elizabeth, daughter of James I., intention of the Gunpowder plotters
 to crown, [483](#);
 married to the Elector Palatine, [488](#)
Elizabeth, Queen, birth of, [392](#);
 her succession acknowledged, [411](#);
 sent to the Tower and afterwards removed to Woodstock and
 Hatfield, [423](#);
 accession of, [428](#);
 character and policy of, *ib.*;
 modification of the title of, [429](#);
 plays off France and Spain against one another, [431](#);
 hesitates to assist the Scotch Protestants, [432](#);
 assists the Lords of the Congregation, [433](#);
 her ill-treatment of Catherine Grey, [435](#);
 contrasted with Mary, Queen of Scots, *ib.*;
 hopes to recover Calais by assisting the Huguenots, [436](#);
 appoints commissioners to examine the case against Mary, [440](#);
 detains Mary a prisoner, and suppresses a rising in the North, [441](#);
 excommunicated by Pius V., *ib.*;
 negotiates a marriage with the Duke of Anjou, [443](#);
 her attitude towards the Puritans and towards Parliament, [444](#);
 the Ridolfi plot against, [445](#);
 proposes to marry the Duke of Alençon, [446](#);
 intervenes in Scotland on behalf of James VI., [450](#);
 refuses to restore Drake's plunder, [451](#);
 her treatment of Ireland, [452](#);
 kisses the Duke of Alençon, [454](#);
 plot of Allen and Parsons to murder, *ib.*;
 Throgmorton's plot to murder, [456](#);
 Babington's plot to murder, [457](#);

hesitates to allow the execution of the Queen of Scots, *ib.*;
 dismisses Davison, [458](#);
 her triumph at the defeat of the Armada, [462](#);
 allies herself with Henry IV., [464](#);
 shows favour to Essex, *ib.*;
 erects the Court of High Commission, [470](#);
 sends Essex to Ireland, [475](#);
 turns against Essex, [476](#);
 withdraws monopolies, [478](#);
 nature of the work of, [479](#);
 death of, [480](#)
 Elizabethan architecture, [465](#)
 Empson and Dudley, execution of, [363](#)
Engagement, the, between Charles I. and the Scottish
 Commissioners, [556](#)
 England, the Church of, relations of Henry VIII. with, [377](#);
 dealings of Henry VIII. with, [386](#);
 the clergy acknowledge the king supreme head of, [386](#);
 becomes more national, [391](#);
 Parliament acknowledges the king to be supreme head of, [393](#);
 Cranmer's position in, [413](#);
 ecclesiastical changes in, [414](#);
 issue of the first Prayer Book of Edward VI. for, [415](#);
 Zwinglian teaching in, [416](#);
 issue of the second Prayer Book of Edward VI. for, [418](#);
 reconciled to the see of Rome, [424](#);
 Elizabeth's settlement of, [429](#);
 position of, during Parker's archbishopric, [430](#);
 Presbyterian movement in, [446](#);
 Presbyterianism adopted by the Assembly of Divines for, [543](#);
 restoration of episcopacy in, [583](#);
 proposal to establish a modified episcopacy in, *ib.*;
 promise of James II. to protect, [634](#)
 Essex, Arthur Capel, Earl of, suicide of, [625](#)
 Essex, Frances, Countess of, divorce and remarriage of, [486](#)
 Essex, Robert Devereux, second Earl of, joins in the capture of
 Cadiz, [464](#);

sent to Ireland, [475](#);
placed in confinement on his return, [476](#);
insurrection of, [477](#);
trial and execution of, [478](#)
Essex, Robert Devereux, third Earl of, divorce of, [486](#);
appointed general of the Parliamentary army, [537](#);
commands at Edgehill, *ib.*;
takes Reading, [538](#);
relieves Gloucester and commands at the first battle of Newbury,
[539](#);
escapes from Lostwithiel, [544](#);
resigns, [545](#)
Exclusion Bill, the, brought in, [617](#);
rejected by the House of Lords, [621](#);
lost by dissolution, *ib.*
Exeter, besieged by Fairfax, [549](#)
Exeter, Henry Courtenay, Marquis of, executed, [399](#)
Expenditure of the Crown, parliamentary inquiry into, [593](#)

Fairfax, Ferdinando, second Lord, defeated at Adwalton Moor, [538](#)
Fairfax, Thomas, third Lord Fairfax, as Sir Thomas Fairfax, is
defeated at Adwalton Moor, [538](#);
wins a victory at Nantwich, [542](#);
appointed General of the New Model army, [545](#);
relieves Taunton, [547](#);
commands at Naseby, [548](#);
follows up his successes, [548](#), [549](#);
reduces the king's army in Cornwall, [550](#);
proposed as commander of the forces retained after the
disbandment of the army, [553](#);
as Lord Fairfax, puts down the rising in Kent and takes
Colchester, [557](#);
absents himself from the High Court of Justice, [559](#);
refuses to command in the war against Charles II., [563](#);
joins Monk, [576](#)
Falkland, Lucius Cary, Viscount, one of the leaders of the anti-

Presbyterian party in the Long Parliament, [533](#);
death of, [539](#)
Fawkes, Guy, takes part in the Gunpowder Plot, [483](#)
Felton, John, affixes the Pope's excommunication to the door of the
Bishop of London's house, [442](#)
Felton, John, murders the Duke of Buckingham, [510](#)
Ferdinand I., Emperor, inherits the German territories of Charles V.,
[426](#)
Ferdinand II., Emperor, loses and regains the crown of Bohemia,
[490](#)
Ferdinand V. of Aragon, Italian wars of, [363](#);
conquers Navarre, [364](#);
death of, [366](#)
Feudal dues, bargain offered by James I. for, [484](#);
abolition of, [582](#)
Field of the Cloth of Gold, the, [369](#)
Fifth-Monarchy men, [567](#);
oppose Cromwell, [569](#)
Fire of London, the, [592](#)
Fisher, Bishop of Rochester, opposes the divorce of Henry VIII.,
[382](#);
sent to the Tower, [392](#);
execution of, [394](#)
Fitzmaurice, Sir James, lands in Ireland, [452](#)
Five Articles of Perth, the, [525](#)
Five Knights' case, the, [507](#)
Five Members, the, [535](#);
brought back to Westminster, [536](#)
Five Mile Act, the, [590](#)
Flamsteed, astronomer, [632](#)
Fleetwood named General by the army, [575](#)
Flodden, battle of, [364](#)
Forest, Friar, burnt, [398](#)
Forests, the, fines for encroaching on, [523](#);
the king's claims on, limited, [531](#)
Fotheringhay, execution of Mary Stuart at, [458](#)
Fox, Richard, Bishop of Winchester, minister of Henry VII. and

Henry VIII., [363](#)
France, reign of Louis XII. in, [363](#);
attack of Henry VIII. on, [364](#);
in alliance with England, [366](#);
invaded by Henry VIII., [371](#);
peace with, [374](#);
Mary at war with, [426](#);
recovery of Calais by, [427](#);
civil wars in, [436](#)- [443](#);
Philip II. supports the League in, [464](#);
allied with James I., [501](#);
Charles I. breaks with, [506](#);
Charles I. makes peace with, [514](#);
allied with Cromwell against Spain, [572](#);
Danby's policy directed against, [610](#)
Francis I., king of France, his rivalry with Charles V., [366](#)- [369](#);
meets Henry VIII. on the Field of the Cloth of Gold, [369](#);
goes to war with Charles V. about Milan, [371](#);
captured at Pavia, [372](#);
liberated, [374](#)
Francis II., king of France, married as Dauphin to Mary Queen of
Scots, [413](#);
accession and death of, [433](#)
Frederick V., Elector Palatine, marries Elizabeth, daughter of James
I., [488](#);
elected King of Bohemia, [490](#);
driven out of Bohemia, *ib.*;
diplomatic efforts of James I., in favour of, [496](#);
loses the Palatinate, [497](#)
Frith burnt, [390](#)
Frobisher holds a command against the Armada, [460](#)
Furniture, improvement of, in Elizabethan houses, [465](#)

Galway, County, Wentworth punishes the jury of, [528](#)
Gardiner, Bishop of Winchester, sent to Rome by Henry VIII.,
before he is a bishop, [382](#);

opposes farther innovations, [411](#);
excluded from the Council, [412](#);
sent to the Tower, [414](#);
deprived of his see, [416](#);
made Lord Chancellor by Mary, [421](#)
Geneva, establishment of Calvin's system at, [430](#)
Gentry, the country, [633](#)
George of Denmark, Prince, deserts James II., [645](#)
Geraldine rebellion, the, [402](#)
Gerard murders William of Orange, [456](#)
Gerard and Vowel's plot, [569](#)
Ghent, pacification of, [450](#)
Glamorgan, Edward Herbert, Marquis of, his secret mission to
Ireland, [549](#)
Glasgow, the Assembly of, [526](#)
Glastonbury, the Abbot of, executed, [400](#)
Gloucester, raising of the siege of, [539](#)
Godfrey, Sir Edmund Berry, murder of, [615](#)
'Godly party,' the, [544](#)
Gondomar, Count of, negotiates a Spanish alliance with James I.,
[488](#), [490](#)
Goring, George Goring, Lord, defeated at Langport, [548](#)
Graham of Claverhouse, John, attempts to suppress the Covenanters,
[620](#)
Grammar-schools, foundation of, [419](#)
Grand Remonstrance, the, [534](#)
Great Contract, the, [484](#)
Great Council, the, meets at York, [529](#)
Greenwood hanged, [472](#)
Grey, Arthur Lord, slaughters foreign soldiers at Smerwick, [453](#)
Grey, Lady Catherine, marriage and imprisonment of, [435](#)
Grey, Lady Jane, is proclaimed Queen, [420](#);
executed, [423](#)
Grey, Lord Leonard, becomes Lord Deputy of Ireland, [402](#);
conquers a great part of Ireland, [404](#)
Grindal, Archbishop of Canterbury, suspension of, [450](#)
Grocyn encourages the study of Greek at Oxford, [367](#)

Guiana, Raleigh's voyage to, [489](#)
Guinegate, battle of the Spurs at, [364](#)
Guise, Henry, Duke of, heads the French Catholics, [443](#);
 conspires to murder Elizabeth, [454](#);
 heads the League, [456](#);
 murdered, [464](#)
Guise, Francis, Duke of, takes Calais, [427](#);
 murder of, [436](#)
Guisnes, taken by the French, [427](#)
Gunpowder Plot, the, [483](#)

Habeas Corpus Act, [617](#)
Habeas corpus, writ of, dispute whether it ought to show the cause
 of imprisonment, [507](#)
Hales, destruction of the phial at, [398](#)
Hales, Sir Edward, holds an appointment by the dispensing power,
 [639](#)
Halifax, George Savile, Earl, afterwards Marquis of, supports the
 Duke of York's succession, [618](#);
 persuades the House of Lords to reject the Exclusion Bill, [621](#);
 advises Charles II. to summon Parliament, [626](#);
 dismissed by James II., [638](#)
Halley, astronomer, [632](#)
Hamilton, James Hamilton, Duke of, as Marquis of Hamilton
 dissolves the Assembly of Glasgow, [526](#);
 is defeated at Preston, [557](#)
Hamilton family support Mary, [440](#)
Hamilton of Bothwellhaugh assassinates the regent Murray, [441](#)
Hampden resists ship-money, [524](#);
 calms the House of Commons after the passing of the Grand
 Remonstrance, [534](#);
 one of the five members, [535](#);
 death of, [538](#)
Hampton Court Conference, the, [482](#)
Harlech Castle, surrender of, [550](#)
Havre occupied and abandoned by Elizabeth, [436](#)

Hazlerigg, Sir Arthur, one of the five members, [535](#)
Heads of the Proposals, the, [555](#)
Henrietta Maria, Queen, negotiations for the marriage of, [500](#);
 marries Charles I., [502](#);
 a papal agent at the Court of, [521](#);
 carries abroad the crown jewels, [536](#);
 urges Charles not to abandon the militia, [552](#)
Henry VIII., character of, [361](#);
 marries Catharine of Aragon, [363](#);
 foreign policy of, *ib.*;
 promotes Wolsey, *ib.*;
 favours More, [368](#);
 meets Francis I. on the Field of the Cloth of Gold, [369](#);
 has Buckingham executed, *ib.*;
 invades, France, [371](#);
 his views on his relations with the Church, [377](#);
 is named Defender of the Faith, [379](#);
 thinks of obtaining a divorce, *ib.*;
 urges Clement VII. to divorce him, [382](#);
 demands a sentence of nullity, [383](#);
 makes a victim of Wolsey, *ib.*;
 gains the support of the House of Commons, [385](#);
 consults the universities, and charges the clergy with being under
 a *præmunire*, *ib.*;
 obtains from Convocation the title of Supreme Head, [386](#);
 has no tenderness towards heresy, [383](#);
 obtains the Act of Annates, *ib.*;
 marries Anne Boleyn, and is divorced, [389](#);
 attempts to suppress heresy, and obtains fresh powers from
 Parliament, [390](#);
 sends More and Fisher to the Tower, [392](#);
 Act of Supremacy in favour of, [393](#);
 dissolves the smaller monasteries, [394](#);
 marries Jane Seymour, [395](#);
 issues the ten articles, and authorises the translation of the Bible,
 [396](#);
 deals hardly with the Pilgrimage of Grace, [397](#);

begins the confiscation of the greater monasteries, *ib.*;
attacks relics and images, [398](#);
presides at Lambert's trial, [399](#);
obtains from Parliament the six articles, [399](#);
marries and divorces Anne of Cleves, [400](#)- [401](#);
marries and beheads Catherine Howard, [401](#);
marries Catherine Parr, *ib.*;
his government of Ireland, [401](#)- [404](#);
takes Boulogne, [405](#);
makes war with Scotland, [406](#);
debases the coinage, [409](#);
death of, [411](#)
Henry II., king of France, allied with Scotland, [413](#);
his attitude towards Elizabeth, [432](#);
death of, [433](#)
Henry III., King of France, proposes, as Duke of Anjou, to marry
Elizabeth, [443](#);
accession of, [450](#);
murder of, [464](#)
Henry IV., King of France, his succession to the French crown
disputed, [456](#);
overpowers the League, [464](#)
Henry, Prince of Wales, son of James I., intention of the Gunpowder
plotters to blow up, [483](#);
death of, [488](#)
Hereford, besieged by the Scots, [549](#)
Heresy held to be punishable by the Common Law, [419](#)
Hertford, Earl of, *see* [Somerset](#), [Edward Seymour](#), [Duke of](#)
High Commission, the, Court of, erection of, [470](#);
its activity in the reign of Charles I., [520](#);
abolition of, [531](#)
High Court of Justice, the, proposal to constitute rejected by the
Lords, [557](#);
constituted by the Commons, [558](#)
Highland Host the, [619](#)
Holland, province of, its influence in the Dutch Republic, [489](#)
Holmby House, Charles I. at, [553](#);

Charles I., removed from, [555](#)
Holmes, Admiral, attacks the Dutch fleet, [605](#)
Hopton, Sir Ralph, commands the Royalists in Cornwall, [537](#), [538](#);
 fights on Lansdown, [538](#);
 takes and loses Arundel Castle, [542](#);
 is defeated at Cheriton, *ib.*
Holles takes part in holding down the Speaker, [514](#);
 one of the five members, [535](#)
Holy League, the, [363](#)
Hooker, his *Ecclesiastical Polity*, [472](#)
Hooper, Bishop of Gloucester, refuses to wear vestments, [417](#);
 receives the bishopric of Worcester, [418](#);
 speaks of his dioceses as the king's, [420](#);
 burnt, [424](#)
Hotham, Sir John, shuts the gates of Hull against Charles I., [537](#)
Hough, chosen President of Magdalen College, [641](#)
Houghton, prior of the Charterhouse, execution of, [394](#)
Hounslow, James II. reviews regiments at, [643](#)
Howard of Effingham, Charles Howard, Lord, commands the fleet
 against the Armada, [460](#);
 takes part in the capture of Cadiz, [464](#)
Howard of Escrick, Edward Howard, Lord, informs against the
 Whigs, [625](#)
Hudibras, [597](#)
Huguenots, the, supported by Elizabeth, [436](#);
 Buckingham lends ships to fight against, [504](#)
Hull, its gates shut against Charles I., [537](#);
 besieged by Newcastle, [542](#)
Huntley, George Gordon, fourth Earl of, overpowered by Mary, [437](#)
Humble Petition and Advice, the, [573](#)
Hurst Castle, Charles I. imprisoned in, [557](#)
Hyde, Anne, marries the Duke of York, [608](#)

Images, destruction of, [398](#)
Impeachment of Bacon, [496](#);
 of Buckingham, Montague and Manwaring, [511](#);

of Strafford, [530](#);
of twelve bishops, [535](#);
of the five members, [536](#);
of Laud, [546](#);
of Danby, [616](#);
pardon not to be pleaded in bar of, [617](#)
Impositions, the New, first levy of, [484](#);
question of the legality of, [505](#);
act preventing the king from levying, [531](#)
Inclosures, More's attack on, [368](#);
Ket's rebellion directed against, [416](#);
cessation of complaints against, [464](#)
Independents, the, originally known as Separatists, [543](#);
driven from the House, and reinstated by the army, [555](#);
are unpopular after the Restoration, [584](#)
Infanta, the, see [Maria, the Infanta](#)
Instrument of Government, the, [568](#)
Inverlochy, battle of, [547](#)
Ipswich, Wolsey's college at, founded, [377](#);
sold by Henry VIII., [383](#)
Ireland, under Henry VIII., [401](#);
legislation of Henry VIII. in, [402](#);
destruction of relics and images in, *ib.*;
conquest of a great part of, [404](#);
Henry VIII. named king of, *ib.*;
under Edward VI. and Mary, [451](#);
introduction of English colonists into, [452](#);
landing of Sir James Fitzmaurice in, *ib.*;
the slaughter at Smerwick, and the Desmond rising in, [453](#);
O'Neill's rising in, [475](#);
Essex's invasion of, *ib.*;
Mountjoy's conquest of, [478](#);
plantation of Ulster in, [484](#);
Wentworth's government of, [527](#), [528](#);
army collected by Strafford in, [529](#);
insurrection in, [533](#);
massacre in, [534](#);

the confederate Catholics in, [541](#);
Glamorgan's mission to, [549](#);
Rinuccini in, [550](#);
soldiers asked to volunteer for, [553](#);
Cromwell in, [562](#);
Ireton and Ludlow in, [567](#);
act of settlement in, [595](#);
James II. supported by the Celtic population of, [640](#)
Ireton draws up *The Heads of the Proposals*, [555](#);
in Ireland, [563](#)
Italy, the French wars in, [363](#);
the French driven from, [364](#)

Jamaica, conquest of, [572](#)
James I., King of Great Britain (see [James VI.](#), king of Scotland),
becomes king of England, [481](#);
imprisons Raleigh, *ib.*;
attacks the Puritans at Hampton Court, [482](#);
quarrels with his first House of Commons, *ib.*;
obtains a legal decision in the case of the *Post-nati*, [483](#);
his government of Ireland, [484](#);
his financial difficulties, *ib.*;
makes Somerset his favourite, [486](#);
offers to bargain with the Addled Parliament, [487](#);
negotiates a Spanish marriage for his son, [488](#);
makes Buckingham a favourite, *ib.*;
sends Raleigh to execution, [489](#);
watches the development of the Thirty Years' War, and summons
Parliament to vote supplies, [490](#);
his views on the prerogative, [492](#);
sells peerages, [494](#);
improvement of the finances of, *ib.*;
revokes monopolies, [495](#);
sends Digby to Germany and dissolves Parliament, [496](#);
raises a benevolence, [497](#);
his last Parliament, [500](#);

seeks to marry his son to a French princess, [501](#);
death of, *ib.*

James II., as Duke of York, declares himself a Roman Catholic, [600](#);

his conversion known, [607](#);

resigns the Admiralty, *ib.*;

marriages of, [608](#);

attempt to exclude from the throne, [617](#);

his cruelty to the Scottish covenanters, [620](#);

is present at his brother's death, [627](#);

accession of, [634](#);

first acts of the reign of, [635](#);

marches against Monmouth, [637](#);

violates the Test Act and prorogues Parliament, [638](#);

claims the dispensing power and establishes an ecclesiastical
commission, [639](#);

his government of Scotland and Ireland, [640](#);

issues a declaration of indulgence, *ib.*;

expels the Fellows of Magdalen and tries to pack a Parliament,
[641](#);

issues a second declaration of indulgence, [642](#);

hears of the acquittal of the seven Bishops, [643](#);

birth of a son of, [644](#);

makes concessions on hearing of William's approach, *ib.*;

attempts to escape, [645](#);

embarks for France, [646](#);

alleged virtual abdication of, *ib.*

James (the old Pretender), birth of, [644](#)

James IV., King of Scotland, killed at Flodden, [364](#)

James V., King of Scotland, policy of, [404](#);

death of, [405](#)

James VI., King of Scotland, birth and accession of, [439](#);

assisted by Elizabeth, [450](#);

becomes the tool of Lennox, [454](#);

is captured by Protestant lords, [455](#);

becomes king of England, [481](#);

see [James I.](#), King of Great Britain

Jane Seymour marries Henry VIII., [395](#);

death of, [397](#)
Jaureguy tries to murder William of Orange, [454](#)
Jeffreys enforces the surrender of charters, [625](#);
 sends Baxter to prison, [635](#);
 is made Chief Justice, *ib.*;
 conducts the Bloody Assizes, [637](#);
 becomes Chancellor, [638](#)
Jesuits, the, origin of, [436](#);
 land in England, [453](#);
 Act of Parliament against, [456](#)
Jones, Inigo, buildings by, [632](#)
Jones, Michael, commands in Dublin, [562](#)
Joyce, Cornet, carries off Charles I. from Holmby, [555](#)
Julius II., papacy of, [363](#);
 character of, [375](#)

Kent, rising in, suppressed by Fairfax, [557](#)
Keroualle, Louise de, see [Portsmouth](#), [Duchess of](#)
Ket's rebellion, [415](#)
Kildare, Earl of, imprisonment of, [402](#)
Kilkenny, meeting of the Confederate Catholics at, [541](#)
Kilsyth, battle of, [549](#)
Kimbolton, Lord, see [Manchester](#), [Earl of](#)
Kinsale, Spanish expedition to, [478](#)
Knighthood fines, [515](#);
 prohibited, [531](#)
Knox, John, opinions of, [418](#);
 urges on the Lords of the Congregation, [432](#);
 writes *The Monstrous Regimen of Women*, *ib.*;
 organises the Presbyterian Church, [434](#);
 his treatment of Mary, [438](#)

Lambert burnt as a heretic, [399](#)
Lambert, Major-General, defeats Booth at Winnington Bridge, [575](#)
Langport, battle of, [548](#)
Langside, defeat of Mary at, [440](#)

Lansdown, battle of, [538](#)
Latimer made Bishop of Worcester, [390](#);
 driven from his see, [400](#);
 sermons preached at Court by, [417](#);
 burnt, [425](#)
Laud, Archbishop of Canterbury, character and opinions of, [516](#);
 becomes Archbishop of Canterbury, and advises the republication
 of the *Declaration of Sports*, [517](#);
 wishes that the communion table shall stand at the East end, *ib.*;
 conducts a metropolitical visitation, [520](#);
 unpopularity of, [521](#);
 imprisonment of, [530](#);
 execution of, [546](#)
Lauderdale, John Maitland, Earl of, strengthens the king's authority
 in Scotland, [602](#);
 his management of Scotland, [619](#)
League, the, formed against Henry of Navarre, [456](#)
Leicester, Robert Dudley, Earl of, favoured by Elizabeth, [435](#);
 made Earl of Leicester, [438](#);
 commands an army in the Netherlands, [457](#)
Leighton punished by the Star Chamber, [514](#)
Leith, surrender of the French garrison of, [433](#)
Lely, Sir Peter, portraits by, [631](#)
Lennox, Esmè Stuart, Duke of, favourite of James VI., [455](#)
Lennox, Matthew Stuart, Earl of, Regent of Scotland, [443](#)
Lenthall, Speaker of the Long Parliament, [536](#)
Leo X., Pope, character of, [375](#)
Leopold I., Emperor, marries the daughter of Philip IV. of Spain,
 [592](#)
Leslie, David, overthrows Montrose, [549](#);
 is defeated at Dunbar, [563](#)
Levellers, the, [561](#)
Leven, Alexander Leslie, Earl of, as Alexander Leslie, commands
 the Scots on Dunse Law, [526](#);
 becomes Earl of Leven, and invades England, [542](#)
Leyden, relief of, [449](#);
 congregation of English Separatists at, [489](#)

Linacre, promotes the study of Greek at Oxford, [367](#)
Lincoln, stormed by Manchester, [542](#)
Lindsey, Robert Bertie, Earl of, fails to relieve Rochelle, [510](#)
Lisle, Alice, execution of, [637](#)
Litany, the English, composed by Cranmer, [409](#)
Loch Leven Castle, Mary imprisoned in, [410](#)
London, Lady Jane Grey unpopular in, [420](#);
 provides ships instead of money for the ship-money fleet, [523](#);
 welcomes Charles I. on his return from Scotland, [534](#), [535](#);
 declares against Charles I., [536](#);
 sends out trained bands to Gloucester, [539](#);
 attaches itself to the Presbyterian party, [555](#);
 influences the Whigs in, [622](#);
 Tory elections in, [623](#);
 forfeiture of the charter of, [624](#);
 growth of, [629](#);
 condition of the streets of, [631](#);
 restoration of the charter of, [644](#)
Lords, House of, results of the disappearance of the abbots from, [400](#);
 a bill thrown out for removing the bishops from, [533](#);
 bishops excluded from, [536](#);
 refuses to join in constituting a High Court of Justice, [557](#);
 dissolution of, [561](#);
 imprisons Shaftesbury, [612](#);
 discusses the abdication of James II., [646](#)
Lords of the Congregation, rise against Mary of Guise, [432](#);
 are helped by Elizabeth, [433](#)
Louis XII., King of France, Italian wars of, [363](#);
 marriage and death of, [364](#)
Louis XIII., King of France, negotiates for his sister's marriage, [501](#);
 resistance of Rochelle to, [504](#);
 besieges Rochelle, [506](#)
Louis XIV., King of France, buys Dunkirk from Charles II, [587](#);
 gives a slight support to the Dutch against England, [591](#);
 his designs on the Spanish inheritance, [592](#);
 signs the treaty of Aix-la-Chapelle, [599](#);

obtains the treaty of Dover from Charles II., [600](#);
invades the Dutch territory, [605](#);
pensions Charles II., [611](#);
is successful in the Netherlands, [613](#);
sends money to Charles II. to prevent the summoning of a
parliament, [627](#);
offers financial help to James II., [635](#);
revokes the Edict of Nantes, [638](#);
offers to send his fleet to help James II., [644](#)
Lowestoft, battle off, [590](#)
Loyola, Ignatius, founds the Jesuit Society, [437](#)
Ludlow, Edmund, in Ireland, [563](#)
Lunsford, Thomas, Lieutenant of the Tower, [535](#)
Luther, Martin, opposes the Papacy, [377](#);
has a controversy with Henry VIII., [379](#)
Lutheranism, character of, [376](#), [377](#);
its influence in England, [396](#)
Lutter, Christian IV. defeated at, [506](#)

Madrid, journey of Prince Charles to, [497](#)
Magdalen College, Oxford, expulsion of the Fellows of, [641](#);
restoration of the Fellows of, [644](#)
Maitland of Lethington, William, opposes the Presbyterian clergy,
[434](#)
Major-generals, the, [571](#)
Manchester, Edward Montague, Earl of, impeached, as Lord
Kimbolton, [535](#);
brought back to Westminster, [536](#);
becomes Earl of Manchester and is placed in command of the
Eastern Association, [542](#);
attacked by Cromwell, [544](#);
resigns his command, [545](#)
Mansfeld, Count, failure of his expedition, [501](#)
Manwaring, Roger, impeached, [511](#);
receives a good living from Charles I., [512](#)
Margaret, daughter of Henry VII., excluded from the succession,

[411](#)

Margaret Theresa, daughter of Philip IV., marries Leopold I., and renounces the Spanish succession, [592](#)

Maria, the Infanta, proposal to marry her to Prince Charles, [488](#);
shrinks from marrying a heretic, [497](#);
is courted by Charles, [498](#)

Maria Theresa, daughter of Philip IV., marries Louis XIV., and renounces the Spanish succession, [592](#)

Marignano, battle of, [366](#)

Marlborough, John Churchill, Duke of, as Lord Churchill, deserts James II., [645](#)

Marprelate Tracts, the, [470](#)

Marston Moor, battle of, [543](#)

Mary I., daughter of Henry VIII., as princess, successively engaged to Francis I. and his second son, [374](#);

her place in the succession acknowledged by statute, [411](#);

protected by Charles V., [414](#);

popularity of, [420](#);

is proclaimed queen, [421](#);

her feelings and opinions, *ib.*;

wishes to restore the Church lands, [422](#);

is married to Philip II., [423](#);

obtains the reconciliation of England to the Roman see, [424](#);

supports the persecution of Protestants, *ib.*;

resolves to put Cranmer to death, [425](#);

deserted by her husband, [426](#);

declares war with France, [427](#);

death of, *ib.*

Mary II., birth of, [608](#);

her hand offered to William of Orange, [609](#);

marriage of, [613](#);

finds fault with Danby, [646](#);

the crown offered to, [647](#)

Mary, daughter of Henry VII., marriages of, [364](#);

her place in the succession acknowledged in exclusion of her sister Margaret, [411](#)

Mary of Guise, Regent of Scotland, her contests with the

Protestants, [432](#);
death of, [433](#)
Mary of Modena marries the Duke of York, [608](#)
Mary Stuart, Queen of Scots, birth of, [405](#);
taken to France and married to the Dauphin, [413](#);
assumes the style of Queen of England, [433](#);
returns to Scotland, [434](#), [435](#);
character of, [437](#);
marries Lord Darnley, [438](#);
being charged with the murder of Darnley, marries Bothwell, [439](#);
imprisoned in Loch Leven Castle, [440](#);
escapes to England, *ib.*;
is retained as a prisoner, [441](#);
marriage with the Duke of Norfolk, proposed for, *ib.*;
Ridolfi's plot on behalf of, [445](#);
trial of, [457](#);
execution of, [458](#)
Massey, Roman Catholic Dean of Christchurch, [639](#)
Matthias, the Emperor, resistance of the Bohemians to, [490](#)
Maximilian I., Emperor, Italian wars of, [363](#);
death of, [369](#)
Mayflower, the, voyage of, [490](#)
Maynard, Sergeant, his answer to William III., [646](#)
Mayne, Cuthbert, execution of, [453](#)
Maynooth taken by Skeffington, [402](#)
Mazarin, Cardinal, makes an alliance with Cromwell, [572](#)
Medina Sidonia, Duke of, commands the Spanish Armada, [460](#);
is received by Philip II. after his defeat, [462](#)
Medway, the, the Dutch in, [593](#)
Melville, Andrew, insults James VI., [525](#)
Mendoza sent out of England by Elizabeth, [456](#)
Metropolitanical Visitation, the, [520](#)
Middlesex, Lionel Cranfield, Earl of, improves the finances of
James I., [494](#);
impeachment of, [500](#)
Milan, struggle between Charles V. and Francis I. for, [371](#)
Militia, the, struggle for the command of, [536](#);

the Scots urge Charles I. to abandon, [552](#)
Millenary Petition, the, [482](#)
Milton writes *Comus*, [519](#);
 writes *Areopagitica*, [546](#);
 writes a sonnet on the Vaudois, [572](#);
 publishes *Paradise Lost*, [596](#)
Mompesson, Sir Giles, flies from the kingdom, [495](#)
Monasteries, dissolution of the smaller, [394](#);
 surrender of some of the greater, [397](#);
 completion of the suppression of, [400](#)
Monk, see [Albemarle, Duke of](#)
Monmouth, Duke of, proposed as heir to the crown, [618](#);
 defeats the Covenanters at Bothwell Bridge, [620](#);
 refuses to take part in acts of violence, [624](#);
 implicated in a Whig plot, [625](#);
 rebellion and execution of, [637](#)
Monopolies, the, Elizabeth recalls some of, [478](#);
 attacked by Parliament in the reign of James I., [494](#);
 revocation of, [495](#);
 Act of, [500](#)
Monro, Major-General Robert, holds Carrickfergus, [541](#)
Montague, Chief Justice, becomes Lord Treasurer, [494](#)
Montague, Ralph, accuses Danby, [616](#)
Montague, Richard, impeached, [511](#);
 made a bishop, [512](#)
Montrose, James Graham, Marquis of, his campaign in the
 Highlands, [547](#), [549](#);
 execution of, [563](#)
More, Sir Thomas, writes *Utopia*, [367](#);
 in favour with Henry VIII., [368](#);
 is Speaker of the House of Commons, [371](#);
 becomes Chancellor, [387](#);
 his displeasure with the Protestants, [388](#);
 resigns the chancellorship, *ib.*;
 is sent to the Tower, [392](#);
 execution of, [394](#)
Morley, Bishop, sermons of, [548](#)

Mountjoy, Charles Blount, Lord, conquers Ireland, [478](#)
Mountnorris, Francis Annesley, Lord, court martial on, [528](#)
Munster, attempt to colonise, [475](#)
Münster, the Bishop of, overruns two Dutch provinces, [591](#)
Murray, Earl of, is driven into England, [438](#);
 returns to Scotland, [439](#);
 becomes Regent, [440](#);
 produces the Casket letters, *ib.*;
 assassinated, [441](#)

Nantwich, battle of, [542](#)
Naseby, battle of, [548](#)
Navarre conquered by Ferdinand of Aragon, [364](#)
Navigation Act, the, passing of, [565](#);
 re-enactment of, [589](#)
Navy, the English, defeats the Spanish Armada, [460](#)- [464](#);
 equipped by means of ship-money, [523](#);
 desertion of part of, to the Prince of Wales, [557](#);
 Blake in command of, [565](#);
 its contests with the Dutch, [591](#);
 deterioration in the discipline of, [605](#)
Netherlands, the, inherited by Philip II., [426](#);
 Alva's government of, [443](#);
 beginning of the Dutch Republic in, [449](#);
 division into two parts, [450](#);
 see [Netherlands](#), the [Spanish](#), and [Dutch](#) Republic
Netherlands, the Spanish, Alexander of Parma in, [450](#)
New Amsterdam captured by the English, [589](#)
New England, colonisation of, [489](#)
New Model Army, see [Army, the New Model](#)
New York, named after the Duke of York, [589](#);
 secured to England, [593](#)
Newark surrenders to the Scots, [551](#)
Newburn, rout of, [529](#)
Newbury, first battle of, [539](#);
 second battle of, [544](#)

Newcastle, Charles I. at, [551](#)
Newcastle, William Cavendish, Earl, afterwards Marquis of,
 commands a Royalist army in Yorkshire, and defeats the
 Fairfaxes at Adwalton Moor, [538](#);
 is created Marquis, and besieges Hull, [542](#);
 besieged in York, *ib.*;
 defeated at Marston Moor, [543](#)
Newport, the treaty of, [557](#)
Newton, Sir Isaac, [632](#)
No Addresses, vote of, [556](#)
Non-resistance Bill, the, [611](#)
Norfolk, resistance to the Amicable Loan in, [372](#);
 Ket's rebellion in, [415](#)
Norfolk, Thomas Howard, second Duke of, defeats the Scots, as
 Earl of Surrey, at Flodden, [364](#)
Norfolk, Thomas Howard, third Duke of, opposes Wolsey, [383](#);
 charges Cromwell with treason, [401](#);
 wastes the Scottish Borders, [405](#);
 condemned to death, [411](#)
Norfolk, Thomas Howard, fourth Duke of, sent to the Tower, [441](#);
 is liberated and proposes to marry Mary Stuart, [444](#);
 arrested, [445](#);
 executed, [446](#)
Norris, Sir John, joins Drake in sacking Corunna, [464](#)
North Foreland, battle off, [591](#)
Northumberland, John Dudley, Duke of, as Earl of Warwick,
 overpowers Ket's rebellion, [416](#);
 leads the government after Somerset's fall, *ib.*;
 becomes Duke of Northumberland, [418](#);
 supports Lady Jane Grey, [420](#);
 execution of, [421](#)
Northumberland, Thomas Percy, Earl of, takes part in the rising of
 the North, [441](#)
Nottingham, Charles I. sets up his standard at, [537](#)
Nymwegen, peace of, [615](#)

Oates, Titus, tells the story of the Popish Plot, [615](#)
O'Donnell, Rory, flight of, [484](#)
O'Neill, Hugh, defeats Bagenal at the Blackwater, [475](#);
 submission of, [478](#);
 flight of, [484](#)
O'Neill, Shan, defeat of, [452](#)
Orleans, Henrietta, Duchess of, negotiates the Treaty of Dover, [600](#)
Ormond, Thomas Butler, Marquis of, Lord Lieutenant of Ireland,
 [542](#);
 abandons Ireland to Parliament, [562](#);
 returns to Ireland, *ib.*
Overbury, Sir Thomas, poisoned, [488](#)
Oxford, study of Greek in the University of, [367](#);
 Parliament adjourned to, [502](#);
 headquarters of Charles I. at, [537](#);
 Parliament held at, during the Plague, [590](#);
 the third Short Parliament meets at, [621](#);
 Roman Catholic propaganda of James II. in, [639](#)

Painting, mainly in the hands of foreigners, during the Stuart period, [631](#)

Palatinate, the, Spinola's invasion of, [490](#);
Imperialist invasion of, [496](#);
loss of, [497](#);
failure of the negotiation to induce the king of Spain to obtain the
restitution of, [500](#);
attempt to send Mansfeld to recover, [501](#)

Papacy, the, immorality of, [375](#);
legislation against the payment of annates and Peter's pence to, [388](#), [390](#)

Papal jurisdiction in England, abolition of, [389](#), [391](#)

Paradise Lost, publication of, [596](#)

Paris submits to Henry IV., [464](#)

Parker, Matthew, becomes Archbishop of Canterbury, [429](#);
character and position of, [430](#)

Parker, Samuel, Bishop of Oxford, a secret Roman Catholic, [639](#);
intrusive President of Magdalen College, [641](#)

Parliament, relations of Henry VIII. with, [385](#);
relations of Elizabeth with, [444](#);
the Addled, [485](#);
the Short, [528](#);
the Long, [529](#);
formation of parties in, [532](#);
struggles with Charles I. for the militia, [536](#);
raises forces against the king, [537](#);
tries to disband the army, [553](#);
its speakers take refuge with the army, [555](#);
dissolution of, by Cromwell, [566](#);
the Barebone's, *ib.*;
the first, of the Protectorate, [570](#);
the second, of the Protectorate, [572](#);
Richard Cromwell's, [574](#);
restoration of the Long, [575](#);
final dissolution of the Long, [576](#);

the first convention, [577- 584](#);
the Cavalier, [585](#);
supports the Church more than the king, [586](#);
rejects the declaration of Charles II. in favour of toleration, [587](#);
Albemarle resists the dissolution of, [599](#);
opposes James II., [638](#);
James II. attempts to pack, [641](#)

Parma, Alexander Farnese, Prince of, governor of the Spanish Netherlands, [450](#);
gains ground in the Netherlands, [454- 456](#);
takes Antwerp, [456](#);
takes Zutphen, [457](#);
hopes to transport an army to England, [459](#);
blockaded by the Dutch, [462](#);
sent to aid the League, [464](#)

Parris, Van, burnt, [419](#)

Parsons, Robert, lands in England, [453](#);
escapes, [454](#)

Parsons, Sir William, one of the Lords Justices in Ireland, [533](#)

Parties, Parliamentary, formation of, [532](#);
development of, [610](#), [628](#)

Paulet, Sir Amias, refuses to put Mary Stuart to death, [457](#)

Pavia, battle of, [372](#)

Penn and Venables, expedition of, to the West Indies, [571](#)

Pennsylvania, colonisation of, [629](#)

Penruddock captures the judges at Salisbury, [571](#)

Penry, John, hanged, [472](#)

Pepys pities dissenters, [588](#)

Perth, the five articles of, [525](#)

Peter Martyr teaches in England, [416](#)

Peter's Pence, abolition of, [391](#)

Petition of Right, the, [508](#)

Petitioners, party name of, [620](#)

Philip II., King of Spain, marries Mary, [423](#);
abdication of Charles V. in favour of, [426](#);
deserts Mary, *ib.*;
induces Mary to declare war against France, [427](#);

makes peace with France, [431](#);
proposes to marry Elizabeth, [432](#);
persecutes the Protestants in the Netherlands, [443](#);
annexes Portugal, and shares in a plot for the invasion of England
and the murder of Elizabeth, [454](#);
undertakes the invasion of England, [456](#);
claims the English crown, [458](#);
appoints a commander for the Armada, [460](#);
supports the League in France, [464](#)
Philip III., King of Spain, James I. seeks an alliance with, [488](#)
Philip IV., King of Spain, receives Prince Charles, and negotiates
with the Pope about his sister's marriage, [497](#);
consults theologians, [498](#);
informs Charles of his terms, [500](#);
death of, [592](#)
Philiphaugh, battle of, [549](#)
Philip's Norton, Monmouth at, [637](#)
Pilgrim Father, the, [489](#)
Pilgrim's Progress, publication of, [596](#)
Pilgrimage of Grace, the, [396](#), [397](#)
Pinkie Cleugh, battle of, [413](#)
Pius V., Pope, excommunicates Elizabeth, [441](#)
Plague, the, devastations of, [590](#)
Plymouth held by a Parliamentary garrison, [538](#)
Pole, Reginald, opposes Henry VIII. and becomes a cardinal, [399](#);
as Papal legate reconciles England to the see of Rome, [424](#);
becomes archbishop of Canterbury, [426](#);
death of, [427](#)
Ponet made Bishop of Winchester, [416](#)
Popish Plot, the, [615](#)
Portland, Richard Weston, Earl of, as Lord Weston, becomes Lord
Treasurer, [514](#);
made Earl of Portland and dies, [521](#)
Portsmouth, Louise de Keroualle, Duchess of, betrays the secrets of
Charles II., [602](#);
extravagance of, [603](#)
Portugal subdued by Philip II., [454](#)

Post-nati, the, [483](#)
Powick Bridge, skirmish at, [537](#)
Poyntz, Major-General, defeats Charles I. at Rowton Heath, [549](#)
Prayer Book, the, see [Common Prayer](#), Book of
Prayer Book, the Scottish, introduced by Charles I., [525](#)
Prerogative, the, opinion of James I. about, [492](#)
Presbyterian clergy, the, prepared to accept a modified episcopacy, [583](#);
 expelled from their livings, [585](#);
 proposal of Charles II. to obtain comprehension for, [599](#)
Presbyterian party, the, in a majority in the House of Commons, [546](#);
 attempts to disband the army, [553](#);
 negotiates with the Scots for a fresh invasion of England, [554](#);
 generally accepts the Prayer Book, [586](#)
Presbyterianism emanates from Geneva, [430](#);
 its organisation completed in France, [431](#);
 adopted in Scotland, [434](#);
 attempts to establish, in England, [470](#);
 feeling in the Long Parliament about, [532](#);
 adopted by the Assembly of Divines, [543](#);
 Charles I. urged to establish in England, [551](#)
Preston, Cromwell's victory at, [557](#)
Prichard, Lord Mayor, [624](#)
Pride's Purge, [557](#)
Privilege of Parliament, Strickland's case of, [445](#);
 Eliot's vindication of the, [512](#)
Privy Council, the, Temple's scheme for reforming, [617](#)
Propheesyings, the, [450](#)
Protectorate, establishment of the, [568](#)
Protestants, the English, feeling of Henry VIII. and More towards, [388](#);
 parties amongst, [413](#);
 the Marian persecution of, [424](#);
 local distribution of, [426](#);
 their position at Elizabeth's accession, [428](#);
 influence of Calvinism on, [430](#)

Prynne, character and writings of, [519](#);
his sentence in the Star Chamber, *ib.*;
second sentence on, [521](#)
Pularoon, refusal of the Dutch to surrender, [589](#);
abandoned by the English, [593](#)
Puritans, the, aims of, [444](#);
gain influence in the House of Commons, [445](#), [468](#);
the Court of High Commission directed against, [470](#);
opinions of, at the Hampton Court Conference, [482](#);
unpopular after the restoration, [586](#)
Purveyance, abolition of, [582](#)
Pym differs from Eliot on the method of dealing with the question of
Tonnage and Poundage, [512](#);
addresses the Short Parliament on grievances, [529](#);
proposes in the Long Parliament the impeachment of Strafford,
ib.;
his view of Strafford's case, [530](#);
discloses the army plot, [531](#);
is one of the leaders of the party of the Grand Remonstrance, [534](#);
accused as one of the five members, [535](#);
urges the House of Commons to resist Charles I., [540](#);
death of, [542](#)

Quo warranto, writs of, [624](#), [625](#)

Raleigh, Sir Walter, takes part in the capture of Cadiz, [464](#);
sentenced to death and imprisonment, [481](#);
loses Sherborne, [486](#);
voyage to Guiana and execution of, [499](#);
his colony in Virginia, *ib.*
Ré, Buckingham's expedition to, [506](#)
Reading taken by Essex, [538](#)
Reading, the abbot of, executed, [400](#)
Recusancy laws, the, penalties inflicted by, [454](#)
Regicides, the, execution of, [582](#)
Reims, College at, [453](#)

Relics, destruction of, [398](#)
Renaissance, the, character of, [366](#);
 its influence on England, [367](#);
 immorality of, [374](#), [375](#)
Requesens, governor of the Netherlands, [449](#)
Ruyter, De, captures English forts in Guinea, [589](#)
Revenue of the crown fixed after the Restoration, [582](#)
Revolution of 1688-9, [646](#)- [648](#)
Ridley made Bishop of London, [416](#);
 burnt, [425](#)
Ridolfi plot, the, [444](#)
Rinuccini, Archbishop, arrives in Ireland, [550](#);
 leaves Ireland, [562](#)
Ripon, treaty of, [529](#)
Rising in the North, the, [441](#)
Rizzio, David, murder of, [439](#)
Roads, improvement in, [633](#)
Rochelle, Buckingham lends ships to fight against the Huguenots of,
 [504](#);
 siege of, [506](#);
 expedition to the relief of, [510](#)
Rochester, Lawrence Hyde, Earl of, advises against the summoning
 of Parliament, [626](#);
 dismissal of, [640](#)
Rogers, John, burnt, [424](#)
Rome taken by the Duke of Bourbon, [374](#)
Root and Branch Bill, the, [533](#)
Roundway Down, battle of, [538](#)
Rowton Heath, battle of, [549](#)
Royal Society, the, foundation of, [598](#)
Rump, the name given to the remnant of the Long Parliament, [565](#);
 dissolved by Cromwell, [566](#);
 brought back, expelled and brought back again, [575](#);
 final dissolution of, [576](#)
Rupert, Prince, commands the cavalry at Edgehill, [537](#);
 storms Bristol, [538](#);
 is defeated at Marston Moor, [543](#);

takes part in the battle of Naseby, [548](#);
surrenders Bristol, [549](#);
holds a command in the battle off the North Foreland, [592](#);
defeated off the Texel, [608](#)
Russell, William Russell, Lord, supports the Exclusion Bill, [617](#);
refuses to take part in acts of violence, [624](#);
trial of, [625](#);
execution of, [626](#)
Rye House Plot, the, [625](#)

Sa, Dom Pantaleon, execution of, [569](#)
St. Andrews captured by the French and recaptured, [413](#)
St. Bartholomew, massacre of, [449](#)
St. Bartholomew's day, ejection of the Presbyterian clergy on, [585](#)
St. Paul's, Old, burnt, [592](#)
Salisbury, Penruddock captures the judges at, [571](#)
Salisbury, Robert Cecil, Earl of, as Sir Robert Cecil, secretary to
Elizabeth and James I., [480](#), [481](#);
becomes Earl of Salisbury and Lord Treasurer, [484](#);
orders the levy of new impositions, *ib.*;
death of, [486](#)
Salisbury, Countess of, executed, [401](#)
San Domingo, Penn and Venables attack, [572](#)
Santa Cruz, Blake destroys Spanish ships at, [573](#)
Savoy Conference, the, [585](#)
Savoy, Duke of, persecutes the Vaudois, [572](#)
Scotland, power of the nobles in, [404](#);
Hertford's invasion of, [409](#);
Protestant missionaries in, [412](#);
Somerset's invasion of, [413](#);
the Reformation in, [432](#);
the intervention of Elizabeth in, [433](#);
Presbyterianism in, [434](#);
Mary lands in, [435](#);
Mary's government of, [437](#)- [440](#);
civil war in, [443](#);

projected union with, [482](#);
Episcopacy and Presbyterianism in, [524](#);
introduction of a new prayer book in, [525](#);
national covenant signed in, *ib.*;
first Bishops' war with, [526](#);
episcopacy abolished by the Assembly and Parliament of, [527](#);
the second Bishops war with, [529](#);
visit of Charles I. to, [532](#);
solemn league and covenant with, [540](#);
sends an army into England, [542](#);
its army recalled, [553](#);
proposal of a new invasion of England by, [554](#);
engagement signed with Charles I. by Commissioners of, [556](#);
Charles II. and Cromwell in, [563](#);
Restoration settlement of, [595](#);
Lauderdale's influence in, [602](#);
Lauderdale's management of, [619](#);
Covenanters in, *ib.*;
rising of the Covenanters in, [620](#);
under James II., [639](#)
Scottish army, the, encamps on Dunse Law, [526](#);
routs the English at Newburn, [529](#);
invades England, [542](#);
besieges York, *ib.*;
takes part in the battle of Marston Moor, [543](#);
receives Charles I. at Southwell, and conveys him to Newcastle,
[551](#);
negotiation for the abandonment of Charles I. by, [553](#);
returns to Scotland, [553](#);
is defeated at Dunbar, [563](#);
and at Worcester, [564](#)
Second Civil War, the, [556](#), [557](#)
Sedgemoor, battle of, [637](#)
Selby taken by the Fairfaxes, [542](#)
Selden, John, takes part in drawing up the Petition of Right, [508](#)
Self-denying Ordinance, the, [545](#)
Seminary priests, the, [453](#);

Act of Parliament against, [456](#)
Separatists, the, principles of, [470](#);
settlement of, in Leyden and New England, [469](#);
receive the name of Independents, [543](#);
see [Independents](#)
Settlement, Irish Act of, [595](#)
Seven Bishops, the, petition presented by, [642](#);
trial of, [643](#)
Seymour, Jane, see [Jane Seymour](#)
Seymour of Sudley, Lord, execution of, [415](#)
Seymour, William, heir of the Suffolk line, [480](#)
Shaftesbury, Anthony Ashley Cooper, Earl of, early life of, [602](#);
policy of, [603](#);
supports the Declaration of Indulgence, [605](#);
becomes Earl of Shaftesbury and Chancellor, *ib.*;
his invective against the Dutch, [606](#);
dismissal of, [608](#);
leads the opposition, *ib.*;
supports toleration for Dissenters only, [610](#);
declares the present Parliament to be dissolved, [612](#);
encourages belief in the Popish Plot, [616](#);
his position similar to that of Pym, [618](#);
supports the Exclusion Bill, *ib.*;
indicts the Duke of York as a recusant, [621](#);
supported by the third Short Parliament, *ib.*;
the Grand Jury throw out a Bill against, [622](#);
Dryden's satire on, [623](#);
proposes to attack the king's guards, [624](#);
exile and death of, *ib.*
Shakspeare, William, teaching of, [474](#)
Sharp, Archbishop, murder of, [620](#)
Sherborne taken by Fairfax, [548](#)
Sherfield, Henry, fined by the Star Chamber, [515](#)
Ship-money, levy of, [523](#);
resisted by Hampden, [524](#)
Ships, comparison between English and Spanish, [459](#)
Shrines, destruction of, [398](#)

Sidney, Algernon, execution of, [626](#)
Sidney, Sir Philip, death of, [457](#)
Sinclair, Oliver, killed at Solway Moss, [405](#)
Skeffington, Lord Deputy, takes Maynooth, [402](#)
Slave trade, the, carried on by Elizabethan sailors, [447](#)
Smerwick, slaughter at, [453](#)
Solemn league and covenant, the, [540](#)
Solway Moss, defeat of the Scots at, [405](#);
 Charles I. urged by the Scots to take, [551](#)
Somerset, Edward Seymour, Duke of, invades Scotland as Earl of
 Hertford, [406](#);
 becomes Duke of Somerset and Protector, [412](#);
 defeats the Scots at Pinkie Cleugh, [413](#);
 possession of Church property by, [415](#);
 expelled from the Protectorate, [416](#);
 execution of, [418](#)
Somerset, Robert Carr, Earl of, favourite of James I., [486](#);
 disgrace of, [488](#)
Somerset House, building of, [435](#)
Southwell, Charles I. surrenders to the Scots at, [551](#)
Southwold Bay, battle in, [605](#)
Spain, resources of, [426](#);
 maritime power of, [447](#);
 authority of, in the West Indies challenged by English sailors, *ib.*;
 navy of, [459](#);
 English attacks on, [464](#);
 sends an expedition to Kinsale, [478](#);
 its alliance sought by James I., [486](#);
 attack of Raleigh on the colonies of, [489](#);
 sends troops to occupy the Palatinate, [490](#);
 protest of the Commons against an alliance with, [496](#);
 visit of Prince Charles to, [497](#);
 eagerness in England for war with, [500](#);
 money voted for war with, [501](#);
 expedition against Cadiz in, [503](#);
 Charles I. makes peace with, [514](#);
 Cromwell makes war on, [571](#);

question of the succession to, [592](#)
Spenser, Edmund, his *Faerie Queen*, [473](#)
Spinola, Ambrogio, invades the Palatinate, [490](#)
Spurs, battle of the, [364](#)
Stadholder, office of, [449](#);
 abolition of the office of, [565](#)
Stainer, Admiral, captures a Spanish fleet, [572](#)
Star Chamber, Court of, its sentences in the reign of Charles I., [514](#),
 [519](#), [521](#);
 abolition of, [531](#)
Stillingfleet aims at comprehension, [598](#)
Stop of the Exchequer, the, [604](#)
Stow-on-the-Wold, surrender of the last Royalist army at, [550](#)
Stafford, William Howard, Viscount, execution of, [621](#)
Strafford, Thomas Wentworth, Earl of, as Sir Thomas Wentworth,
 his policy contrasted with that of Eliot, [508](#);
 brings in a bill to secure the liberty of the subject, *ib.*;
 becomes Lord Wentworth and President of the Council of the
 North, [514](#);
 becomes Lord Deputy of Ireland, [527](#);
 created Earl of Strafford, and advises the summoning of the Short
 Parliament, [528](#);
 does not advise the prolongation of the second Bishops war, [529](#);
 collects an Irish army, *ib.*;
 is impeached, [530](#);
 Bill of Attainder against, *ib.*;
 execution of, [531](#)
Stratton, battle of, [538](#)
Strickland moves for an amendment of the Prayer Book, [445](#)
Strode, William, one of the five members, [535](#)
Submission of the clergy, the, [386](#)
Succession, Act of, [392](#)
Suffolk, Charles Brandon, Duke of, marries Mary, sister of Henry
 VIII., [364](#)
Suffolk, Thomas Howard, Earl of, [486](#)
Suffolk line, its title to the succession, [410](#);
 Elizabeth's feeling towards, [435](#);

William Seymour, the heir of, [480](#)
Supremacy, Act of, [393](#);
Elizabethan Act of, [429](#)
Supreme head of the Church of England, title of, conferred by
Convocation on Henry VIII., [386](#);
abandoned by Elizabeth, [429](#)
Surrey, Henry Howard, Earl of, execution of, [411](#)
Surrey, Thomas Howard, Earl of, minister of Henry VIII., [363](#)
Surrey, Thomas Howard, Earl of, the commander at Flodden, *see*
[Norfolk, Duke of](#)
Sussex, Thomas Ratcliffe, Earl of, Lord Deputy of Ireland, [452](#)
Sweden takes part in the Triple Alliance, [599](#)

Tangier acquired by Charles II., [587](#)
Taunton, siege of, [548](#)
Taylor, Rowland, burnt, [424](#)
Temple, Sir William, negotiates the Triple Alliance, [599](#);
advises the reform of the Privy Council, [617](#);
failure of his scheme, [620](#)
Terouenne, [364](#)
Test Act, the, passed, [607](#);
a second, [616](#);
violated by James II., [638](#)
Texel, the, Rupert defeated off, [608](#)
Thirty Years' War, the, beginning of, [490](#);
end of, [564](#)
Thomas of Canterbury, St., destruction of the shrine of, [398](#)
Throgmorton's conspiracy, [456](#)
Tippermuir, battle of, [547](#)
Tithes, proposal of the Barebone's Parliament to abolish, [567](#)
Toleration, Cromwell's advocacy of, [543](#);
Charles II. proposes to adopt, [583](#);
Charles II. issues a declaration in favour of, [587](#);
tendency of science to promote, [598](#)
Tonnage and Poundage, nature of, [509](#);
claimed by Charles I. in spite of the Petition of Right, [510](#);

Act preventing the king from levying, [531](#)
Torbay, arrival of William III. in, [644](#)
Tory party, the, origin of the name of, [620](#);
 reaction in favour of, [622](#);
 elects officers in the city, [623](#);
 gains a majority in the Common Council, [624](#)
Tournai, [364](#)
Treasons, Act creating new, [392](#)
Trent, the Council of, [436](#)
Triennial Act of Charles I., the, [530](#);
 repealed, [588](#)
Triers, Commission of, [569](#)
Trimmer, origin of the name of, [618](#)
Triple Alliance, the, [599](#)
Tulchan bishops, the, [524](#)
Tunis, Blake sent against, [571](#)
Turnham Green, the militia of the city resist Charles I. at, [537](#)
Tuscany, Duke of, Blake sent against, [571](#)
Tyndale, William, translates the New Testament, [396](#)
Tyrconnel, Earl of, *see* [O'Donnell](#)
Tyrconnel, Richard Talbot, Earl of, Lord Deputy in Ireland, [640](#)
Tyrone, Earl of, *see* [O'Neill, Hugh](#)

Ulster, plantation of, [484](#);
 insurrection and massacre in, [534](#)
Undertakers, the, [487](#)
Uniformity, Elizabethan Act of, [429](#);
 Restoration Act of, [585](#)
Universities consulted on the divorce of Henry VIII., [385](#)
Utopia, [367](#)
Utrecht, union of, [450](#)

Valentine takes part in holding down the Speaker, [514](#)
Vandevelde paints marine subjects, [631](#)
Van Dyck, portraits by, [631](#)
Vane, Sir Henry, the younger, produces evidence against Strafford,

[530](#);
negotiates the Solemn League and Covenant, [540](#);
brings in a Reform bill, [566](#)
Vaudois, the, Cromwell intervenes in favour of, [572](#)
Venice, League of Cambrai formed against, [363](#)
Venner's plot, [584](#)
Vere, Sir Horace, defends the Palatinate, [490](#)
Verrio paints ceilings, [631](#)
Vestments, ecclesiastical, Hooper's rejection of, [417](#);
Puritan resistance to the use of, [444](#);
Whitgift's opinion on the propriety of, [468](#)
Virginia, colonisation of, [489](#)
Vote of No Addresses, [556](#)

Walker, Obadiah, Roman Catholic Master of University College,
[639](#)
Waller, Sir William, defeated at Lansdown and Roundway Down,
[538](#);
takes Arundel Castle and defeats Hopton at Cheriton, [542](#);
fights at Cropredy Bridge, [544](#);
resigns his command, [545](#)
Walsingham, Sir Francis, Secretary to Elizabeth, [457](#)
Warwick, Earl of, see [Northumberland, Duke of](#)
Wentworth, Sir Thomas, see [Strafford, Earl of Wentworth](#), Thomas
Wentworth, Lord, governor of Calais, [427](#)
Wesley, Samuel, sermon by, [642](#)
West Indies, the, conflicts between English and Spanish sailors in,
[447](#)
Weston, Lord, see [Portland, Earl of](#)
Westphalia, Peace of, [564](#)
Westmorland, Charles Neville, Earl of, takes part in the rising of the
North, [441](#)
Westward Ho! [447](#)
Wexford, slaughter at, [563](#)
Whig party, the, origin of the name of, [620](#);
has a hold on the city of London, [622](#)

'Whip with six strings, the,' [400](#)

Whitgift, John, Archbishop of Canterbury, opinions of, [468](#);
the High Commission Court under, [470](#);
compared with Hooker, [472](#)

Wilkins, Bishop, aims at comprehension, [598](#)

William I., Prince of Orange, Stadholder of the Dutch republic, [449](#);
Jaureguy's attempt to murder, [454](#);
murdered by Gerard, [456](#)

William II., Prince of Orange, death of, [565](#)

William III., Prince of Orange, defends the Dutch republic, [605](#);
is offered the hand of Mary, daughter of the Duke of York, [608](#);
at the head of a continental alliance, [609](#);
marriage of, [613](#);
invited to England, [644](#);
lands at Brixham and marches on London, [645](#);
arrives at Whitehall, [646](#);
the crown offered to, [647](#)

Williams, John, Archbishop of York, impeachment of, [535](#)

Winceby, fight at, [542](#)

Winchester taken by Cromwell, [549](#)

Winnington Bridge, Booth defeated at, [575](#)

Wishart, George, burnt, [413](#)

Witt, John de, Pensionary of Holland, [589](#);
negotiates the Triple Alliance, [599](#);
murder of, [605](#)

Wolsey, Thomas, Cardinal, rise of, [363](#);
magnificence of, [364](#);
supports a policy of peace, [365](#), [366](#);
comes into the House of Commons, [371](#);
becomes unpopular on account of the Amicable Loan, [372](#);
secures his position by an alliance with France, [374](#);
aspires to the papacy, [375](#);
is named legate *a latere*, *ib.*;
his views on Church reform, [376](#);
founds two colleges, [377](#);
fails to persuade Henry VIII. to abandon Anne Boleyn, [380](#);
is appointed legate to try Henry's divorce, [382](#);

fall of, [383](#);
death of, [384](#)
Worcester, battle of, [564](#)
Wren, Sir Christopher, buildings by, [632](#)
Wriothesley, Lord Chancellor, excluded from the Council, [412](#)
Wyatt, Sir Thomas, rebellion and execution of, [423](#)

York, Charles I. at, [537](#);
siege of, [542](#)
York, James, Duke of, *see* [James II.](#)

Zutphen, death of Sir Philip Sidney at, [457](#)
Zwingli, teaching of, [390](#)
Zwinglianism, spread of, in England, [399](#);
Cranmer's attitude towards, [416](#)

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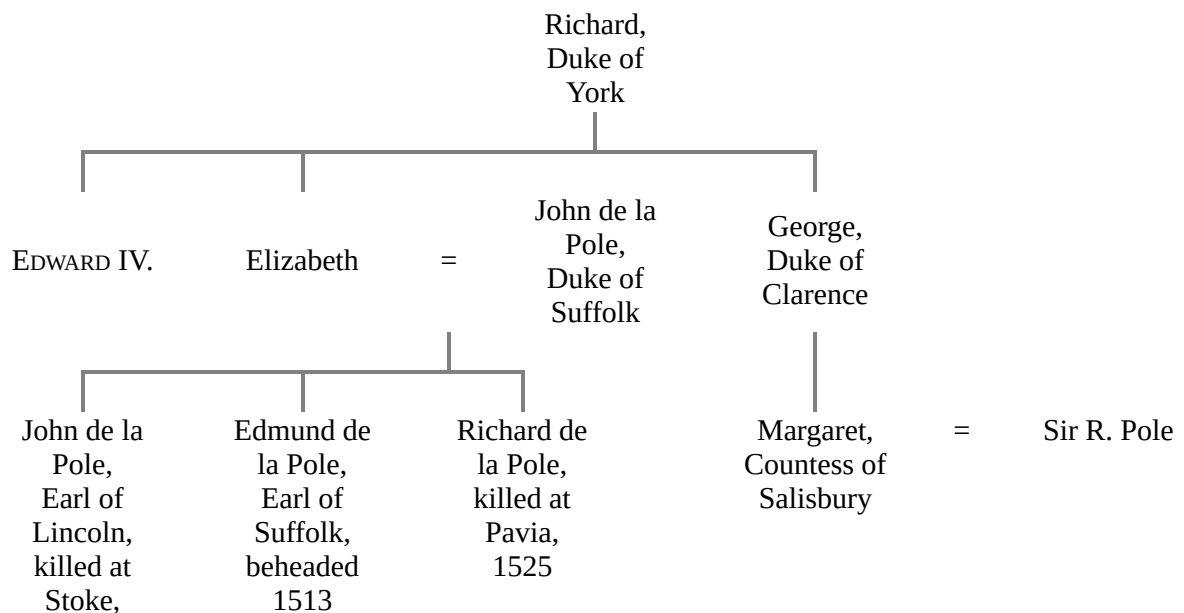
1: *i.e.* a Legate sent from the Pope's side, and therefore having power to speak almost with full Papal authority.

2: There were two Convocations, of the two provinces of Canterbury and York, but the former was so much more important that it is usually spoken of simply as Convocation.

3: The Charterhouse here means the house of the Carthusians.

4: Shrines were receptacles above ground of the bodies of saints. That of Edward the Confessor at Westminster was rebuilt by queen Mary, and that of St. Alban at St. Albans in recent times. These two are the only shrines now to be seen in England.

5: Genealogy of the de la Poles and Poles:—



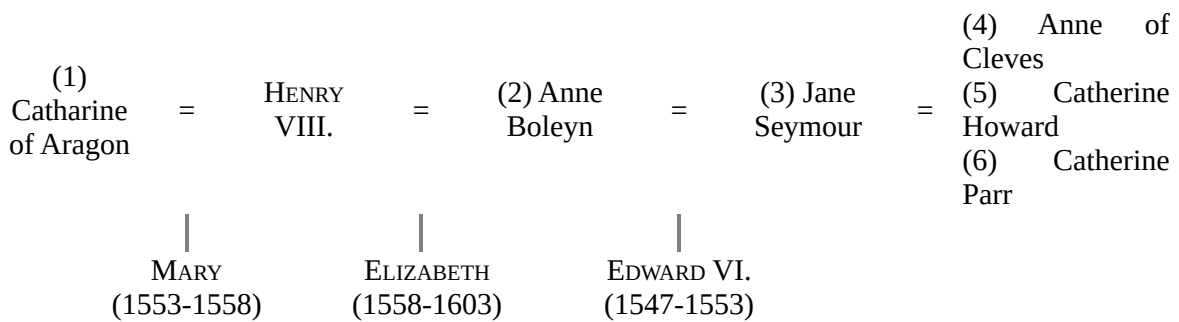
1487 (see
p. 347)

Reginald
Pole

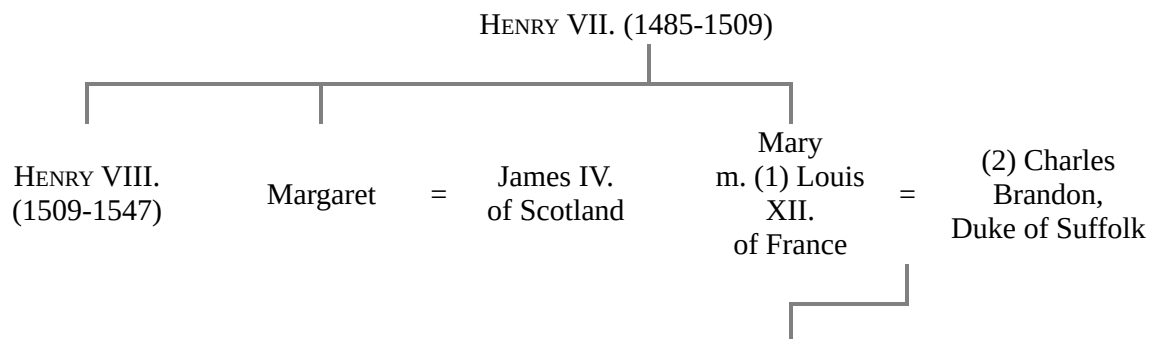
6: A Bill of attainder was brought into one or other of the Houses of Parliament, and became law, like any other Act of Parliament, after it had passed both Houses and received the Royal assent. Its object was condemnation to death, and, as the legislative powers of Parliament were unlimited, it need not be supported by the production of evidence, unless Parliament chose to ask for it. Henry VIII. preferred this mode of getting rid of ministers with whom he was dissatisfied to the old way of impeachment; as in an impeachment (see p. 262) there was at least the semblance of a judicial proceeding, the Commons appearing as accusers, and the Lords as judges.

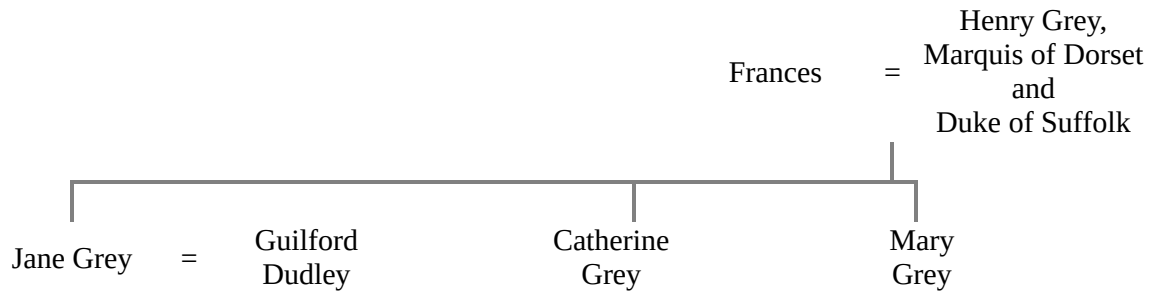
7: James's foreboding was not realised, because Mary married a Stuart.

8: Genealogy of the children of Henry VIII.:—



9: Genealogy of the Greys:—

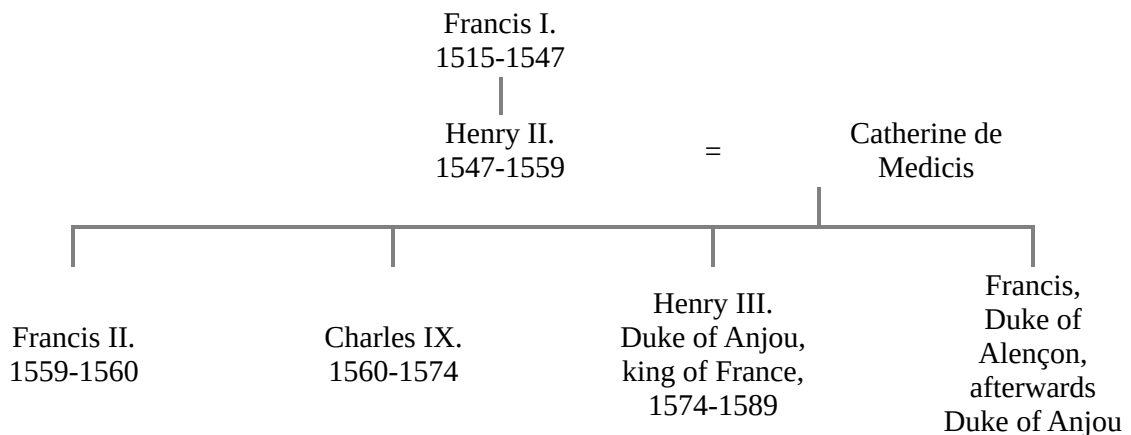




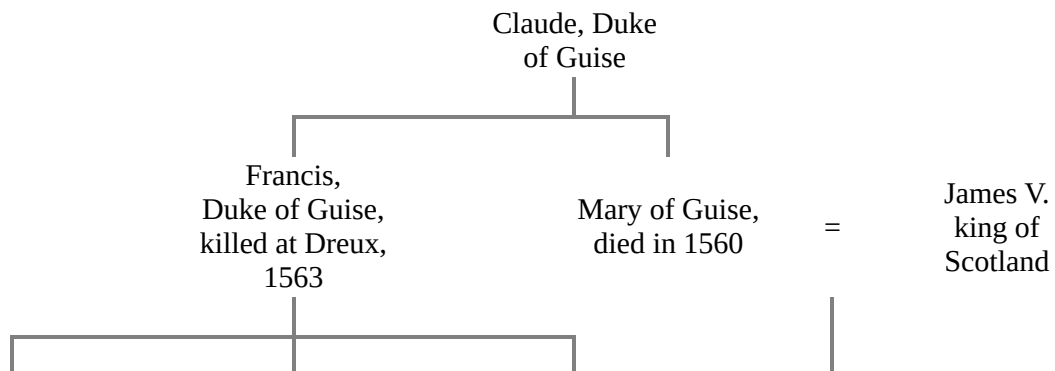
[10](#): The 19th is the date of Machyn's contemporary diary; but other authorities make it the 17th or 18th.

[11](#): The most noteworthy of these alterations was the amalgamation of the forms used respectively in the two Prayer Books of Edward VI. at the administration of the Communion (see p. [418](#)).

[12](#): Genealogy of the last Valois kings of France:—



[13](#): Genealogy of the Guises:—



Henry
Duke of Guise,
murdered in
1588

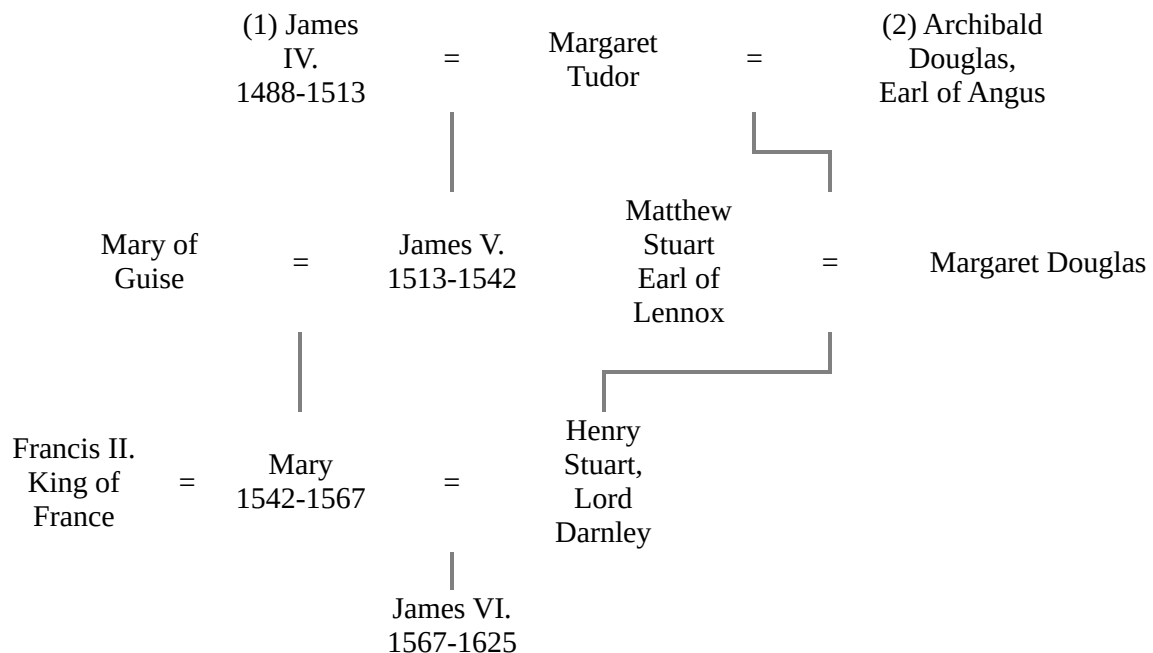
Charles,
Duke of
Mayenne

Louis,
Cardinal of
Guise,
murdered in
1588

Mary
Stuart,
Queen of
Scots

14: Probably from *Eidgenossen*, the name of the Swiss Confederates, because the first Protestants who appeared at Geneva came from Switzerland, and no French-speaking mouth could pronounce such a word as 'Eidgenossen.'

15: Genealogy of Mary and Darnley:—



16: A subsidy was a tax on lands and goods voted by Parliament to the Crown, resembling in many respects the modern income-tax.

17: Magellan died on the way, though his ship completed the voyage round the world.

18: 'Armada' was the Spanish name for any armed fleet.

19: A place near Cadiz where the Duke's residence was.

20: *i.e.* to establish the right of the subjects to possess their property.

21: A Tulchan was a stuffed calf's skin set by a cow to induce her to give her milk freely.

22: 'Law,' in the Lowlands of Scotland, means a solitary hill.

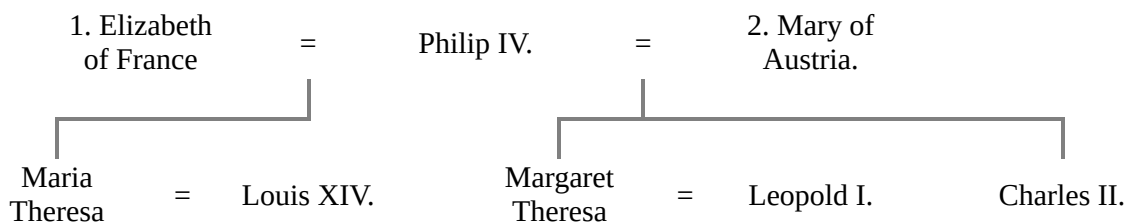
23: An ordinance was at this time in all respects similar to an Act of Parliament, except that it did not receive the Royal assent. In the middle ages an ordinance was exactly the reverse, being issued by the King without Parliamentary approval.

24: The name 'Adjutator,' often given to these men, is undoubtedly a mere blunder. The use of the verb 'to agitate' in the sense of 'to act,' and of the noun 'agitator,' in the sense of an agent, is now obsolete.

25: Cromwell did not hold that, in fighting against the king, he had himself been assailing the civil institutions of the country. In his eyes, as in the eyes of all others on his side, the king was the aggressor, attacking those institutions, and war against him was therefore defensive, being waged to save the most important part of them from destruction.

26: A treaty then meant a negotiation, not, as now, the document which results from a successful negotiation.

27: Genealogy of the surviving children of Philip IV:—



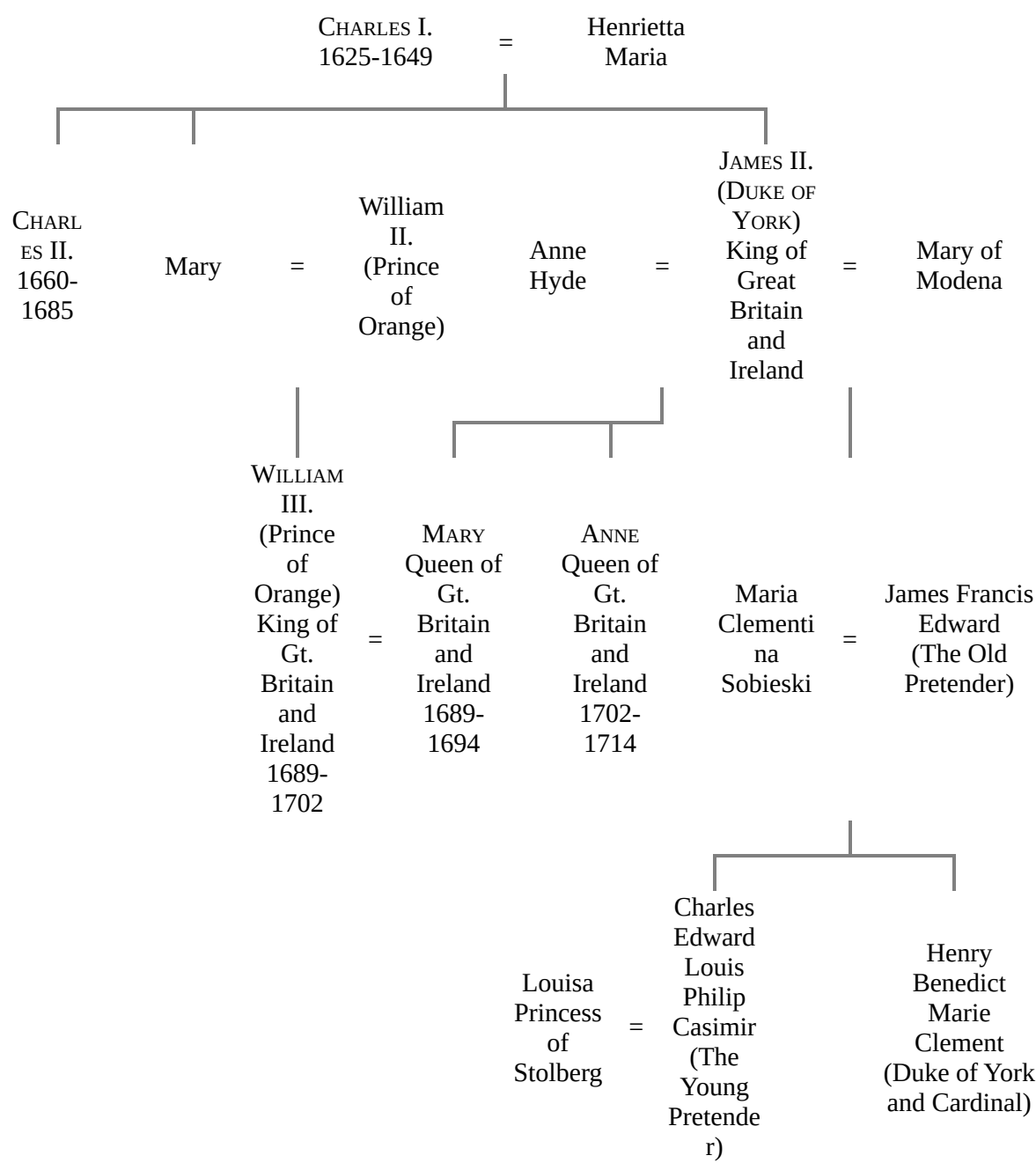
28: Two Christian names were exceedingly rare in the seventeenth century.

29: In the time of James I. the usual interest was 10 per cent. The Long Parliament paid 8.

30: The right of pardon allows the king to remit the consequences to a particular person of a sentence passed on him. The right of dispensation

allows him to remit beforehand the consequences of a breach of a law either to such persons as are named, or to all persons generally who may commit such a breach.

31: Genealogy of some of the descendants of Charles I.:—



32: By the Test Act of 1673 offices only were closed to the Catholics (see p. 607); the oath of supremacy, which had to be taken by every member of the

House of Commons, being held sufficient to exclude them from that Assembly. Peers might sit in the House of Lords without taking the oath.

[33](#): Scott's *Old Mortality* is founded on these events.

[34](#): Because the interviews took place in the king's closet, or private room.

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